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HISTORY" ***

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THE ENCYCLOPÆDIA BRITANNICA

**A DICTIONARY OF ARTS, SCIENCES,
LITERATURE AND GENERAL
INFORMATION**

ELEVENTH EDITION

VOLUME IX SLICE V

"English History"

Articles in This Slice

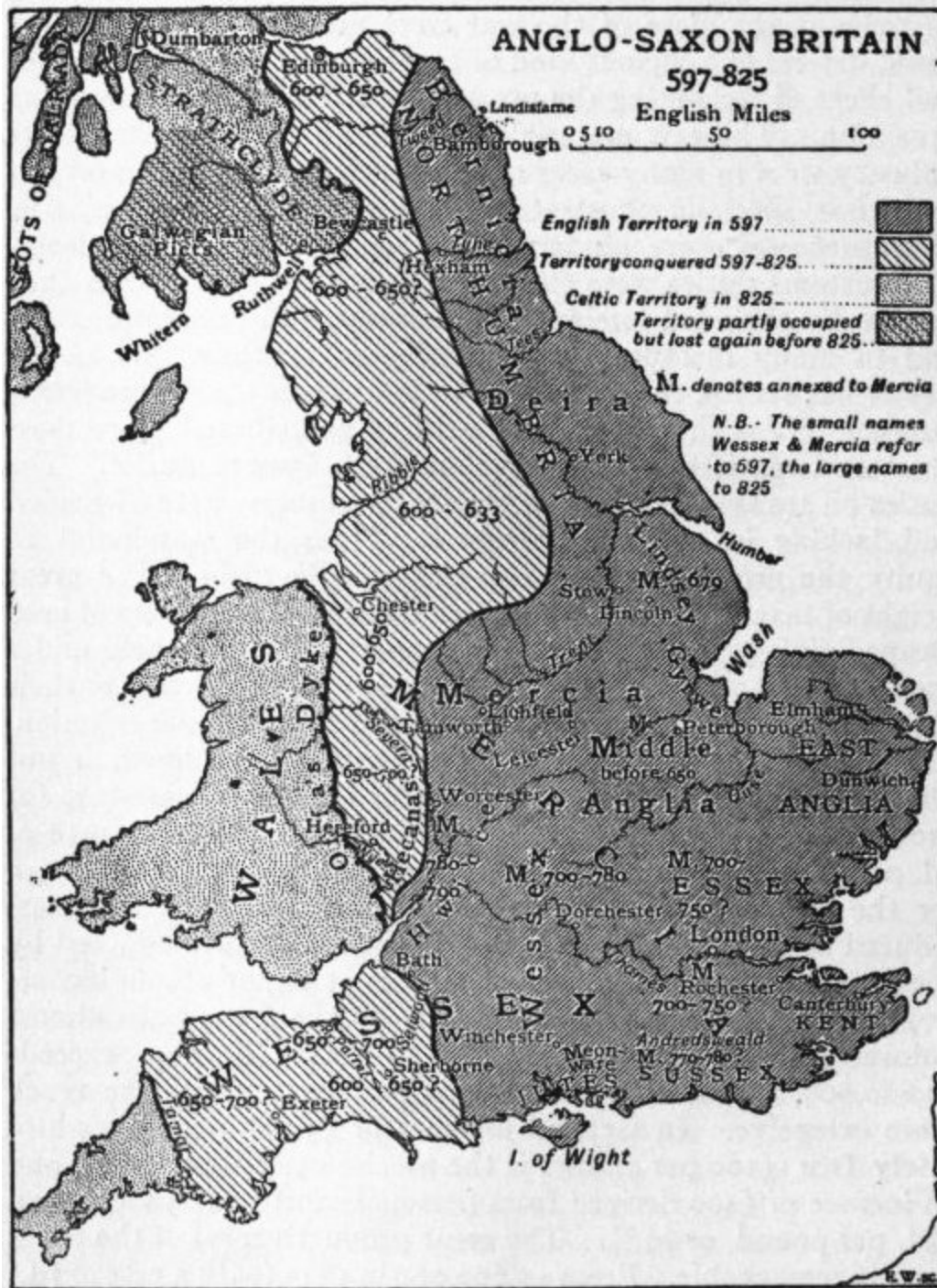
ENGLISH HISTORY



ENGLISH HISTORY.—The general account of English history which follows should be supplemented for the earlier period by the article [BRITAIN](#). See also [SCOTLAND](#), [IRELAND](#), [WALES](#).

I. FROM THE LANDING OF AUGUSTINE TO THE NORMAN CONQUEST (600-1066)

With the coming of Augustine to Kent the darkness which for nearly two centuries had enwrapped the history of Britain begins to clear away. From the days of Honorius to those of Gregory the Great the line of vision of the annalists of the continent was bounded by the Channel. As to what was going on beyond it, we have but a few casual gleams of light, just enough to make the darkness visible, from writers such as the author of the life of St Germanus, Prosper Tiro, Procopius, and Gregory of Tours. These notices do not, for the most part, square particularly well with the fragmentary British narrative that can be patched together from Gildas's "lamentable book," or the confused story of Nennius. Nor again do these British sources fit in happily with the English annals constructed long centuries after by King Alfred's scribes in the first edition of the *Anglo-Saxon Chronicle*. But from the date when the long-lost communication between Britain and Rome was once more resumed, the history of the island becomes clear and fairly continuous. The gaps are neither broader nor more obscure than those which may be found in the contemporary annals of the other kingdoms of Europe. The stream of history in this period is narrow and turbid throughout the West. Quite as much is known of the doings of the English as of those of the Visigoths of Spain, the Lombards, or the later Merovingians. The 7th century was the darkest of all the "dark ages," and England is particularly fortunate in possessing the *Ecclesiastica historia* of Bede, which, though its author was primarily interested in things religious, yet contains a copious chronicle of things secular. No Western author, since the death of Gregory of Tours, wrote on such a scale, or with such vigour and insight.



The conversion of England to Christianity took, from first to last, some ninety years (A.D. 597 to 686), though during the last thirty the ancestral

heathenism was only lingering on in remote comers of the land. The original missionary impulse came from Rome, and Augustine is rightly regarded as the evangelist of the English; yet only a comparatively small part of the nation owed its Christianity directly to the mission sent out by Pope Gregory. Wessex was won over by an independent adventurer, the Frank Birinus, who had no connexion with the earlier arrivals in Kent. The great kingdom of Northumbria, though its first Christian monarch Edwin was converted by Paulinus, a disciple of Augustine, relapsed into heathenism after his death. It was finally evangelized from quite another quarter, by Irish missionaries brought by King Oswald from Columba's monastery of Iona. The church that they founded struck root, as that of Paulinus and Edwin had failed to do, and was not wrecked even by Oswald's death in battle at the hands of Penda the Mercian, the one strong champion of heathenism that England produced. Moreover, Penda was no sooner dead, smitten down by Oswald's brother Oswio at the battle of the Winwaed (A.D. 655), than his whole kingdom eagerly accepted Christianity, and received missionaries, Irish and Northumbrian, from the victorious Oswio. It is clear that, unlike their king, the Mercians had no profound enthusiasm for the old gods. Essex, which had received its first bishop from Augustine's hands but had relapsed into heathenism after a few years, also owed its ultimate conversion to a Northumbrian preacher, Cedd, whom Oswio lent to King Sigebert after the latter had visited his court and been baptized, hard by the Roman wall, in 653.

Yet even in those English regions where the missionaries from Iona were the founders of the Church, the representatives of Rome were to be its organizers. In 664 the Northumbrian king Oswio, at the synod of Whitby, declared his adhesion to the Roman connexion, whether it was that he saw political advantage therein, or whether he realized the failings and weaknesses of the Celtic church, and preferred the more orderly methods of

her rival. Five years later there arrived from Rome the great organizer, Archbishop Theodore of Tarsus, who bound the hitherto isolated churches of the English kingdoms into a well-compacted whole, wherein the tribal bishops paid obedience to the metropolitan at Canterbury, and met him frequently in national councils and synods. England gained a spiritual unity long ere she attained a political unity, for in these meetings, which were often attended by kings as well as by prelates, Northumbrian, West Saxon and Mercian first learnt to work together as brothers.

In a few years the English church became the pride of Western Christendom. Not merely did it produce the great band of missionaries who converted heathen Germany—Willibrord, Suidbert, Boniface and the rest—

The English church.

but it excelled the other national churches in learning and culture. It is but necessary to mention Bede and Alcuin. The first, as has been already said, was the one true historian who wrote during the dark time of the 7th-8th centuries; the second became the pride of the court of Charles the Great for his unrivalled scholarship. At the coming of Augustine England had been a barbarous country; a century and a half later she was more than abreast of the civilization of the rest of Europe.

But the progress toward national unity was still a slow one. The period when the English kingdoms began to enter into the commonwealth of Christendom, by receiving the missionaries sent out from Rome or from

Formation of the kingdoms.

Iona, practically coincides with the period in which the occupation of central Britain was completed, and the kingdoms of the conquerors assumed their final size and shape. Æthelfrith, the last heathen among the Northumbrian kings, cut off the Britons of the North from those of the West, by winning the battle of Chester (A.D. 613), and occupying the land about the mouths of the Mersey and the Dee. Cenwalh, the last monarch who ascended the throne of Wessex

unbaptized, carried the boundaries of that kingdom into Mid-Somersetshire, where they halted for a long space. Penda, the last heathen king of Mercia, determined the size and strength of that state, by absorbing into it the territories of the other Anglian kingdoms of the Midlands, and probably also by carrying forward its western border beyond the Severn. By the time when the smallest and most barbarous of the Saxon states—Sussex—accepted Christianity in the year 686, the political geography of England had reached a stage from which it was not to vary in any marked degree for some 200 years. Indeed, there was nothing accomplished in the way of further encroachment on the Celt after 686, save Ine's and Cuthred's extension of Wessex into the valleys of the Tone and the Exe, and Offa's slight expansion of the Mercian frontier beyond the Severn, marked by his famous dyke. The conquests of the Northumbrian kings in Cumbria were ephemeral; what Oswio won was lost after the death of Ecgfrith.

That the conversion of the English to Christianity had anything to do with their slackening from the work of conquest it would be wrong to assert. Though their wars with the Welsh were not conducted with such ferocious cruelty as of old, and though (as the laws of Ine show) the Celtic inhabitants of newly-won districts were no longer exterminated, but received as the king's subjects, yet the hatred between Welsh and English did not cease because both were now Christians. The westward advance of the invaders would have continued, if only there had remained to attract them lands as desirable as those they had already won. But the mountains of Wales and the moors of Cornwall and Cumbria did not greatly tempt the settler. Moreover, the English states, which had seldom turned their swords against each other in the 5th or the 6th centuries, were engaged during the 7th and the 8th in those endless struggles for supremacy which seem so purposeless, because the hegemony which a king of energy and genius won for his kingdom always disappeared with his death.

The "Bretwaldas."

The "Bretwaldaship," as the English seem to have

called it, was the most ephemeral of dignities. This was but natural: conquest can only be enforced by the extermination of the conquered, or by their consent to amalgamate with the conquerors, or by the garrisoning of the land that has been subdued by settlers or by military posts. None of these courses were possible to a king of the 7th or 8th centuries: even in their heathen days the English were not wont to massacre their beaten kinsmen as they massacred the unfortunate Celt. After their conversion to Christianity the idea of exterminating other English tribes grew even more impossible. On the other hand, local particularism was so strong that the conquered would not, at first, consent to give up their natural independence and merge themselves in the victors. Such amalgamations became possible after a time, when many of the local royal lines died out, and unifying influences, of which a common Christianity was the most powerful, sapped the strength of tribal pride. But it is not till the 9th century that we find this phenomenon growing general. A kingdom like Kent or East Anglia, even after long subjection to a powerful overlord, rose and reasserted its independence immediately on hearing of his death. His successor had to attempt a new conquest, if he felt himself strong enough. To garrison a district that had been overrun was impossible: the military force of an English king consisted of his military household of *gesiths*, backed by the general levy of the tribe. The strength of Mercia or Northumbria might be mustered for a single battle, but could not supply a standing army to hold down the vanquished. The victorious king had to be content with tribute and obedience, which would cease when he died, or was beaten by a competitor for the position of Bretwalda.

In the ceaseless strife between the old English kingdoms, therefore, it was the personality of the king which was the main factor in determining the hegemony of one state over another. If in the 7th century the successive great Northumbrians—Edwin, Oswald, Oswio and Ecgfrith—were reckoned the chief monarchs of England, and exercised a widespread

**Supremacy of
Northumbria.**

influence over the southern realms, yet each had to win his supremacy by his own sword; and when Edwin and Oswald fell before the savage heathen Penda, and Ecgfrith was cut off by the Picts, there was a gap of anarchy before another king asserted his superior power. The same phenomenon was seen with regard to the Mercian kings of the 8th century; the long reigns of the two

**Supremacy of
Mercia.**

conquerors Æthelbald and Offa covered eighty years (716-796), and it might have been supposed that after such a term of supremacy Mercia would have remained permanently at the head of the English kingdoms. It was not so, Æthelbald in his old age lost his hegemony at the battle of Burford (752), and was murdered a few years after by his own people. Offa had to win back by long wars what his kinsman had lost; he became so powerful that we find the pope calling him *Rex Anglorum*, as if he were the only king in the island. He annexed Kent and East Anglia, overawed Northumbria and Wessex, both hopelessly faction-ridden at the time, was treated almost as an equal by the emperor Charles the Great, and died still at the height of his power. Yet the moment that he was dead all his vassals revolted; his successors could never recover all that was lost. Kent once more became a kingdom, and two successive Mercian sovereigns, Beornwulf and Ludica, fell in battle while vainly trying to recover Offa's supremacy over East Anglia and Wessex.

The ablest king in England in the generation that followed Offa was Ecgbert of Wessex, who had long been an exile abroad, and served for thirteen years as one of the captains of Charles the Great. He beat

**Supremacy of
Wessex.**

Beornwulf of Mercia at Ellandune (A.D. 823), permanently annexed Kent, to whose crown he had a claim by descent, in 829 received the homage of all the other English kings, and was for the remainder of his life reckoned as "Bretwalda." But it is wrong to call him, as some have done, "the first monarch of all England." His power was no greater than that of Oswio or

Offa had been, and the supremacy might perhaps have tarried with Wessex no longer than it had tarried with Northumbria or Mercia if it had not chanced that the Danish raids were now beginning. For these invasions, paradoxical as it may seem, were the greatest efficient cause in the welding together of England. They seemed about to rend the land in twain, but they really cured the English of their desperate particularism, and drove all the tribes to take as their common rulers the one great line of native kings which survived the Danish storm, and maintained itself for four generations of desperate fighting against the invaders. On the continent the main effect of the viking invasions was to dash the empire of Charles the Great into fragments, and to aid in producing the numberless petty states of feudal Europe. In this island they did much to help the transformation of the mere Bretwaldaship of Ecgbert into the monarchy of all England.

Already ere Ecgbert ascended the throne of Kent the new enemy had made his first tentative appearance on the British shore. It was in the reign of Beorhtric, Ecgbert's predecessor, that the pirates of the famous "three ships from Heretheland" had appeared on the coast of *Danish invasions.* Dorset, and slain the sheriff "who would fain have known what manner of men they might be." A few years later another band appeared, rising unexpectedly from the sea to sack the famous Northumbrian monastery of Lindisfarne (793). After that their visits came fast and furious on the shore-line of every English kingdom, and by the end of Ecgbert's reign it was they, and not his former Welsh and Mercian enemies, who were the old monarch's main source of trouble. But he brought his Bretwaldaship to a good end by inflicting a crushing defeat on them at Hingston Down, hard by the Tamar, probably in 836, and died ere the year was out, leaving the ever-growing problem to his son Æthelwulf.

The cause of the sudden outpouring of the Scandinavian deluge upon the lands of Christendom at this particular date is one of the puzzles of history. So far as memory ran, the peoples beyond the North Sea had been seafaring

*Influence of viking
sea-power.*

 races addicted to piracy. Even Tacitus mentions their fleets. Yet since the 5th century they had been restricting their operations to their own shores, and are barely heard of in the chronicles of their southern neighbours. It seems most probable that the actual cause of their sudden activity was the conquest of the Saxons by Charles the Great, and his subsequent advance into the peninsula of Denmark. The emperor seemed to be threatening the independence of the North, and in terror and resentment the Scandinavian peoples turned first to strike at the encroaching Frank, and soon after to assail the other Christian kingdoms which lay behind, or on the flank of, the Empire. But their offensive action proved so successful and so profitable that, after a short time, the whole manhood of Denmark and Norway took to the pirate life. Never since history first began to be recorded was there such a supreme example of the potentialities of sea-power. Civilized Europe had been caught at a moment when it was completely destitute of a war-navy; the Franks had never been maritime in their tastes, the English seemed to have forgotten their ancient seafaring habits. Though their ancestors had been pirates as fierce as the vikings of the 9th century, and though some of their later kings had led naval armaments—Edwin had annexed for a moment Man and Anglesea, and Ecgfrith had cruelly ravaged part of Ireland—yet by the year 800 they appear to have ceased to be a seafaring race. Perhaps the long predominance of Mercia, an essentially inland state, had something to do with the fact. At any rate England was as helpless as the Empire when first the Danish and Norwegian galleys began to cross the North Sea, and to beat down both sides of Britain seeking for prey. The number of the invaders was not at first very great; their fleets were not national armaments gathered by great kings, but squadrons of a few vessels

collected by some active and enterprising adventurer. Their original tactics were merely to land suddenly near some thriving seaport, or rich monastery, to sack it, and to take to the water again before the local militia could turn out in force against them. But such raids proved so profitable that the vikings soon began to take greater things in hand; they began to ally themselves in confederacies: two, six or a dozen “sea-kings” would join their forces for something more than a desultory raid. With fifty or a hundred ships they would fall upon some unhappy region, harry it for many miles inland, and offer battle to the landsfolk unless the latter came out in overpowering force. And as their crews were trained warriors chosen for their high spirit, contending with a raw militia fresh from the plough, they were generally successful. If the odds were too great they could always retire to their ships, put to sea, and resume their predatory operations on some other coast three hundred miles away. As long as their enemies were unprovided with a navy they were safe from pursuit and annihilation. The only chance against them was that, if caught too far from the base-fort where they had run their galleys ashore, they might find their communication with the sea cut off, and be forced to fight for their lives surrounded by an infuriated countryside. But in the earlier years of their struggles with Christendom the vikings seldom suffered a complete disaster; they were often beaten but seldom annihilated. Ere long they grew so bold that they would stay ashore for months, braving the forces of a whole kingdom, and sheltering themselves in great palisaded camps on peninsulas or islands when the enemy pressed them too hard. On well-guarded strongholds like Thanet or Sheppey in England, Noirmoutier at the Loire mouth, or the Isle of Walcheren, they defied the local magnates to evict them. Finally they took to wintering on the coast of England or the Empire, a preliminary to actual settlement and conquest. (See [VIKING](#).)

King Ecgbert died long ere the invaders had reached this stage of insolence. Æthelwulf, his weak and kindly son, would undoubtedly have

lost the titular supremacy of Wessex over the other English kingdoms if there had been in Mercia or Northumbria a strong king with leisure to concentrate his thoughts on domestic wars. But the vikings were now showering such blows on the northern states that their unhappy monarchs could think of nothing but self-defence. They slew Redulf—king of Northumbria—in 844, took London in 851, despite all the efforts of Burgred of Mercia, and forced that sovereign to make repeated appeals for help to Æthelwulf as his overlord. For though Wessex had its full share of Danish attacks it met them with a vigour that was not seen in the other realms. The defence was often, if not always, successful; and once at least (at Aclea in 851) Æthelwulf exterminated a whole Danish army with “the greatest slaughter among the heathen host that had been heard of down to that day,” as the Anglo-Saxon chronicler is careful to record. But though he might ward off blows from his own realm, he was helpless to aid Mercia or East Anglia, and still more the distant Northumbria.

Progress of Danish conquest.

It was not, however, till after Æthelwulf’s death that the attack of the vikings developed its full strength. The fifteen years (856-871) that were covered by the reigns of his three short-lived sons, Æthelbald, Æthelbert and Æthelred, were the most miserable that England was to see. Assembling in greater and ever greater confederacies, the Danes fell upon the northern kingdoms, no longer merely to harry but to conquer and occupy them. A league of many sea-kings which called itself the “great army” slew the last two sovereigns of Northumbria and stormed York in 867. Some of the victors settled down there to lord it over the half-extermiated English population. The rest continued their advance southward. East Anglia was conquered in 870; its last king, Edmund, having been defeated and taken prisoner, the vikings shot him to death with arrows because he would not worship their gods. His realm was annexed and partly settled by the conquerors. The fate of Mercia was hardly better: its king, Burgred, by

constant payment of tribute, bought off the invaders for a space, but the eastern half of his realm was reduced to a wilderness.

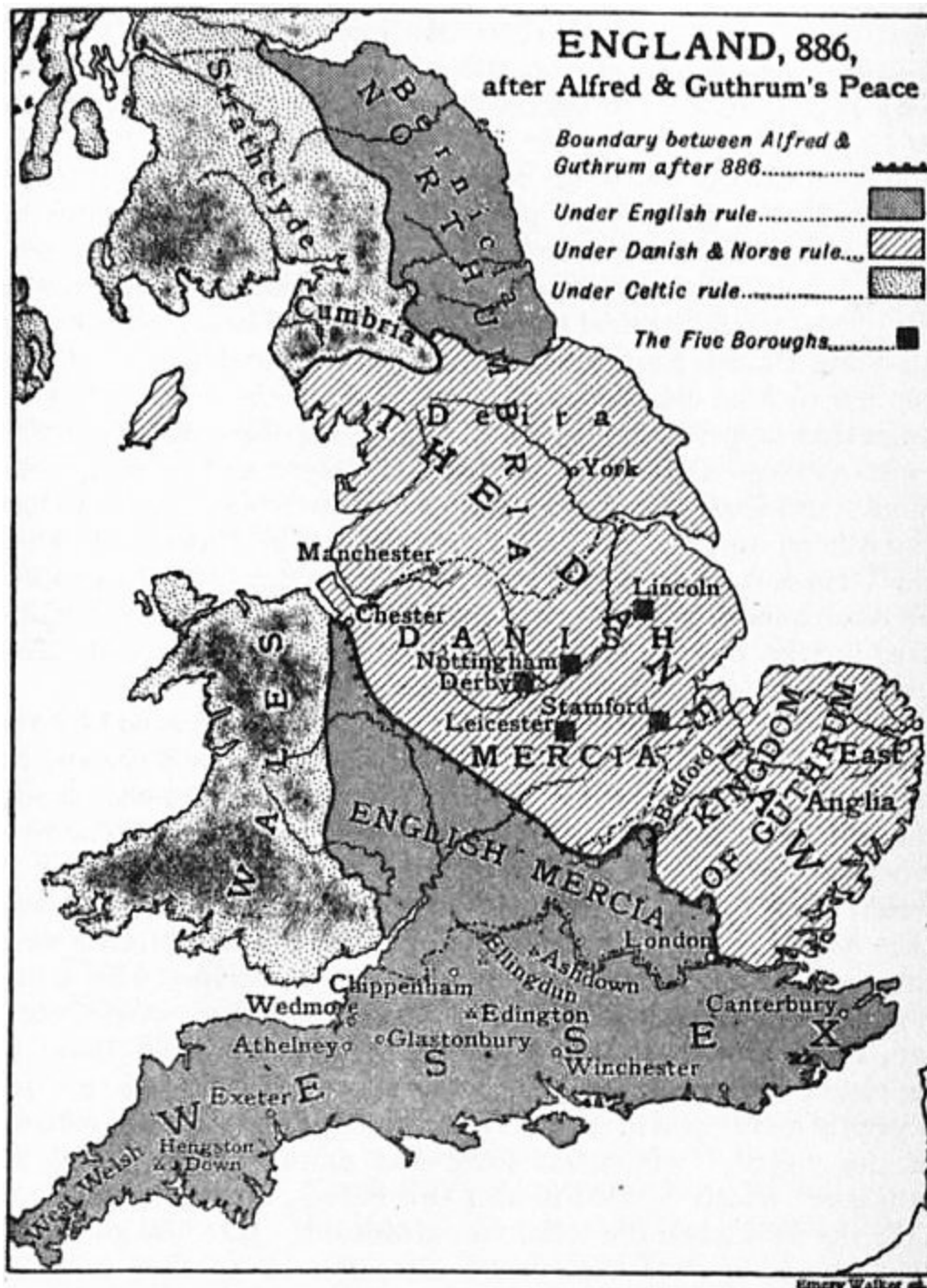
Practically masters of all that lay north of Thames, the “great army” next moved against Wessex, the only quarter where a vigorous resistance was still maintained against them, though its capital, Winchester, had been sacked in 864. Under two kings named Halfdan and Bacsceg, and six earls, they seized Reading and began to harry Berkshire, Surrey and Hampshire. King Æthelred, the third son of Æthelwulf, came out against them, with his young brother Alfred and all the levies of Wessex. In the year 871 these two gallant kinsmen fought no less than six pitched battles against the invaders. Some were victories—notably the fight of Ashdown, where Alfred first won his name as a soldier—but the English failed to capture the fortified camps of the vikings at Reading, and were finally beaten at Marten (“Maeretun”) near Bedwyn, where Æthelred was mortally wounded.

He left young sons, but the men of Wessex crowned Alfred king, because they needed a grown man to lead them in their desperate campaigning. Yet his reign opened inauspiciously: defeated near Wilton, he offered in despair

Alfred the Great. to pay the vikings to depart. He must have known, from the experience of Mercian, Northumbrian and Frankish kings, that such blackmail only bought a short respite, but the condition of his realm was such that even a moderate time for reorganization might prove valuable. The enemy had suffered so much in the “year of the six battles” that they held off for some space from Wessex, seeking easier prey on the continent and in northern England. In 874 they harried Mercia so cruelly that King Burgred fled in despair to Rome; the victors divided up his realm, taking the eastern half for themselves, and establishing in it a confederacy, whose jarls occupied the “five boroughs” of Stamford, Lincoln, Derby, Nottingham and Leicester. But the western half they handed over to “an unwise thegn named

Ceolwulf,” who bought for a short space the precarious title of king by paying great tribute.

Alfred employed the four years of peace, which he had bought in 871, in the endeavour to strengthen his realm against the inevitable return of the raiders. His wisdom was shown by the fact that he concentrated his attention on the one device which must evidently prove effective for defence, if only he were given time to perfect it—the building of a national navy. He began to lay down galleys and “long ships,” and hired “pirates”—renegade vikings no doubt—to train crews for him and to teach his men seamanship. The scheme, however, was only partly completed when in 876 three Danish kings entered Wessex and resumed the war. But Alfred blockaded them first in Wareham and then in Exeter. The fleet which was coming to carry them off, or to bring them reinforcements, fought an indecisive engagement with the English ships, and was wrecked immediately after on the cliffs of the Isle of Purbeck, where more than 100 galleys and all their crews perished. On hearing of this disaster the vikings in Exeter surrendered the place on being granted a free departure.



Yet within a few months of this successful campaign Alfred was attacked at midwinter by the main Danish army under King Guthrum. He was

apparently taken by surprise by an assault at such an unusual time of the year, and was forced to escape with his military household to the isle of Athelney among the marshes of the Parrett. The invaders harried Wiltshire and Hampshire at their leisure, and vainly thought that Wessex was at last subdued. But with the spring the English rallied: a Danish force was cut to pieces before Easter by the men of Devonshire. A few weeks later Alfred had issued from Athelney, had collected a large army in Selwood, and went out to meet the enemy in the open field. He beat them at Edington in Wiltshire, blockaded them in their great camp at Chippenham, and in fourteen days starved them into surrender. The terms were that they should give hostages, that they should depart for ever from Wessex, and that their king Guthrum should do homage to Alfred as overlord, and submit to be baptized, with thirty of his chiefs. Not only were all these conditions punctually fulfilled, but (what is more astonishing) the Danes had been so thoroughly cured of any desire to try their luck against the great king that they left him practically unmolested for fourteen years (878-892). King Guthrum settled down as a Christian sovereign in East Anglia, with the bulk of the host that had capitulated at Chippenham. Of the rest of the invaders one section established a petty kingdom in Yorkshire, but those in the Midlands were subject to no common sovereign but lived in a loose confederacy under the jarls of the “Five Boroughs” already named above. The boundary between English and Danes established by the peace of 878 is not perfectly ascertainable, but a document of a few years later, called “Alfred and Guthrum’s frith,” gives the border as lying from Thames northward up the Lea to its source, then across to Bedford, and then along the Ouse to Watling Street, the old Roman road from London to Chester. This gave King Alfred London and Middlesex, most of Hertfordshire and Bedfordshire, and the larger half of Mercia—lands that had never before been an integral part of Wessex, though they had some time been tributary to her kings. They were now taken inside the realm and governed by the

ealdorman Æthelred, the king's son-in-law. The Mercians gladly mingled with the West Saxons, and abandoned all memories of ancient independence. Twenty years of schooling under the hand of the Dane had taught them to forget old particularism.

Alfred's enlarged kingdom was far more powerful than any one of the three new Danish states which lay beyond the Lea and Watling Street: it was to be seen, ere another generation was out, that it was stronger than all three together. But Alfred was not to see the happy day when York and Lincoln, Colchester and Leicester, were to become mere shire-capitals in the realm of United England.

The fourteen years of comparative peace which he now enjoyed were devoted to perfecting the military organization of his enlarged kingdom. His fleet was reconstructed: in 882 he went out with it in person and destroyed a small piratical squadron: in 885 we hear of it coasting all along Danish East Anglia. But his navy was not yet strong enough to hold off all raids: it was not till the very end of his reign that he perfected it by building "long ships that were nigh twice as large as those of the heathen; some had 60 oars, some more; and they were both steadier and swifter and lighter than the others, and were shaped neither after the Frisian nor after the Danish fashion, but as it seemed to himself that they would be most handy." This great war fleet he left as a legacy to his son, but he himself in his later campaigns had only its first beginnings at his disposal.

His military reforms were no less important. Warned by the failures of the English against Danish entrenched camps, he introduced the long-neglected art of fortification, and built many "burhs"—stockaded fortresses on mounds by the waterside—wherein dwelt permanent garrisons of military settlers. It would seem that the system by which he maintained them was that he assigned to each a region of which the inhabitants were

responsible for its manning and its sustentation. The landowners had either to build a house within it for their own inhabiting, or to provide that a competent substitute dwelt there to represent them. These “burh-ware,” or garrison-men, are repeatedly mentioned in Alfred’s later years. The old national levy of the “fyrd” was made somewhat more serviceable by an ordinance which divided it into two halves, one of which must take the field when the other was dismissed. But it would seem that the king paid even more attention to another military reform—the increase of the number of the professional fighting class, the thegnhood as it was now called. All the wealthier men, both in the countryside and in the towns, were required to take up the duties as well as the privileges of membership of the military household of the king. They became “of thegn-right worthy” by receiving, really or nominally, a place in the royal hall, with the obligation to take the field whenever their master raised his banner. The document which defines their duties and privileges sets forth that “every ceorl who throve so that he had fully five hides of land, and a helm, and a mail-shirt, and a sword ornamented with gold, was to be reckoned gesithcund.” A second draft allowed the man who had the military equipment complete, but not fully the five hides of land, to slip into the list, and also “the merchant who has fared thrice over the high seas at his own expense.” How far the details of the scheme are Alfred’s own, how far they were developed by his son Edward the Elder, it is unfortunately impossible to say. But there is small doubt that the system was working to some extent in the later wars of the great king, and that his successes were largely due to the fact that his army contained a larger nucleus of fully armed warriors than those of his predecessors.

Military reforms were only one section of the work of King Alfred during the central years of his reign. It was then that he set afoot his numerous schemes for the restoration of the learning and culture of England which had sunk so low during the long years of disaster which had preceded his accession. How he gathered scholars from the continent, Wales and Ireland;

how he collected the old heroic poems of the nation, how he himself translated books from the Latin tongue, started schools, and set his scribes to write up the *Anglo-Saxon Chronicle*, is told elsewhere, as are his mechanical inventions, his buildings, and his dealings with missionaries and explorers (see [ALFRED](#)).

The test of the efficiency of his work was that it held firm when, in his later years, the Danish storm once more began to beat against the shores of Wessex. In the years 892-896 Alfred was assailed from many sides at once by viking fleets, of which the most important was that led by the great freebooter Hasting. Moreover, the settled Danes of eastern England broke their oaths and gave the invaders assistance. Yet the king held his own, with perfect success if not with ease. The enemy was checked, beaten off, followed up rapidly whenever he changed his base of operation, and hunted repeatedly all across England. The campaigning ranged from Appledore in Kent to Exeter, from Chester to Shoeburyness; but wherever the invaders transferred themselves, either the king, or his son Edward, or his son-in-law Ethelred, the ealdorman of Mercia, was promptly at hand with a competent army. The camps of the Danes were stormed, their fleet was destroyed in the river Lea in 895, and at last the remnant broke up and dispersed, some to seek easier plunder in France, others to settle down among their kinsmen in Northumbria or East Anglia.

Alfred survived for four years after his final triumph in 896, to complete the organization of his fleet and to repair the damages done by the last four years of constant fighting. He died on the 26th of October 900, leaving Wessex well armed for the continuance of the struggle, and the inhabitants of the “Danelagh” much broken in spirit. They saw that it would never be in their power to subdue all England. Within a few years they were to realize that it was more probable that the English kings would subdue them.

The house of Wessex continued to supply a race of hard-fighting and capable monarchs, who went on with Alfred's work. His son, Edward the Elder, and his three grandsons, Æthelstan, Edmund and Edred, devoted themselves for fifty-five years (A.D. 900-955) to the task of conquering the Danelagh, and ended by making England into a single unified kingdom, not by admitting the conquered to homage and tribute, in the old style of the 7th century, but by their complete absorption. The process was not so hard as might be thought; when once the Danes had settled down, had brought over wives from their native land or taken them from among their English vassals, had built themselves farmsteads and accumulated flocks and herds, they lost their old advantage in contending with the English. Their strength had been their mobility and their undisputed command of the sea. But now they had possessions of their own to defend, and could not raid at large in Wessex or Mercia without exposing their homes to similar molestation. Moreover, the fleet which Alfred had built, and which his successors kept up, disputed their mastery of the sea, and ended by achieving a clear superiority over them. Unity of plan and unity of command was also on the side of the English. The inhabitants of the three sections of the Danelagh were at best leagued in a many-headed confederacy. Their opponents were led by kings whose orders were punctually obeyed from Shrewsbury to Dover and from London to Exeter. It must also be remembered that in the greater part of the land which they possessed the Danes were but a small minority of the population. After their first fury was spent they no longer exterminated the conquered, but had been content to make the Mercians and Deirans their subjects, to take the best of the land, and exact tribute for the rest. Only in Lincolnshire, East Yorkshire and parts of Nottinghamshire and Leicestershire do they seem to have settled thickly and formed a preponderating element in the countryside. In the rest of the Midlands and in East Anglia they were only a governing oligarchy of scanty numbers.

Everywhere there was an English lower class which welcomed the advent of the conquering kings of Wessex and the fall of the Danish jarls.

Edward the Elder spent twenty-five laborious years first in repelling and repaying Danish raids, then in setting to work to subdue the raiders. He worked forward into the Danelagh, building *burhs* as he advanced, to hold down each district that he won. He was helped by his brother-in-law, the Mercian ealdorman Æthelred, and, after the death of that magnate, by his warlike sister Æthelflæd, the ealdorman's widow, who was continued in her husband's place. While Edward, with London as his base, pushed forward into the eastern counties, his sister, starting from Warwick and Stafford, encroached on the Danelagh along the line of the Trent. The last Danish king of East Anglia was slain in battle in 918, and his realm annexed. Æthelflæd won Derby and Leicester, while her brother reduced Stamford and Nottingham. Finally, in 921, not only was the whole land south of the Humber subdued, but the Yorkshire Danes, the Welsh, and even—it is said—the remote Scots of the North, did homage to Edward and became his men.

In 925 Edward was succeeded by his eldest, son Æthelstan, who completed the reduction of the Danelagh by driving out Guthfrith, the Danish king of York, and annexing his realm. But this first conquest of the region beyond Humber had to be repeated over and over again; time after time the Danes rebelled and proclaimed a new king, aided sometimes by bands of their kinsmen from Ireland or Norway, sometimes by the Scots and Strathclyde Welsh. Æthelstan's greatest and best-remembered achievement was his decisive victory in 937 at Brunanburh—an unknown spot, probably by the Solway Firth or the Ribble—over a great confederacy of rebel Danes of Yorkshire, Irish Danes from Dublin, the Scottish king, Constantine, and Eugenius, king of Strathclyde. Yet even after such a triumph Æthelstan had

to set up a Danish under-king in Yorkshire, apparently despairing of holding it down as a shire governed by a mere ealdorman. But its overlordship he never lost, and since he also maintained the supremacy which his father had won over the Welsh and Scots, it was not without reason that he called himself on his coins and in his charters *Rex totius Britanniae*. Occasionally he even used the title *Basileus*, as if he claimed a quasi-imperial position.

The trampling out of the last embers of Danish particularism in the North was reserved for Æthelstan's brothers and successors, Edmund and Edred (940-955), who put down several risings of the Yorkshiremen, one of which

Edmund: Edred. was aided by a rebellion of the Midland Danes of the Five Boroughs. But the untiring perseverance of the house of Alfred was at last rewarded by success. After the expulsion of the last rebel king of York, Eric Haraldson, by Edred in 948, we cease to hear of trouble in the North. When next there was rebellion in that quarter it was in favour of a Wessex prince, not of a Danish adventurer, and had no sinister national significance. The descendants of the vikings were easily incorporated in the English race, all the more so because of the wise policy of the conquering kings, who readily employed and often promoted to high station men of Danish descent who showed themselves loyal—and this not only in the secular but in spiritual offices. In 942 Oda, a full-blooded Dane, was made archbishop of Canterbury. The Danelagh became a group of earldoms, ruled by officials who were as often of Danish as of English descent.

It is notable that when, after Edred's death, there was civil strife, owing to the quarrel of his nephew Edwy with some of his kinsmen, ministers and bishops, the rebels, who included the majority of the Mercians and Northumbrians, set up as their pretender to the throne not a Dane but Edwy's younger brother Edgar, who ruled for a short time north of Thames, and became sole monarch on the death of his unfortunate kinsman.

The reign of Edgar (959-975) saw the culmination of the power of the house of Alfred. It was untroubled by rebellion or by foreign invasions, so that the king won the honourable title of *Rex Pacificus*. The minor sovereigns of Britain owned him as overlord, as they had owned his grandfather Edward and his uncle Æthelstan. It was long remembered “how all the kings of this island, both the Welsh and the Scots, eight kings, came to him once upon a time on one day and all bowed to his governance.” The eight were Kenneth of Scotland, Malcolm of Strathclyde, Maccus of Man, and five Welsh kings. There is fair authority for the well-known legend that, after this meeting at Chester, he was rowed in his barge down the Dee by these potentates, such a crew as never was seen before or after, and afterwards exclaimed that those who followed him might now truly boast that they were kings of all Britain.

Edgar’s chief counsellor was the famous archbishop Dunstan, to whom no small part of the glory of his reign has been ascribed. This great prelate was an ecclesiastical reformer—a leader in a movement for the general purification of morals, and especially for the repressing of simony and evil-living among the clergy—a great builder of churches, and a stringent enforcer of the rules of the monastic life. But he was also a busy statesman; he probably had a share in the considerable body of legislation which was enacted in Edgar’s reign, and is said to have encouraged him in his policy of treating Dane and Englishman with exact equality, and of investing the one no less than the other with the highest offices in church and state.

Edgar’s life was too short for the welfare of his people—he was only in his thirty-third year when he died in 975, and his sons were young boys. The hand of a strong man was still needed to keep the peace in the newly-constituted realm of all England, and the evils of a minority were not long in showing themselves. One section of the magnates had possession of the

thirteen-year-old king Edward, and used his name to cover their ambitions. The other was led by his step-mother Ælfthryth, who was set on pushing the claims of her son, the child Æthelred. After much factious strife, and many stormy meetings of the Witan, Edward was murdered at Corfe in 978 by some thegns of the party of the queen-dowager. The crime provoked universal indignation, but since there was no other prince of the house of Alfred available, the magnates were forced to place Æthelred on the throne: he was only in his eleventh year, and was at least personally innocent of complicity in his brother's death.

With the accession of Æthelred, the "Redeless," as he was afterwards called from his inability to discern good counsel from evil, and the consistent incapacity of his policy, an evil time began. The retirement from public life of Edgar's old minister Dunstan was the first event of the new reign, and no man of capacity came forward to take his place. The factions which had prevailed during the reign of Edward "the Martyr" seem to have continued to rage during his brother's minority, yet Æthelred's earliest years were his least disastrous. It was hoped that when he came to man's estate things would improve, but the reverse was the case. The first personal action recorded of him is an unjust harrying of the goods of his own subjects, when he besieged Rochester because he had quarrelled with its bishop over certain lands, and was bribed to depart with 100 pounds of silver. Yet from 978 to 991 no irreparable harm came to England; the machinery for government and defence which his ancestors had established seemed fairly competent to defend the realm even under a wayward and incapable king. Two or three small descents of vikings are recorded, but the ravaging was purely local, and the invader soon departed. No trouble occurred in the Danelagh, where the old tendency of the inhabitants to take sides with their pagan kinsmen from over the sea appears to have completely vanished. But the vikings had apparently learnt by small experiments that England was no

Æthelred the Unready.

Danish invasions.

longer guarded as she had been in the days of Alfred or Æthelstan, and in 991 the first serious invasion of Æthelred's reign took place. A large fleet came ashore in Essex, and, after a hard fight with the ealdorman Brihtnoth at Maldon, slew him and began to ravage the district north of the Thames. Instead of making a desperate attempt to drive them off, the king bribed them to depart with 10,000 pounds of silver, accepting it is said this cowardly advice from archbishop Sigeric. The fatal precedent soon bore fruit: the invaders came back in larger numbers, headed by Olaf Tryggveson, the celebrated adventurer who afterwards made himself king of Norway, and who was already a pretender to its throne. He was helped by Sweyn, king of Denmark, and the two together laid siege to London in 994, but were beaten off by the citizens. Nevertheless Æthelred for a second time stooped to pay tribute, and bought the departure of Dane and Norwegian with 16,000 pounds of silver. There was a precarious interval of peace for three years after, but in 997 began a series of invasions led by Sweyn which lasted for seventeen years, and at last ended in the complete subjection of England and the flight of Æthelred to Normandy. It should be noted that the invader during this period was no mere adventurer, but king of all Denmark, and, after Olaf Tryggveson's death in 1000, king of Norway also. His power was something far greater than that of the Guthrums and Anlafs of an earlier generation, and—in the end of his life at least—he was aiming at political conquest, and not either at mere plunder or at finding new settlements for his followers. But if the strength of the invader was greater than that of his predecessors, Æthelred also was far better equipped for war than his ancestors of the 9th century. He owned, and he sometimes used—but always to little profit—a large fleet, while all England instead of the mere realm of Wessex was at his back. Any one of the great princes of the house of Egbert who had reigned from 871 to 975, would have fought a winning fight with such resources, and it took nearly twenty years of Æthelred's

tried incapacity to lose the game. He did, however, succeed in undoing all the work of his ancestors, partly by his own slackness and sloth, partly by his choice of corrupt and treacherous ministers. For the two ealdormen whom he delighted to honour and placed at the head of his armies, Ælfric and Eadric Streona, are accused, the one of persistent cowardice, the other of underhand intrigue with the Danes. Some of the local magnates made a desperate defence of their own regions, especially Ulfkytel of East Anglia, a Dane by descent; but the central government was at fault. Æthelred's army was always at the wrong place—"if the enemy were east then was the *fyrð* held west, and if they were north then was our force held south." When Æthelred did appear it was more often to pay a bribe to the invaders than to fight. Indeed the *Danegeld*, the tax which he raised to furnish tribute to the invaders, became a regular institution: on six occasions at least Æthelred bought a few months of peace by sums ranging from 10,000 to 48,000 pounds of silver.

At last in the winter of 1013-1014, more as it would seem from sheer disgust at their king's cowardice and incompetence than because further resistance was impossible, the English gave up the struggle and acknowledged Sweyn as king. First Northumbria, then *Canute*, Wessex, then London yielded, and Æthelred was forced to fly over seas to Richard, duke of Normandy, whose sister he had married as his second wife. But Sweyn survived his triumph little over a month; he died suddenly at Gainsborough on the 3rd of February 1014. The Danes hailed his son Canute, a lad of eighteen, as king, but many of the English, though they had submitted to a hard-handed conqueror like Sweyn, were not prepared to be handed over like slaves to his untried successor. There was a general rising, the old king was brought over from Normandy, and Canute was driven out for a moment by force of arms. He returned next year with a greater army to hear soon after of Æthelred's death (1016). The witan chose Edmund "Ironside," the late

king's eldest son, to succeed him, and as he was a hard-fighting prince of that normal type of his house to which his father had been such a disgraceful exception, it seemed probable that the Danes might be beaten off. But Æthelred's favourite Eadric Streona adhered to Canute, fearing to lose the office and power that he had enjoyed for so long under Æthelred, and prevailed on the magnates of part of Wessex and Mercia to follow his example. For a moment the curious phenomenon was seen of Canute reigning in Wessex, while Edmund was making head against him with the aid of the Anglo-Danes of the "Five Boroughs" and Northumbria. There followed a year of desperate struggle: the two young kings fought five pitched battles, fortune seemed to favour Edmund, and the traitor Eadric submitted to him with all Wessex. But the last engagement, at Assandun (Ashington) in Essex went against the English, mainly because Eadric again betrayed the national cause and deserted to the enemy.

Edmund was so hard hit by this last disaster that he offered to divide the realm with Canute; they met on the isle of Alney near Gloucester, and agreed that the son of Æthelred should keep Wessex and all the South, London and East Anglia, while the Dane should have Northumbria, the "five boroughs" and Eadric's Mercian earldom. But ere the year was out Edmund died: secretly murdered, according to some authorities, by the infamous Eadric. The witan of Wessex made no attempt to set on the throne either one of the younger sons of Æthelred by his Norman wife, or the infant heir of Edmund, but chose Canute as king, preferring to reunite England by submission to the stranger rather than to continue the disastrous war.

They were wise in so doing, though their motive may have been despair rather than long-sighted policy. Canute became more of an Englishman than a Dane: he spent more of his time in his island realm than in his native Denmark. He paid off and sent home the great army with whose aid he had

won the English crown, retaining only a small bodyguard of “house-carls” and trusting to the loyalty of his new subjects. There was no confiscation of lands for the benefit of intrusive Danish settlers. On the contrary Canute had more English than Danish courtiers and ministers about his person, and sent many Englishmen as bishops and some even as royal officers to Denmark. It is strange to find that—whether from policy or from affection—he married King Æthelred’s young widow Emma of Normandy, though she was somewhat older than himself—so that his son King Harthacnut and that son’s successor Edward the Confessor, the heir of the line of Wessex, were half-brothers. It might have been thought likely that the son of the pagan Sweyn would have turned out a mere hard-fighting viking. But Canute developed into a great administrator and a friend of learning and culture. Occasionally he committed a harsh and tyrannical act. Though he need not be blamed for making a prompt end of the traitor Eadric Streona and of Uhtred, the turbulent earl of Northumbria, at the commencement of his reign, there are other and less justifiable deeds of blood to be laid to his account. But they were but few; for the most part his administration was just and wise as well as strong and intelligent.

As long as he lived England was the centre of a great Northern empire, for Canute reconquered Norway, which had lapsed into independence after his father’s death, and extended his power into the Baltic. Moreover, all the so-called Scandinavian colonists in the Northern Isles and Ireland owned him as overlord. So did the Scottish king Malcolm, and the princes of Wales and Strathclyde. The one weak point in his policy that can be detected is that he left in the hands of Malcolm the Bernician district of Lothian, which the Scot had conquered during the anarchy that followed the death of Æthelred. The battle of Carham (1018) had given this land to the Scots, and Canute consented to draw the border line of England at the Tweed instead of at the Firth of Forth, when Malcolm did him homage. Strangely enough it was this cession of a Northumbrian earldom to the Northern king that

ultimately made Scotland an English-speaking country. For the Scottish kings, deserting their native Highlands, took to dwelling at Edinburgh among their new subjects, and first the court and afterwards the whole of their Lowland subjects were gradually assimilated to the Northumbrian nucleus which formed both the most fertile and the most civilized portion of their enlarged realm.

The fact, that England recovered with marvellous rapidity from the evil effects of Æthelred's disastrous reign, and achieved great wealth and prosperity under Canute, would seem to show that the ravages of Sweyn, widespread and ruthless though they had been, had yet fallen short of the devastating completeness of those of the earlier vikings. He had been more set on exacting tribute than on perpetrating wanton massacres. A few years of peace and wise administration seem to have restored the realm to a satisfactory condition. A considerable mass of his legislation has survived to show Canute's care for law and order.

Canute died in 1035, aged not more than forty or forty-one. The crown was disputed between his two sons, the half-brothers Harold and Harthacnut; it was doubtful whether the birth of the elder prince was legitimate, and Queen Emma strove to get her own son Harthacnut preferred to him. In Denmark the younger claimant was acknowledged by the whole people, but in England the Mercian and Northumbrian earls chose Harold as king, and Wessex only fell to Harthacnut. Both the young kings were cruel, dissolute and wayward, most unworthy sons of a wise father. It was to the great profit of England that they died within two years of each other, the elder in 1040, the younger in 1042.

On Harthacnut's death he was succeeded not by any Danish prince but by his half-brother Edward, the elder son of Æthelred and Emma, whom he had entertained at his court, and had apparently designated as his heir, for he had no offspring. There was an end of the empire of Canute, for

*Edward the
Confessor.*

Denmark fell to the great king's nephew, Sweyn Estrithson, and Norway had thrown off the Danish yoke. Engaged in wars with each other, Dane and Norseman had no leisure to think of reconquering England. Hence Edward's accession took place without any friction. He reigned, but did not rule, for twenty-four years, though he was well on in middle age before he was crowned. Of all the descendants of Alfred he was the only one who lived to see his sixtieth birthday—the house of Wessex were a short-lived race. In character he differed from all his ancestors—he had Alfred's piety without his capacity, and Æthelred's weakness without his vices. The mildest of men, a crowned monk, who let slip the reins of government from his hands while he busied himself in prayer and church building, he lowered the kingly power to a depth to which it had never sunk before in England. His sole positive quality, over and above his piety, was a love for his mother's kin, the Normans. He had spent his whole life from 1013 to 1040 as an exile at the court of Rouen, and was far more of a Norman than an Englishman. It was but natural, therefore, that he should invite his continental relatives and the friends of his youth to share in his late-coming prosperity. But when he filled his court with them, made them earls and bishops, and appointed one of them, Robert of Jumièges, to the archbishopric of Canterbury, his undisguised preference for strangers gave no small offence to his English subjects. In the main, however, the king's personal likes and dislikes mattered little to the realm, since he had a comparatively small share in its governance. He was habitually overruled and dominated by his earls, of whom three, Leofric, Godwine and Siward—all old servants of Canute—had far more power than their master. Holding respectively the great earldoms of West Mercia, Wessex and Northumbria, they reigned almost like petty sovereigns in their domains, and there seemed some chance that England might fall apart into semi-independent feudal states, just as France had done in the preceding century. The rivalries

and intrigues of these three magnates constitute the main part of the domestic politics of Edward's reign. Godwine, whose daughter had wedded the king, was the most forcible and ambitious of the three, but his pre-eminence provoked a general league against him and in 1051 he was cast out of the kingdom with his sons. In the next year he returned in arms, raised Wessex in revolt, and compelled the king to in-law him again, to restore his earldom, and to dismiss with ignominy the Norman favourites who were hunted over seas. The old earl died in 1053, but was succeeded in power by his son Harold, who for thirteen years maintained an unbroken mastery over the king, and ruled England almost with the power of a regent. There seems little doubt that he aspired to be Edward's successor: there was no direct heir to the crown, and the nearest of kin was an infant, Edgar, the great-nephew of the reigning sovereign and grandson of Edmund Ironside. England's experience of minors on the throne had been unhappy—Edwy and Æthelred the Redeless were warnings rather than examples. Moreover, Harold had before his eye as a precedent the displacement of the effete Carolingian line in France, by the new house of Robert the Strong and Hugh Capet, seventy years before. He prepared for the crisis that must come at the death of Edward the Confessor by bestowing the governance of several earldoms upon his brothers. Unfortunately for him, however, the eldest of them, Tostig, proved the greatest hindrance to his plans, provoking wrath and opposition wherever he went by his high-handedness and cruelty.

Harold's governance of the realm seems to have been on the whole successful. He put down the Scottish usurper Macbeth with the swords of a Northumbrian army, and restored Malcolm III. to the throne of that kingdom (1055-1058). He led an army into the heart of Wales to punish the raids of King Griffith ap Llewelyn, and harried the Welsh so bitterly that they put their leader to death, and renewed their homage to the English crown (1063). He won enthusiastic devotion from the men of Wessex and

the South, but in Northumbria and Mercia he was less liked. His experiment in taking the rule of these earldoms out of the hands of the descendants of Siward and Leofric proved so unsuccessful that he had to resign himself to undoing it. Ultimately one of Leofric's grandsons, Edwin, was left as earl of Mercia, and the other, Morcar, became earl of Northumbria instead of Harold's unpopular brother Tostig. It was on this fact that the fortune of England was to turn, for in the hour of crisis Harold was to be betrayed by the lords of the Midlands and the North.

Somewhere about the end of his period of ascendancy, perhaps in 1064, Harold was sailing in the Channel when his ship was driven ashore by a tempest near the mouth of the Somme. He fell into the hands of William the Bastard, duke of Normandy, King Edward's cousin and best-loved relative. The duke brought him to Rouen, and kept him in a kind of honourable captivity till he had extorted a strange pledge from him. William alleged that his cousin had promised to make him his heir, and to recommend him to the witan as king of England. He demanded that Harold should swear to aid him in the project. Fearing for his personal safety, the earl gave the required oath, and sailed home a perjured man, for he had assuredly no intention of keeping the promise that had been extorted from him. Within two years King Edward expired (Jan. 5, 1066) after having recommended Harold as his successor to the thegns and bishops who stood about his death-bed. The witan chose the earl as king without any show of doubt, though the assent of the Mercian and Northumbrian earls must have been half-hearted. Not a word was said in favour of the claim of the child Edgar, the heir of the house of Alfred, nothing (of course) for the preposterous claim of William of Normandy. Harold accepted the crown without a moment's hesitation, and at once prepared to defend it, for he was aware that the Norman would fight to gain his purpose. He endeavoured to conciliate Edwin and Morcar by marrying their sister Ealdgyth, and trusted that he had bought their loyal

*Origin of the
Norman Conquest.*

support. When the spring came round it was known that William had begun to collect a great fleet and army. Aware that the resources of his own duchy were inadequate to the conquest of England, he sent all over Europe to hire mercenaries, promising every knight who would join him broad lands beyond the Channel in the event of victory. He gathered beneath his banner thousands of adventurers not only from France, Brittany and Flanders, but even from distant regions such as Aragon, Apulia and Germany. The native Normans were but a third part of his host, and he himself commanded rather as director of a great joint-stock venture than as the feudal chief of his own duchy. He also obtained the blessing of Pope Alexander II. for his enterprise, partly on the plea that Harold was a perjurer, partly because Stigand, the archbishop of Canterbury, had acknowledged the late anti-pope Benedict.

All through the summer Harold held a fleet concentrated under the lee of the Isle of Wight, waiting to intercept William's armament, while the fyrd of Wessex was ready to support him if the enemy should succeed in making a landing. By September the provisions were spent, and the ships were growing unseaworthy. Very reluctantly the king bade them go round to London to refit and revictual themselves. William meanwhile had been unable to sail, because for many weeks the wind had been unfavourable. If it had set from the south the fortune of England would have been settled by a sea-fight. At this moment came a sudden and incalculable diversion; Harold's turbulent brother Tostig, banished for his crimes in 1065, was seeking revenge. He had persuaded Harold Hardrada, king of Norway, almost the last of the great viking adventurers, to take him as guide for a raid on England. They ran into the Humber with a great fleet, beat the earls Edwin and Morcar in battle, and captured York. Abandoning his watch on the south coast Harold of England flew northward to meet the invaders; he surprised them at Stamford Bridge, slew both the Norse king and the rebel earl, and almost exterminated their army (Sept. 25? 1066). But while he was

absent from the Channel the wind turned, and William of Normandy put to sea. The English fleet and the English army were both absent, and the Normans came safely to shore on the 28th of September. Harold had to turn hastily southward to meet them. On the 13th of October his host was arrayed on the hill of Senlac, 7 miles from the duke's camp at Hastings. The ranks of his thegnhood and house-carles had been thinned by the slaughter of Stamford Bridge, and their place was but indifferently supplied by the hasty levies of London, Wessex and the Home Counties. Edwin and Morcar, who should have been at his side with their Mercians and Northumbrians, were still far away—probably from treachery, slackness and jealousy.

Next morning (October 14) William marched out from Hastings and attacked the English host, which stood at bay in a solid mass of spear and axemen behind a slight breastwork on the hillside. After six hours of desperate fighting the victory fell to the duke, who skilfully alternated the use of archers and cavalry against the unwieldy English phalanx. (See [HASTINGS: Battle of.](#)) The disaster was complete, Harold himself was slain, his two brothers had fallen with him, not even the wreck of an army escaped. There was no one to rally the English in the name of the house of Godwine. The witan met and hastily saluted the child Edgar Ætheling as king. But the earls Edwin and Morcar refused to fight for him, and when William appeared in front of the gates of London they were opened almost without resistance. He was elected king in the old English fashion by the surviving magnates, and crowned on Christmas Day 1066.

II. THE NORMAN AND ANGEVIN MONARCHY (1066-1199)

When William of Normandy was crowned at Westminster by Archbishop Aldred of York and acknowledged as king by the witan, it is certain that few Englishmen understood the full importance of the occasion. It is probable

***William the
Conqueror.***

that most men recalled the election of Canute, and supposed that the accession of the one alien sovereign would have no more permanent effect on the realm than that of the other. The rule of the Danish king and his two short-lived sons had caused no break in the social or constitutional history of England. Canute had become an Englishman, had accepted all the old institutions of the nation, had dismissed his host of vikings, and had ruled like a native king and for the most part with native ministers. Within twenty years of his accession the disasters and calamities which had preceded his triumph had been forgotten, and the national life was running quietly in its old channels. But the accession of William the Bastard meant something very different. Canute had been an impressionable lad of eighteen or nineteen when he was crowned; he was ready and eager to learn and to forget. He had found himself confronted in England with a higher civilization and a more advanced social organization than those which he had known in his boyhood, and he accepted them with alacrity, feeling that he was thereby getting advantage. With William the Norman all was different: he was a man well on in middle age, too old to adapt himself easily to new surroundings, even if he had been willing to do so. He never even learnt the language of his English subjects, the first step to comprehending their needs and their views. Moreover, unlike his Danish predecessor, he looked down upon the English from the plane of a higher civilization; the Normans regarded the conquered nation as barbarous and boorish. The difference in customs and culture between the dwellers on the two sides of the Channel was sufficient to make this possible; though it is hard to discern any adequate justification for the Norman attitude. Probably the bar of language was the most prominent cause of estrangement. In five generations the viking settlers of Normandy had not only completely forgotten their old Scandinavian tongue, but had come to look upon those who spoke the

kindred English idiom not only as aliens but as inferiors. For three centuries French remained the court speech, and the mark of civilization and gentility.

Despite all this the Conquest would not have had its actual results if William, like Canute, had been able to dismiss his conquering army, and to refrain from a general policy of confiscation. But he had won his crown not

***Progress of Norman
Settlement.***

as duke of Normandy, but as the head of a band of cosmopolitan adventurers, who had to be rewarded with land in England. Some few received their pay in hard cash, and went off to other wars; but the large majority, Breton and Angevin, French and Fleming, no less than Norman, wanted land. William could only provide it by a wholesale confiscation of the estates of all the thegnhood who had followed the house of Godwine. Almost his first act was to seize on these lands, and to distribute them among his followers. In the regions of the South, which had supplied the army that fell at Hastings, at least four-fifths of the soil passed to new masters. The dispossessed heirs of the old owners had either to sink to the condition of peasants, or to throw themselves upon the world and seek new homes. The friction and hatred thus caused were bitter and long enduring. And this same system of confiscation was gradually extended to the rest of England. At first the English landowners who had not actually served in Harold's host were permitted to "buy back their lands," by paying a heavy fine to the new king and doing him homage. What would have happened supposing that England had made no further stir, and had not vexed William by rebellion, it is impossible to say. But, as a matter of fact, during the first few years of his reign one district after another took up arms and endeavoured to cast out the stranger. As it became gradually evident that William's whole system of government was to be on new and distasteful lines, the English of the Midlands, the North and the West all went into rebellion. The risings were sporadic, ill-organized, badly led, for each section of the realm fought for its own hand. In some parts the insurrections were in favour of the sons of

Harold, in others Edgar Ætheling was acclaimed as king: and while the unwise earls Edwin and Morcar fought for their own hand, the Anglo-Danes of the East sent for Sweyn, king of Denmark, who proved of small help, for he abode but a short space in England, and went off after sacking the great abbey of Peterborough and committing other outrages. The rebels cut up several Norman garrisons, and gave King William much trouble for some years, but they could never face him in battle. Their last stronghold, the marsh-fortress of Ely, surrendered in 1071, and not long after their most stubborn chief, Hereward “the Wake,” the leader of the fenmen, laid down his arms and became King William’s man (see [HEREWARD](#)).

The only result of the long series of insurrections was to provoke the king to a cruelty which he had not at first shown, and to give him an excuse for confiscating and dividing among his foreign knights and barons the immense majority of the estates of the English thegnhood. William could be pitiless when provoked; to punish the men of the North for persistent rebellion and the destruction of his garrison at York, he harried the whole countryside from the Aire to the Tees with such remorseless ferocity that it did not recover its ancient prosperity for centuries. The population was absolutely exterminated, and the great Domesday survey, made nearly twenty years later, shows the greater part of Yorkshire as “waste.” This act was exceptional only in its extent: the king was as cruel on a smaller scale elsewhere, and not contented with the liberal use of the axe and the rope was wont to inflict his favourite punishments of blinding and mutilation on a most reckless scale.

The net result of the king’s revenge on the rebellious English was that by 1075 the old governing class had almost entirely disappeared, and that their lands, from the Channel to the Tweed, had everywhere been distributed to new holders. To a great extent the same horde of continental adventurers who had obtained the first batch of grants in Wessex and Kent were also the

recipients of the later confiscations, so that their newly acquired estates were scattered all over England. Many of them came to own land in ten or a dozen counties remote from each other, a fact which was of the greatest importance in determining the character of English feudalism. While abroad the great vassals of the crown generally held their property in compact blocks, in England their power was weakened by the dispersion of their lands. This tendency was assisted by the fact that even when the king, as was his custom, transferred to a Norman the estates of an English landowner just as they stood, those estates were already for the most part not conterminous. Even before the Conquest the lands of the magnates were to a large extent held in scattered units, not in solid patches. Only in two cases did William establish lordships of compact strength, and these were created for the special purpose of guarding the turbulent Welsh March. The “palatine” earls of Chester and Shrewsbury were not only endowed with special powers and rights of jurisdiction, but were almost the only tenants-in-chief within their respective shires. These rare exceptions prove the general rule: William probably foresaw the dangers of such accumulation of territory in private hands. He made a complete end of the old English system by which great earls ruled many shires: there were to be no Godwines or Leofrics under the Norman rule. This particular feudal danger was avoided: where earls were created, and they were but few, their authority was usually restricted to a single shire.

It remains to speak of the most important change which William’s rearrangements made in the polity of England. It is of course untrue to say—as was so often done by early historians—that he “introduced the feudal system into England.” In some aspects feudalism was already in the land before he arrived: in others it may be said that it was never introduced at all. He did not introduce the practice by which the small man commended himself to the great man, and in return for his protection divested himself of the full

Feudalism.

ownership of his own land, and became a customary tenant in what later ages called a “manor.” That system was already in full operation in England before the Conquest. In some districts the wholly free small landowner had already disappeared, though in the regions which had formed the Danelagh he was still to be found in large numbers. Nor did William introduce the system of great earldoms, passing from father to son, which gave over-great subjects a hereditary grip on the countryside. On the contrary, as has been already said, he did much to check that tendency, which had already developed in England.

What he really did do was to reconstruct society on the essentially feudal theory that the land was a gift from the king, held on conditions of homage and military service. The duties which under the old system were national obligations resting on the individual as a citizen, he made into duties depending on the relation between the king as supreme landowner and the subject as tenant of the land. Military service and the paying of the feudal taxes—aids, reliefs, &c.—are incidents of the bargain between the crown and the grantee to whom land has been given. That grantee, the tenant-in-chief, has the right to demand from his sub-tenants, to whom he has given out fractions of his estate, the same dues that the king exacts from himself. As at least four-fifths of the land of England had fallen into the king’s hands between 1066 and 1074, and had been actually regranted to new owners—foreigners to whom the feudal system was the only conceivable organization of political existence—the change was not only easy but natural. The few surviving English landholders had to fall into line with the newcomers. England, in short, was reorganized into a state of the continental type, but one differing from France or Germany in that the crown had not lost so many of its regalities as abroad, and that even the greater earls had less power than the ordinary continental tenant-in-chief.

The English people became aware of this transformation in the “theory of the state” mainly through the fact that the new tenants-in-chief, bringing with them the ideas in which they had been reared, failed to comprehend the rather complicated status of the rural population on this side of the Channel. To the French or Norman knight all peasants on his manor seemed to be villeins, and he failed to understand the distinction between freemen who had personally commended themselves to his English predecessor but still owned their land, and the mass of ordinary servile tenants. There can be no doubt that the first effect of the Conquest was that the upper strata of the agricultural classes lost the comparative independence which they had hitherto enjoyed, and were in many cases depressed to the level of their inferiors. The number of freemen began to decrease, from the encroachments of the landowner, and continued to dwindle for many years: even in districts where Domesday Book shows them surviving in considerable numbers, it is clear that a generation or two later they had largely disappeared, and became merged in the villein class.

In this sense, therefore, England was turned into a feudal state by the results of the work of William the Conqueror. But it would be wrong to assert that all traces of the ancient social organization of the realm were swept away. The old Saxon customs were not forgotten, though they might in many cases be twisted to fit new surroundings. Indeed William and his successors not infrequently caused them to be collected and put on record. The famous Domesday Book (*q.v.*) of 1086 is in its essential nature an inquiry into the state of England at the moment of the Conquest, compiled in order that the king may have a full knowledge of the rights that he possesses as the heir of King Edward. Being primarily intended to facilitate the levy of taxation, it dwells more on the details of the actual wealth and resources of the country in 1066 and 1086, and less on the laws and customs that governed the distribution of that wealth, than could have been

wished. But it is nevertheless a monument of the permanence of the old English institutions, even after the ownership of four-fifths of the soil has been changed. The king inquires into the state of things in 1066 because it is on that state of things that his rights of taxation depend. He does not claim to have rearranged the whole realm on a new basis, or to be levying his revenue on a new assessment made at his own pleasure. Nor is it in the sphere of taxation alone that William's organization of the realm stands on the old English customs. In the military sphere, though his normal army is the feudal force composed of the tenants-in-chief and the knights whom they have enfeoffed, he retains the power to call out the *fyrð*, the old national *levée en masse*, without regard to whether its members are freemen or villeins of some lord. And in judicial matters the higher rights of royal justice remain intact, except in the few cases where special privileges have been granted to one or two palatine earls. The villein must sue in his lord's manorial courts, but he is also subject to the royal courts of hundred and shire. The machinery of the local courts survives for the most part intact.

William's dealings with the Church of England were no less important than his dealings with social organization. In the earlier years of his reign he set himself to get rid of the whole of the upper hierarchy, in order to replace

Position of the Church.

them by Normans. In 1070 Archbishop Stigand was deposed as having been uncanonically chosen, and six or seven other bishops after him. All the vacancies, as well as those which kept occurring during the next few years, were immediately filled up with foreigners. By the time that William had been ten years on the throne there were only three English bishops left. At his death there was only one—the saintly Wulfstan of Worcester. The same process was carried out with regard to abbacies, and indeed with all important places of ecclesiastical preferment. By 1080 the English Church was officered entirely by aliens. Just as with the lay landholders, the change of *personnel* made a vast difference, not so much in the legal position of the

new-comers as in the way in which they regarded their office. The outlook of a Norman bishop was as unlike that of his English predecessor as that of a Norman baron. The English Church had got out of touch with the ideals and the spiritual movements of the other Western churches. In especial the great monastic revival which had started from the abbey of Cluny and spread all over France, Italy and Germany had hardly touched this island. The continental churchmen of the 11th century were brimming over with ascetic zeal and militant energy, while the majority of the English hierarchy were slack and easy-going. The typical faults of the dark ages, pluralism, simony, lax observation of the clerical rules, contented ignorance, worldliness in every aspect, were all too prevalent in England. There can be no doubt that the greater part of William's nominees were better men than those who preceded them; his great archbishop, Lanfranc, though a busy statesman, was also an energetic reformer and a man of holy life. Osmund, Remigius and others of the first post-Conquest bishops have left a good name behind them. The condition of the church alike in the matter of spiritual zeal, of hard work and of learning was much improved. But there was a danger behind this revival; for the reformers of the 11th century, in their zeal for establishing the Kingdom of God on earth, were not content with raising the moral and intellectual standards prevailing in Christendom, but sought to bring the whole scheme of life under the church, by asserting the absolute supremacy of the spiritual over the temporal power, wherever the two came in contact or overlapped. The result, since the feudal and ecclesiastical systems had become closely interwoven, and the frontier between the religious and secular spheres must ever be vague and undefined, was the conflict between the spiritual and temporal powers which, for two centuries to come, was to tear Europe into warring factions (see the articles [CHURCH HISTORY](#); [PAPACY](#); [INVESTITURE](#)). The Norman Conquest of England was contemporaneous with the supreme influence of the greatest exponent of the theory of ecclesiastical supremacy, the

archdeacon Hildebrand, who in 1073 mounted the papal throne as Gregory VII. (q.v.). William, despite all his personal faults, was a sincerely pious man, but it could not be expected that he would acquiesce in these new developments of the religious reformation which he had done his best to forward. Hence we find a divided purpose in the policy which he pursued with regard to church affairs. He endeavoured to keep on the best terms with the papacy: he welcomed legates and frequently consulted the pope on purely spiritual matters. He even took the hazardous step of separating ecclesiastical courts and lay courts, giving the church leave to establish separate tribunals of her own, a right which she had never possessed in Saxon England. The spiritual jurisdiction of the bishop had hitherto been exercised in the ordinary national courts, with lay assessors frequently taking part in the proceedings, and mixing their dooms with the clergy's canonical decisions. William in 1076 granted the church a completely independent set of courts, a step which his successors were to regret for many a generation.

At the same time, however, he was not blind to the possibilities of papal interference in domestic matters, and of the danger of conflict between the crown and the recently-strengthened clerical order. To guard against them he laid down three general rules: (1) that no one should be recognized as pope in England till he had himself taken cognizance of the papal election, and that no papal letters should be brought into the realm without his leave; (2) that no decisions of the English ecclesiastical synods should be held valid till he had examined and sanctioned them; (3) that none of his barons or ministers should be excommunicated unless he approved of such punishment being inflicted on them. These rules seem to argue a deeply rooted distrust of the possible encroachments of the papacy on the power of the state. The question of ecclesiastic patronage, which was to be the source of the first great quarrel between the crown and the church in the next generation, is not touched upon. William retained in his own hands the

choice of bishops and abbots, and Alexander II. and Gregory VII. seem to have made no objection to his doing so, in spite of the claim that free election was the only canonical way of filling vacancies. The Conqueror was allowed for his lifetime to do as he pleased, since he was recognized as a true friend of the church. But the question was only deferred and not settled.

The political history of William's later years is unimportant; his main energy was absorbed in the task of holding down and organizing his new kingdom. His rather precarious conquest of the county of Maine, his long quarrels with Philip I. of France, who suborned against *William's later reign.* him his undutiful and rebellious eldest son Robert, his negotiation with Flanders and Germany, deserve no more than a mention. It is more necessary to point out that he reasserted on at least one occasion (when King Malcolm Canmore did him homage) the old suzerainty of the English kings over Scotland. He also began that encroachment on the borders of Wales which was to continue with small interruptions for the next two centuries. The advance was begun by his great vassals, the earls of Chester, Shrewsbury and Hereford, all of whom occupied new districts on the edge of the mountains of Powys and Gwynedd. William himself led an expedition as far as St Davids in 1081, and founded Cardiff Castle to mark the boundary of his realm north of the Bristol Channel.

Perhaps the most noteworthy event of the second portion of the Conqueror's reign was a rebellion which, though it made no head and was easily suppressed, marks the commencement of that feudal danger which was to be the constant trouble of the English kings for the next three generations. Two of the greatest of his foreign magnates, Roger, earl of Hereford, and Ralph, earl of Norfolk, rose against him in 1075, with no better cause than personal grievances and ambitions. He put them down

with ease; the one was imprisoned for life, the other driven into exile, while Waltheof, the last of the English earls, who had dabbled in a hesitating way in this plot, was executed. There was never any serious danger, but the fact that under the new régime baronial rebellion was possible, despite of all William's advantages over other feudal kings, and despite of the fact that the rebels were hardly yet settled firmly into their new estates, had a sinister import for the future of England. With the new monarchy there had come into England the anarchic spirit of continental feudalism. If such a man as the Conqueror did not overawe it, what was to be expected in the reigns of his successors? William had introduced into his new realm alike the barons, with their personal ambition, and the clerics of the school of Hildebrand, with their intense jealousy for the rights of the church. The tale of the dealings of his descendants with these two classes of opponents constitutes the greater part of English history for a full century.

William died at Rouen on the 7th of September 1087; on his death-bed he expressed his wish that Normandy should pass to his elder son, Robert, in spite of all his rebellions, but gave his second son William (known by the nickname of Rufus) the crown of England, and sent him thither with commendatory letters to archbishop Lanfranc and his other ministers. There was at first no sign of opposition to the will of the late king, and William Rufus was crowned within three weeks of his father's decease. But the results of the Conquest had made it hard to tear England and Normandy apart. Almost every baron in the duchy was now the possessor of a smaller or a greater grant of lands in the kingdom, and the possibility of serving two masters was as small in 1087 as at any other period of the world's history. By dividing his two states between his sons the Conqueror undid his own work, and left to his subjects the certainty of civil war. For the brothers Robert and William were, and always had been, enemies, and every intriguing baron had before him the tempting prospect of aggrandizing himself, by making

his allegiance to one of the brothers serve as an excuse for betraying the other. Robert was thriftless, volatile and easy-going, a good knight but a most incompetent sovereign. These very facts commended him to the more turbulent section of the baronage; if he succeeded to the whole of the Conqueror's heritage they would have every opportunity of enjoying freedom from all governance. William's private character was detestable: he was cruel, lascivious, greedy of gain, a habitual breaker of oaths and promises, ungrateful and irreligious. But he was cunning, strong-handed and energetic; clearly the "Red King" would be an undesirable master to those who loved feudal anarchy. Hence every turbulent baron in England soon came to the conclusion that Robert was the sovereign whom his heart desired.

The greater part of the reign of William II. was taken up with his fight against the feudal danger. Before he had been six months on the throne he was attacked by a league comprising more than half the baronage, and headed by his uncles, bishop Odo of Bayeux and Robert of Mortain. They used the name of the duke of Normandy and had secured his promise to cross the Channel for their assistance. A less capable and unscrupulous king than Rufus might have been swept away, for the rising burst out simultaneously in nearly every corner of the realm. But he made head against it with the aid of mercenary bands, the loyal minority of the barons, and the shire-levies of his English subjects. When he summoned out the fyrd they came in great force to his aid, not so much because they trusted in the promises of good governance and reduced taxation which he made, but because they saw that a horde of greedy barons would be worse to serve than a single king, however hard and selfish he might be. With their assistance William fought down the rebels, expelled his uncle Odo and several other leaders from the realm, confiscated a certain amount of estates, and then pardoned the remainder of the rebels. Such mercy, as he was to discover, was misplaced. In 1095 the same body of barons made a

second and a more formidable rising, headed by the earls of Shrewsbury, Eu and Northumberland. It was put down with the same decisive energy that William had shown in 1088, and this time he was merciless; he blinded and mutilated William of Eu, shut up Mowbray of Northumberland for life in a monastery, and hanged many men of lesser rank. Of the other rebels some were deprived of their English estates altogether, others restored to part of them after paying crushing fines. This second feudal rebellion was only a distraction to William from his war with his brother Robert, which continued intermittently all through the earlier years of his reign. It was raging from 1088 to 1091, and again from 1093 to 1096, when Robert tired of the losing game, pawned his duchy to his brother and went off on the First Crusade. Down to this moment William's position had been somewhat precarious; with the Norman war generally on hand, feudal rebellion always imminent, and Scottish invasions occasionally to be repelled, he had no easy life. But he fought through his troubles, conquered Cumberland from the Scots (1092), in dealing with his domestic enemies used cunning where force failed, and generally got his will in the end. His rule was expensive, and he made himself hated by every class of his subjects, baronage, clergy and people alike, by his ingenious and oppressive taxation. His chosen instrument, a clerical lawyer named Ranulf Flambard (*q.v.*), whom he presently made bishop of Durham, was shameless in his methods of twisting feudal or national law to the detriment of the taxpayer. William supported him in every device, however unjust, with a cynical frankness which was the distinguishing trait of his character; for he loved to display openly all the vices and meannesses which most men take care to disguise. In dealing with the baronage Ranulf and his master extorted excessive and arbitrary "reliefs" whenever land passed in succession to heirs. When the church was a landholder their conduct was even more unwarrantable; every clerk installed in a new preferment was forced to pay a large sum down—which in that age was considered a clear case of simony by all

conscientious men. But in addition the king kept all wealthy posts, such as bishoprics and abbeys, vacant for years at a time and appropriated the revenue meanwhile.

This policy, when pursued with regard to the archbishopric of Canterbury, brought on Rufus the most troublesome of his quarrels. When the wise primate Lanfranc, his father's friend, died in 1089, he made no appointment till 1093, extracting meanwhile great plunder from the see. In a moment of sickness, when his conscience was for a space troubling him or his will was weak, he nominated the saintly Anselm (q.v.) to the archbishopric. When enthroned the new primate refused to make the enormous gift which the king expected from every recipient of preferment. Soon after he began to press for leave to hold a national synod, and when it was denied him, spoke out boldly on the personal vices as well as the immoral policy of the king. From this time William and Anselm became open enemies. They fought first upon the question of acknowledging Urban II. as pope—for the king, taking advantage of the fact that there was an antipope in existence, refused to allow that there was any certain and legitimate head of the Western church at the moment. Then, after William had reluctantly yielded on this point, the far more important question of lay investitures cropped up. The council of Clermont (Nov. 1095) had just issued its famous decree to the effect that bishops must be chosen by free election, and not invested with their spiritual insignia or enfeoffed with their estates by the hands of a secular prince. Anselm felt himself obliged to accept this decision, and refused to accept his own pallium from William when Urban sent it across the sea by the hands of a legate. The king replied by harrying him on charges of having failed in his feudal obligation to provide well-equipped knights for a Welsh expedition, and imposed ruinous fines on him. It was even said that his life was threatened, and he fled to Rome in 1097, not to return till his adversary was dead. There was much to be said for the theory

of the king as to the relations between church and state; he was indeed only carrying on in a harsh form his father's old policy. But the fact that he was a tyrant and an evil-liver, while Anselm was a saint, so much influenced public opinion that William was universally regarded as in the wrong, and the sympathy of the laity no less than the clergy was with the archbishop. For the remaining three years of his life the Red King was considered to be in a state of reprobation and at open strife with righteousness.

Yet so far as secular affairs went William seemed prosperous enough. Since his brother had pawned the duchy of Normandy to him, so that he reigned at Rouen no less than at London, the danger of rebellion was almost removed. His foreign policy was successful: he installed a nominee of his own, Edgar, the son of Malcolm Canmore, on the throne of Scotland (1097); he reconquered Maine, which his brother Robert had lost; he made successful war upon King Philip of France. His barons subdued much of South Wales, though his own expeditions into North Wales, which he had designed to conquer and annex, had a less fortunate ending. He dreamed, we are told, of attacking Ireland, even of crowning himself king at Paris. But on the 2nd of August 1100 he was suddenly cut off in the midst of his sins. While hunting with some of his godless companions in the New Forest, he was struck by an arrow, unskilfully shot by one of the party. The knight Walter Tyrrell, who was persistently accused of being the author of his master's death, as persistently denied his responsibility for it; and whether the arrow was his or no, it was not alleged that malice guided it. William's favourites had all to lose by his death.

The king's death was unexpected: he was only in his fortieth year, and men's minds had not even begun to ponder over the question of who would succeed him. The crown of England was left vacant for the boldest kinsman to snatch at, if he dared. William had two surviving brothers, beside several nephews. Robert's claim

Succession of Henry I.

seemed the more likely to succeed, for not only was he the elder, but England was full of barons who desired his accession, and had already taken up arms for him in 1087 or 1095. But he was far away—being at the moment on his return journey from Jerusalem—while on the spot was his brother Henry, an ambitious prince, whose previous efforts to secure himself a territorial endowment had failed more from ill-luck than from want of enterprise or ability. Seeing his opportunity, Henry left his brother's body unburied, rode straight off to Winchester with a handful of companions, and seized the royal treasure. This and his ready tongue were the main arguments by which he convinced the few magnates present, and persuaded them to back him, despite the protests of some supporters of Robert. There was hardly the semblance of an election, and the earl of Warwick and the chancellor William Giffard were almost the only persons of importance on the spot. But Henry, once hailed as king, rode hard for London and persuaded bishop Maurice to crown him without delay at Westminster, since the primate Anselm was absent beyond seas. He certainly lost no time: Rufus was shot on Thursday, the 2nd of August—his successor was crowned on Sunday the 5th of August! The realm heard almost by the same messengers that it had lost one king and that it had gained another.

Henry at once issued a proclamation and charter promising the redress of all the grievances with which his brother had afflicted his feudal tenants, the clergy and the whole nation. He would keep the ancient laws of King Edward, as amended by his father the Conqueror, and give all men good justice. These promises he observed more faithfully than Norman kings were wont to do; if the pledge was not redeemed in every detail, he yet kept England free from anarchy, abandoned the arbitrary and unjust taxation of his brother, and set up a government that worked by rule and order, not by the fits and starts of tyrannical caprice. He was a man of a cold and hard disposition, but full of practical wisdom, and conscious that his precarious

claim to the crown must be secured by winning the confidence of his subjects. Almost the first and quite the wisest of his inspirations was to wed a princess of the old English line—Edith,¹ the niece of Edgar Ætheling, the child of his sister Margaret of Scotland and Malcolm Canmore. The match, though his Norman barons sneered at it, gave him the hearts of all his English subjects, who supported him with enthusiasm, and not merely (as had been the case with Rufus) because they saw that a strong king would oppress them less than a factious and turbulent baronage. Henry won much applause at the same time by filling up all the bishoprics and abbacies which his brother had kept so long vacant, by inviting the exiled Anselm to return to England, and by imprisoning William's odious minister Ranulf Flambard. He had just time to create a favourable impression by his first proceedings, when his brother Robert, who had returned from Palestine and resumed possession of Normandy, landed at Portsmouth to claim the crown and to rouse his partisans among the English baronage. Henry bought him off, before the would-be rebels had time to join him, by promising him an annual tribute of 3000 marks and surrendering to him all his estates in Normandy (1101). His policy seemed tame and cautious, but was entirely justifiable, for within a few months of Robert's departure the inevitable feudal rebellion broke out. If the duke and his army had been on the spot to support it, things might have gone hardly with the king. The rising was led by Robert of Belesme, earl of Shrewsbury, a petty tyrant of the most ruffianly type, the terror of the Welsh marches. He was backed by his kinsmen and many other barons, but proved unable to stand before the king, who was loyally supported by the English shire levies. After taking the strong castles of Arundel, Tickhill, Bridgnorth and Shrewsbury, Henry forced the rebels to submit. He confiscated their estates and drove them out of the realm; they fled for the most part to Normandy, to spur on duke Robert to make another bid for the English crown. From the broad lands which they forfeited Henry made haste to reward his own servants, new

men who owed all to him and served him faithfully. From them he chose the sheriffs, castellans and councillors through whom he administered the realm during the rest of his long reign.

This minor official nobility was the strength of the crown, and was sharply divided in spirit and ambition from the older feudal aristocracy which descended from the original adventurers who had followed William the Conqueror. Yet the latter still remained strong enough to constitute a danger to the crown whenever it should fall to a king less wary and resolute than Henry himself.

Henry was by nature more of an administrator and organizer than of a fighting man. He was a competent soldier, but his wish was rather to be a strong king at home than a great conqueror abroad. Nevertheless he was driven by the logic of events to attack Normandy, for as long as his brother reigned there, and as long as many English barons retained great holdings on both sides of the Channel and were subjects of the duke as well as of the king, intrigues and plots never ceased. The Norman war ended in the battle of Tenchebrai (Sept. 28, 1106), where Duke Robert was taken prisoner. His brother shut him up in honourable confinement for the rest of his life, though otherwise he was not ill-treated. For the rest of his reign Henry was ruler of all the old dominions of the Conqueror, and none of his subjects could cloak disloyalty by the pretence of owing a divided allegiance to two masters. With this he was content, and made no great effort to extend his dominions farther; his desire was to reign as a true king in England and Normandy, rather than to build up a loosely compacted empire around them.

Throughout the time of Henry's Norman war, he was engaged in a tiresome controversy with the primate on the question of lay investitures, the continuation of the struggle which had begun in his brother's reign. Every English king for five generations had to face the danger from the

**Henry's difficulties
with the church.**

church, no less than the danger from the barons. Anselm had come back from Rome confirmed in the theories for which he had contended with Rufus—nay, taught to extend them to a further extreme. He now maintained not only that it was a sin that kings should invest prelates with their spiritual insignia, the pallium, the staff, the ring, but claimed that no clerk ought to do homage to the king for the lands of his benefice, though he himself seven years before had not scrupled to make his oath to his earlier master. He now refused to swear allegiance to the new monarch, though he had recalled him and had restored him to the possession of his see. He also refused to consecrate Henry's nominees to certain bishoprics and abbacies on the ground that they had not been chosen by free election by their chapters or their monks. The king was loath to take up the quarrel, for he highly respected the archbishop; yet he was still more loath to surrender the ancient claims and privileges of the crown. Anselm was equally reluctant to force matters to an open breach, yet would not shift from his position. There followed an interminable series of arguments, interrupted by truces, till at last Anselm, at the king's suggestion, went to Rome to see if the pope could arrange some *modus vivendi*. Paschal II. for some time refused to withdraw from his fixed theory of the relation of church and state, and Anselm, in despair, preferred to remain abroad rather than to press matters to the rupture that seemed the only logical issue of the controversy. But in 1107 the pope consented to a compromise, which satisfied the king, and yet was acceptable to the church. Bishops and abbots were for the future to be canonically elected by the clergy, and were no longer to receive the ring and staff from lay hands. But they were to do homage to the king for their lands, and since they thus acknowledged him as their temporal lord Henry was content. Moreover, he retained in practice, if not in theory, his power to nominate to the vacant offices; chapters and monasteries seldom dared to resist the pressure which the sovereign could bring to bear upon them in

favour of the candidate whom he had selected. The arrangement was satisfactory, and served as the model for the similar compromise arrived at between Pope Calixtus II. and the emperor Henry V. fifteen years later.

From 1107 onward Henry was freed from both the dangers which had threatened him in his earlier years, and was free to develop his policy as he pleased. He had yet twenty-eight years to reign, for he survived to the age of sixty-seven, an age unparalleled by any of his predecessors, and by all his successors till Edward I.

It is to Henry, aided by his great justiciar, Roger, bishop of Salisbury, that England owed the institution of the machinery of government by which it was to be ruled during the earlier middle ages. This may be described as a

***Constitutional
machinery.***

primitive kind of bureaucracy, which gradually developed into a much more complicated system of courts and offices. Around the sovereign was his *Curia Regis* or body of councillors, of whom the most important were the justiciar, the chancellor and the treasurer, though the feudal officers, the constable and marshal, were also to be found there. The bulk of the council, however, was composed of knights and clerks selected by the king for their administrative or financial ability. The Curia, besides advising the king on ordinary matters of state, had two special functions. It sat, or certain members of it sat, under the presidency of the king or the justiciar, as the supreme court of justice of the realm. In this capacity it tried the suits of tenants-in-chief, and all appeals from the local courts. But Henry, not contented with this, adopted the custom of sending forth certain members of the Curia throughout the realm at intervals, to sit in the shire court, along with or in place of the sheriff, and to hear and judge all the cases of which the court had cognizance. From these itinerant commissioners (justices in eyre) descend the modern justices of assize. The sheriff, the original

president of the shire court, was gradually extruded by them from all important business.

But there were other developments of the Curia. The justiciar, chancellor and treasurer sat with certain other members of the council as the court of exchequer, not only to receive and audit the accounts of the royal revenue, but to give legal decisions on all questions connected with finance. Twice in every year the sheriffs and other royal officials came up to the exchequer court, which originally sat at Winchester, with their bags of money and their sheaves of accounts. Their figures were subjected to a severe scrutiny, and the law was laid down on all points in which the interests of the sheriff and the king, or the sheriff and the taxpayer, came into conflict. In this way the exchequer grew into a law court of primary importance, instead of remaining merely a court of receipt. Though its members were originally the same men who sat in the Curia Regis, the character of the question to be tried settled the capacity in which they should sit, and two separate courts were evolved. (See [EXCHEQUER](#).)

Under the superintendence of the Curia Regis and the exchequer, the sheriff still remained the king's factotum in local affairs. He led the shire-levies, collected the royal revenues both feudal and non-feudal, and presided in the shire-court as judge, till in the course of years his functions in that sphere were gradually taken over by the itinerant justices. On his fidelity the king had to rely both for military aid in times of baronial revolt and for the collection of the money which formed the sinews of war. Hence the position was one of the highest importance, and Henry's new nobility, the men of ability whom he selected and promoted, found their special occupation in holding the office of sheriff. It was they who had to see that the shire court, and in minor affairs the hundred court, did not allow cases to slip away into the jurisdiction of the feudal courts of the baronage.

Henry I. must count not merely as the father of the English bureaucracy, but as a fosterer of the municipal independence of the towns. He gave charters of a very liberal character to many places, and in especial to London, where the citizens were allowed to choose their own sheriff, and to deal directly with the exchequer in matters of revenue. He even farmed out to them the charge of the taxes of the whole shire of Middlesex, outside the city walls. Such a grant was exceptional—though Lincoln also seems to have been granted the privilege of dealing directly with the exchequer. But in many other smaller towns the first grants—the smaller beginnings of autonomy—may be traced back to this period (see [BOROUGH](#)).

Though Henry was an autocrat, and governed through bureaucratic officials who were entirely under his hand, yet a reign of law and order such as his was indirectly favourable to the growth of constitutional liberty. It was equally favourable to the growth of national unity: it was in his time that Norman and English began to melt together: intermarriage in all classes became common, and only thirty years after his death a contemporary writer could remark that it was hard for any man to call himself either Norman or English, so much had blood been intermingled.

It is unnecessary to go into the very uninteresting and unimportant history of Henry's later years. A long war with France, prosecuted without much energy, led to no results, for the French king's attempts to stir up rebellions in the name of William the Clito (*q.v.*), the son of Duke Robert, came to an end with that prince's death in 1129. But the extension of the English borders in South Wales by the conquests of the lords marcher as far as Pembroke and Cardigan deserves a word of notice.

The question of the succession was the main thing which occupied the mind of the king and the whole nation in Henry's later years. It had a real interest for every man in an age when any doubt as to the heir meant the outbreak of civil war such as had occurred at the death of the Conqueror

Henry's heir.

and of Rufus. There was now a problem of some difficulty to be solved. Henry's only son William had been drowned at sea in 1120. He had no other child born in wedlock save a daughter, Matilda, who married the emperor Henry V., but had no issue by him. On the emperor's decease she wedded as her second husband Geoffrey of Anjou (1127), to whom during her father's last years she bore two sons. But the succession of a woman to the crown was as unfamiliar to English as to Norman ideas, nor did it seem natural to either to place a young child on the throne. Moreover, Matilda's husband Geoffrey was unpopular among the Normans; the Angevins had been the chief enemies of the duchy for several generations, and the idea that one of them might become its practical ruler was deeply resented. The old king, as was but natural, had determined that his daughter should be his successor; he made the great council do homage to her in 1126, and always kept her before the eyes of his people as his destined heir. But though he had forced or cajoled every leading man in England and Normandy to take his oath to serve her, he must have been conscious that there was a large chance that such pledges would be forgotten at his death. The prejudice against a female heir was strong, and there were too many turbulent magnates to whom the anarchy that would follow a disputed succession presented temptations which could not be resisted.

Henry died suddenly on the 25th of November 1135, while he was on a visit to his duchy of Normandy. The moment that his death was reported the futility of oaths became apparent. A majority of the Norman barons

Matilda, and Stephen.

appealed to Theobald, count of Blois, son of the Conqueror's daughter Adela, to be their duke, and to save them from the yoke of the hated Angevin. His supporters and those of Matilda were soon at blows all along the frontier of Normandy. Meanwhile in England another pretender had appeared. Stephen, count of Boulogne, the younger brother of Theobald, had landed at

Dover within a few days of Henry's death, determined to make a snatch at the crown, though he had been one of the first who had taken the oath to his cousin a few years before. The citizens of London welcomed him, but he was not secure of his success till by a swift swoop on Winchester he obtained possession of the royal treasure—an all-important factor in a crisis, as Henry I. had shown in 1100. At Winchester he was acknowledged as king by the bishop, his own brother Henry of Blois, and by the great justiciar, Roger, bishop of Salisbury, and the archbishop, William of Corbeil. The allegiance of these prelates was bought by an unwise promise to grant all the demands of the church party, which his predecessor had denied, or conceded only in part. He would permit free election to all benefices, and free legislation by ecclesiastical synods, and would surrender any claims of the royal courts to have jurisdiction over clerks or the property of clerks. It then remained necessary to buy the baronage, of which only a few members had as yet committed themselves to his side. It was done by grants of lands and privileges, the first instalment of a never-ending crop of ruinous concessions which Stephen continued to make from the day of his accession down to the day of his death.

The pretender was crowned at Westminster on the 22nd of December 1135—less than a month after his uncle's death. No one yet openly withstood him, but he was well aware that his position was precarious, and that the claims of Matilda would be brought forward ere long by the section of the baronage which had not yet got from him all they desired. Meanwhile, however, he was encouraged to persevere by the fact that his brother Theobald had withdrawn his claim to the duchy of Normandy, and retired in his favour. For a space he was to be duke as well as king; but this meant merely that he would have two wars, not one, in hand ere long. Matilda's adherents were already in the field in Normandy; in England their rising was only delayed for a few months.

Stephen, though he had shown some enterprise and capacity in his successful snatch at the crown, was a man far below his three predecessors on the throne in the matter of perseverance and foresight. He was a good fighter, a liberal giver, and a faithful friend, but he lacked wisdom, caution and the power to organize. Starting his career as a perjurer, it is curious that he was singularly slow to suspect perjury in others; he was the most systematically betrayed of all English kings, because he was the least suspicious, and the most ready to buy off and to forgive rebels. His troubles began in 1136, when sporadic rebellions, raised in the name of Matilda, began to appear; they grew steadily worse, though Stephen showed no lack of energy, posting about his realm with a band of mercenary knights whenever trouble broke out. But in 1138 the crisis came; the baronage had tried the capacity of their new master and found him wanting. The outbreak

Civil war. was now widespread and systematic—caused not by the turbulence of a few wild spirits, but by the deliberate conspiracy of all who saw their advantage in anarchy. Matilda had a few genuine partisans, such as her half-brother Robert, earl of Gloucester, the illegitimate son of Henry I., but the large majority of those who took arms in her name were ready to sell their allegiance to either candidate in return for lands, or grants of rank or privilege. A long list of doubly and triply forsworn nobles, led by Geoffrey de Mandeville, Aubrey de Vere and Ralph of Chester, made the balance of war sway alternately from side to side, as they transferred themselves to the camp of the highest bidder. It is hard to trace any meaning in the civil war—it was not a contest between the principle of hereditary succession and the principle of elective kingship, as might be supposed. It was rather, if some explanation must be found for it, a strife between the kingly power and feudal anarchy. Unfortunately for England the kingly power was in the hands of an incapable holder, and feudal anarchy found a plausible mask by adopting the disguise of loyalty to the rightful heiress.

The civil war was not Stephen's only trouble; foreign invasion was added. David I., king of Scotland, was the uncle of Matilda, and used her wrongs as the plea for thrice invading northern England, which he ravaged with great cruelty. His most formidable raid was checked by the Yorkshire shire levies, at the battle of the Standard (Aug. 22, 1138). Yet in the following year he had to be bought off by the grant of all Northumberland (save Newcastle and Bamborough) to his son Earl Henry. Carlisle and Cumberland were already in his hands. Some years later the Scottish prince also got possession of the great "Honour of Lancaster." It was not Stephen's fault that the boundary of England did not permanently recede from the Tweed and the Solway to the Tyne and the Ribble.

But the affairs of the North attracted little attention while the civil war was at its height in the South. In 1139 Stephen had wrought himself fatal damage by quarrelling with the ecclesiastical bureaucrats, the kinsmen and allies of Roger of Salisbury, who had been among his earliest adherents. Jealous of their power and their arrogance, and doubting their loyalty, he imprisoned them and confiscated their lands. This threw the whole church party on to the side of Matilda; even Henry, bishop of Winchester, the king's own brother, disowned him and passed over to the other side. Moreover, the whole machinery of local government in the realm fell out of gear, when the experienced ministers who were wont to control it were removed from power.

Matilda had landed in England in the winter of 1139-1140; for a year her partisans made steady progress against the king, and on the 2nd of February 1141 Stephen was defeated and taken prisoner at the battle of Lincoln. All England, save the county of Kent and a few isolated castles elsewhere, submitted to Matilda. She was hailed as a sovereign by a great assembly at Winchester, over which Stephen's own brother Bishop Henry presided (April 7, 1141) and entered London in triumph in June. It is doubtful

whether she would have obtained complete possession of the realm if she had played her cards well, for there were too many powerful personages who were interested in the perpetuation of the civil war. But she certainly did her best to ruin her own chances by showing an unwise arrogance, and a determination to resume at once all the powers that her father had possessed. When she annulled all the royal acts of the last six years, declared charters forfeited and lands confiscated, and began to raise heavy and arbitrary taxes, she made the partisans of Stephen desperate, and estranged many of her own supporters. A sudden rising of the citizens drove her out of London, while she was making preparations for her coronation. The party of the imprisoned king rallied under the wise guidance of his wife Matilda of Boulogne and his brother Henry, and many other of the late deserters adhered to it. Their army drove the lately triumphant party out of Winchester, and captured its military chief, Robert, earl of Gloucester. So much was his loss felt that his sister exchanged him a few months later for King Stephen.

After this the war went on interminably, without complete advantage to either side, Stephen for the most part dominating the eastern and Matilda the western shires. It was the zenith of the power of the baronial anarchists, who moved from camp to camp with shameless rapidity, wresting from one or other of the two rival sovereigns some royal castle, or some dangerous grant of financial or judicial rights, at each change of allegiance. The kingdom was in the desperate state described in the last melancholy pages of the *Anglo-Saxon Chronicle*, when life and property were nowhere safe from the objectless ferocity of feudal tyrants—when “every shire was full of castles and every castle filled with devils and evil men,” and the people murmured that “Christ and his saints slept.”

Such was England’s fate till 1153, when Matilda had retired from the strife in favour of her son, Henry of Anjou, and Stephen was grown an old

man, and had just lost his heir, Eustace, to whom he had desired to pass on the crown. Both parties were exhausted, both were sick of the incessant treachery of their more unscrupulous barons, and at last they came to the compromise of Wallingford (October 1153), by which it was agreed that Stephen should reign for the remainder of his life, but that on his death the crown should pass to Henry. Both sides promised to lay down their arms, to dismiss their mercenaries, and to acquiesce in the destruction of unlicensed castles, of which it is said, with no very great exaggeration, that there were at the moment over 1000 in the realm. Henry then returned to Normandy, of which his mother had been in possession since 1145, while Stephen turned his small remaining strength to the weary task of endeavouring to restore the foundations of law and order. But he had accomplished little when he died in October 1154. The task of reconstruction was to be left to Henry of Anjou: his predecessor was only remembered as an example of the evil that may be done by a weak man who has been reckless enough to seize a throne which he is incapable of defending. England has had many worse kings, but never one who wrought her more harm. If his successor had been like him, feudal anarchy might have become as permanent in England as in Poland.

Fortunately the young king to whom Stephen's battered crown now fell was energetic and capable, if somewhat self-willed and hasty. He was inferior in caution and self-control to his grandfather Henry I., though he resembled him in his love of strong and systematic governance. From the point of view of his English subjects his main achievement was that he restored in almost every detail the well-organized bureaucracy which his ancestor had created, and with it the law and order that had disappeared during Stephen's unhappy reign. But there was this essential difference between the position of the two Henries, that the elder aspired to be no more than king of England and duke of Normandy, while the younger strove all his life for an imperial position in western Europe. Such an ambition was almost forced

Henry II.

upon him by the consequences of his descent and his marriage. Besides his grandfather's Anglo-Norman inheritance, he had received from his father Geoffrey the counties of Anjou and Touraine, and the predominance in the valley of the Lower Loire. But it was his marriage to Eleanor of Aquitaine, two years before his accession to the English throne, which gave him the right to dream of greatness such as his Norman forbears had never enjoyed. This lady, the divorced wife of Louis VII. of France, brought to her second husband the whole of the lands from Poitou to the Pyrenees, the accumulated gains of many warlike ancestors. In wealth and fighting strength the duchy of Aquitaine was a full third of France. Added to Anjou and Normandy it made a realm far more important than England. Hence it came that Henry's ambitions and interests were continental more than English. Unlike his grandfather he dwelt for the greater part of his time beyond seas. It must be remembered, too, that his youth had been spent abroad, and that England only came to him when he was already a grown man. The concerns of his island realm were a matter of high importance to him, but only formed a part of his cares. Essentially he was an Angevin, neither a Norman nor an Englishman, and his primary ambition was to make the house of Anjou supreme in France. Nor did this seem impossible; he owned a far broader and wealthier domain beyond the Channel than did his nominal suzerain King Louis VII., and—what was of more importance—he far excelled that prince both in vigour and in capacity.

On succeeding to the English crown, however, he came over at once to take possession of the realm, and abode there for over a year, displaying the most restless energy in setting to rights the governance of the realm. He expelled all Stephen's mercenaries, took back into his hands the royal lands and castles which his predecessor had granted away, and destroyed hundreds of the "adulterine" castles which the barons and knights had built without leave during the years of the anarchy. Hardly a single magnate dared to oppose him—Bridgnorth, now a castle of the Mortimers, was the

only place which he had to take by force. His next care was to restore the bureaucracy by which Henry I. had been wont to govern. He handed over the exchequer to Nigel, bishop of Ely, the nephew of the old justiciar Roger of Salisbury, and the heir of his traditions. His chancellor was a young clerk, Thomas Becket, who was recommended to him by archbishop Theobald as the most capable official in the realm. A short experience of his work convinced the king that his merits had not been exaggerated. He proved a zealous and capable minister, and such a strong exponent of the claims of the crown that no one could have foreseen the later developments by which he was to become their greatest enemy.

The machine of government was beginning to work in a satisfactory fashion, and the realm was already settling down into order, when Henry was called abroad by a rebellion raised in Anjou by his brother Geoffrey—the first of the innumerable dynastic troubles abroad which continued throughout his reign to distract his attention from his duties as an English king. He did not return for fifteen months; but when he did reappear it was to complete the work which he had begun in 1155, to extort from the greater barons the last of the royal fortresses which still remained in their hands, and to restore the northern boundaries of the realm. Malcolm IV., the young king of Scotland, was compelled to give up the earldoms of Northumberland and Cumberland, which his father Henry had received from Stephen. He received instead only the earldom of Huntingdon, too far from the border to be a dangerous possession, to which he had a hereditary right as descending from Earl Waltheof. He did homage to the king of England, and actually followed him with a great retinue on his next continental expedition. In the same year (1157) Henry made an expedition into North Wales, and forced its prince Owen to become his vassal, not without some fighting, in which the English army received several sharp checks at the commencement of the campaign.

Yet once more Henry's stay on the English side of the Channel was but for a year. In 1158 he again departed to plunge into schemes of continental conquest. This time it was an attempt to annex the great county of Toulouse, and so to carry the borders of Aquitaine to the Mediterranean, which distracted him. Naturally Louis of France was unwilling to see his great vassal striding all across his realm, and did what he could to hinder him. Into the endless skirmishes and negotiations which followed the raising of the question of Toulouse it would be fruitless to enter. Henry did not achieve his purpose, indeed he seems to have failed to use his strength to its best advantage, and allowed himself to be bought off by a futile marriage treaty by which his eldest son was to marry the French king's daughter (1160). This was to be but the first of many disappointments in this direction; there was apparently some fatal scruple, both in Henry's own mind and in that of his continental subjects, as to pressing their suzerain too hard. But it must also be remembered that a feudal army was an inefficient weapon for long wars, and that the mercenaries, by whom alone it could be replaced, were both expensive and untrustworthy. Henry developed as far as he was able the system of "scutage" (q.v.) which his grandfather had apparently invented; by this the vassal compounded for his forty days' personal service by paying money, with which the king could hire professional soldiers. But even with this help he could never keep a large enough army together.

Meanwhile England, though somewhat heavily taxed, was at least enjoying quiet and strong governance. There is every sign that Henry's early years were a time of returning prosperity. But there was also much friction between the crown and its subjects. The more turbulent part of the baronage, looking back to the boisterous times of Stephen with regret, was reserving itself for a favourable opportunity. The danger of feudal rebellion was not yet past, as was to be shown ten years later. The towns did not find Henry

Quarrel with the church.

an easy master. He took away from London some of the exceptional privileges which his grandfather had granted, such as the free election of sheriffs of Middlesex, and the right of farming the shire at a fixed rent. He asserted his power to raise “tallages”—arbitrary taxation—from the citizens on occasion. Yet he left the foundations of municipal liberty untouched, and he was fairly liberal in granting charters which contained moderate privileges to smaller towns. His most difficult task, however, was to come to a settlement with the Church. The lavish grants of Stephen had made an end of the old authority which the Conqueror and Henry I. had exercised over the clergy. Their successor was well aware of the fact, and was resolved to put back the clock, so far as it was in his power. It was not, however, on the old problems of free election, of lay investiture, that his quarrel with the clerical body broke out, but on the comparatively new question of the conflicting claims of ecclesiastical and secular courts. The separate tribunals of the church, whose erection William I. had favoured, had been developing in power ever since, and had begun to encroach on the sphere of the courts of the state. This was more than ever the case since Stephen had formally granted them jurisdiction over all suits concerning clerics and clerical property. During the first few years of his reign Henry had already been in collision with the ecclesiastical authorities over several such cases; he had chafed at seeing two clerks accused of murder and blackmailing claimed by and acquitted in the church courts; and most of all at the frequency of unlicensed appeals to Rome—a flagrant breach of one of the three rules laid down by William the Conqueror. Being comparatively at leisure after the pacification with France, he resolved to turn his whole attention to the arrangement of a new *modus vivendi* with the church. As a preliminary move he appointed his able chancellor Thomas Becket to the archbishopric of Canterbury, which fell vacant in 1162.

Becket. This was the greatest mistake of his reign. Becket was one of those men who, without being either hypocrites

or consciously ambitious, live only to magnify their office. While chancellor he was the most zealous servant of the crown, and had seemed rather secular than clerical in his habits and his outlook on life. But no sooner had he been promoted to the archbishopric than he put away his former manners, became the most formal and austere of men, and set himself to be the champion of the church party in all its claims, reasonable or unreasonable, against the state. The king's astonishment was even greater than his indignation when he saw the late chancellor setting himself to oppose him in all things. Their first quarrel was about a proposed change in some details of taxation, which seems to have had no specially ecclesiastical bearing at all. But Becket vehemently opposed it, and got so much support when the great council met at Woodstock that Henry withdrew his schemes. This was only a preliminary skirmish; the main battle opened in the following year, when the king, quite aware that he must for the future look on Thomas as his enemy, brought forward the famous *Constitutions of Clarendon*, of which the main purport was to assert the jurisdiction of the state over clerical offenders by a rather complicated procedure, while other clauses provided that appeals to Rome must not be made without the king's leave, that suits about land or the presentation to benefices, in which clerics were concerned, should be tried before the royal courts, and that bishops should not quit the realm unless they had obtained permission to do so from the king (see [CLARENDON, CONSTITUTIONS OF](#)). Somewhat to the king's surprise, Becket yielded for a moment to his pressure, and declared his assent to the constitutions. But he had no sooner left the court than he proclaimed that he had grievously sinned in giving way, suspended himself from his archiepiscopal functions, and wrote to the pope to beg for pardon and absolution. He then made a clandestine attempt to escape from the realm, but was detected on the seashore and forced to return.

Incensed with Becket for his repudiation of his original submission, Henry proceeded to open a campaign of lawsuits against him, in order to force him to plead in secular courts. He also took the very mean step of declaring that he should call him to account for all the moneys that had passed through his hands when he was chancellor, though Becket had been given a quittance for them when he resigned the office more than two years before. The business came up at the council of Northampton (October 1164), when the archbishop was tried for refusing to recognize the jurisdiction of the king's courts, and declared to have forfeited his movable goods. The sentence was passed by the lay members of the Curia Regis alone, the bishops having been forbidden to sit, and threatened with excommunication if they did so, by the accused primate. When Becket was visited by the justiciar who came to rehearse the judgment, he started to his feet, refused to listen to a word, declared his repudiation of all lay courts and left the hall. That same night he made a second attempt to escape from England and this time succeeded in getting off to Flanders. From thence he fled to the court of the pope, where he received less support than he had expected. Alexander III. privately approved of all that he had done, and regarded him as the champion of the Church, but he did not wish to quarrel with King Henry. He had lately been driven from Rome by the emperor Frederick I., who had installed an antipope in his place, and had been forced to retire to France. If he sided with Becket and thundered against his persecutor, there was small doubt that the king of England would adhere to the schism. Accordingly he endeavoured to temporize and to avoid a rupture, to the archbishop's great disgust. But since he also declared the Constitutions of Clarendon uncanonical and invalid, Henry was equally offended, and opened negotiations with the emperor and the antipope. This conduct forced Alexander's hand, and he gave Becket leave to excommunicate his enemies. The exile, who had taken refuge in a French abbey, placed the justiciar and six other of the king's chief councillors under

the ban of the Church, and intimated that he should add Henry himself to the list unless he showed speedy signs of repentance (April 1166).

Thus the quarrel had come to a head. Church and State were at open war. Henry soon found that Becket's threats had more effect than he liked. Many of the English clergy were naturally on the side of the primate in a dispute which touched their loyalty to the Church and their class feeling. Several bishops declared to the king that, since his ministers had been duly excommunicated, they did not see how they could avoid regarding them as men placed outside the pale of Christendom. Fortunately the pope interfered for a moment to lighten the friction; being threatened with a new invasion by the emperor Frederick, he suspended the sentences and sent legates to patch up a peace. They failed, for neither the king nor the archbishop would give way. At this juncture Henry was desirous of getting his eldest son and namesake crowned as his colleague, the best mode that he could devise for avoiding the dangers of a disputed succession at his death. He induced the archbishop of York, assisted by the bishops of London and Salisbury, to perform the ceremony. This was a clear invasion of the ancient rights of the primate, and Becket took it more to heart than any other of his grievances.

Yet the next move in the struggle was a hollow reconciliation between the combatants—a most inexplicable act on both sides. The king offered to allow Becket to return from exile, and to restore him to his possessions, without exacting from him any promise of submission, or even a pledge that he would not reopen the dispute on his return. Apparently he had made a wrong interpretation of the primate's mental attitude, and thought him desirous of a truce, if not ready for a compromise. He had wholly misjudged the situation; Becket made neither promises nor threats, but three weeks after he reached Canterbury publicly excommunicated the bishops of London and Salisbury for the part that they had taken in the coronation of the young king, and suspended from their functions the other prelates who

had been present at the ceremony. He then proceeded to excommunicate a number of his minor lay enemies.

The news was carried overseas to Henry, who was then in Normandy. It roused one of the fits of wild rage to which he was not unfrequently liable; he burst out into ejaculations of wrath, and cursed “the cowardly idle servants who suffered their master to be made the laughing-stock of a low-born priest.” Among those who stood about him were four knights, some of whom had personal grudges against Becket, and all of whom were reckless ruffians, who were eager to win their master’s favour by fair means or foul. They crossed the Channel with astonishing speed; two days after the king’s outburst they stood before Becket at Canterbury and threatened him with death unless he should remove the excommunications and submit to his master. The archbishop answered with words as scornful as their own, and took his way to the minster to attend vespers. The knights went out to seek their weapons, and when armed followed him into the north transept, where they fell upon him and brutally slew him with many sword-strokes (December 29, 1170). Thomas had been given time to fly, and his followers had endeavoured to persuade him to do so. It seems that he deliberately courted martyrdom, anxious apparently that his death should deal the king the bitterest blow that it was in his power to inflict (see [BECKET](#)).

Nothing could have put Henry in such an evil plight; the whole world held him responsible for the murder, and he was forced to buy pardon for it by surrendering many of the advantages over the Church which he had hoped to gain by enforcing the Constitutions of Clarendon. Especially the immunity of clerical offenders from the jurisdiction of lay courts had to be conceded; for the rest of the middle ages the clerk guilty of theft or assault, riot or murder, could plead his orders, and escape from the harsh justice of

the king's officers to the milder penalties of the bishop's tribunal. "Benefit of clergy" became an intolerable anomaly, all the more so because the privilege was extended in practice not only to all persons actually in minor orders, but to all who claimed them; any criminal who could read had a fair chance of being reckoned a clerk. Another concession which Henry was forced to make was that the appeals to Rome of litigants in ecclesiastical suits should be freely permitted, provided that they made an oath that they were not contemplating any wrong to the English crown or the English church, a sufficiently easy condition. Such appeals became, and remained, innumerable and vexatious. Pope Alexander also extorted from the king a pledge that he would relinquish any customs prejudicial to the rights of the Church which had been introduced since his accession. To the pope this meant that the Constitutions of Clarendon were disavowed; to the king, who maintained that they were in the main a mere restatement of the customs of William I., it bore no such general interpretation. The points were fought out in detail, and not settled for many years. Practically it became the rule to regard suits regarding land, or presentations to benefices, as pertaining to the king's court, while those regarding probate, marriage and divorce fell to the ecclesiastical tribunal. The question of election to bishoprics and abbacies went back to the stage which it had reached in the time of Henry I.; the choice was made in canonical form, by the chapters or the monasteries, but the king's recommendation was a primary factor in that choice. When the electors disregarded it, as was sometimes the case, there was friction; a weak king was sometimes overruled; a strong one generally got his way in the end.

Becket's death, then, gave a qualified triumph to the church party, and he was rightly regarded as the successful champion of his caste. Hence they held his death in grateful remembrance; the pope canonized him in 1173, and more churches were dedicated to him during the next two centuries than to any other English saint. In the eyes of most men his martyrdom had

put the king so much in the wrong that the obstinacy and provocative conduct which had brought it about passed out of memory. His life of ostentatious austerity, and the courage with which he met his death, had caused all his faults to be forgotten. Henry himself felt so much the invidious position in which he was placed that even after making his submission to the pope's legates at Avranches in 1172, he thought it necessary to do penance before Becket's tomb in 1174, on which occasion he allowed himself to be publicly scourged by the monks of Canterbury, who inflicted on him three cuts apiece.

Between the outbreak of the king's quarrel with Becket at the council of Woodstock and the compromise of Avranches no less than ten years had elapsed—the best years of Henry's manhood. During this period his struggle with the Church had been but one of his distractions. His policy of imperial aggrandisement had been in progress. In 1163 he had completed the conquest of South Wales; the marcher lords were now in possession of the greater part of the land; the surviving Welsh princes did homage for the rest. In 1166 Henry got practical possession of the duchy of Brittany, the only remaining large district of western France which was not already in his hands. Conan, the last prince of the old Breton house, recognized him as his lord, and gave the hand of his heiress Constance to Geoffrey, the king's third son. When the count died in 1171 Henry did not transfer the administration of the land to the young pair, who were still but children, but retained it for himself, and clung to it jealously long after his son came of age. Intermittent wars with France during these years were of small importance; Henry never pushed his suzerain to extremity. But the Angevin dominions were extended in a new direction, where no English king had yet made his power felt.

The distressful island of Ireland was at this moment enjoying the anarchy which had reigned therein since the dawn of history. Its state had grown

even more unhappy than before since the Danish invasions of the 10th century, which had not welded the native kingdoms into unity by pressure from without—as had been the case in England—but had simply complicated affairs, by setting up two or three alien principalities on the coastline. As in England, the vikings had destroyed much of the old civilization; but they had neither succeeded in occupying the whole country nor had they been absorbed by the natives. The state of the island was much like that of England in the days of the Heptarchy: occasionally a “High King” succeeded in forcing his rivals into a precarious submission; more usually there was not even a pretence of a central authority in the island, and the annals of objectless tribal wars formed its sole history. King Henry’s eyes had been fixed on the faction-ridden land since the first years of his reign. As early as 1155 he had asked and obtained the approval of Pope Adrian IV., the only Englishman who ever sat upon the papal throne, for a scheme for the conquest of Ireland. The Holy See had always regarded with distaste the existence in the West of a nation who repudiated the Roman obedience, and lived in schismatical independence, under local ecclesiastical customs which dated back to the 5th century, and had never been brought into line with those of the rest of Christendom. Hence it was natural to sanction an invasion which might bring the Irish within the fold. But Henry made no endeavour for many years to utilize the papal grant of Ireland, which seems to have been made under the preposterous “Donation of Constantine,” the forged document which gave the bishop of Rome authority over all islands. It was conveniently forgotten that Ireland had never been in the Roman empire, and so had not even been Constantine’s to give away.

Not till 1168, thirteen years after the agreement with Pope Adrian, did the interference of the English king in Ireland actually begin. Even then he did not take the conquest in hand himself, but merely sanctioned a private adventure of some of his subjects. Dermot MacMorrough, king of Leinster,

an unquiet Irish prince who for good reasons had been expelled by his neighbours, came to Henry's court in Normandy, proffering his allegiance in return for restoration to his lost dominions. The quarrel with Becket, and the French war, were both distracting the English king at the moment. He could not spare attention for the matter, but gave Dermot leave to enlist auxiliaries among the turbulent barons of the South Welsh Marches. The Irish exile enlisted first the services of Maurice Fitzgerald and Robert Fitzstephen, two half-brothers, both noted fighting men, and afterwards those of Richard de Clare, earl of Pembroke, an ambitious and impecunious magnate of broken fortunes. The two barons were promised lands, the earl a greater bribe—the hand of Dermot's only daughter Eva and the inheritance of the kingdom of Leinster. Fitzgerald and Fitzstephen crossed to Ireland in 1169 with a mere handful of followers. But they achieved victories of an almost incredible completeness over Dermot's enemies. The undisciplined hordes of the king of Ossory and the Danes of Wexford could not stand before the Anglo-Norman tactics—the charge of the knights and the arrow-flight of the archers, skilfully combined by the adventurous invaders. Dermot was triumphant, and sent for more auxiliaries, aspiring to evict Roderic O'Connor of Connaught from the precarious throne of High King of Ireland. In 1170 the earl of Pembroke came over with a larger force, celebrated his marriage with Dermot's daughter, and commenced a series of conquests. He took Waterford and Dublin from the Danes, and scattered the hosts of the native princes. Early in the next spring Dermot died, and Earl Richard, in virtue of his marriage, claimed the kingship of Leinster. He held his own, despite the assaults of a great army gathered by Roderic the High King, and of a viking fleet which came to help the conquered jarls of Waterford and Dublin. At this moment King Henry thought it necessary to interfere; if he let more time slip away, Earl Richard would become a powerful king and forget his English allegiance. Accordingly, with a large army at his back, he landed at Waterford in 1171 and marched on Dublin.

Richard did him homage for Leinster, engaging to hold it as a palatine earldom, and not to claim the name or rights of a king. The other adventurers followed his example, as did, after an interval, most of the native Irish princes. Only Roderic of Connaught held aloof in his western solitudes, asserting his independence. The clergy, almost without a murmur, submitted themselves to the Roman Church.

Such was the first conquest of Ireland, a conquest too facile to be secure. Four years later it appeared to be completed by the submission of the king of Connaught, who did homage like the rest of the island chiefs. But their oaths were as easily broken as made, and the real subjection of the island was not to be completed for 400 years. What happened was that the Anglo-Norman invaders pushed gradually west, occupying the best of the land and holding it down by castles, but leaving the profitless bogs and mountains to the local princes. The king's writ only ran in and about Dublin and a few other harbour fortresses. Inland, the intruding barons and the Irish chiefs fought perpetually, with varying fortunes. The conquest hardly touched central and western Ulster, and left half Connaught unsubdued: even in the immediate vicinity of Dublin the tribes of the Wicklow Hills were never properly tamed. The English conquest was incomplete; it failed to introduce either unity or strong governance. After a century and a half it began to recede rather than to advance. Many of the districts which had been overrun in the time of the Angevin kings were lost; many of the Anglo-Norman families intermarried with and became absorbed by the Irish; they grew as careless of their allegiance to the crown as any of the native chiefs. The "Lordship of Ireland" was never a reality till the times of the Tudors. But as long as Henry II. lived this could not have been foreseen. The first generation of the conquerors pushed their advance with such vigour that it seemed likely that they would complete the adventure. (See [IRELAND: History.](#))

It was in 1173, the year after his return from Ireland and his submission to the papal legates at Avranches, that King Henry became involved in the first of a series of troubles which were to pursue him for the rest of his life

Rebellion of Henry's sons.

—the rebellions of his graceless sons. His wife Eleanor of Aquitaine had borne him many children. Henry, the eldest surviving son, had already been crowned in 1170 as his father's colleague and successor; not only he, but Richard the second, and Geoffrey the third son, were now old enough to chafe against the restraints imposed upon them by an imperious and strong-willed father. The old king very naturally preferred to keep his dominions united under his own immediate government, but he had designated his eldest son as his successor in England and Normandy, while Richard was to have his mother's heritage of Aquitaine, and Geoffrey's wife's dowry, the duchy of Brittany, was due to him, now that he had reached the verge of manhood. The princes were shamelessly eager to enter on their inheritance, the king was loath to understand that by conferring a titular sovereignty on his sons he had given them a sort of right to expect some share of real power. Their grudge against their father was sedulously fostered by their mother Eleanor, a clever and revengeful woman, who could never forgive her husband for keeping her in the background in political matters and insulting her by his frequent amours. Her old subjects in Aquitaine were secretly encouraged by her to follow her son Richard against his father, whom the barons of the south always regarded as an alien and an intruder. The Bretons were equally willing to rise in the name of Geoffrey and Constance against the guardian who was keeping their prince too long waiting for his inheritance. In England the younger Henry had built himself up a party among the more turbulent section of the baronage, who remembered with regret and longing the carnival of licence which their fathers had enjoyed under King Stephen. Secret agreements had also been made with the kings of France and

Scotland, who were eager to take advantage of the troubles which were about to break out.

In 1173 the plot was complete, and Henry's three elder sons all took arms against him, collecting Norman, Breton and Gascon rebels in great numbers, and being backed by a French army. At the same moment the king of Scots invaded Northumberland, and the earls of Norfolk, Chester and Leicester rose in the name of the younger Henry. This was in all essentials a feudal rebellion of the old type. The English barons were simply desirous of getting rid of the strong and effective governance of the king, and the alleged wrongs of his sons were an empty excuse. For precisely the same reason all classes in England, save the more turbulent section of the baronage, remained faithful to the elder king. The bureaucracy, the minor landholders, the towns, and the clergy refused to join in the rising, and lent their aid for its suppression, because they were unwilling to see anarchy recommence. Hence, though the rebellious princes made head for a time against their father abroad, the insurrection of their partisans in England was suppressed without much difficulty. The justiciar, Richard de Lucy, routed the army of the earl of Leicester at Fornham in Suffolk, the castles of the rebel earls were subdued one after another, and William of Scotland was surprised and captured by a force of northern loyalists while he was besieging Alnwick (1173-1174). The war lingered on for a space on the continent; but Henry raised the siege of Rouen, which was being attacked by his eldest son and the king of France, captured most of Richard's castles in Poitou, and then received the submission of his undutiful children. Showing considerable magnanimity, he promised to grant to each of them half the revenues of the lands in which they were his destined heirs, and a certain number of castles to hold as their own. Their allies fared less well; the rebel earls were subjected to heavy fines, and their strongholds were demolished. The king of Scots was forced to buy his liberty by doing homage to Henry for the whole of his kingdom. Queen Eleanor, whom her

husband regarded as responsible for the whole rebellion, was placed in a sort of honourable captivity, or retirement, and denied her royal state.

Henry appeared completely triumphant; but the fourteen years which he had yet to live were for the most part to be times of trouble and frustrated hopes. He was growing old; the indomitable energy of his early career was beginning to slacken; his dreams of extended empire were vanishing. In the last period of his life he was more set on defending what he already enjoyed, and perfecting the details of administration in his realms, than on taking new adventures in hand. Probably the consciousness that his dominions would be broken up among his sons after his death had a disheartening effect upon him. At any rate his later years bear a considerable resemblance to the corresponding period of his grandfather's reign. The machinery of government which the one had sketched out the other completed. Under Henry II. the circuits of the itinerant justices became regular instead of intermittent; the judicial functions of the *Curia Regis* were delegated to a permanent committee of that body which took form as the court of king's bench (*Curia Regis in Banco*). The sheriffs were kept very tightly in hand, and under incessant supervision; once in 1170 nearly the whole body of them were dismissed for misuse of their office. The shire levies which had served the king so well against the feudal rebels of 1173 were reorganized, with uniformity of weapons and armour, by the *Assize of Arms* of 1181. There was also a considerable amount of new legislation with the object of protecting the minor subjects of the crown, and the system of trial by jurors was advanced to the detriment of the absurd old practices of trial by ordeal and trial by wager of battle. The 13th-century jury was a rough and primitive institution, which acted at once as accuser, witness and judge—but it was at any rate preferable to the chances of the red-hot iron, or the club of the duellist.

The best proof that King Henry's orderly if autocratic régime was appreciated at its true value by his English subjects, is that when the second series of rebellions raised by his undutiful sons began in 1182, there was no stir whatever in England, though in Normandy, Brittany and Aquitaine the barons rose in full force to support the young princes, whose success would mean the triumph of particularism and the destruction of the Angevin empire. Among the many troubles which broke down King Henry's strong will and great bodily vigour in those unhappy years, rebellion in England was not one. For this reason he was almost constantly abroad, leaving the administration of the one loyal section of his realm to his great justiciar. Hence the story of the unnatural war between father and sons has no part in English history. It is but necessary to note that the younger Henry died in 1183, that Geoffrey perished by accident at a tournament in 1186, and that in 1189, when the old king's strength finally gave out, it was Richard who was leading the rebellion, to which John, the youngest and least worthy of the four undutiful sons, was giving secret countenance. It was the discovery of the treachery of this one child whom he had deemed faithful, and loved over well, that broke Henry's heart. "Let things go as they will; I have nothing to care for in the world now," he murmured on his death-bed, and turned his face to the wall to breathe his last.

The death of the younger Henry had made Richard heir to all his father's lands from the Tweed to the Bidassoa save Brittany, which had fallen to Arthur, the infant son of the unlucky Geoffrey. John, the new king's only surviving brother, had been declared "Lord of Ireland" by his father in 1185, but Henry had been forced to remove him for persistent misconduct, and had left him nothing more than a titular sovereignty in the newly conquered island. In this Richard confirmed him at his accession, and gave him a more tangible endowment by allowing him to marry Isabella, the heiress of the earldom of Gloucester, and by bestowing on him the honour of Lancaster and the shires

Richard I.

of Derby, Devon, Cornwall and Somerset. The gift was over-liberal and the recipient was thankless; but John was distinctly treated as a vassal, not granted the position of an independent sovereign.

Of all the medieval kings of England, Richard I. (known as Cœur de Lion) cared least for his realm on the English side of the Channel, and spent least time within it. Though he chanced to have been born in Oxford, he was far more of a foreigner than his father; his soul was that of a south French baron, not that of an English king. Indeed he looked upon England more as a rich area for taxation than as the centre of a possible empire. His ambitions were continental: so far as he had a policy at all it was Angevin—he would gladly have increased his dominions on the side of the upper Loire and Garonne, and was set on keeping in check the young king of France, Philip Augustus, though the latter had been his ally during his long struggle with his father. Naturally the policy of Richard as a newly crowned king was bound to differ from that which he had pursued as a rebellious prince. As regards his personal character he has been described, not without truth, as a typical man of his time and nothing more. He was at heart a chivalrous adventurer delighting in war for war's sake; he was not destitute of a conscience—his undutiful conduct to his father sat heavily on his soul when that father was once dead; he had a strong sense of knightly honour and a certain magnanimity of soul in times of crisis; but he was harsh, thriftless, often cruel, generally lacking in firmness and continuity of purpose, always careless of his subjects' welfare when it interfered with his pleasure or his ambitions of the moment. If he had stayed long in England he would have made himself hated; but he was nearly always absent; it was only as a reckless and spasmodic extorter of taxation, not as a personal tyrant, that he was known on the English side of the Channel.

At the opening of his reign Richard had one all-engrossing desire; he was set on going forth to the Crusade for the recovery of Jerusalem which had

been proclaimed in 1187, partly from chivalrous instincts, partly as a penance for his misconduct to his father. He visited *The Crusade.* England in 1189 only in order to be crowned, and to raise as much money for the expedition as he could procure. He obtained enormous sums, by the most unwise and iniquitous expedients, mainly by selling to any buyer that he could find valuable pieces of crown property, high offices and dangerous rights and privileges. The king of Scotland bought for 15,000 marks a release from the homage to the English crown which had been imposed upon him by Henry II. The chancellorship, one of the two chief offices in the realm, was sold to William Longchamp, bishop of Ely, for £3000, though he was well known as a tactless, arrogant and incapable person. The earldom of Northumberland, with palatine rights, was bought by Hugh Puiset, bishop of Durham. Countless other instances of unwise bargains could be quoted. Having raised every penny that he could procure by legal or illegal means, Richard crossed the Channel, and embarked at Marseilles with a great army on the 7th of August 1190. The only security which he had for the safety of his dominions in his absence was that his most dangerous neighbour, the king of France, was also setting out on the Crusade, and that his brother John, whose shifty and treacherous character gave sure promise of trouble, enjoyed a well-merited unpopularity both in England and in the continental dominions of the crown.

Richard's crusading exploits have no connexion with the history of England. He showed himself a good knight and a capable general—the capture of Acre and the victory of Arsuf were highly to his credit as a soldier. But he quarrelled with all the other princes of the Crusade, and showed himself as lacking in tact and diplomatic ability as he was full of military capacity. The king of France departed in wrath, to raise trouble at home; the army gradually melted away, the prospect of recovering Jerusalem disappeared, and finally Richard must be reckoned fortunate in

that he obtained from Sultan Saladin a peace, by which the coastland of Palestine was preserved for the Christians, while the Holy City and the inland was sacrificed (Sept. 2, 1192). While returning to his dominions by the way of the Adriatic, the king was shipwrecked, and found himself obliged to enter the dominions of Leopold, duke of Austria, a prince whom he had offended at Acre during the Crusade. Though he disguised himself, he was detected by his old enemy and imprisoned. The duke then sold him to the emperor Henry VI., who found pretexts for forcing him to buy his freedom by the promise of a ransom of 150,000 marks. It was not till February 1194 that he got loose, after paying a considerable instalment of this vast sum. The main bulk of it, as was to be expected, was never made over; indeed it could not have been raised, as Richard was well aware. But, once free, he had no scruple in cheating the imperial brigand of his blackmail.

For five years Richard was away from his dominions as a crusader or a captive. There was plenty of trouble during his absence, but less than might have been expected. The strong governance set up by Henry II. proved

John's treachery. competent to maintain itself, even when Richard's ministers were tactless and his brother treacherous. A generation before it is certain that England would have

been convulsed by a great feudal rising when such an opportunity was granted to the barons. Nothing of the kind happened between 1190 and 1194. The chancellor William Longchamp made himself odious by his vanity and autocratic behaviour, and was overthrown in 1191 by a general rising, which was headed by Prince John, and approved by Walter, archbishop of Rouen, whom Richard had sent to England with a commission to assume the justiciarship if William should prove impossible as an administrator. Longchamp fled to the continent, and John then hoped to seize on supreme power, even perhaps to grasp the crown. But he was bitterly disappointed to find that he could gather few supporters; the

justiciar and the bureaucrats of the Curia Regis would give him no assistance; they worked on honestly in the name of the absent king. Among the baronage hardly a man would commit himself to treason. In vain John hired foreign mercenaries, garrisoned his castles, and leagued himself with the king of France when the latter returned from the Crusade. It was only the news of his brother's captivity in Austria which gave the intriguing prince a transient hope of success. Boldly asserting that Richard would never be seen alive again he went to France, and did homage to King Philip for Normandy and Aquitaine, as if they were already his own. Then he crossed to England with a band of mercenaries, and seized Windsor and Wallingford castles. But no one rose to aid him, and his garrisons were soon being besieged by loyal levies, headed by the justiciar and by Hubert Walter, the newly elected archbishop of Canterbury. At the same time King Philip's invasion of Normandy was repulsed by the barons of the duchy. Richard's faithful ministers, despite of all their distractions, succeeded in raising the first instalment of his ransom by grinding taxation—a fourth part of the revenue of all lay persons, a tithe from ecclesiastical land, was raised, and in addition much church plate was seized, though the officials who exacted it were themselves prelates. John and Philip wrote to the emperor to beg him to detain his captive at all costs, but Henry VI. pocketed the ransom money and set Richard free. He reached England in March 1194, just in time to receive the surrender of the last two castles which were holding out in his treacherous brother's name. With astonishing, and indeed misplaced, magnanimity, Richard pardoned his brother, when he made a grovelling submission, and restored him to his lordship of Ireland and to a great part of his English lands.

The king abode for no more than three months in England; he got himself recrowned at Winchester, apparently to wipe out the stain of his German captivity and of an enforced homage which the emperor had extorted from him. Then he raised a heavy tax from his already impoverished subjects,

sold a number of official posts and departed to France—never to return, though he had still five years to live. He left behind Archbishop Hubert Walter as justiciar, a faithful if a somewhat high-handed minister.

Richard's one ruling passion was now to punish Philip of France for his unfriendly conduct during his absence. He plunged into a war with this clever and shifty prince, which lasted—with certain short breaks of truces and treaties—till his death. He wasted his considerable military talents in a series of skirmishes and sieges which had no great results, and after spending countless treasures and harrying many regions, perished obscurely by a wound from a cross-bow-bolt, received while beleaguering Châlus, a castle of a rebellious lord of Aquitaine, the viscount of Limoges (April 6, 1199).

During these years of petty strife England was only reminded at intervals of her king's existence by his intermittent demands for money, which his ministers did their best to satisfy. The machine of government continued to

*English
constitutional
development.*

work without his supervision. It has been observed that, from one point of view, England's worst kings have been her best; that is to say, a sovereign like Richard, who persistently neglected his duties, was unconsciously the foster father of constitutional liberty. For his ministers, bureaucrats of an orderly frame of mind, devised for their own convenience rules and customs which became permanent, and could be cited against those later kings who interfered more actively in the details of domestic governance. We may trace back some small beginnings of a constitution to the time of Henry II.—himself an absentee though not on the scale of his son. But the ten years of Richard's reign were much more fruitful in the growth of institutions which were destined to curb the power of the crown. His justiciars, and especially Hubert Walter, were responsible for several innovations which were to have far-spreading results. The most important

was an extension of the use of juries into the province of taxation. When the government employs committees chosen by the taxpayers to estimate and assess the details of taxation, it will find it hard to go back to arbitrary exactions. Such a practice had been first seen when Henry II., in his last year, allowed the celebrated “Saladin Tithe” for the service of the crusade to be assessed by local jurors. In Richard’s reign the practice became regular. In especial when England was measured out anew for the great carucage of 1197—a tax on every ploughland which replaced the rough calculation of Domesday Book—knights elected by the shires shared in all the calculations then made for the new impost. Another constitutional advance was that which substituted “coroners,” knights chosen by the county court, for the king’s old factotum the sheriff in the duty of holding the “pleas of the crown,” *i.e.* in making the preliminary investigations into such offences as riot, murder or injury to the king’s rights or property. The sheriff’s natural impulse was to indict every man from whom money could be got; the new coroners were influenced by other motives than financial rapacity, and so were much more likely to deal equitably with accusations. The towns also profited in no small degree from Richard’s absence and impecuniosity. One of the most important charters to London, that which granted the city the right of constituting itself a “commune” and choosing itself a mayor, goes back to October 1191, the troubled month of Longchamp’s expulsion from England. It was given by Prince John and the ministers, who were then supporting him against the arrogant chancellor, to secure the adherence of London. Richard on his return seems to have allowed it to stand. Lincoln was also given the right of electing its own magistrates in 1194, and many smaller places owe grants of more or less of municipal privilege to Hubert Walter acting in the name of the absent king. The English nation began to have some conception of a régime of fixed custom, in which its rights depended on some other source than the sovereign’s personal caprice. The times, it may be remembered, were not

unprosperous. There had been no serious civil war since the baronial rising of 1173. Prince John's turbulence had only affected the neighbourhood of a few royal castles. Despite of the frequent and heavy demands for money for the king's service, wealth seems to have been increasing, and prosperity to have been widespread. Strong and regular governance had on the whole prevailed ever since Henry II. triumphed over baronial anarchy.

III. THE STRUGGLE FOR CONSTITUTIONAL LIBERTY (1199-1337)

Richard's queen, Berengaria of Navarre, had borne him no children. At the moment of his premature death his nearest kinsmen were his worthless brother John, and the boy Arthur of Brittany, the heir of Geoffrey, the third son of Henry II. On his death-bed the king had designated John as his successor, holding apparently that a bad ruler who was at least a grown man was preferable to a child. John's claim prevailed both in Normandy and in England, though in each, as we are told, there were those who considered it a doubtful point whether an elder brother's son had not a better right than a younger brother. But the ministers recognized John, and the baronage and nation acquiesced, though with little enthusiasm. In the lands farther south, however, matters went otherwise. The dowager duchess Constance of Brittany raised her son's claim, and sent an army into Anjou, and all down the Loire many of the nobles adhered to his cause. The king of France announced that he should support them, and allowed Arthur to do him homage for Anjou, Maine and Touraine. There would have been trouble in Aquitaine also, if the aged Queen Eleanor had not asserted her own primary and indefeasible right to her ancestral duchy, and then declared that she transferred it to her best loved son John. Most of her subjects accepted her decision, and Arthur's faction made no head in this quarter.

It seemed for a space as if the new king would succeed in retaining the whole of his brother's inheritance, for King Philip very meanly allowed himself to be bought off by the cession of the county of Evreux, and, when his troops were withdrawn, the Angevin rebels were beaten down, and the duchess of Brittany had to ask for peace for her son. But it had not long been granted, when John proceeded to throw away his advantage by acts of reckless impolicy. Though cunning, he was destitute alike of foresight and of self-control; he could never discern the way in which his conduct would be judged by other men, because he lacked even the rudiments of a conscience. Ere he had been many months on the throne he divorced his wife, Isabella of Gloucester, alleging that their marriage had been illegal because they were within the prohibited degrees. This act offended the English barons, but in choosing a new queen John gave much greater offence abroad; he carried off Isabella of Angoulême from her affianced husband, Hugh of Lusignan, the son of the count of la Marche, his greatest vassal in northern Aquitaine, and married her despite the precontract. This seems to have been an amorous freak, not the result of any deep-laid policy. Roused by the insult the Lusignans took arms, and a great part of the barons of Poitou joined them. They appealed for aid to Philip of France, who judged it opportune to intervene once more. He summoned John to appear before him as suzerain, to answer the complaints of his Poitevin subjects, and when he failed to plead declared war on him and declared his

***War with Phillip
Augustus.***

dominions escheated to the French crown for non-fulfilment of his feudal allegiance. He enlisted Arthur of Brittany in his cause by recognizing him once more as the rightful owner of all John's continental fiefs save Normandy, which he intended to take for himself. Philip then entered Normandy, while Arthur led a Breton force into Anjou and Poitou to aid the Lusignans. The fortune of war at first turned in favour of the English king. He surprised his nephew while he was besieging the castle of Mirebeau in Poitou, where the old

Queen Eleanor was residing. The young duke and most of his chief supporters were taken prisoners (August 1, 1202). Instead of using his advantage aright, John put Arthur in secret confinement, and after some months caused him to be murdered. He is said also to have starved to death twenty-two knights of Poitou who had been among his captives. The assassination of his nearest kinsman, a mere boy of sixteen, was as unwise as it was cruel. It estranged from the king the hearts of all his French subjects, who were already sufficiently disgusted by many minor acts of brutality, as well as by incessant arbitrary taxation and by the reckless ravages in which John's mercenary troops had been indulging. The French

Loss of Normandy. armies met with little or no resistance when they invaded Normandy, Anjou and Poitou. John sat inert at Rouen, pretending to take his misfortunes lightly, and

boasting that "what was easily lost could be as easily won back." Meanwhile Philip Augustus conquered all western Normandy, without having to fight a battle. The great castle of Château Gaillard, which guards the Lower Seine, was the only place which made a strenuous resistance. It was finally taken by assault, despite of the efforts of the gallant castellan, Roger de Lacy, constable of Chester, who had made head against the besiegers for six months (September 1203-March 1204) without receiving any assistance from his master. John finally absconded to England in December 1203; he failed to return with an army of relief, as he had promised, and before the summer of 1204 was over, Caen, Bayeux and Rouen, the last places that held out for him, had been forced to open their gates. The Norman barons had refused to strike a blow for John, and the cities had shown but a very passive and precarious loyalty to him. He had made himself so well hated by his cruelty and vices that the Normans, forgetting their old hatred of France, had acquiesced in the conquest. Two ties alone had for the last century held the duchy to the English connexion: the one was that many Norman baronial families held lands on this side of

the Channel; the second was the national pride which looked upon England as a conquered appendage of Normandy. But the first had grown weaker as the custom arose of dividing family estates between brothers, on the principle that one should take the Norman, the other the English parts of a paternal heritage. By John's time there were comparatively few landholders whose interests were fairly divided between the duchy and the kingdom. Such as survived had now to choose between losing the one or the other section of their lands; those whose holding was mainly Norman adhered to Philip; those who had more land in England sacrificed their transmarine estates. For each of the two kings declared the property of the barons who did not support him confiscated to the crown. As to the old Norman theory that England was a conquered land, it had gradually ceased to exist as an operative force, under kings who, like Henry II. or Richard I., were neither Norman nor English in feeling, but Angevin. John did not, and could not, appeal as a Norman prince to Norman patriotism.

The successes of Philip Augustus did not cease with the conquest of Normandy. His armies pushed forward in the south also; Anjou, Touraine and nearly all Poitou submitted to him. Only Guienne and southern

*Loss of Anjou,
Touraine and Poitou.* Aquitaine held out for King John, partly because they preferred a weak and distant master to such a strenuous and grasping prince as King Philip, partly because they were far more alien in blood and language to their French neighbours than were Normans or Angevins. The Gascons were practically a separate nationality, and the house of Capet had no ancient connexion with them. The kings of England were yet to reign at Bordeaux and Bayonne for two hundred and fifty years. But the connexion with Gascony meant little compared with the now vanished connexion with Normandy. Henry I. or Henry II. could run over to his continental dominions in a day or two days; Dieppe and Harfleur were close to Portsmouth and Hastings. It was a different thing for John and his successors to undertake the long voyage to

Bordeaux, around the stormy headlands of Brittany and across the Bay of Biscay. Visits to their continental dominions had to be few and far between; they were long, costly and dangerous when a French fleet—a thing never seen before Philip Augustus conquered Normandy—might be roaming in the Channel. The kings of England became perforce much more home-keeping sovereigns after 1204.

It was certainly not a boon for England that her present sovereign was destined to remain within her borders for the greater part of his remaining years. To know John well was to loathe him, as every contemporary chronicle bears witness. The two years that followed the loss of Normandy were a time of growing discontent and incessant disputes about taxation. The king kept collecting scutages and tallages, yet barons and towns complained that nothing seemed to be done with the money he collected. At last, however, in 1206, the king did make an expedition to Poitou, and recovered some of its southern borders. Yet, with his usual inconsequence, he did not follow up his success, but made a two years' truce with Philip of France on the basis of *uti possidetis*—which left Normandy and all the territories on and about the Loire in the hands of the conqueror.

It is probable that this pacification was the result of a new quarrel which John had just taken up with a new enemy—the Papacy. The dispute on the question of free election, which was to range over all the central years of his

***Quarrel with the
Papacy.***

reign, had just begun. In the end of 1205 Hubert Walter, archbishop of Canterbury, had died. The king announced his intention of procuring the election of John de Gray, bishop of Norwich, as his successor; but, though his purpose was well known, the chapter (*i.e.* the monks of Christ Church, Canterbury) met secretly and elected their sub-prior Reginald as archbishop. They sent him to Rome at once, to receive confirmation from Pope Innocent III., whom they knew to be a zealous champion of the rights of the Church. But

John descended upon them in great wrath, and by threats compelled them to hold a second meeting, and to elect his nominee Gray, in whose name application for confirmation was also made to the pope. Innocent, however, seeing a splendid chance of asserting his authority, declared both the elections that had taken place invalid, the first because it had been clandestine, the second because it had been held under *force majeure*, and proceeded to nominate a friend of his own—Cardinal Stephen Langton, an Englishman of proved capacity and blameless life, then resident in Rome. He was far the worthiest of the three candidates, but it was an intolerable invasion of the rights of the English crown and the English Church that an archbishop should be foisted on them in this fashion. The representatives of the chapter who had been sent to Rome were persuaded or compelled to elect him in the pope's presence (Dec. 1206).

King John was furious, and not without good reason; he refused to accept Langton, whom he declared (quite unjustly) to be a secret friend of Philip of France, and sequestered the lands of the monks of Canterbury. On this the pope threatened to lay an interdict on himself and his realm. The king replied by issuing a proclamation to the effect that he would outlaw any clerk who should accept the validity of such an interdict and would confiscate his lands. Despising such threats Innocent carried out his threat, and put England under the ban of the Church on the 23rd of March 1208.

In obedience to the pope's orders the large majority of the English clergy closed their churches, and suspended the ordinary course of the services and celebration of the sacraments. Baptism and extreme unction only were continued, lest souls should be lost; and marriages were permitted but not inside the walls of churches. Foreseeing the wrath of the king against all who obeyed the mandate from Rome, the larger number of the bishops and many others of the higher clergy fled overseas to escape the storm. Those who were bold enough to remain behind had much to endure. John, openly

rejoicing at the plunder that lay before him, declared the temporalities of all who had accepted the interdict, whether they had exiled themselves or no, to be confiscated. His treasury was soon so well filled that he could dispense with ordinary taxation. He also outlawed the whole body of the clergy, save the timid remnant who promised to disregard the papal commands.

Nothing proves more conclusively the strength of the Angevin monarchy, and the decreasing power of feudalism, than that an unpopular king like John could maintain his strife with the pope, and suppress the discontents of

Character of John's rule.

his subjects, for nearly five years before the inevitable explosion came. Probably his long immunity was due in the main to the capacity of his strong-handed justiciar Geoffrey Fitz-Peter; the king hated him bitterly, but generally took his advice. The crash only came when Geoffrey died in 1213; his ungrateful master only expressed joy. "Now by God's feet am I for the first time king of England," he exclaimed, when the news reached him. He proceeded to fill the vacancy with a mere Poitevin adventurer, Peter des Roches, whom he had made bishop of Winchester some time before. Indeed John's few trusted confidants were nearly all foreigners, such men as the mercenary captains Gerard of Athies and Engelhart of Cigogné, whom he made sheriffs and castellans to the discontent of all Englishmen. He spent all his money in maintaining bands of hired *Brabançons* and *routiers*, by whose aid he for some time succeeded in terrorizing the countryside. There were a few preliminary outbreaks of rebellion, which were suppressed with vigour and punished with horrible cruelty. John starved to death the wife and son of William de Braose, the first baron who took arms against him, and hanged in a row twenty-eight young boys, hostages for the fidelity of their fathers, Welsh princes who had dabbled in treason. Such acts provoked rage as well as fear, yet the measure of John's iniquities was not full till 1212. Indeed for some time his persistent prosperity provoked the indignant

surprise of those who believed him to be under a curse. If his renewed war with Philip of France was generally unsuccessful, yet at home he held his own. The most astounding instance of his success is that in 1210 he found leisure for a hasty expedition to Ireland, where he compelled rebellious barons to do homage, and received the submission of more than twenty of the local kinglets. It is strange that he came back to find England undisturbed behind him.

His long-deserved humiliation only began in the winter of 1212-1213, when Innocent III., finding him so utterly callous as to the interdict, took the further step of declaring him deposed from the throne for contumacy, and handing over the execution of the penalty to the king of France. This act provoked a certain amount of indignation in England, and in the spring of 1213 the king was able to collect a large army on Barham Down to resist the threatened French invasion. Yet so many of his subjects were discontented that he dared not trust himself to the chances of war, and, when the fleet of King Philip was ready to sail, he surprised the world by making a sudden and grovelling submission to the pope. Not only did he agree to receive Stephen Langton as archbishop, to restore all the exiled clergy to their benefices, and to pay them handsome compensation for all their losses during the last five years, but he took the strange and ignominious step of declaring that he ceded his whole kingdom to the pope, to hold as his vassal. He formally resigned his crown into the hands of the legate Cardinal Pandulf, and took it back as the pope's vassal, engaging at the same time to pay a tribute of 1000 marks a year for England and Ireland. This was felt to be a humiliating transaction by many of John's subjects, though to others the joy at reconciliation with the Church caused all else to be forgotten. The political effect of the device was all that John had desired. His new suzerain took him under his protection, and forbade Philip of France to proceed with his projected invasion, though ships and men were all ready (May 1213).

John does homage to the pope.

John's safety, however, was secured in a more practical way when his bastard brother, William Longsword, earl of Salisbury, made a descent on the port of Damme and burnt or sunk a whole squadron of the French transports. After this John's spirits rose, and he talked of crossing the seas himself to recover Normandy and Anjou. But he soon found that his subjects were not inclined to follow him; they were resigned to the loss of the Angevin heritage, whose union with England brought no profit to them, however much it might interest their king. The barons expressed their wish for a peace with France, and when summoned to produce their feudal contingents pleaded poverty, and raised a rather shallow theory to the effect that their services could not be asked for wars beyond seas—against which there were conclusive precedents in the reigns of Henry I. and Henry II. But any plea can be raised against an unpopular king. John found himself obliged to turn back, since hardly a man save his mercenaries had rallied to his standard at Portsmouth. In great anger and indignation he marched off towards the north, with his hired soldiery, swearing to punish the barons who had taken the lead in the “strike” which had defeated his purpose. But the outbreak of war was to be deferred for a space. Archbishop Langton, who on assuming possession of his see had shown at once that he was a patriotic English statesman, and not the mere delegate of the pope, besought his master to hold back, and, when he refused, threatened to renew the excommunication which had so lately been removed. The old justiciar Geoffrey Fitz-Peter, now on his death-bed, had also refused to pronounce sentence on the defaulters. John hesitated, and meanwhile his enemies began to organize their resistance.

A great landmark in the constitutional history of England was reached when Langton assembled the leading barons, rehearsed to them the charter issued by Henry I. on his accession, and pointed out to them the rights and liberties therein promised by the crown to the nation. For the future they agreed to take this document as their programme of demands. It was the

***Opposition of the
barons.***

first of the many occasions in English history when the demand for reform took the shape of a reference back to old precedents, and now (as on all subsequent occasions) the party which opposed the crown read back into the ancient grants which they quoted a good deal more than had been actually conceded in them. To Langton and the barons the charter of Henry I. seemed to cover all the customs and practices which had grown up under the rule of the bureaucracy which had served Henry II. and Richard I. A correct historical perspective could hardly be expected from men whose constitutional knowledge only ran back as far as the memory of themselves and their fathers. The Great Charter of 1215 was a commentary on, rather than a reproduction of, the old accession pledges of Henry I.

Meanwhile John, leaving his barons to discuss and formulate their grievances, pushed on with a great scheme of foreign alliances, by which he hoped to crush Philip of France, even though the aid of the feudal levies of

***Alliance against
France.***

England was denied him. He leagued himself with his nephew the emperor Otto IV. (his sister's son), and the counts of Flanders and Boulogne, with many other princes of the Netherlands. Their plan was that John should land in Poitou and distract the attention of the French by a raid up the Loire, while the emperor and his vassals should secretly mobilize a great army in Brabant and make a sudden dash at Paris. The scheme was not destitute of practical ability, and if it had been duly carried out would have placed France in such a crisis of danger as she has seldom known. It was not John's fault that the campaign failed. He sent the earl of Salisbury with some of his mercenaries to join the confederates in Flanders, while he sailed with the main body of them to La Rochelle, whence he marched northward, devastating the land before him. Philip came out to meet him with the whole levy of France (April 1214), and Paris would have been left exposed if Otto and his Netherland vassals had struck promptly in. But the emperor was late, and

by the time that he was approaching the French frontier Philip Augustus had discovered that John's invasion was but a feint, executed by an army too weak to do much harm. Leaving a small containing force on the Loire in face of the English king, Philip hurried to the north with his main army, and on the 27th of July 1214 inflicted a crushing defeat on the emperor and his allies at Bouvines near Lille. This was the greatest victory of the French medieval monarchy. It broke up the Anglo-German alliance, and gave the conqueror undisturbed possession of all that he had won from the Angevin house and his other enemies.

Indirectly Bouvines was almost as important in the history of England as in that of France. John returned to England foiled, and in great anger; he resolved to give up the French war, secured a truce with King Philip by abandoning his attempt to reconquer his lost lands on the Loire, and turned to attack the recalcitrant subjects who had refused to join him in his late campaign beyond the Channel. Matters soon came to a head: on hearing that the king was mobilizing his mercenary bands, the barons met at Bury St Edmunds, and leagued themselves by an oath to obtain from the king a confirmation of the charter of Henry I. (November 1214). At the New Year they sent him a formal ultimatum, to which he would not assent, though he opened up futile negotiation with them through the channel of the archbishop, who did not take an open part in the rising. At Easter, nothing having been yet obtained from the king, an army headed by five earls, forty barons, and Giles Braose, bishop of Hereford, mustered at Stamford and marched on London. Their captain was Robert FitzWalter, whom they had named "marshal of the army of God and Holy Church." When they reached the capital its gates were thrown open to them, and the mayor and citizens adhered to their cause (May 17). The king, who had tried to turn them back by taking the cross and declaring himself a crusader, and by making loud

appeals for the arbitration of the pope, was forced to retire to Windsor. He found that he had no supporters save a handful of courtiers and officials and the leaders of his mercenary bands; wherefore in despair he accepted the terms forced upon him by the insurgents. On the 15th of June 1215 he sealed at Runnymede, close to Windsor, the famous *Magna Carta*, in face of a vast assembly among which he had hardly a single friend. It is a long document of 63 clauses, in which Archbishop Langton and a committee of the barons had endeavoured to recapitulate all their grievances, and to obtain redress for them. Some of the clauses are unimportant concessions to individuals, or deal with matters of trifling importance—such as the celebrated weirs or “kiddles” on Thames and Medway, or the expulsion of the condottieri chiefs Gerard d’Athies and Engelhart de Cigogné. But many of them are matters of primary importance in the constitutional history of England. The Great Charter must not, however, be overrated as an expression of general constitutional rights; to a large extent it is a mere recapitulation of the claims of the baronage, and gives redress for their feudal grievances in the matters of aids, reliefs, wardships, &c., its object being the repression of arbitrary exactions by the king on his tenants-in-chief. One section, that which provides against the further encroachments of the king’s courts on the private manorial courts of the landowners, might even be regarded as retrograde in character from the point of view of administrative efficacy. But it is most noteworthy that the barons, while providing for the abolition of abuses which affect themselves, show an unselfish and patriotic spirit in laying down the rule that all the concessions which the king makes to them shall also be extended by themselves to their own sub-tenants. The clauses dealing with the general governance of the realm are also as enlightened as could be expected from the character of the committee which drafted the charter. There is to be no taxation without the consent of the Great Council of the Realm—which is to consist of all barons, who are to be summoned by individual units; and of all smaller

tenants-in-chief, who are to be called not by separate letters, but by a general notice published by the sheriff. It has been pointed out that this provides no representation for sub-tenants or the rest of the nation, so that we are still far from the ideal of a representative parliament. John himself had gone a step farther on the road towards that ideal when in 1213 he had summoned four “discreet men” from every shire to a council at Oxford, which (as it appears) was never held. But this would seem to have been a vain bid for popularity with the middle classes, which had no result at the time, and the barons preferred to keep things in their own hands, and to abide by ancient precedents. It was to be some forty years later that the first appearance of elected shire representatives at the Great Council took place. In 1215 the control of the subjects over the crown in the matter of taxation is reserved entirely for the tenants-in-chief, great and small.

There is less qualified praise to be bestowed on the clauses of Magna Carta which deal with justice. The royal courts are no longer to attend the king’s person—a vexatious practice when sovereigns were always on the move, and litigants and witnesses had to follow them from manor to manor—but are to be fixed at Westminster. General rules of indisputable equity are fixed for the conduct of the courts—no man is to be tried or punished more than once for the same offence; no one is to be arrested and kept in prison without trial; all arrested persons are to be sent before the courts within a reasonable time, and to be tried by a jury of their peers. Fines imposed on unsuccessful litigants are to be calculated according to the measure of their offence, and are not to be arbitrary penalties raised or lowered at the king’s good pleasure according to the sum that he imagined that the offender could be induced to pay. No foreigners or other persons ignorant of the laws of England are to be entrusted with judicial or administrative offices.

There is only a single clause dealing with the grievances of the English Church, although Archbishop Langton had been the principal adviser in the drafting of the whole document. This clause, “that the English church shall be free,” was, however, sufficiently broad to cover all demands. The reason that Langton did not descend to details was that the king had already conceded the right of free canonical election and the other claims of the clerical order in a separate charter, so that there was no need to discuss them at length.

The special clauses for the benefit of the city of London were undoubtedly inserted as a tribute of gratitude on the part of the barons for the readiness which the citizens had shown in adhering to their cause. There are other sections for the benefit of the commons in general, such as that which gives merchants full right of leaving or entering the realm with their goods on payment of the fixed ancient custom dues. But these clauses are less numerous than might have been expected—the framers of the document were, after all, barons and not burghers.

The most surprising part of the Great Charter to modern eyes is its sixty-first paragraph, that which openly states doubts as to the king’s intention to abide by his promise, and appoints a committee of twenty-five guardians of the charter (twenty-four barons and the mayor of London), who are to coerce their master, by force of arms if necessary, to observe every one of its clauses. The twenty-five were to hear and decide upon any claims and complaints preferred against the king, and to keep up their numbers by co-optation, so that it would seem that the barons intended to keep a permanent watch upon the crown. The clause seems unnecessarily harsh and violent in its wording; but it must be remembered that John’s character was well known, and that it was useless to stand on forms of politeness when dealing with him. It seems certain that the drafters of the charter were honest in their intentions, and did not purpose to set up a feudal oligarchy in the place

of a royal autocracy. They were only insisting on the maintenance of what they believed to be the ancient and laudable customs of the realm.

That the barons were right to suspect John is sufficiently shown by his subsequent conduct. His pretence of keeping his promise lasted less than two months; by August 1215 he was already secretly collecting money and hiring more mercenaries. He wrote to Rome to beg the pope to annul the charter, stating that all his troubles had come upon him in consequence of his dutiful conduct to the Holy See. He also stated that he had taken the cross as a crusader, but could not sail to Palestine as long as his subjects were putting him in restraint. Innocent III. at once took the hint; in September Archbishop Langton was suspended for disobedience to papal commands, and the charter was declared uncanonical, null and void. The “troublers of the king and kingdom” were declared excommunicate.

Langton departed at once to Rome, to endeavour to turn the heart of his former patron, a task in which he utterly failed. Many of the clergy who had hitherto supported the baronial cause drew back in dismay at the pope’s

Civil War. attitude. But the laymen were resolute, and prepared for open war, which broke out in October 1215. The king, who had already gathered in many mercenaries, gained the first advantage by capturing Rochester Castle before the army of the barons was assembled. So formidable did he appear to them for the moment that they took the deplorable step of inviting the foreign foe to join in the struggle. Declaring John deposed because he had broken his oath to observe the charter, they offered the crown to Louis of France, the son of King Philip, because he had married John’s niece Blanche of Castile and could assert in her right a claim to the throne. This was a most unhappy inspiration, and drove into neutrality or even into the king’s camp many who had previously inclined to the party of reform. But John did his best to disgust his followers by adopting the policy of carrying out fierce and

purposeless raids of devastation all through the countryside, while refusing to face his enemies in a pitched battle. He bore himself like a captain of banditti rather than a king in his own country. Presently, when the French prince came over with a considerable army to join the insurgent barons, he retired northward, leaving London and the home counties to his rival. In all the south country only Dover and Windsor castles held out for him. His sole success was that he raised the siege of Lincoln by driving off a detachment

Death of John.

of the baronial army which was besieging it. Soon after, while marching from Lynn towards Wisbeach, he was surprised by the tide in the fords of the Wash and lost part of his army and all his baggage and treasure. Next day he fell ill of rage and vexation of spirit, contracted a dysenteric ailment, and died a week later at Newark (Oct. 19, 1216). It was the best service that he could do his kingdom. Owing to the unwise and unpatriotic conduct of the barons in summoning over Louis of France to their aid, John had become in some sort the representative of national independence. Yet he was so frankly impossible as a ruler that, save the earls of Pembroke and Chester, all his English followers had left him, and he had no one to back him but the papal legate Gualo and a band of foreign mercenaries. When once he was dead, and his heritage fell to his nine-year-old son Henry III., whom none could make responsible for his father's doings, the whole aspect of affairs was changed.

The aged William Marshal, earl of Pembroke, by far the most important and respectable personage who had adhered to John's cause, assumed the position of regent. He at once offered in the name of the young king pardon

Henry III.

and oblivion of offences to all the insurgent barons. At the same time he reissued the Great Charter, containing all the important concessions which John had made at Runnymede, save that which gave the control of taxation to the tenants-in-chief. Despite this and certain other smaller omissions, it was a document

which would satisfy most subjects of the crown, if only it were faithfully observed. The youth of the king and the good reputation of the earl marshal were a sufficient guarantee that, for some years at any rate, an honest attempt would be made to redeem the pledge. Very soon the barons began to return to their allegiance, or at least to slacken in their support of Louis, who had given much offence by his openly displayed distrust of his partisans and his undisguised preference for his French followers. The papal influence was at the same time employed in the cause of King Henry, and Philip of France was forced to abandon open support of his son, though he naturally continued to give him secret help and to send him succours of men and money.

The fortune of war, however, did not turn without a battle. At Lincoln, on the 20th of May 1217, the marshal completely defeated an Anglo-French army commanded by the count of Perche and the earls of Winchester and Hereford. The former was slain, the other two taken prisoners, with more than 300 knights and barons. This was the death-blow to the cause of Louis of France; when it was followed up by the defeat in the Dover Straits of a fleet which was bringing him reinforcements (Aug. 17), he despaired of success and asked for terms. By the treaty of Lambeth (Sept. 11, 1217) he secured an amnesty for all his followers and an indemnity of 10,000 marks for himself. Less than a month later he quitted England; the victorious royalists celebrated his departure by a second reissue of the Great Charter, which contained some new clauses favourable to the baronial interest.

After the departure of Prince Louis and his foreigners the earl marshal had to take up much the same task that had fallen to Henry II. in 1154. Now, as at the death of Stephen, the realm was full of “adulterine castles,” of bands of robbers who had cloaked their plundering under the pretence of loyal service to the king or the French prince, and of local magnates who

had usurped the prerogatives of royalty, each in his own district. It was some years before peace and order were restored in the realm, and the aged Pembroke died in 1219 before his work was completed. After his decease the conduct of the government passed into the hands of the justiciar Hubert de Burgh, and the papal legate Pandulf, to whom the marshal had specially recommended the young king. Their worst enemies were those who during the civil war had been their best friends, the mercenary captains and upstart knights whom John had made sheriffs and castellans. From 1219 to 1224 de Burgh was constantly occupied in evicting the old loyalists from castles which they had seized or offices which they had disgraced. In several cases it was necessary to mobilize an army against a recalcitrant magnate. The most troublesome of them was Falkes de Breauté, the most famous of King John's foreign *condottieri*, whose minions held Bedford castle against the justiciar and the whole shire levy of eastern England for nearly two months in 1224. The castle was taken and eighty men-at-arms hanged on its surrender, but Falkes escaped with his life and fled to France. It was not till this severe lesson had been inflicted on the faction of disorder that the pacification of England could be considered complete.

The fifty-six years' reign of Henry III. forms one of the periods during which the mere chronicle of events may seem tedious and trivial, yet the movement of national life and constitutional progress was very important. Except during the stirring epoch 1258-1265 there was little that was dramatic or striking in the events of the reign. Yet the England of 1272 was widely different from the England of 1216. The futile and thriftless yet busy and self-important king was one of those sovereigns who irritate their subjects into opposition by injudicious activity. He was not a ruffian or a tyrant like his father, and had indeed not a few of the domestic virtues. But he was constitutionally incapable of keeping a promise or paying a debt. Not being strong-handed or capable, he could never face criticism nor suppress discontent by force, as a king of the type of Henry I. or Henry II.

would have done. He generally gave way when pressed, without attempting an appeal to arms; he would then swear an oath to observe the Great Charter, and be detected in violating it again within a few months. His greatest fault in the eyes of his subjects was his love of foreigners; since John had lost Normandy the English baronage had become as national in spirit as the commons. The old Anglo-Norman houses had forgotten the tradition of their origin, and now formed but a small section of the aristocracy; the newer families, sprung from the officials of the first two Henries, had always been English in spirit. Unfortunately for himself the third Henry inherited the continental cosmopolitanism of his Angevin ancestors, and found himself confronted with a nation which was growing ever more and more insular in its ideals. He had all the ambitions of his grandfather Henry II.; his dreams were of shattering the newly-formed kingdom of France, the creation of Philip Augustus, and of recovering all the lost lands of his forefathers on the Seine and Loire. Occasionally his views grew yet wider—he would knit up alliances all over Christendom and dominate the West. Nothing could have been wilder and more unpractical than the scheme on which he set his heart in 1255-1257, a plan for conquering Naples and Sicily for his second son. Moreover it was a great hindrance to him that he was a consistent friend and supporter of the papacy. He had never forgotten the services of the legates Pandulf and Gualo to himself and his father, and was always ready to lend his aid to the political schemes of the popes, even when it was difficult to see that any English interests were involved in them. His designs, which were always shifting from point to point of the continent, did not appeal in the least to his subjects, who took little interest in Poitou or Touraine, and none whatever in Italy. After the troubled times which had lasted from 1214 to 1224 they desired nothing more than peace, quietness and good governance. They had no wish to furnish their master with taxation for French wars, or to follow his banner to distant Aquitaine. But most of all did they dislike his

practice of flooding England with strangers from beyond seas, for whom offices and endowments had to be found. The moment that he had got rid of the honest and capable old justiciar Hubert de Burgh, who had pacified the country during his minority, and set the machinery of government once more in regular order, Henry gave himself over to fostering horde after horde of foreign favourites. There was first his Poitevin chancellor, Peter des Roches, bishop of Winchester, with a numerous band of his relations and dependents. As a sample of the king's methods it may be mentioned that he once made over nineteen of the thirty-five sheriffdoms, within a fortnight, to Peter of Rivaux, a nephew of the chancellor. Des Roches was driven from office after two years (1234), and his friends and relatives fell with him. But they were only the earliest of the king's alien favourites; quite as greedy were the second family of his mother, Isabella of Angoulême, who after King John's death had married her old betrothed, Hugh of Lusignan. Henry secured great English marriages for three of them, and made the fourth, Aymer, bishop of Winchester. Their kinsmen and dependents were equally welcomed. Even more numerous and no less expensive to the realm were the Provençal and Savoyard relatives of Henry's queen, Eleanor of Provence. The king made one of her uncles, Boniface of Savoy, archbishop of Canterbury—it was three years before he deigned to come over to take up the post, and then he was discovered to be illiterate and unclerical in his habits, an unworthy successor for Langton and Edmund of Abingdon, the great primates who went before him. Peter of Savoy, another uncle, was perhaps the most shameless of all the beggars for the king's bounty; not only was he made earl of Richmond, but his debts were repeatedly paid and great sums were given him to help his continental adventures.

King Henry's personal rule lasted from 1232, the year in which he deprived Hubert de Burgh of his justiciarship and confiscated most of his lands, down to 1258. It was thriftless, arbitrary, and lacking in continuity of

policy, yet not tyrannical or cruel. If he had been a worse man he would have been put under control long before by his irritated subjects. All through these twenty-six years he was being opposed and criticised by a party which embraced the wisest and most patriotic section of the baronage and the hierarchy. It numbered among its leaders the good archbishop, Edmund of Abingdon, and Robert Grosseteste, the active and learned bishop of Lincoln; it was not infrequently aided by the king's brother Richard, earl of Cornwall, who did not share Henry's blind admiration for his foreign relatives. But it only found its permanent guiding spirit somewhat late in the reign, when Simon de Montfort, earl of Leicester, became the habitual mouthpiece of the grievances of the nation. The great earl had, oddly enough, commenced his career as one of the king's foreign

favourites. He was the grandson of Amicia, countess of *Simon de Montfort.* Leicester, but his father, Simon the Elder, a magnate whose French interests were greater than his English, had adhered to the cause of Philip Augustus in the days of King John and the Leicester estates had been confiscated. Simon, reared as a Frenchman, came over in 1230 to petition for their restoration. He not only obtained it, but to the great indignation of the English baronage married the king's sister Eleanor in 1238. For some time he was in high favour with his brother-in-law, and was looked upon by the English as no better than Aymer de Valence or Peter of Savoy. But he quarrelled with the fickle king, and adhered ere long to the party of opposition. A long experience of his character and actions convinced barons and commons alike that he was a just and sincere man, a friend of good governance, and an honest opponent of arbitrary and unconstitutional rule. He had become such a thorough Englishman in his views and prejudices, that by 1250 he was esteemed the natural exponent of all the wrongs of the realm. He was austere and religious; many of his closest friends were among the more saintly of the national clergy. By the end of his life the man who had started as the king's

unpopular minion was known as “Earl Simon the Righteous,” and had become the respected leader of the national opposition to his royal brother-in-law.

Though Henry’s taxes were vexatious and never-ending, though his subservience to the pope and his flighty interference in foreign politics were ever irritating the magnates and the people, and though outbreaks of

***Condition of
England under
Henry III.***

turbulence were not unknown during his long period of personal rule, it would yet be a mistake to regard the central years of the 13th century as an unprosperous period for England. Indeed it would be more correct to regard the period as one of steady national development in wealth, culture and unity. The towns were growing fast, and extending their municipal liberties; the necessities of John and the facile carelessness of Henry led to the grant of innumerable charters and privileges. As was to be seen again during the first period of the reign of Charles I., political irritation is not incompatible either with increasing material prosperity or with great intellectual development. The king’s futile activity led to ever more frequent gatherings of the Great Council, in which the theory of the constitution was gradually hammered out by countless debates between the sovereign and his subjects. Every time that Henry confirmed the Great Charter, the fact that England was already a limited monarchy became more evident. It is curious to find that—like his father John—he himself

***Beginnings of
Parliament.***

contributed unconsciously to advances towards representative government. John’s writ of 1213, bidding “discreet men” from each shire to present themselves at Oxford, found its parallel in another writ of 1253 which bids four knightly delegates from each county to appear along with the tenants-in-chief, for the purpose of discussing the king’s needs. When county members begin to present themselves along with the barons at the national assembly, the conception of parliament is already reached. And indeed we

may note that the precise word “parliament” first appears in the chroniclers and in official documents about the middle of Henry’s reign. By its end the term is universally acknowledged and employed.

We may discern during these same years a great intellectual activity. This was the time of rapid development in the universities, where not only were the scholastic philosophy and systematic theology eagerly studied, but figures appear like that of the great Roger Bacon, a scientific researcher of the first rank, whose discoveries in optics and chemistry caused his contemporaries to suspect him of magical arts. His teaching at Oxford in 1250-1257 fell precisely into the years of the worst misgovernance of Henry III. It was the same with law, an essentially 13th-century study; it was just in this age that the conception of law as something not depending on the pleasure of the king, nor compiled from mere collected ancestral customs, but existing as a logical entity, became generally prevalent. The feeling is thoroughly well expressed by the partisan of Montfort who wrote in his jingling Latin verse:

Intellectual life.

“Dicitur vulgariter ‘ut rex vult lex vadit’:
Veritas vult aliter: nam lex stat, rex cadit.”

Law has become something greater than, and independent of, royal caprice. The great lawyers of the day, of whom Bracton is the most celebrated name, were spinning theories of its origin and development, studying Roman precedents, and turning the medley of half-understood Saxon and Norman customs into a system.

Intellectual growth was accompanied by great religious activity; it is no longer merely on the old questions of dispute between church and state that men were straining their minds. The reign of Henry III. saw the invasion of

Religious life: the friars.

England by the friars, originally the moral reformers of their day, who preached the superiority of the missionary life over the merely contemplative life of the old religious orders, and came, preaching holy poverty, to minister to souls neglected by worldly incumbents and political prelates (see [MENDICANT MOVEMENT](#)). The mendicants, Dominican and Franciscan, took rapid root in England; the number of friaries erected in the reign of Henry III. is astounding. For two generations they seem to have absorbed into their ranks all the most active and energetic of those who felt a clerical vocation. It is most noteworthy that they were joined by thinkers such as Grosseteste, Adam Marsh, Roger Bacon, Duns Scotus and William of Ockham. Still more striking is the fact that the friars threw themselves energetically into the cause of political reform, and that several of their leading brothers were the close friends and counsellors of Simon de Montfort.

Architecture and art generally were making rapid strides during this stirring time. The lofty Early English style had now completely superseded the more heavy and sombre Norman, and it was precisely during the years

Literature and art.

of the maladministration of Henry III. that some of the most splendid of the English cathedrals, Salisbury (1220-1258) and Wells (1230-1239), were built. The king himself, when rearing the new Westminster Abbey over the grave of Edward the Confessor, spent for once some of his money on a worthy object. It may be noted that he showed a special reverence for the old English royal saint, and christened his eldest son after him; while his second bore the name of Edmund, the East Anglian martyr. These were the first occasions on which princes of the Angevin house received names that were not drawn from the common continental stock, but recalled the days before the Conquest. The reappearance of these old English names bears witness to the fact that the vernacular was reasserting itself. Though French was still the language of the court and of law, a new literature was already growing

up in the native tongue, with such works as Layamon's *Brut* and the *Ormulum* as its first fruits. Henry III. himself on rare occasions used English for a state document.

All these facts make it sufficiently clear that England was irritated rather than crushed by Henry's irregular taxation and thriftless expenditure. The nation was growing and prospering, despite of its master's maladministration of its resources. On several occasions when he endeavoured to commit parliaments to back his bills and endorse his policy, they refused to help him, and left him to face his debts as best he might. This was especially the case with the insane contract which he made with Pope Innocent IV. in 1254, when he bound the realm of England to find 140,000 marks to equip an army for the conquest of Naples and Sicily. Henry lacked the energy to attempt to take by force what he could not obtain by persuasion, and preferred to break his bargain with the pope rather than to risk the chance of civil war at home.

It was over this Sicilian scheme, the crowning folly of the king, that public opinion at last grew so hot that the intermittent criticism and grumbling of the baronage and the nation passed into vigorous and masterful action. At the "Mad Parliament," which met at Oxford, 1258, the barons informed their master that his misgovernment had grown so

***Public discontent.
The Provisions of
Oxford.***

hopeless that they were resolved to put him under constitutional restraints. They appointed a committee of twenty-four, in which Simon de Montfort was the leading spirit, and entrusted it with the duty, not only of formulating lists of grievances, but of seeing that they were redressed. Henry found that he had practically no supporters save his unpopular foreign relatives and favourites, and yielded perforce. To keep him in bounds the celebrated "Provisions of Oxford" were framed. They provided that he was to do nothing without the consent of a permanent council of

fifteen barons and bishops, and that all his finances were to be controlled by another committee of twenty-four persons. All aliens were to be expelled from the realm, and even the king's household was to be "reformed" by his self-constituted guardians. The inevitable oath to observe honestly all the conditions of the Great Charter of 1215 was, as usual, extorted from him with special formalities. Though Montfort and the barons voiced the public discontent, the constitution which they thus imposed on the king had nothing popular about it. The royal functions of which Henry was stripped were to be exercised by a series of baronial committees. The arrangement was too cumbersome, for there was nothing which would be called a central executive; the three bodies (two of twenty-four members each, the third of fifteen) were interdependent, and none of them possessed efficient control over the others. It was small wonder that the constitution established by the Provisions of Oxford was found unworkable. They were not even popular—the small landholders and subtenants discovered that their interests had not been sufficiently regarded, and lent themselves to an agitation against the provisional government, which was got up by Edward, the king's eldest son, who now appeared prominently in history for the first time. To conciliate them the barons allowed the "Provisions of Westminster" to be enacted in 1259, in which the power of feudal courts was considerably restricted, and many classes of suit were transferred to the royal tribunals, a sufficient proof that the king's judges did not share in the odium which appertained to their master, and were regarded as honest and impartial.

The limited monarchy established by the Provisions of Oxford lasted only three years. Seeing the barons quarrelling among themselves, and Montfort accused of ambition and overweening masterfulness by many of his colleagues, the king took heart. Copying the example of his father in 1215, he obtained from the pope a bull, which declared the new constitution irregular and illegal, and absolved him from his oath to abide by it. He then began to recall his foreign friends and relatives, and to assemble

mercenaries. De Montfort answered by raising an army, arresting prominent aliens, and seizing the lands which the king had given them. Henry thereupon, finding his forces too weak to face the earl, took refuge in the Tower of London and proposed an arbitration. He offered to submit his case to Louis IX., the saintly king of France, whose virtues were known and respected all over Europe, if the baronial party would do the same. An appeal to the pope they would have laughed to scorn; but the confidence felt in the probity of the French king was so great that Montfort advised his friends to accede to the proposal. This was an unwise step. Louis was a saint, but he was also an autocratic king, and had no knowledge of the constitutional customs of England. Having heard the claims of the king and the barons, he issued the *mise of Amiens* (Jan. 23, 1264), so called from the city at which he dated it, a document which stated that King Henry ought to abide by the terms of *Magna Carta*, to which he had so often given his assent, but that the *Provisions of Oxford* were wholly invalid and derogatory to the royal dignity. "We ordain," he wrote, "that the king shall have full power and free jurisdiction over his realm, as in the days before the said *Provisions*." The pope shortly afterwards confirmed the French king's award.

Simon de Montfort and his friends were put in an awkward position by this decision, to which they had so unwisely committed themselves. But they did not hesitate to declare that they must repudiate the *mise*. Simon declared that it would be a worse perjury to abandon his oath to keep the *Provisions of Oxford* than his oath to abide by the French king's award. He took arms again at the head of the Londoners and his personal adherents and allies. But many of the barons stood neutral, not seeing how they could refuse to accept the arbitration they had courted, while a number not inconsiderable joined the king, deciding that Leicester had passed the limits of reasonable loyalty, and that their first duty was to the crown.

Hence it came to pass that in the campaign of 1264 Simon was supported by a minority only of the baronial class, and the king's army was the larger. The fortune of war inclined at first in favour of the royalists, who captured

***The barons' war:
battle of Lewes.***

Northampton and Nottingham. But when it came to open battle, the military skill of the earl sufficed to compensate for the inferiority of his numbers. At Lewes, on the 14th of May, he inflicted a crushing defeat on the king's army. Henry himself, his brother Richard of Cornwall, and many hundreds of his chief supporters were taken prisoners. His son Prince Edward, who had been victorious on his own flank of the battle, and had not been caught in the rout, gave himself up next morning, wishing to share his father's fate, and not to prolong a civil war which seemed to have become hopeless.

On the day that followed his victory Leicester extorted from the captive king the document called the "mise of Lewes," in which Henry promised to abide by all the terms of the Provisions of Oxford, as well as to uphold the

***Montfort's
parliament.***

Great Charter and the old customs of the realm. Montfort was determined to put his master under political tutelage for the rest of his life. He summoned a parliament, in which four knights elected by each shire were present, to establish the new constitution. It appointed Simon, with his closest allies, the young earl of Gloucester and the bishop of Chichester, as electors who were to choose a privy council for the king and to fill up all offices of state. The king was to exercise no act of sovereignty save by the consent of the councillors, of whom three were to follow his person wherever he went. This was a far simpler constitution than that framed at Oxford in 1258, but it was even more liable to criticism. For if the "Provisions" had established a government by baronial committees, the parliament of 1264 created one which was a mere party administration. For the victorious faction, naturally but unwisely, took all power for themselves, and filled every sheriffdom,

castellany and judicial office with their own firm friends. Simon's care to commit the commons to his cause by summoning them to his parliament did not suffice to disguise the fact that the government which he had set up was not representative of the whole nation. He himself was too much like a dictator; even his own followers complained that he was over-masterful, and the most important of them, the young earl of Gloucester, was gradually estranged from him by finding his requests often refused and his aims crossed by the old earl's action. The new government lasted less than two years, and was slowly losing prestige all the time. Its first failure was in the repression of the surviving royalists. Isolated castles in several districts held out in the king's name, and the whole March of Wales was never properly subdued. When Simon turned the native Welsh prince Llewelyn against the marcher barons, he gave great offence; he was accused of sacrificing Englishmen to a foreign enemy. The new régime did not give England the peace which it had promised; its enemies maintained that it did not even give the good governance of which Simon had made so many promises. It certainly appears that some of his followers, and notably his three reckless sons, had given good cause for offence by high-handed and selfish acts. Much indignation was provoked by the sight of the king kept continually in ward by his privy councillors and treated with systematic neglect; but the treatment of his son was even more resented. Edward, though he had given little cause of offence, and had behaved admirably in refusing to continue the civil war, was deprived of his earldom of Chester, and put under the same restraint as his father. There was no good reason for treating him so harshly, and his state was much pitied.

Montfort attempted to strengthen his position, and to show his confidence in the commons, by summoning to his second and last parliament, that of 1265, a new element—two citizens from each city and two burgesses from each borough in the realm. It must be confessed that his object was probably not to introduce a great constitutional improvement, and to make

parliament more representative, but rather to compensate for the great gaps upon the baronial benches by showing a multitude of lesser adherents, for the towns were his firm supporters. The actual proceedings of this particular assembly had no great importance.

Two months later Prince Edward escaped from his confinement, and fled to the earl of Gloucester, who now declared himself a royalist. They raised an army, which seized the fords of the Severn, in order to prevent de Montfort—who was then at Hereford with the captive king—from getting back to London or the Midlands. The earl, who could only raise a trifling force in the Marches, where the barons were all his enemies, failed in several attempts to force a passage eastward. But his friends raised a considerable host, which marched under his son Simon the Younger and the earl of Oxford, to fall on the rear of the royalists. Prince Edward now displayed skilful generalship—hastily turning backward he surprised and scattered the army of relief at Kenilworth (Aug. 1); he was then free to deal with the earl, who had at last succeeded in passing the Severn during his

Battle of Evesham. absence. On the 4th of August he beset Montfort's little force with five-fold numbers, and absolutely exterminated it at Evesham. Simon fought most gallantly, and was left dead on the field along with his eldest son Henry, his justiciar Hugh Despenser, and the flower of his party. The king fell into the hands of his son's followers, and was once more free.

It might have been expected that the victorious party would now introduce a policy of reaction and autocratic government. But the king was old and broken by his late misfortunes: his son the prince was wise beyond his years, and Gloucester and many other of the present supporters of the crown had originally been friends of reform, and had not abandoned their old views. They had deserted Montfort because he was autocratic and masterful, not because they had altogether disapproved of his policy. Hence

we find Gloucester insisting that the remnant of the vanquished party should not be subjected to over heavy punishment, and even making an armed demonstration, in the spring of 1267, to demand the re-enactment of the Provisions of Oxford. Ultimately the troubles of the realm were ended by the Dictum of Kenilworth (Oct. 31, 1266) and the Statute of Marlborough (Nov. 1267). The former allowed nearly all of Montfort's faction to obtain amnesty and regain their estates on the payment of heavy fines; only Simon's own Leicester estates and those of Ferrers, earl of Derby, were confiscated. The latter established a form of constitution in which many, if not all, of the innovations of the Provisions of Oxford were embodied. The only unsatisfactory part of the pacification was that Llewelyn of Wales, who had ravaged the whole March while he was Montfort's ally, was allowed to keep a broad region (the greater part of the modern shire of Denbigh) which he had won back from its English holders. His power in a more indirect fashion extended itself over much of Mid-Wales. The line of the March was distinctly moved backward by the treaty of 1267.

King Henry survived his restoration to nominal, if not to actual, authority for seven years. He was now too feeble to indulge in any of his former freaks of foreign policy, and allowed the realm to be governed under his

Death of Henry III. son's eye by veteran bureaucrats, who kept to the old customs of the land. Everything settled down so peacefully that when the prince took the cross, and went off to the Crusades in 1270, no trouble followed. Edward was still absent in Palestine when his father died, on the 16th of November 1272. For the first time in English history there was no form of election of the new king, whose accession was quietly acknowledged by the officials and the nation. It was nearly two years after his father's death that he reached England, yet absolutely no trouble had occurred during his absence. He had taken advantage of his leisurely journey home to pacify the turbulent

Gascony, and to visit Paris and make a treaty with King Philip III. by which the frontiers of his duchy of Aquitaine were rectified, to some slight extent, in his favour. He, of course, did homage for the holding, as his father had done before him.

The reign which began with this unwonted quietness was perhaps the most important epoch of all English medieval history in the way of the definition and settlement of the constitution. Edward I. was a remarkable figure, by far the ablest of all the kings of the house of Plantagenet. He understood the problem that was before him, the construction of a working constitution from the old ancestral customs of the English monarchy plus the newer ideas that had been embodied in the Great Charter, the Provisions of Oxford, and the scanty legislation of Simon de Montfort. Edward loved royal power, but he was wise in his generation, and saw that he could best secure the loyalty of his subjects by assenting to so many of the new constitutional restraints as were compatible with his own practical control of the policy of the realm. He was prepared to refer all important matters to his parliament, and (as we shall see) he improved the shape of that body by reintroducing into it the borough members who had appeared for the first time in Montfort's assembly of 1265. He would have liked to make parliament, no doubt, a mere meeting for the voting of taxation with the smallest possible friction. But he fully realized that this dream was impossible, and was wise enough to give way, whenever opposition grew too strong and bitter. He had not fought through the civil wars of 1263-66 without learning his lesson. There was a point beyond which it was unwise to provoke the baronage or the commons, and, unlike his flighty and thriftless father, he knew where that point came. The constitutional quarrels of his reign were conducted with decency and order, because the king knew his own limitations, and because his subjects trusted to his wisdom and moderation in times of crisis. Edward indeed was a man worthy of respect,

if not of affection. His private life was grave and seemly, his court did not sin by luxury or extravagance. His chosen ministers were wise and experienced officials, whom no man could call favourites or accuse of maladministration. He was sincerely religious, self-restrained and courteous, though occasionally, under provocation, he could burst out into a royal rage. He was a good master and a firm friend. Moreover, he had a genuine regard for the sanctity of a promise, the one thing in which his father had been most wanting. It is true that sometimes he kept his oaths or carried out his pledges with the literal punctuality of a lawyer, rather than with the chivalrous generosity of a knight. But at any rate he always endeavoured to discharge an obligation, even if he sometimes interpreted it by the strict letter of the law and not with liberality. A conscientious man according to his lights, he took as his device the motto *Pactum serva*, “keep troth,” which was afterwards inscribed on his tomb, and did his best to live up to it. Naturally he expected the same accuracy from other men, and when he did not meet it he could be harsh and unrelenting in the punishment that he inflicted. To sum up his character it must be added that he was a very great soldier. The headlong courage which he showed at Lewes, his first battle, was soon tempered by caution, and already in 1265 he had shown that he could plan a campaign with skill. In his later military career he was the first general who showed on a large scale how the national English weapon, the bow, could win fights when properly combined with the charge of the mailed cavalry. He inaugurated the tactics by which his grandson and great-grandson were to win epoch-making victories abroad.

Edward’s reign lasted for thirty-five years, and was equally important in constitutional development and in imperial policy. The first period of it, 1272-1290, may be defined as mainly notable for his great series of legislative enactments and his conquest of Wales. The second, 1290-1307, contains his long and ultimately unsuccessful attempt to incorporate Scotland into his realm, and his quarrels with his parliament.

The changes made by Edward in constitutional law by his great series of statutes commenced very soon after his return to his kingdom in 1274. We may trace in all of them the same purpose of strengthening the power of the

Constitutional changes. Statutes of Westminster and Gloucester.

crown by judicious and orderly definition of its privileges. The great enactments start with the First Statute of Westminster (1275), a measure directed to the improvement of administrative details, which was accompanied by a grant to the king of a permanent customs-revenue on imports and exports, which soon became more valuable to the royal exchequer than the old feudal taxes on land. In 1278 followed the Statute of Gloucester, an act empowering the king to make inquiry as to the right by which old royal estates, or exceptional franchises which infringed on the royal prerogative of justice or taxation, had passed into the hands of their present owners. This inquest was made by the writ *Quo Warranto*, by which each landholder was invited to show the charter or warrant in which his claims rested. The baronage were angry and suspicious, for many of their customary rights rested on immemorial and unchartered antiquity, while others were usurpations from the weakness of John or Henry III. They showed signs of an intention to make open resistance; but to their surprise the king contented himself with making complete lists of all franchises then existing, and did no more; this being his method of preventing the growth of any further trespasses on his prerogative.

Edward's next move was against clerical encroachments. In 1279 he compelled Archbishop Peckham to withdraw some legislation made in a synod called without the royal permission—a breach of one of the three

Statute of Mortmain.

great canons of William the Conqueror. Then he took the offensive himself, by persuading his parliament to pass the Statute of Mortmain (*de religiosis*). This was an act to prevent the further accumulation of landed property in the “dead hand” of religious persons and communities. The more land the church

acquired, the less feudal taxation came into the royal exchequer. For undying corporations paid the king neither “reliefs” (death duties) nor fees on wardship and marriage, and their property would never escheat to the crown for want of an heir. The Statute of Mortmain forbade any man to alienate land to the church without royal licence. It was very acceptable to the baronage, who had suffered, on a smaller scale, the same grievance as the king, for when their subtenants transferred estates to the church, they (like their masters) suffered a permanent loss of feudal revenue. A distinct check in the hitherto steady growth of clerical endowments began from this time, though licences in mortmain were by no means impossible to obtain.

The great group of statutes that date from Edward’s earlier years ends with the legislative enactments of 1285, the Second Statute of Westminster and the Statute of Winchester. The former contains the clause *De Donis*

Second Statute of Westminster.

Conditionalibus, a notable landmark in the history of English law, since it favoured the system of entailing estates. Hitherto life-owners of land, holding as

subtenants, had possessed large powers of alienating it, to the detriment of their superior lords, who would otherwise have recovered it, when their vassals died heirless, as an “escheat.” This custom was primarily harmful to the king—the greatest territorial magnate and the one most prone to distribute rewards in land to his servants. But it was also prejudicial to all tenants-in-chief. By *De Donis* the tenant for life was prevented from selling his estate, which could only pass to his lawful heir; if he had none, it fell back to his feudal superior. Five years later this legislation was supplemented by the statute *Quia Emptores*, equally beneficial to king and barons, which provided that subtenants should not be allowed to make over land to other persons, retaining the nominal possession and feudal rights over it, but should be compelled to sell it out and out, so that their successor in title stood to the overlord exactly as the seller had done. Hitherto they had been wont to dispose of the whole or parts of their estates while

maintaining their feudal rights over it, so that the ultimate landlord could not deal directly with the new occupant, whose reliefs, wardship, &c., fell to the intermediate holder who had sold away the land. The main result of this was that, when a baron parted with any one of his estates, the acquirer became a tenant-in-chief directly dependent on the king, instead of being left a vassal of the person who had passed over the land to him. Subinfeudation came to a complete stop, and whenever great family estates broke up the king obtained new tenants-in-chief. The number of persons holding immediately of the crown began at once to multiply by leaps and bounds. As the process of the partition of lands continued, the fractions grew smaller and smaller, and many of the tenants-in-chief were ere long very small and unimportant persons. These, of course, would not form part of the baronial interest, and could not be distinguished from any other subjects of the crown.

The Statute of Winchester, the other great legislative act of 1285, was mainly concerned with the keeping of the peace of the realm. It revised the arming and organization of the national militia, the lineal descendent of the old *fyrd*, and provided a useful police force for the repression of disorder and robbery by the reorganization of *watch and ward*. This was, of course, one more device for strengthening the power of the crown.

In the intervals of the legislation which formed the main feature of the first half of his reign, Edward was often distracted by external matters. He was, on the whole, on very good terms with his first cousin, Philip III. of France; the trouble did not come from this direction, though there was the usual crop of feudal rebellions in Gascony. Nor did Edward's relations with the more remote states of the continent lead to any important results, though he had many treaties and alliances in hand. It was with Wales that his most

*Statute of
Winchester.*

Welsh wars.

troublesome relations occurred. Llewelyn-ap-Gruffydd, the old ally of de Montfort, had come with profit out of the civil wars of 1263-66, and having won much land and more influence during the evil days of Henry III., was reluctant to see that his time of prosperity had come to an end, now that a king of a very different character sat on the English throne.

Friction had begun the moment that Edward returned to his kingdom from the crusade. Llewelyn would not deign to appear before him to render the customary homage due from Wales to the English crown, but sent a series of futile excuses lasting over three years. In 1277, however, the king grew tired of waiting, invaded the principality and drove his recalcitrant vassal up into the fastnesses of Snowdon, where famine compelled him to surrender as winter was beginning. Llewelyn was pardoned, but deprived of all the lands he had gained during the days of the civil war, and restricted to his old North Welsh dominions. He remained quiescent for five years, but busied himself in knitting up secret alliances with the Welsh of the South, who were resenting the introduction of English laws and customs by the strong-handed king. In 1282 there was a sudden and well-planned rising, which extended from the gates of Chester to those of Carmarthen; several castles were captured by the insurgents, and Edward had to come to the rescue of the lords-marchers at the head of a very large army. After much checkered fighting Llewelyn was slain at the skirmish of Orewyn Bridge near Builth on the 11th of December 1282. On his death the southern rebels submitted, but David his brother continued the struggle for three months longer in the Snowdon district, till his last bands were scattered and he

himself taken prisoner. Edward beheaded him at Shrewsbury as a traitor, having the excuse that David had submitted once before, had been endowed with lands in the Marches, and had nevertheless joined his brother in rebellion. After this the king abode for more than a year in Wales, organizing the newly conquered principality into a group of counties, and founding many

Conquest of Wales.

castles, with dependent towns, within its limits. The “statute of Wales,” issued at Rhuddlan in 1284, provided for the introduction of English law into the country, though a certain amount of Celtic customs was allowed to survive. For the next two centuries and a half the lands west of Dee and Wye were divided between the new counties, forming the “principality” of Wales, and the “marches” where the old feudal franchises continued, till the marcher-lordships gradually fell by forfeiture or marriage to the crown. Edward’s grip on the land was strong, and it had need to be so, for in 1287 and 1294-1295 there were desperate and widespread revolts, which were only checked by the existence of the new castles, and subdued by the concentration of large royal armies. In 1301 the king’s eldest surviving son Edward, who had been born at Carnarvon in 1284, was created “prince of Wales,” and invested with the principality, which henceforth became the regular appanage of the heirs of the English crown. This device was apparently intended to soothe Welsh national pride, by reviving in form, if not in reality, the separate existence of the old Cymric state. For four generations the land was comparatively quiet, but the great rebellion of Owen Glendower in the reign of Henry IV. was to show how far the spirit of particularism was from extinction.

Some two years after his long sojourn in Wales Edward made an even longer stay in a more remote corner of his dominions. Gascony being, as usual, out of hand, he crossed to Bordeaux in 1286, and abode in Guienne for no less than three years, reducing the duchy to such order as it had never known before, settling all disputed border questions with the new king of France, Philip IV., founding many new towns, and issuing many useful statutes and ordinances. He returned suddenly in 1289, called home by complaints that reached him as to the administration of justice by his officials, who were slighting the authority of his cousin Edmund of Cornwall, whom he had left behind as regent. He dismissed almost the whole bench of judges, and made other changes among his ministers. At the

same time he fell fiercely upon the great lords of the Welsh Marches, who had been indulging in private wars; when they returned to their evil practice he imprisoned the chief offenders, the earls of Hereford and Gloucester, forfeited their estates, and only gave them back when they had paid vast fines (1291). Another act of this period was Edward's celebrated expulsion of the Jews from England (1290).

Expulsion of the Jews.

This was the continuation of a policy which he had already carried out in Guienne. It would seem that his reasons were partly religious, but partly economic. No earlier king could have afforded to drive forth a race who had been so useful to the crown as bankers and money-lenders; but by the end of the 13th century the financial monopoly of the Jews had been broken by the great Italian banking firms, whom Edward had been already employing during his Welsh wars. Finding them no less accommodating than their rivals, he gratified the prejudices of his subjects and himself by forcing the Hebrews to quit England. The Italians in a few years became as unpopular as their predecessors in the trade of usury, their practices being the same, if their creed was not.

Meanwhile in the same year that saw the expulsion of the Jews, King Edward's good fortune began to wane, with the rise of the Scottish question, which was to overshadow the latter half of his reign. Alexander

Edward I. and Scotland.

III., the last male in direct descent of the old Scottish royal house, had died in 1286. His heiress was his only living descendant, a little girl, the child of his deceased daughter Margaret and Eric, king of Norway. After much discussion, for both the Scottish nobles and the Norse king were somewhat suspicious, Edward had succeeded in obtaining from them a promise that the young queen should marry his heir, Edward of Carnarvon. This wedlock would have led to a permanent union of the English and Scottish crowns, but not to an absorption of the lesser in the greater state, for the rights of Scotland were carefully guarded in the marriage-treaty. But the scheme was wrecked

by the premature death of the bride, who expired by the way, while being brought over from Norway to her own kingdom, owing to privations and fatigue suffered on a tempestuous voyage.

She had no near relatives, and more than a dozen Scottish or Anglo-Scottish nobles, distantly related to the royal line, put in a claim to the crown, or at least to a part of the royal heritage. The board of six regents, who had been ruling Scotland for the young queen, seeing their own power at an end and civil war likely to break out, begged Edward of England to arbitrate between the claimants. The history of the next twenty years turned on the legal point whether the arbitrator acted—as he himself contended—in the capacity of suzerain, or—as the Scots maintained—in that of a neighbour of acknowledged wisdom and repute, invited to settle a domestic problem. This question of the relations between the English and the Scottish crowns had been raised a dozen times between the days of Edward the Elder and those of Henry III. There was no denying the fact that the northern kings had repeatedly done homage to their greater neighbours. But, save during the years when William the Lion, after his captivity, had owned himself the vassal of Henry II. for all his dominions, there was considerable uncertainty as to the exact scope of the allegiance which had been demanded and given. And William's complete submission had apparently been cancelled, when Richard I. sold him in 1190 a release from the terms of the treaty of Falaise. Since that date Alexander II. and Alexander III. had repeatedly owned themselves vassals to the English crown, and had even sat in English parliaments. But it was possible for patriotic Scots to contend that they had done so only in their capacity as English barons—for they held much land south of Tweed—and to point to the similarity of their position to that of the English king when he did homage for his duchy of Guienne at Paris, without thereby admitting any suzerainty of the French crown over England or Ireland. On the last occasion when Alexander III. had owned himself the vassal of Edward I.,

there had been considerable fencing on both sides as to the form of the oath, and, as neither sovereign at the moment had wished to push matters to a rupture, the words used had been intentionally vague, and both parties had kept their private interpretations to themselves. But now, when Edward met the Scottish magnates, who had asked for his services as arbitrator, he demanded that they should acknowledge that he was acting as suzerain and overlord of the whole kingdom of Scotland. After some delay, and with manifest reluctance, the Scots complied; their hand was forced by the fact that most of the claimants to the crown had hastened to make the acknowledgment, each hoping thereby to prejudice the English king in his own favour.

This submission having been made, Edward acted with honesty and fairness, handing over the adjudication to a body of eighty Scottish and twenty-four English barons, knights and bishops. These commissioners, after ample discussion and taking of evidence, adjudged the crown to John Baliol, the grandson of the eldest daughter of Earl David, younger brother of William the Lion. They ruled out the claim of Robert Bruce, the son of David's second daughter, who had raised the plea that his descent was superior because he was a generation nearer than Baliol to their common ancestor. This theory of affinity had been well known in the 12th century, and had been urged in favour of King John when he was contending with his nephew Arthur. But by 1291 it had gone out of favour, and the Scottish barons had no hesitation in declaring Baliol their rightful king. Edward at once gave him seizin of Scotland, and handed over to him the royal castles, which had been placed in his hands as a pledge during the arbitration. In return Baliol did him homage as overlord of the whole kingdom of Scotland.

This, unfortunately, turned out to be the beginning, not the end, of troubles. Edward was determined to exact all the ordinary feudal rights of

an overlord—whatever might have been the former relations of the English and Scottish crowns. The Scots, on the other hand, were resolved not to allow of the introduction of usages which had not prevailed in earlier times, and to keep the tie as vague and loose as possible. Before Baliol had been many months on the throne there was grave friction on the question of legal appeals. Scottish litigants defeated in the local courts began to appeal to the courts of Westminster, just as Gascon litigants were wont to appeal from Bordeaux to Paris. King John and his baronage, relying on the fact that such evocation of cases to a superior court had never before been known, refused to allow that it was valid. King Edward insisted that by common feudal usage it was perfectly regular, and announced his intention of permitting it. Grave friction had already begun when external events precipitated an open rupture between the king of England and his new vassal.

Philip III. of France, who had always pursued a friendly policy with his cousin of England, had died in 1285, and had been succeeded by his son Philip IV., a prince of a very different type, the most able and unscrupulous

Edward I. and Philip IV.

of all the dynasty of Capet. In 1294 he played a most dishonourable trick upon King Edward. There had been some irregular and piratical fighting at sea between English and Norman sailors, in which the latter had been worsted. When called to account for the doings of his subjects, as well as for certain disputes in Gascony, the English king promised redress, and, on the suggestion of Philip, surrendered, as a formal act of apology, the six chief fortresses of Guienne, which were to be restored when reparation had been made. Having garrisoned the places, Philip suddenly changed his line, refused to continue the negotiations, and declared the whole duchy forfeited. Edward was forced into war, after having been tricked out of his strongholds. Just after his first succours had sailed for the Gironde, the great Welsh rebellion of 1294 broke out, and the king was compelled to turn aside to repress it. This he accomplished in the next spring, but meanwhile hardly

a foothold remained to him in Gascony. He was then preparing to cross the Channel in person, when Scottish affairs began to become threatening. King John declared himself unable to restrain the indignation of his subjects at the attempt to enforce English suzerainty over Scotland, and in July 1295 leagued himself with Philip of France, and expelled from his realm the chief supporters of the English alliance. Finding himself involved in two wars at once, Edward made an earnest appeal to his subjects to rise to the occasion

The “model parliament” of 1295.

and “because that which touches all should be approved of all” summoned the celebrated “model parliament” of November 1295, which exactly copied in its constitution Montfort’s parliament of 1265, members from all cities and boroughs being summoned along with the knights of the shires, and the inferior clergy being also represented by their proctors. This system henceforth became the normal one, and the English parliament assumed its regular form, though the differentiation of the two houses was not fully completed till the next century. Edward was voted liberal grants by the laity, though the clergy gave less than he had hoped; but enough money was obtained to fit out two armies, one destined for the invasion of Scotland, the other for that of Gascony.

The French expedition, which was led by the king’s brother Edmund, earl of Lancaster, failed to recover Gascony, and came to an ignominious end. But Edward’s own army achieved complete success in Scotland. Berwick

Invasion of Scotland.

was stormed, the Scottish army was routed at Dunbar (April 27), Edinburgh and Stirling were easily captured, and at last John Baliol, deserted by most of his adherents, surrendered at Brechin. Edward pursued his triumphant march as far as Aberdeen and Elgin, without meeting further resistance. He then summoned a parliament at Berwick, and announced to the assembled Scots that he had determined to depose King John, and to assume the crown himself. The ease with which he had subdued the realm misled him; he

fancied that the slack resistance, which was mainly due to the incapacity and unpopularity of Baliol, implied the indifference of the Scots to the idea of annexation. The alacrity with which the greater part of the baronage flocked in to do him homage confirmed him in the mistaken notion. He appointed John, earl Warenne, lieutenant of the realm, with Hugh Cressingham, an English clerk, as treasurer, but left nearly all the minor offices in Scottish hands, and announced that Scottish law should be administered. He then returned to England, and began to make preparations for a great expedition to France in 1297.

His plan was something more ambitious than a mere attempt to recover Bordeaux; succours were to go to Gascony, but he himself and the main army were to invade France from the north with the aid of the count of

*Disputes with the
clergy and baronage.*

Flanders. Much money was, of course, needed for the double expedition, and in raising it Edward became involved in two desperate constitutional disputes. Though the barons and the commons voted a liberal grant at the parliament of Bury (Nov. 1296) the clergy would give nothing. This was owing to a bull—the celebrated *Clericis Laicos*, recently issued by the arrogant and contentious pope Boniface VIII., which forbade the clergy to submit to any taxation by secular princes. Robert Winchelsea, the archbishop of Canterbury, an enthusiastic exponent of clerical rights and grievances, declared himself in conscience bound to obey the pontiff, and persuaded the representatives of the Church in the parliament to refuse supplies. The king, indignant that an attempt should be made to exempt the vast ecclesiastical lands from taxation at a time of national crisis, sequestered the estates of the see of Canterbury, and copied John's conduct in 1208 by outlawing the whole body of the clergy. Winchelsea in return excommunicated all those who refused to recognize the authority of the pope's bull.

Scarcely was this quarrel developed when Edward found himself involved in an equally hot dispute with the commons and the baronage. In his eagerness to collect the sinews of war he had issued orders for the levy of a heavy customs duty on wool, the main export of the land, and in some cases laid hands on the wool itself, which lay ready for shipping, though this had not been granted him by the late parliament. The “maltolt”—or illegal tax—as his subjects called it, provoked the anger of the whole body of merchants in England. At the same time the barons, headed by the earls of Norfolk and Hereford, raised the old grievance about feudal service beyond seas, which had been so prominent in the time of King John. Norfolk, who had been designated to lead the expedition to Guienne; declared that though he was ready to follow his master to Flanders in his capacity of marshal, he would not be drafted off to Gascony against his own will. Hereford and a number of other barons gave him hearty support.

Harassed by these domestic troubles, the king could not carry out his intention of sailing for Flanders in the spring, and spent the greater part of the campaigning season in wrangles with his subjects. He was obliged to come to a compromise. If the clergy would give him a voluntary gift, which was in no way to be considered a tax, he agreed to inlaw them. They did so, and even Winchelsea, after a time, was reconciled to his master. As to the barons, the king took the important constitutional step of conceding that he would not ask them to serve abroad as a feudal obligation, but would pay them for their services, if they would oblige him by joining his banner. Even then Norfolk and Hereford refused to sail; but the greater part of the minor magnates consented to serve as stipendiaries. The commons were conciliated by a promise that the wool which the royal officers had seized should be paid for, when a balance was forthcoming in the exchequer.

By these means Edward succeeded at last in collecting a considerable army, and sailed for Flanders at the end of August. But he was hardly gone

when dreadful news reached him from Scotland. An insurrection, to which no great importance was attached at first, had broken out in the summer. Its first leader was none of the great barons, but a Renfrewshire knight, Sir William Wallace; but ere long more important persons, including Robert Bruce, earl of Carrick (grandson of Robert Bruce of Annandale, one of the competitors for the crown of Scotland), and the bishop of Glasgow, were found to be in communication with the rebels. Earl Warenne, the king's lieutenant in Scotland, mustered his forces to put down the rising. On the 11th of September 1297 he attempted to force the passage of the Forth at Stirling Bridge, and was completely beaten by Wallace, who allowed half the English army to pass the river and then descended upon it and annihilated it, while Warenne looked on helplessly from the other bank. Almost the whole of Scotland rose in arms on hearing of this victory, but the barons showed less zeal than the commons, owing to their jealousy of Wallace. Warenne retired to Berwick and besought his master for aid.

*Insurrection in
Scotland. Wallace.*

Edward, who was just commencing an autumn campaign in Flanders which was to lead to no results, sent home orders to summon a parliament, which should raise men and money for the Scottish war. It was called, and made a liberal grant for that purpose, but Archbishop Winchelsea and the earls of Norfolk and Hereford took advantage of their master's needs, and of his absence, to assert themselves. Taking up the position of defenders of the constitution, they induced the parliament to couple its grants of money with the condition that the king should not only confirm Magna Carta—as had been so often done before—but give a specific promise that no “maltolts,” or other taxes not legally granted him, should be raised for the future. Edward received the petition at Ghent, and made the required oath.

*The “Confirmatio
Cartarum.”*

The document to which he gave his assent, the *Confirmatio Cartarum* (less accurately called the statute *De Tallagio non concedendo*) marked a distinct

advance beyond the theories of Magna Carta; for the latter had been drawn up before England possessed a parliament, and had placed the control of taxation in the hands of the old feudal council of tenants-in-chief, while the *Confirmatio* gave it to the assembly, far more national and representative, which had now superseded the Great Council as the mouthpiece of the whole people of the realm.

The Scottish revolt had become so formidable that Edward was compelled to abandon his unfruitful Flemish campaign; he patched up an unsatisfactory truce with the king of France, which left four-fifths of his lost Gascon lands in the power of the enemy, and returned to England in the spring of 1298. In July he invaded Scotland at the head of a formidable army of 15,000 men, and on the 22nd of that month brought Wallace to action on the moors above Falkirk. The steady Scottish infantry held their own for some time against the charge of the English men-at-arms. But when Edward brought forward his archers to aid his cavalry, as William I. had done at Hastings, Wallace's columns broke up, and a dreadful slaughter followed. The impression made on the Scots was so great that for some years they refused to engage in another pitched battle. But the immediate consequences were not all that might have been expected. Edward was able to occupy many towns and castles, but the broken bands of the insurgents lurked in the hills and forests, and the countryside as a whole remained unsubdued. Wallace went to France to seek aid from King Philip, and his place was taken by John Comyn, lord of Badenoch, a nephew of Baliol, who was a more acceptable leader to the Scottish nobles than the vanquished knight of Falkirk. Edward was detained in the south for a year, partly by negotiations with France, partly by a renewed quarrel with his parliament, and during his absence Comyn recovered Stirling and most of the other places which had received English garrisons. It was not till 1300 that the king was able to resume the invasion of Scotland, with an army raised by grants of money that he had only bought by humiliating

concessions to the will of his parliament, formulated in the *Articuli super cartas* which were drawn up in the March of that year. Even then he only succeeded in recovering some border holds, and the succeeding campaign of 1301 only took him as far as Linlithgow. But in the following year his position was suddenly changed by unexpected events abroad; the king of France became involved in a desperate quarrel with the pope, and at the same moment his army received a crushing defeat before Courtrai at the hands of the Flemings. To free himself for these new struggles Philip made up his mind to conclude peace with England, even at the cost of sacrificing his conquests in Gascony. Bordeaux had already revolted from him, and he gave up the rest of his ill-gotten gains of 1294 by the treaty of Paris (May 20, 1303).

Now that he had only a single war upon his hands Edward's position was entirely changed. There was no more need to conciliate the magnates nor the parliament. His displeasure fell mainly on the archbishop and the earl of

***Edward again
invades Scotland,
1303.***

Norfolk, who had so long led the opposition.

Winchelsea was put in disgrace, and ultimately exiled.

Norfolk, who was childless, was forced to sign a grant

by which his lands went to the king after his death—a harsh and illegal proceeding, for he had collateral heirs. But the Scots, as was natural, bore the brunt of the king's wrath. In June 1303, a month after the peace of Paris, he advanced from Roxburgh, determined to make a systematic conquest of the realm, and not to return till it was ended. He kept up his campaign throughout the winter, reduced every fortress that held out, and carried his arms as far as Aberdeen and Elgin. In February 1304 the regent Comyn and most of the Scottish baronage submitted, on the promise that they should retain their lands on doing homage. Wallace, who had returned from France, kept up a guerilla warfare in the hills for a year more, but was captured in July 1305, and sent to London to be executed as a

traitor. Even before his capture it seemed that Scotland was thoroughly tamed, and was destined to share the fate of Wales.

Edward's arrangements for the administration of the conquered kingdom were wise and liberal, if only the national spirit of the Scots could have tolerated them. The Scottish parliament was to continue, though representatives from beyond Tweed were also to be sent to the English parliament. The sheriffdoms and most of the ministerial posts were left in the hands of Scots, though the supreme executive authority was put in the hands of John of Brittany, earl of Richmond, the king's nephew. The land seemed for a time to be settling down, and indeed the baronage were to such a large extent English in both blood and feeling, that there was no insuperable difficulty in conciliating them. A considerable fraction of them adhered consistently to the English cause from this time forth, and ultimately lost their lands for refusing to follow the rest of the nation in the next insurrection.

But the delusion that Scotland had been finally subdued was to last only for a year, although in 1305 Edward seemed to have accomplished his task, and stood triumphant, with the northern realm at his feet, his domestic foes humbled, and France and the papacy defeated. His last short interval of peaceful rule was distinguished by the passing of the Statute of Trailbaston in the parliament of 1305. This was a measure for the repression of local riots, empowering justices in every shire to suppress clubmen (*trailbastons*), gangs of marauders who had been rendering the roads unsafe.

In the first month of 1306, however, the weary Scottish war broke out again, with the appearance of a new insurgent chief. Robert Bruce, earl of Carrick, grandson of the claimant to the throne of 1292, had hitherto pursued a shifty policy, wavering between submission and opposition to the English invader. He had been in

Robert Bruce.

arms more than once, but had finally adhered to the pacification of 1304, and was now entirely trusted by the king. But he was secretly plotting rebellion, disgusted (as it would seem) that Edward had not transferred the crown of Scotland to the line of Bruce when the house of Baliol was found wanting. Though he found himself certain of a considerable amount of support, he yet could see that there would be no general rising in his favour, for many of the magnates refused to help in making king a baron whom they regarded as no more important than one of themselves. But the insurrection was precipitated by an unpremeditated outrage. Bruce was conferring at Dumfries with John Comyn, the late regent, whom he was endeavouring to tempt into his plots, on the 10th of January 1306. An angry altercation followed, for Comyn would have nothing to do with the scheme, and Bruce and his followers finally slew him before the altar of a church into which he had fled. After this crime, which combined the disgrace of sacrilege with that of murder under tryst, Bruce was forced to take arms at once, though his preparations were incomplete. He raised his banner, and was hastily crowned at Scone on the 25th of March; by that time the rising had burst out in many shires of Scotland, but it was neither unanimous nor complete. Edward by no means despaired of crushing it, and had raised a large army, when he was smitten with an illness which prevented him from crossing the border. But his troops, under Aymer de Valence, earl of Pembroke, pressed north, and surprised and routed Bruce at Methven near Perth. The pretender's brother Nigel and many of his chief supporters were taken prisoners, and he himself escaped with a handful of followers and took refuge in the Western islands. Edward ordered young Nigel Bruce and many other captives to be executed; for he was provoked to great wrath by the rebellion of a magnate who had given him every assurance of loyalty. He intended to follow de Valence to Scotland, and to complete the suppression of the rising in person. But this proved beyond his strength; he struggled as far as the border in July, but could not shake off his disease,

and was forced to linger, a broken invalid, in the neighbourhood of Carlisle for many months. Meanwhile his lieutenants failed to follow up with energy the victory gained at Methven, and in the next spring Bruce reappeared in the Lowlands, gathered new levies, and inflicted a defeat on de Valence at Loudoun Hill. Roused to anger King Edward rose from his bed, mounted his horse, and started for Scotland. But after struggling on for a few miles he fell by the way, and died at Burgh-on-Sands, just inside the English border, on the 7th of July 1307.

Despite the chequered fortunes of his later years the reign of Edward had been a time of progress and prosperity for England. He had given his realm good and strong governance; according to his lights he had striven to keep faith and to observe his coronation oath. He had on more than one occasion quarrelled with his subjects, but matters had never been pushed to an open rupture.

***Character of Edward
I.'s rule.***

The king knew how to yield, and even opponents like Winchelsea and the earls of Norfolk and Hereford respected him too much to drive him to an extremity. The nation, however much it might murmur, would never have been willing to rebel against a sovereign whose only fault was that he occasionally pressed his prerogative too far. Edward's rule was seldom or never oppressive, the seizure of the merchants' wool in 1297 was the only one of his acts which caused really fierce and widespread indignation. For his other arbitrary proceedings he had some show of legal justification in every case. It would have been absurd to declare that his rule was tyrannical or his policy disastrous. The realm was on the whole contented and even flourishing. Population was steadily increasing, and with it commerce; the intellectual activity which had marked the reign of Henry III. was still alive; architecture, religious and military, was in its prime. He was himself a great builder, and many of the perfected castles of that concentric style, which later ages have called the "Edwardian type," were of his own planning. In ecclesiastical architecture his reign represents the early flower of the

“Decorated” order, perhaps the most beautiful of all the developments of English art. In many respects the reign may be regarded as the culmination and crowning point of the middle ages. It certainly gave a promise of greatness and steady progress which the 14th century was far from justifying.

With the great king’s death a sudden change for the worse was at once visible. The individual character of the reigning king was still the main factor in political history, and Edward II. was in every respect a contrast to his father. He was incorrigibly frivolous, idle and apathetic; his father had given him much stern schooling, but this seems only to have inspired him with a deeply rooted dislike for official work of any kind. He has been well described as “the first king since the Conquest who was not a man of business.” Even Stephen and Henry III. had been active and bustling princes, though their actions were misguided and inconsequent. But Edward II. hated all kingly duties; he detested war, but he detested even more the routine work of administration. He was most at his ease in low company, his favourite diversion was gambling, his best trait a love for farming and the mechanical arts of the smith and the gardener.

His first acts on coming to the throne caused patriotic Englishmen to despair. His father, on his death-bed, had made him swear to conduct the Scottish expedition to its end. But he marched no further than Dumfries, and then turned back, on the vain pretext that he must conduct his parent’s funeral in person. Leaving Bruce to gather fresh strength and to commence the tedious process of reducing the numerous English garrisons in Scotland, he betook himself to London, and was not seen on the border again for more than three years. He then dismissed all his father’s old ministers, and replaced them by creatures of his own, for the most part persons of complete

incompetence. But his most offensive act was to promote to the position of chief councillor of the crown, and disperser of the royal favours, a clever but vain and ostentatious Gascon knight, one Piers Gaveston, who had been the companion of his boyhood, and had been banished by Edward I. for encouraging him in his follies and frivolity. Piers was given the royal title of earl of Cornwall, and married to the king's niece; when Edward went over to France to do homage for Gascony, he even made his friend regent during his absence, in preference to any of his kinsmen. It was his regular habit to refer those who came to him on matters of state to "his good brother Piers," and to refuse to discuss them in person.

It was of course impossible that the nation or the baronage should accept such a preposterous régime, and Edward was soon involved in a lively struggle with his subjects. Of the leaders of opposition in his father's reign both Hereford and Norfolk were now dead. But *Baronial opposition.* Archbishop Winchelsea had returned from exile in a belligerent mood, and the place of Norfolk and Hereford was taken by an ambitious prince of the royal house, Thomas, earl of Lancaster, the son of the younger brother of Edward I. Thomas was selfish and incompetent, but violent and self-assertive, and for some years was able to pose successfully as a patriot simply because he set himself to oppose every act of the unpopular king. He had several powerful baronial allies—the earls of Warwick, Pembroke and Warenne, with Humphrey Bohun of Hereford, who had succeeded to his father's politics, though he had married the king's own sister.

The annals of the early years of Edward II. are mainly filled by contemporary chroniclers with details of the miserable strife between the king and his barons on the question of Gaveston's unconstitutional position.

Progress of Bruce in Scotland. But the really important feature of the time was the gradual reconquest of Scotland by Robert Bruce,

during the continuance of the domestic strife in England. Edward I. had laid such a firm grip on the northern realm that it required many years to undo his work. A very large proportion of the Scottish nobility regarded Bruce as a usurper who had opened his career with murder and sacrilege, and either openly opposed him or denied him help. His resources were small, and it was only by constant effort, often chequered by failures, that he gradually fought down his local adversaries, and reduced the English garrisons one by one. Dumbarton and Linlithgow were only mastered in 1312. Perth did not finally fall into his hands till 1313; Edinburgh, Roxburgh and Stirling were still holding out in 1314. During all this time the English king only once went north of the Border—in 1311—and then with a very small army, for Lancaster and his friends had refused to join his banner. Yet even under such conditions Bruce had to retire to the mountains, and to allow the invaders to range unopposed through Lothian and Fife, and even beyond the Tay. With ordinary capacity and perseverance Edward II. might have mastered his enemy; indeed the Comyns and Umfravilles and other loyalist barons of Scotland would have carried out the business for him, if only he had given them adequate support. But he spent what small energy he possessed in a wretched strife of chicanery and broken promises with Thomas of Lancaster and his party, dismissing and recalling Gaveston according to the exigencies of the moment, while he let the Scottish war shift for itself. It must be confessed that the conduct of his adversaries was almost as contemptible and unpatriotic. They refused to aid in the war, as if it was the king's private affair and not that of the nation. And repeatedly, when they had Edward at their mercy and might have dictated what terms they pleased to him, they failed to rise to the situation. This was especially the case in 1311, when the king had completely submitted in face of their armed demonstrations. Instead of introducing any general scheme of reform they contented themselves with putting him under the tutelage of twenty-one "lords ordainers," a baronial

*The "Lords
Ordainers."*

committee like that which had been appointed by the Provisions of Oxford, fifty years back. Edward was not to levy an army, appoint an official, raise a tax, or quit the realm without their leave. He had also to swear an obedience to a long string of constitutional limitations of his power, and to promise to remove many practical grievances of administration. But there were two great faults in the proceedings of Thomas of Lancaster and his friends. The first was that they ignored the rights of the commons—save indeed that they got their ordinances confirmed by parliament—and put all power into the hands of a council which represented nothing but the baronial interest. The second, and more fatal, was that this council of “ordainers,” when installed in office, showed energy in nothing save in persecuting the friends of Edward and Gaveston; it neglected the general welfare of the realm, and in particular made no effort whatever to end the Scottish war. It was clearly their duty either to make peace with Robert Bruce, or to exert themselves to crush him; but they would do neither.

Gaveston’s unhappy career came to an end in 1312. After he had been twice exiled, and had been twice recalled by the king, he was besieged in Scarborough and captured by the earl of Pembroke. He was being conducted to London to be tried in parliament, when his two greatest enemies, Thomas of Lancaster and Guy, earl of Warwick, took him out of the hands of his escort, and beheaded him by the wayside without any legal authority or justification. The unhappy king was compelled to promise to forget and forgive this offence, and was then restored to a certain amount of freedom and power; the barons believed that when freed from the influence of Gaveston he would prove a less unsatisfactory sovereign. The experiment did not turn out happily. Bruce having at last made an almost complete end of the English garrisons within his realm, laid siege to Stirling, the last and strongest of them all, in the spring of 1313. Compelled by the pressure of public opinion to attempt its relief, Edward crossed the border in June 1314, with an army of 20,000 foot and 4000 men-at-arms.

***Battle of
Bannockburn.***

He found Bruce prepared to dispute his advance on the hillside of Bannockburn, 2 m. in front of Stirling, in a strong position with a stream in front and his flanks covered by rows of pitfalls, dug to discomfit the English cavalry. The Scots, as at Falkirk, were ranged in solid clumps of pikemen above the burn, with only a small reserve of horse. The English king, forgetting his father's experiences, endeavoured to ride down the enemy by headlong frontal charges of his men-at-arms, and made practically no attempt to use his archery to advantage. After several attacks had been beaten off with heavy loss, the English host recoiled in disorder and broke up—the king, who had kept in the rear all day, was one of the first to move off. The flower of his knights had fallen, including his nephew, the earl of Gloucester, who was the only one of the great magnates of the realm who had shown loyalty to him during the last six years. The Scots also made many prisoners; the disaster was complete, and the wrecks of the beaten army dispersed before reaching the border. Bruce followed them up, and spent the autumn in ravaging Northumberland and Cumberland.

Thomas of Lancaster, who had refused to join in the late campaign, took advantage of its results to place the king once more in complete tutelage. His household was dismissed, he was bidden to live as best he could on an

***Thomas, earl of
Lancaster.***

allowance of £10 a day, and all his ministers and officials were changed. For more than three years Lancaster practically reigned in his cousin's name; it was soon found that the realm got no profit thereby, for Earl Thomas, though neither so apathetic nor so frivolous as Edward, was not a whit more competent to conduct either war or domestic administration. The Scots swept everything before them, ravaging the north at their will, and capturing Berwick. They even made a great expedition to Ireland, where Bruce's brother Edward was proclaimed king by the rebellious Celtic septs, and rode across the whole island, exterminating the Anglo-Irish population

in many districts (1315-1317). But the colonists rallied, and cut to pieces a great Irish army at Athenry (1316), while in the next year Roger Mortimer, a hard-handed baron of the Welsh march, crossed with reinforcements and drove back Edward Bruce into the north. Resuming his advance after a space, the rebel king was routed and slain at Dundalk (Oct. 14, 1318) and the insurrection died out. But it had had the permanent result of weakening the king's grip on the north and west of Ireland, where the Englishry had been almost exterminated. From this time forth until the reign of Henry VIII. the limit of the country in full subjection to the crown was always shrinking, and the Irish chiefs of the inland continued to pay less and less attention to orders issued from Dublin or London.

Though the Scottish expedition to Ireland had been beaten off, this was not in the least to be ascribed to the credit of Lancaster, who was showing the grossest incompetence as an administrator. He could neither protect the Border, nor even prevent private civil wars from breaking out, not only on the Welsh marches (where they had always been common), but even in the heart of England. The most extraordinary symptom of the time was a civic revolt at Bristol (1316), where the townsfolk expelled the royal judges, and actually stood a siege before they would submit. Such revolts of great towns were normal in Germany or Italy, but almost unknown on this side of the Channel. All this unrest might well be ascribed to Lancaster's want of ability, but he had also to bear—with less justice—the discontent caused by two years of famine and pestilence. In August 1318 he was removed from power by a league formed by Pembroke, Warenne, Arundel and others of the lords ordainers, who put a new council in power, and showed themselves somewhat less hostile to the king than Earl Thomas had been. Edward was allowed to raise an army for the siege of Berwick, and was lying before its walls, when the Scots, turning his flank, made a fierce foray into Yorkshire, and routed the shire-levy under Archbishop Melton at the battle of Myton. This so disheartened the king and the council that

controlled him that they concluded a two years truce with Robert of Scotland, thus for the first time acknowledging him as a regular enemy and no mere rebel (1319).

The time of comparative quiet that followed was utilized by the king in an attempt to win back some of his lost authority. For a short space Edward showed more capacity and energy than he had ever been supposed to

possess. Probably this was due entirely to the fact that

The Despensers.

he had come under the influence of two able men who

had won his confidence and had promised him revenge

for the murdered Gaveston. These were the two Hugh Despensers, father and son; the elder was an ambitious baron who hated Lancaster, the younger had been made Edward's chamberlain in 1318 and had become his secret councillor and constant companion. Finding that the king was ready to back them in all their enterprises, the Despensers resolved to take the fearful risk of snatching at supreme power by using their master's name to oust the barons who were now directing affairs from their position. The task was the more easy because Lancaster was at open discord with the men who had supplanted him, so that the baronial party was divided; while the mishaps of the last six years had convinced the nation that other rulers could be as incompetent and as unlucky as the king. Indeed, there was a decided reaction in Edward's favour, since Lancaster and his friends had been tried and found wanting. Moreover, the Despensers felt that they had a great advantage over Gaveston in that they were native-born barons of ancient ancestry and good estate: the younger Hugh, indeed, through his marriage with the sister of the earl of Gloucester who fell at Bannockburn, was one of the greatest landowners on the Welsh border: they could not be styled upstarts or adventurers. Edward's growing confidence in the Despensers at last provoked the notice and jealousy of the dominant party. The barons brought up many armed retainers to the parliament of 1321, and forced the king to dismiss and to condemn them to exile. But their discomfiture was

only to last a few months; in the following October a wanton outrage and assault on the person and retinue of Edward's queen, Isabella of France, by the retainers of Lord Badlesmere, one of Pembroke's associates, provoked universal reprobation. The king made it an excuse for gathering an army to besiege Badlesmere's castle at Leeds; he took it and hanged the garrison. He then declared the Despensers pardoned, and invited them to return to England. On this Thomas of Lancaster and the more resolute of his associates took arms, but the majority both of the baronage and of the commons remained quiescent, public opinion being rather with than against the king. The rebels displayed great indecision, and Lancaster proved such a bad general that he was finally driven into the north and beaten at the battle of Boroughbridge (March 16, 1322), where his chief associate, the earl of Hereford, was slain. Next day he surrendered, with the wreck of his host. But the king, who showed himself unexpectedly vindictive, beheaded him at once; three other peers, Badlesmere, Clifford and Mowbray, were subsequently executed, with a score of knights.

*Execution of
Lancaster.*

Such severity was most impolitic, and Lancaster was ere long hailed as a saint and a martyr. But for the moment the king seemed triumphant; he called a parliament which revoked the "ordinances" of 1311, and replaced the Despensers in power. For the remaining four years of his reign they were omnipotent; but able and unscrupulous as they were, they could not solve the problem of successful governance. To their misfortune the Scottish war once more recommenced, King Robert having refused to continue the truce. The fortune of Edward II. now hung on the chance that he might be able to maintain the struggle with success; he raised a large army and invaded Lothian, but Bruce refused a pitched battle, and drove him off with loss by devastating the countryside around him. Thereupon Edward, to the deep humiliation of the people, sued for another cessation of hostilities, and obtained it by conceding all that Robert asked, save the

formal acknowledgment of his kingly title. But peace did not suffice to end Edward's troubles; he dropped back into his usual apathy, and the Despensers showed themselves so harsh and greedy that the general indignation only required a new leader in order to take once more the form of open insurrection. The end came in an unexpected fashion. Edward had quarrelled with his wife Isabella, who complained that he made her the "handmaid of the Despensers," and excluded her from her proper place and honour. Yet in 1325 he was unwise enough to send her over to France on an embassy to her brother Charles IV., and to allow his eldest son Edward, prince of Wales, to follow her to Paris. Having the boy in her power, and being surrounded by the exiles of Lancaster's faction, she set herself to plot

Rebellion of Queen Isabella and Mortimer.

against her husband, and opened up communications with the discontented in England. It was in vain that Edward besought her to return and to restore him his son; she came back at last, but at the head of an army

commanded by Roger, Lord Mortimer, the most prominent survivor of the party of Earl Thomas, with whom she had formed an adulterous connexion which they for some time succeeded in keeping secret.

When she landed with her son in Essex in September 1326, she was at once joined by Henry of Lancaster, the heir of Earl Thomas, and most of the baronage of the eastern counties. Even the king's half-brother, the earl of

Deposition and murder of Edward II.

Norfolk, rallied to her banner. Edward and the Despensers, after trying in vain to raise an army, fled into the west. They were all caught by their pursuers;

the two Despensers were executed—the one at Bristol, the other at Hereford. Several more of Edward's scanty band of friends—the earl of Arundel and the bishop of Exeter and others—were also slain. Their unhappy master was forced to abdicate on the 20th of January 1327, his fourteen-year old son being proclaimed king in his stead. He was allowed to survive in close prison some eight months longer, but when his robust

constitution defied all attempts to kill him by privations, he was murdered by the orders of the queen and Mortimer at Berkeley Castle on the 21st of September.

The three years regency of Isabella, during the minority of Edward III., formed a disgraceful episode in the history of England. She was as much the tool of Mortimer as her husband had been the tool of the Despensers, and their relations became gradually evident to the whole nation. All posts of dignity and emolument were kept for their personal adherents, and a new and formidable dignity was conferred on Mortimer himself, when he was made both justiciar of the principality of Wales, and also earl of March, in which lay both his own broad lands and the estates of Despenser and Arundel, which he had shamelessly appropriated. It is surprising that the adulterous pair succeeded in maintaining themselves in power for so long, since the ignominy of the situation was evident. They were even able to quell the first attempt at a reaction, by seizing and beheading Edmund, earl of Kent, the late king's half-brother, who was betrayed while organizing a plot for their destruction. The one politic act of Mortimer's administration, the conclusion of a permanent peace with Scotland by acknowledging Bruce as king (1328), was not one which made him more popular. The people called it "the shameful peace of Northampton," and firmly believed that he had been bribed by the Scots.

Yet Isabella and her paramour held on to power for two years after the peace, and were only overthrown by a blow from an unexpected quarter. When the young king had reached the age of eighteen he began to understand the disgraceful nature of his own situation. Having secured promise of aid from Henry of Lancaster, his cousin, and other barons, he executed a *coup de main*, and seized Mortimer in his chamber at midnight. The queen

***Regency of Isabella
and Mortimer.***

Edward III.

was also put under guard till a parliament could be called. It met, and at the king's demand passed sentence on the earl for the murder of Edward II. and other crimes. He was hanged at Tyburn (Nov. 1330); the queen suffered nothing worse than complete exclusion from power, and lived for more than twenty years in retirement on the manors of her dowry.

Edward III., who thus commenced his reign ere he was out of his boyhood, was, as might have been foretold from his prompt action against Mortimer, a prince of great vigour and enterprise. He showed none of his father's weakness and much of his grandfather's capacity. He fell short of Edward I. in steadiness of character and organizing power, but possessed all his military capacity and his love of work. Unfortunately for England his ambition was to be the mirror of chivalry rather than a model administrator. He took up and abandoned great enterprises with equal levity; he was reckless in the spending of money; and in times of trouble he was careless of constitutional precedent, and apt to push his prerogative to extremes. Yet like Edward I. he was popular with his subjects, who pardoned him much in consideration of his knightly virtues, his courage, his ready courtesy and his love of adventure. In most respects he was a perfect exponent of the ideals and foibles of his age, and when he broke a promise or repudiated a debt he was but displaying the less satisfactory side of the habitual morality of the 14th century the chivalry of which was often deficient in the less showy virtues. With all his faults Edward during his prime was a capable and vigorous ruler; and it was not without reason that not England only but all western Europe looked up to him as the greatest king of his generation.

His early years were specially fortunate, as his rule contrasted in the most favourable way with that of his infamous mother and his contemptible father. The ministers whom he substituted for the creatures of Mortimer were capable, if not talented administrators. He did much to restore the internal peace of the realm, and put

***Edward III. invades
Scotland.***

down the local disorders which had been endemic for the last twenty years. Moreover, when the war with Scotland recommenced he gave the English a taste of victory such as they had not enjoyed since Falkirk. Robert Bruce was now dead and his throne was occupied by the young David II., whose factious nobles were occupied in civil strife when, in 1332, a pretender made a snatch at the Scottish throne. This was Edward, the son of John Baliol, an adventurous baron who collected all the “disinherited” Scots lords, the members of the old English faction who had been expelled by Bruce, and invaded the realm at their head. He beat the regent Mar at the battle of Dupplin, seized Perth and Edinburgh, and crowned himself at Scone. But knowing that his seat was precarious he did homage to the English king, and made him all the promises that his father had given to Edward I. The temptation was too great for the young king to refuse; he accepted the homage, and offered the aid of his arms. It was soon required, for Baliol was ere long expelled from Scotland. Edward won the battle of Halidon Hill (July 19, 1333)—where he displayed considerable tactical skill—captured Berwick, and reconquered a considerable portion of Scotland for his vassal. Unfortunately for himself he made the mistake of requiring too much from Baliol—forcing him to cede Lothian, Tweeddale and the larger part of Galloway, and to promise a tribute. These terms so irritated the Scots, who had shown signs of submission up to this moment, that they refused to accept the pretender, and kept up a long guerilla warfare which ended in his final expulsion. But the fighting was all on Scottish ground, and Edward repeatedly made incursions, showy if not effective, into the very heart of the northern realm; on one occasion he reached Inverness unopposed. He held Perth till 1339, Edinburgh till 1341, and was actually in possession of much Scottish territory when his attention was called off from this minor war to the greater question of the struggle with France. Meanwhile he had acquired no small military reputation, had collected a large body of professional soldiers whose experience was to be invaluable

to him in the continental war, and had taught his army the new tactics which were to win Crécy and Poitiers. For the devices employed against the Scottish “schiltrons” of pikemen at Dupplin and Halidon, were the same as those which won all the great battles of the Hundred Years’ War—the combination of archery, not with cavalry (the old system of Hastings and Falkirk), but with dismounted men-at-arms. The nation, meanwhile prosperous, not vexed by overmuch taxation, and proud of its young king, was ready and willing to follow him into any adventure that he might indicate.

IV. THE HUNDRED YEARS’ WAR (1337-1453)

Wars between England and France had been many, since William the Conqueror first linked their fortunes together by adding his English kingdom to his Norman duchy. They were bound to recur as long as the

Causes of the Hundred Years’ War.

kings who ruled on this side of the Channel were possessed of continental dominions, which lay as near, or nearer, to their hearts than their insular realm. While the kingdom of France was weak, monarchs like Henry II. and Richard I. might dream of extending their transmarine possessions to the detriment of their suzerain at Paris. When France had grown strong, under Philip Augustus, the house of Plantagenet still retained a broad territory in Gascony and Guienne, and the house of Capet could not but covet the possession of the largest surviving feudal appanage which marred the solidarity of their kingdom. There had been a long interval of peace in the 13th century, because Henry III. of England was weak, and Louis IX. of France an idealist, much more set on forwarding the welfare of Christendom than the expansion of France. But the inevitable struggle had recommenced with the accession of the unscrupulous Philip IV. Its cause was simple; France was incomplete as long as the English king ruled at

Bordeaux and Bayonne, and far up the valleys of the Garonne and the Adour. From 1293 onward Philip and his sons had been striving to make an end of the power of the Plantagenets in Aquitaine, sometimes by the simple argument of war, more frequently by the insidious process of encroaching on ducal rights, summoning litigants to Paris, and encouraging local magnates and cities alike to play off their allegiance to their suzerain against that to their immediate lord. Both in the time of Edward II. and in that of his son active violence had several times been called in to aid legal chicanery. Fortunately for the duke of Guienne the majority of his subjects had no desire to become Frenchmen; the Gascons felt no national sympathy with their neighbours of the north, and the towns in especial were linked to England by close ties of commerce, and had no wish whatever to break off their allegiance to the house of Plantagenet. The English rule, if often weak, had never proved tyrannical, and they had a great dread of French taxes and French officialism. But there were always individuals, more numerous among the noblesse than among the citizens, whose private interests impelled them to seek the aid of France.

The root of the Hundred Years' War, now just about to commence, must be sought in the affairs of Guienne, and not in any of the other causes which complicated and obscured the outbreak of hostilities. These, however, were sufficiently important in themselves. The most obvious was the aid which Philip VI. had given to the exiled David Bruce, when he was driven out of Scotland by Edward and his ally Baliol. The English king replied by welcoming and harbouring Robert of Artois, a cousin whom Philip VI. had expelled from France. He also made alliances with several of the dukes and counts of the Netherlands, and with the emperor Louis the Bavarian, obviously with the intention of raising trouble for France on her northern and eastern frontiers.

It was Philip, however, who actually began the war, by declaring Guienne and the other continental dominions of Edward III. forfeited to the French crown, and sending out a fleet which ravaged the south coast of England in

Beginning of the war. 1337. In return Edward raised a claim to the throne of France, not that he had any serious intention of pressing it—for throughout his reign he always showed himself ready to barter it away in return for sufficient territorial gains—but because such a claim was in several ways a useful asset to him both in war and in diplomacy. It was first turned to account when the Flemings, who had scruples about opposing their liege lord the king of France, found it convenient to discover that, since Edward was the real king and not Philip, their allegiance was due in the same direction whither their commercial interests drew them. Led by the great demagogue dictator, Jacob van Artevelde, they became the mainstay of the English party in the Netherlands.

Edward's claim—such as it was—rested on the assertion that his mother, Isabella, was nearer of kin to her brother Charles IV., the last king of the main line of the house of Capet, than was Charles's cousin Philip of Valois.

Edward III. and the French crown. The French lawyers ruled that heiresses could not succeed to the crown themselves, but Edward pleaded that they could nevertheless transmit their right to their sons. He found it convenient to forget that the elder brother of Charles IV., King Louis X., had left a daughter, whose son, the king of Navarre, had on this theory a title preferable to his own. This prince, he said, had not been born at the time of his grandfather's death, and so lost any rights that might have passed to him had he been alive at that time. A far more fatal bar to Edward's claim than the existence of Charles of Navarre was the fact that the peers of France, when summoned to decide the succession question nine years before, had decided that Philip of Valois had the sole valid claim to the crown, and that Edward had then done homage to him for Guienne. If

he pleaded that in 1328 he had been the mere tool of his mother and Mortimer, he could be reminded of the unfortunate fact that in 1331, after he had crushed Mortimer, and taken the power into his own hands, he had deliberately renewed his oath to King Philip.

Edward's claim to the French crown embittered the strife in a most unnecessary fashion. It was an appeal to every discontented French vassal to become a traitor under a plausible show of loyalty, and from first to last many such persons utilized it. It also gave Edward an excuse for treating every loyal Frenchman as guilty of treason, and, to his shame, he did not always refrain from employing such a discreditable device. Yet, as has been already said, he showed his consciousness of the fallacy of his claim by offering to barter it again and again during the course of the war for land or money. But he finally passed on the wretched fiction as a heritage of his descendants, to cause untold woes in the 15th century. It is seldom in the world's history that a hollow legal device such as this has had such long enduring and deplorable results.

In the commencement of his continental war Edward took little profit either from his assumption of the French royal title, or from the lengthy list of princes of the Low Countries whom he enrolled beneath his banner. His two land-campaigns of 1339 and 1340 led to no victories or conquests, but cost enormous sums of money. The Netherland allies brought large contingents and took high pay from the king, but they showed neither energy nor enthusiasm in his cause. When Philip of Valois refused battle in the open, and confined his operations to defending fortified towns, or stockading himself in entranced camps, the allies drifted off, leaving the king with his English troops in force too small to accomplish anything. The sole achievement of the early years of the war which was of any profit to Edward or his realm was the great naval triumph of Sluys (June 24, 1340),

Battle of Sluys.

which gave the English the command of the sea for the next twenty years. The French king had built or hired an enormous fleet, and with it threatened to invade England. Seeing that he could do nothing on land while his communications with the Low Countries were endangered by the existence of this armada, Edward levied every ship that was to be found, and brought the enemy to action in the Flemish harbour of Sluys. After a day of desperate hand to hand fighting—for the vessels grappled and the whole matter was settled by boarding—the French fleet was annihilated. Henceforth England was safe from coast raids, could conduct her commerce with Flanders without danger, and could strike without difficulty at any point of the French littoral. But it was not for some years that Edward utilized the advantage that Sluys had given him. As long as he persevered in the attempt to conduct the invasion of the northern frontier of France he achieved nothing.

Such schemes were finally abandoned simply because the king discovered that his allies were worthless and that his money was all spent. On his return from Flanders in 1340 he became involved in an angry controversy with his ministers, whom he accused, quite unjustly, of wasting his revenue and wrecking his campaign thereby. He imprisoned some of them, and wished to try his late chancellor, Archbishop Stratford, for embezzlement, in the court of the exchequer. But the primate contended very vigorously for the right to be tried before his peers, and since the king could get no subsidies from his parliament till he acknowledged the justice of this claim, he was forced to concede it. Stratford was acquitted—the king's thriftlessness and not the chancellor's maladministration had emptied the treasury. Edward drifted on along the path to financial ruin till he actually went bankrupt in 1345, when he repudiated his debts, and ruined several great Italian banking houses, who had been unwise enough to continue lending him money to the last. The Flemings were also hard hit by

*Financial crisis. Trial
of Archbishop
Stratford.*

this collapse of the king's credit, and very naturally lost their enthusiasm for the English alliance. Van Artevelde, its chief advocate, was murdered by his own townsmen in this same year.

The second act of the Hundred Years' War, after King Edward had abandoned in despair his idea of invading France from the side of the Netherlands, was fought out in another quarter—the duchy of Brittany.

War in Brittany. Here a war of succession had broken out in which (oddly enough) Edward took up the cause of the pretender who had male descent, while Philip supported the one who represented a female line—each thus backing the theory of heritage by which his rival claimed the throne of France. By espousing the cause of John of Montfort Edward obtained a good foothold on the flank of France, for many of the Breton fortresses were put into his hands. But he failed to win any decisive advantage thereby over King Philip. It was not till 1346, when he adopted the new policy of trusting nothing to allies, and striking at the heart of France with a purely English army, that Edward found the fortune of war turning in his favour.

In this year he landed in Normandy, where the English banner had not been seen since the days of King John, and executed a destructive raid through the duchy, and up the Seine, till he almost reached the gates of Paris. This brought out the king of France against him, with a mighty host, before which Edward retreated northward, apparently intending to retire to Flanders. But after crossing the Somme he halted at Crécy, near Abbeville, and offered

Edward invades France.

Battle of Crécy. battle to the pursuing enemy. He fought relying on the tactics which had been tried against the Scots at Dupplin and Halidon Hill, drawing up his army with masses of dismounted men-at-arms flanked on either side by archery. This array proved as effective against the disorderly charges of the French

noblesse as it had been against the heavy columns of the Scottish pikemen. Fourteen times the squadrons of King Philip came back to the charge; but mowed down by the arrow-shower, they seldom could get to handstrokes with the English knights, and at last rode off the field in disorder. This astonishing victory over fourfold numbers was no mere chivalrous feat of

Capture of Calais.

arms, it had the solid result of giving the victors a foothold in northern France. For Edward took his army to beleaguer Calais, and after blockading it for nearly a year forced it to surrender. King Philip, after his experience at Crécy, refused to fight again in order to raise the siege. From henceforth the English possessed a secure landing-place in northern France, at the most convenient point possible, immediately opposite Dover. They held it for over two hundred years, to their own inestimable advantage in every recurring war.

The years 1345-1347 saw the zenith of King Edward's prosperity; in them fell not only his own triumphs at Crécy and Calais, but a victory at Auberoche in Périgord won by his cousin Henry of Lancaster, which

Battle of Neville's Cross.

restored many long-lost regions of Guienne to the English suzerainty (Oct. 21, 1345), and another and more famous battle in the far north. At Neville's Cross, near Durham, the lords of the Border defeated and captured David Bruce, king of Scotland (Oct. 17, 1346). The loss of their king and the destruction of a fine army took the heart out of the resistance of the Scots, who for many years to come could give their French allies little assistance.

In 1347 Edward made a short truce with King Philip: even after his late victories he felt his strength much strained, his treasury being empty, and his army exhausted by the year-long siege of Calais. But he would have

***Truce with France.
The Black Death.***

returned to the struggle without delay had it not been for the dreadful calamity of the "Black Death," which

fell upon France and England, as upon all Europe, in the years 1348-1349. The disease, on which the 14th century bestowed this name, was the bubonic plague, still familiar in the East. After devastating western Asia, it reached the Mediterranean ports of Europe in 1347, and spread across the continent in a few months. It was said that in France, Italy and England a third of the population perished, and though this estimate may be somewhat exaggerated, local records of unimpeachable accuracy show that it cannot be very far from the truth. The bishop's registers of the diocese of Norwich show that many parishes had three and some four successive vicars admitted in eighteen months. In the manor rolls it is not uncommon to find whole families swept away, so that no heir can be detected to their holdings. Among the monastic orders, whose crowded common life seems to have been particularly favourable to the spread of the plague, there were cases where a whole community, from the abbot down to the novices, perished. The upper classes are said to have suffered less than the poor; but the king's daughter Joan and two archbishops of Canterbury were among the victims. The long continuance of the visitation, which as a rule took six or nine months to work out its virulence in any particular spot, seems to have cowed and demoralized society. Though it first spread from the ports of Bristol and Weymouth in the summer of 1348, it had not finished its destruction in northern England till 1350, and only spread into Scotland in the summer of that year.

When the worst of the plague was over, and panic had died down, it was found that the social conditions of England had been considerably affected by the visitation. The condition of the realm had been stable and prosperous during the earlier years of Edward III., the drain on its resources caused by heavy war-taxation having been more than compensated by the increased wealth that arose from growing commerce and developing industries. The victory of Sluys, which gave England the command of the

Economic and social effects of the Black Death.

seas, had been a great landmark in the economic no less than in the naval history of this island. But the basis of society was shaken by the Black Death; the kingdom was still essentially an agricultural community, worked on the manorial system; and the sudden disappearance of a third of the labouring hands by which that system had been maintained threw everything into disorder. The landowners found thousands of the crofts on which their villeins had been wont to dwell vacant, and could not fill them with new tenants. Even if they exacted the full rigour of service from the survivors, they could not get their broad demesne lands properly tilled. The landless labourers, who might have been hired to supply the deficiency, were so reduced in numbers that they could command, if free competition prevailed, double and triple rates of payment, compared with their earnings in the days before the plague. Hence there arose, almost at once, a bitter strife between the lords of manors and the labouring class, both landholding and landless. The lords wished to exact all possible services from the former, and to pay only the old two or three pence a day to the latter. The villeins, as hard hit as their masters, resented the tightening of old duties, which in some cases had already been commuted for small money rents during the prosperous years preceding the plague. The landless men formed combinations, disputed with the landlords, and asked and often got twice as much as the old rates, despite of the murmurings of the employer.

After a short experience of these difficulties the king and council, whose sympathies were naturally with the landholders, issued an ordinance forbidding workmen of any kind to demand more than they had been wont

***The Statute of
Labourers.***

to receive before 1348. This was followed up by the famous Statute of Labourers of 1351, which fixed rates for all wages practically identical with those of the times before the Black Death. Those workmen who refused to accept them were to be imprisoned, while employers who went behind the backs of their fellows and secretly paid higher sums were to be punished by heavy fines.

Later additions to the statute were devised to terrorize the labourer, by adding stripes and branding to his punishment, if he still remained recalcitrant or absconded. And landowners were empowered to seize all vagrant able-bodied men, and to compel them to work at the statutory wages. As some compensation for the low pay of the workmen, parliament tried to bring down the price of commodities to their former level, for (like labour) all manufactured articles had gone up immensely in value.

Thirty years of friction followed, while the parliament and the ruling classes tried in a spasmodic way to enforce the statute, and the peasantry strove to evade it. It proved impossible to carry out the scheme; the labourers were too many and too cunning to be crushed. If driven over hard they absconded to the towns, where hands were needed as much as in the countryside, or migrated to districts where the statute was laxly administered. Gradually the landowners discovered that the only practical way out of their difficulties was to give up the old custom of working the manorial demesne by the forced labour of their villeins, and to cut it up into farms which were rented out to free tenants, and cultivated by them. In the course of two generations the “farmers” who paid rent for these holdings became more and more numerous, and demesne land tilled by villein-service grew more and more rare. But enough old-fashioned landlords remained to keep up the struggle with the peasants to the end of the 14th century and beyond, and the number of times that the Statute of Labourers was re-enacted and recast was enormous. Nevertheless the struggle turned gradually to the advantage of the labourer, and ended in the creation of the sturdy and prosperous farming yeomanry who were the strength of the realm for several centuries to come.

One immediate consequence of the “Black Death” was the renewal of the truce between England and France by repeated agreements which lasted from 1347 to 1355. During this interval Philip of France died, in 1350, and

was succeeded by his son John. The war did not entirely cease, but became local and spasmodic. In Brittany the factions which supported the two claimants to the ducal title were so embittered that they never laid down their arms. In 1351 the French noblesse of Picardy, apparently without their master's knowledge or consent, made an attempt to surprise Calais, which was beaten off with some difficulty by King Edward in person. There was also constant bickering on the borders of Guienne. But the main forces on

***Renewal of the war
with France.***

both sides were not brought into action till the series of truces ran out in 1355. From that time onward the English took the offensive with great vigour. Edward, prince of Wales, ravaged Languedoc as far as the Mediterranean, while his younger brother John of Gaunt, duke of Lancaster, executed a less ambitious raid in Picardy and Artois. In the south this campaign marked real progress, not mere objectless plunder, for it was followed by the reconquest of great districts in Périgord and the Agenais, which had been lost to England since the 13th century. A similar double invasion of France led to even greater results in the following year, 1356. While Lancaster landed in Normandy, and with the aid of local rebels occupied the greater part of the peninsula of the Côtentin, the prince of Wales accomplished greater things on the borders of Aquitaine. After executing a great circular sweep through Périgord, Limousin and Berry, he was returning to Bordeaux laden with

Battle of Poitiers.

plunder, when he was intercepted by the king of France near Poitiers. The battle that followed was the most astonishing of all the English victories during the Hundred Years' War. The odds against the prince were far heavier than those of Crécy, but by taking up a strong position and using the national tactics which combined the use of archery and dismounted men-at-arms, the younger Edward not merely beat off his assailants in a long defensive fight, but finally charged out upon them, scattered them, and took King John prisoner (Sept. 19, 1356).

This fortunate capture put an enormous advantage in the hands of the English; for John, a facile and selfish prince, was ready to buy his freedom by almost any concessions. He signed two successive treaties which gave

The English ravage France.

such advantageous terms to Edward III. that the dauphin Charles, who was acting as regent, and the French states-general refused to confirm them. This drove the English king to put still further pressure on the enemy; in 1359 he led out from Calais the largest English army that had been seen during the war, devastated all northern France as far as Reims and the borders of Burgundy, and then—continuing the campaign through the heart of the winter—presented himself before the gates of Paris and ravaged the Île de France. This brought the regent Charles and his counsellors to the verge of

Peace of Brétigny.

despair; they yielded, and on the 8th of May 1360, signed an agreement at Brétigny near Chartres, by which nearly all King Edward's demands were granted. These preliminaries were ratified by the definitive peace of Calais (Oct. 24, 1360), which brought the first stage of the Hundred Years' War to an end.

By this treaty King Edward formally gave up his claim to the French throne, which he had always intended to use merely as an asset for barter, and was to receive in return not only a sum of 3,000,000 gold crowns for King John's personal ransom, but an immense cession of territory which—in southern France at least—almost restored the old boundaries of the time of Henry II. The duchy of Aquitaine was reconstructed, so as to include not only the lands that Edward had inherited, and his recent conquests, but all Poitou, Limousin, Angoumois, Quercy, Rouergue and Saintonge—a full half of France south of the Loire. This vast duchy the English king bestowed not long after on his son Edward, the victor of Poitiers, who reigned there as a vassal-sovereign, owing homage to England but administering his possessions in his own right. In northern France, Calais and the county of Guînes, and also the isolated county of Ponthieu, the

inheritance of the wife of Edward I., were ceded to the English crown. All these regions, it must be noted, were to be held for the future free of any homage or acknowledgment of allegiance to an overlord, “in perpetuity, and in the manner in which the kings of France had held them.” There was to be an end to the power of the courts of Paris to harass the duke of Aquitaine, by using the rights of the suzerain to interfere with the vassal’s subjects. It was hoped that for the future the insidious legal warfare which had been used with such effect by the French kings would be effectually prevented.

To complete the picture of the triumph of Edward III. at this, the culminating point of his reign, it must be mentioned that some time before the peace of Calais he had made terms with Scotland. David Bruce was to

Submission of David of Scotland.

cede Roxburgh and Berwick, but to keep the rest of his dominions on condition of paying a ransom of 100,000 marks. This sum could never be raised, and Edward

always had it in his power to bring pressure to bear on the king of Scots by demanding the instalments, which were always in arrear. David gave no further trouble; indeed he became so friendly to England that he offered to proclaim Lionel of Clarence, Edward’s second son, as his heir, and would have done so but for the vigorous opposition of his parliament.

The English people had expected that a sort of Golden Age would follow the conclusion of the peace with Scotland and France. Freed from the war-taxes which had vexed them for the last twenty years, they would be able to

Economic progress in England.

repair the ravages of the Black Death, and to develop the commercial advantages which had been won at Sluys, and secured by the dominion of the seas which

they had held ever since. In some respects this expectation was not deceived; the years that followed 1360 seem to have been prosperous at home, despite the continued friction arising from the Statute of Labourers. The towns would seem to have fared better than the countryside, partly

indeed at its expense, for the discontented peasantry migrated in large numbers to the centres of population where newly-developed manufactures were calling for more hands. The weaving industry, introduced into the eastern counties by the king's invitation to Flemish settlers, was making England something more than a mere producer of raw material for export. The seaports soon recovered from their losses in the Black Death, and English shipping was beginning to appear in the distant seas of Portugal and the Baltic. Nothing illustrates the growth of English wealth better than the fact that the kingdom had, till the time of Edward III., contrived to conduct all its commerce with a currency of small silver, but that within thirty years of his introduction of a gold coinage in 1343, the English "noble" was being struck in enormous quantities. It invaded all the markets of western Europe, and became the prototype of the gold issues of the Netherlands, Scotland, and even parts of Germany. It is in the latter years of Edward III. that we find the first forerunners of that class of English merchant princes who were to be such a marked feature in the succeeding reigns. The Poles of Hull, whose descendants rose in three generations to ducal rank, were the earliest specimens of their class. The poet Chaucer may serve as a humbler example of the rise of the burgher class—the son of a vintner, he became the father of a knight, and the ancestor, through female descents, of many baronial families. The second half of the 14th century is the first period in English history in which we can detect a distinct rise in the importance of the commercial as opposed to the landed interest. The latter, hard hit by the manorial difficulties that followed the plague of 1348-1349, found their rents stationary or even diminishing, while the price of the commodities from which the former made their wealth had permanently risen. As to intellectual vigour, the age that produced two minds of such marked originality in different spheres as Wycliffe and Chaucer must not be despised, even if it failed to carry out all the promise of the 13th century.

For a few years after the peace of 1360 the political influence of Edward III. in western Europe seemed to be supreme. France, prostrated by the results of the English raids, by peasant revolts, and municipal and baronial

English rule in France.

turbulence, did not begin to recover strength till the thriftless king John had died (1364) and had been succeeded by his capable if unchivalrous son Charles V. Yet the state of the English dominions on the continent was not satisfactory; in building up the vast duchy of Aquitaine Edward had made a radical mistake. Instead of contenting himself with creating a homogeneous Gascon state, which might have grown together into a solid unit, he had annexed broad regions which had been for a century and a half united to France, and had been entirely assimilated to her. From the first Poitou, Quercy, Rouergue and the Limousin chafed beneath the English yoke; the noblesse in especial found the comparatively orderly and constitutional governance to which they were subjected most intolerable. They waited for the first opportunity to revolt, and meanwhile murmured against every act of their duke, the prince of Wales, though he did his best to behave as a gracious sovereign.

The younger Edward ended by losing his health and his wealth in an unnecessary war beyond the Pyrenees. He was persuaded by the exiled Peter the Cruel, king of Castile, to restore him to the throne which he had

The Black Prince in Spain.

forfeited by his misgovernment. In 1367 he gathered a great army, entered Castile, defeated the usurper Henry of Trastamara at the battle of Najera, and restored his ally. But Peter, when once re-established as king, forgot his obligations and left the prince burdened with the whole expense of the campaign. Edward left Spain with a discontented and unpaid army, and had himself contracted the seeds of a disease which was to leave him an invalid for the rest of his life. To pay his debts he was obliged to resort to heavy taxation in Aquitaine, which gave his discontented subjects in Poitou and the other

outlying districts an excuse for the rebellion that they had been for some time meditating. In 1368 his greatest vassals, the counts of Armagnac, Périgord and Comminges, displayed their disloyalty by appealing to the king of France as their suzerain against the legality of Edward's imposts. The French overlordship had been formally abolished by the treaty of 1360, so this appeal amounted to open rebellion. And when Charles V. accepted it, and cited Edward to appear before his parlement to answer the complaints of the counts, he was challenging England to renewed war. He found a preposterous excuse for repudiating the treaty by which he was bound, by declaring that some details had been omitted in its formal ratification.

The Hundred Years' War, therefore, broke out again in 1369, after an interval of nine years. Edward III. assumed once more the title of king of France, while Charles V., in the usual style, declared that the whole duchy of Aquitaine had been forfeited for treason and rebellion on the part of its present holder. The second period of war, which was to last till the death of the English king, and for some years after, was destined to prove wholly disastrous to England. All the conditions had changed since 1360. Edward, though only in his fifty-seventh year, was entering into a premature and decrepit old age, in which he became the prey of unworthy favourites, male and female. The men of the 14th century, who commanded armies and executed *coups d'état* at eighteen, were often worn out by sixty. The guidance of the war should have fallen into the hands of his eldest son, the victor of Poitiers and Najera, but the younger Edward had never recovered from the fatigues of his Spanish campaign; his disease having developed into a form of dropsy, he had become a confirmed invalid and could no longer take the field. The charge of the military operations of the English armies had passed to John of Gaunt, duke of Lancaster, the king's younger son, a prince far inferior in capacity to his father and brother. Though not destitute of good impulses Lancaster was hasty, improvident and obstinate;

***Renewal of the war
with France.***

he was unfortunate in his choice of friends, for he allied himself to all his father's unscrupulous dependents. He was destitute of military skill, and wrecked army after army by attempting hard tasks at inappropriate times and by mistaken methods. Despite of all checks and disasters he remained active, self-confident and ambitious, and, since he had acquired a complete control over his father, he had ample opportunity to mismanage the political and military affairs of England.

Lancaster's strategy, in the early years of the renewed war, consisted mainly of attempts to wear down the force of France by devastating raids; he hoped to provoke the enemy to battle by striking at the heart of his

Character of the war. realm, but never achieved his purpose. Warned by the disasters of Crécy and Poitiers, Charles V. and his great captain Bertrand du Guesclin would never commit themselves to an engagement in the open field. They let the English invaders pass by, garrisoning the towns but abandoning the countryside. Since Lancaster, in his great circular raids, had never the leisure to sit down to a siege—generally a matter of long months in the 14th century—he repeatedly crossed France leaving a train of ruined villages behind him, but having accomplished nothing else save the exhaustion of his own army. For the French always followed him at a cautious distance, cutting off his stragglers, and restricting the area of his ravages by keeping flying columns all around his path. But while the duke was executing useless marches across France, the outlying lands of Aquitaine were falling away, one after the other, to the enemy. The limit of the territory which still remained loyal was ever shrinking, and what was once lost was hardly ever regained. Almost the only reconquest made was that of the city of Limoges, which was stormed in September 1370 by the troops of the Black Prince, who rose from his sick-bed to strike his last blow at the rebels. His success did almost as much harm as good to his cause, for the deliberate sack of the city was carried out with such ruthless severity that it roused wild wrath rather than

terror in the neighbouring regions. Next spring the prince returned to England, feeling himself physically unable to administer or defend his duchy any longer.

The greater part of Poitou, Quercy and Rouergue had been lost, and the English cause was everywhere losing ground, when a new danger was developed. Since Sluys the enemy had never disputed the command of the seas; but in 1372 a Spanish fleet joined the French, and *English reverses.* destroyed off La Rochelle a squadron which was bringing reinforcements for Guienne. The disaster was the direct result of the campaign of Najera—for Henry of Trastamara, who had long since dethroned and slain his brother Peter the Cruel, remained a consistent foe of England. From this date onward Franco-Spanish fleets were perpetually to be met not only in the Bay of Biscay but in the Channel; they made the voyage to Bordeaux unsafe, and often executed descents on the shores of Kent, Sussex, Devon and Cornwall. It was to no effect that, in the year after the battle of La Rochelle, Lancaster carried out the last, the most expensive, and the most fruitless of his great raids across France. He marched from Calais to Bordeaux, inflicted great misery on Picardy, Champagne and Berry, and left half his army dead by the way.

This did not prevent Bertrand du Guesclin from expelling from his dominions John of Brittany, the one ally whom King Edward possessed in France, or from pursuing a consistent career of petty conquest in the heart of Aquitaine. By 1374 little was left of the great possessions which the English had held beyond the Channel save Calais, and the coast slip from Bordeaux to Bayonne, which formed the only loyal part of the duchy of Guienne. Next year King Edward sued for peace—he failed to obtain it, finding the French terms too hard for acceptance—but a truce at least was signed at Bruges (Jan. 1375) which endured till a few weeks before his death.

These two last years of Edward's reign were filled with an episode of domestic strife, which had considerable constitutional importance. The nation ascribed the series of disasters which had filled the space from 1369

Domestic strife.

to 1375 entirely to the maladministration of Lancaster and the king's favourites, failing to see that it was largely due to the mere fact that England was not strong enough to hold down Aquitaine, when France was administered by a capable king and served by a great general. Hence there arose, both in and out of parliament, a violent agitation for the removal of Lancaster from power, and the punishment of the favourites, who were believed, with complete justification, to be misusing the royal name for their own private profit. Among the leaders of this agitation were the clerical ministers whom John of Gaunt had expelled from office in 1371, and chiefly William of Wykeham, bishop of Winchester, the late chancellor; they were helped by Edmund Mortimer, earl of March, a personal enemy of Lancaster, and could count on the assistance of the prince of Wales when he was well enough to take a part in politics. The greater part of the House of Commons was on their side, and on the whole they may be regarded as the party of constitutional protest against maladministration. But there was another movement on foot at the same time, which cut across this political agitation in the most bewildering fashion. Protests against the corruption of the

Agitation against the Church.

Church and the interference of the papacy in national affairs had always been rife in England. At this moment they were more prevalent than ever, largely in consequence of the way in which the popes at Avignon had made themselves the allies and tools of the kings of France. The Statutes of Praemunire and Provisors had been passed a few years before (1351-1365) to check papal pretensions. There was a strong anti-clerical party, whose practical aim was to fill the coffers of the state by large measures of disendowment and confiscations of Church property. The intellectual head

of this party at the time was John Wycliffe, a famous Oxford teacher, and for some time master of Balliol College. In his lectures and sermons he was always laying stress on the unsatisfactory state of the national church and the infamous corruption of the papacy. The doctrine which first made him famous, and commended him to all members of the anti-clerical faction, was that unworthy holders of spiritual endowments ought to be dispossessed of them, because “dominion” should depend on “grace.” Churchmen, small and great, as he held, had been corrupted, because they had fallen away from the early Christian idea of apostolic poverty. Instead of discharging their proper functions, bishops and abbots had become statesmen or wealthy barons, and took no interest in anything save politics. The monasteries, with their vast possessions, had become corporations of landlords, instead of associations for prayer and good works. The papacy, with its secular ambitions, and its insatiable greed for money, was the worst abuse of all. A bad pope, and most popes were bad, was the true Antichrist, since he was always overruling the divine law of the scriptures by his human ordinances. Every man, as Wycliffe taught—using the feudal analogies of contemporary society—is God’s tenant-in-chief, directly responsible for his acts to his overlord; the pope is always thrusting himself in between, like a mesne-tenant, and destroying the touch between God and man by his interference. Sometimes his commands are merely presumptuous; sometimes—as when, for example, he preaches crusades against Christians for purely secular reasons—they are the most horrible form of blasphemy. Wycliffe at a later period of his life developed views on doctrinal matters, not connected with his original thesis about the relations between Church and State, and foreshadowed most of the leading tenets of the reformers of the 16th century. But in 1376-1377 he was known merely as the outspoken critic of the “Caesarean clergy” and the papacy. He had a following of enthusiastic disciples at Oxford, and scattered adherents both

among the burghers and the knighthood, the nucleus of the party that afterwards became famous as the Lollards. But they had not yet differentiated themselves from the body of those who were merely anti-clerical, without being committed to any theories of religious reform.

Since Wycliffe was, above all things, the enemy of the political clergy of high estate, and since those clergy were precisely the leaders of the attack upon John of Gaunt, it came to pass that hatred of a common foe drew the duke and the doctor together for a space. There was a strange alliance between the advocate of clerical reform, and the practical exponent of secular misgovernment. The only point on which they were agreed was that it would be highly desirable to strip the Church of most of her endowments, in order to fill the exchequer of the state. Lancaster hoped to use Wycliffe as his mouthpiece against his enemies; Wycliffe hoped to see Lancaster disendowing bishops and monasteries and defying the pope. Hence the attempt of the political bishops to get Wycliffe condemned as a heretic became inextricably mixed with the attempt of the constitutional party, to which the bishops belonged, to evict the duke from his position of first councillor to the king and director of the policy of the realm.

The struggle began in the parliament of 1376, called by the anti-Lancastrian party the “Good Parliament.” Headed by the earl of March, William Courtenay, bishop of London, and Sir Peter de la Mare, the daring speaker of the House of Commons, the duke’s enemies began their campaign by accusing the king’s ministers and favourites of corruption. Here they were on safe ground, for the misdeeds of Lord Latimer—the king’s chamberlain, Lord Neville—his steward, Richard Lyons—his financial agent, and Alice Perrers—his greedy and shameless mistress, had been so flagrant that it was hard for Lancaster to defend

John of Gaunt and Wycliffe.

The “Good Parliament.”

Overthrow of the king’s favourites.

them. In face of the evidence brought forward the old king and his son had to abandon their friends to the angry parliament. Latimer and Lyons were condemned to imprisonment and forfeiture of their goods, Alice Perrers was banished from court. Encouraged by this victory, the parliament passed on to constitutional reforms, forced on the king a council of twelve peers nominated by themselves, who were to exercise over him much the same

Constitutional reforms.

control that the lords ordainers had held over his father, and compelled him to assent to a long list of petitions which, if properly carried out, would have removed most of the practical grievances of the nation. Having so done they dispersed, not guessing that Lancaster had yielded so easily because he was set on undoing their work the moment that they were gone.

This, however, was the case; after the shortest of intervals the duke executed something like a *coup d'état*. In his father's name he released Latimer and Lyons, dismissed the council of twelve, imprisoned Peter de la

John of Gaunt re-establishes the royal power.

Mare, sequestered the temporalities of Bishop Wykeham, and sent the earl of March out of the realm. Alice Perrers took possession again of the king, and all his corrupt courtiers came back to him. A royal edict declared the statutes of the "Good Parliament" null and void. Lancaster would never have dared to defy public opinion and challenge the constitutional party to a life-and-death struggle in this fashion, had it not

Death of the Black Prince.

been that his brother the prince of Wales had died while the "Good Parliament" was sitting; thus the opposition had been deprived of their strongest support. The prince's heir was a mere child, Richard of Bordeaux, aged only nine. It was feared by some that Duke John might carry his ambitions so far as to aim at the throne—he could do what he pleased with his doting father, and flaws might have been picked in the marriage of the Black Prince and his wife Joan of Kent, who were cousins, and therefore within

the “prohibited degrees.” As a matter of fact Lancaster was a more honest man than his enemies suspected; he hastened to acknowledge his little nephew’s rights, acknowledged him as prince of Wales, and introduced him as his grandfather’s heir before the parliament of January 1377.

The character of this body was a proof of the great strength of the royal name and power even in days when parliamentary institutions had been long in existence, and were supposed to act as a check on the crown. To legalize his arbitrary acts Duke John dared to summon the estates together, after he had issued stringent orders to the sheriffs to exclude his enemies and return his friends when the members for the Commons were chosen. He obtained a house of the complexion that he desired, and having a strong following among the peers actually succeeded in undoing all the work of 1376. No sign of trouble or rebellion followed, the opposition being destitute of a fighting leader. March had left the realm; Bishop Wykeham showed an unworthy subservience by suing for pardon through the mediation of Alice Perrers. Only Bishop Courtenay refused to be terrorized; he chose this moment to open a campaign against the duke’s ally, John Wycliffe, who was arraigned for heresy before the ecclesiastical courts. His trial, however, ended in a scandalous fiasco. Lancaster and his friend Lord Percy came to St Paul’s, and so insulted and browbeat the bishop, that the proceedings degenerated into a riot, and reached no conclusion (Feb. 19). Courtenay dared not recommence them, and Lancaster ruled as he pleased

Death of Edward III. till his father, five months later, died. Deserted by his worthless courtiers and plundered on his death-bed by his greedy mistress, the victor of Sluys and Crécy sank into an unhonoured grave. It was a relief to the nation that he was gone. Yet there was a general feeling that chaos might follow. If Lancaster should justify the malevolent rumours that were afloat by making a snatch at the crown, the last state of the realm might be worse than the first.

Duke John, however, was a better man than his enemies supposed. He was loyal to the crown according to his lights, and showed a chivalrous self-denial that had hardly been expected from him. He saluted his little

Richard II. nephew as king without a moment's hesitation, though he was aware that with the commencement of a new reign his own dictatorship had come to an end. The princess of Wales, in whose hands the young Richard II. was placed, had never been his friend, and was surrounded by adherents of her deceased husband, who belonged to the constitutional party. Disarmed, however, by the duke's frank submission they wisely resolved not to push him to extremes, and the first council which was appointed to act for the new monarch was a sort of "coalition ministry" in which Lancaster's followers as well as his foes were represented. For that very reason it was lacking in strength and unity of purpose, and proved lamentably incapable of dealing with the problems of the moment.

Of these the most pressing was the renewal of the French war; the truce had expired a few weeks before the death of Edward III., and the new reign began with a series of military disasters. The French
The French war. fleet landed in great force in Sussex, burnt Rye and Hastings and routed the shire levies. Simultaneously the seneschal of Aquitaine was defeated in battle, and Bergerac, the last great town in the inland which remained in English hands, was captured by the duke of Anjou.

The first parliament of Richard II. met in October under the most gloomy auspices. It showed its temper by taking up the work of the "Good Parliament." Lancaster's adherents were turned out of the council; the
First parliament of Richard. Reforms. persons condemned in 1376 were declared incapable of serving in it; Alice Perrers was sentenced to banishment and forfeiture, and the little king was made

to repudiate the declaration whereby his uncle had quashed the statutes of 1376 by declaring that “no act of parliament can be repealed save with parliament’s consent.” John of Gaunt bowed before the storm, retired to his estates, and for some time took little part in affairs of state.

Unfortunately the new government proved wholly unable either to conduct the struggle with France successfully or to pluck up courage to make a humiliating peace—the only wise course before them. The nation was too proud to accept defeat, and persevered in the unhappy attempt to reverse the fortunes of war. An almost unbroken series of petty disasters marked the first three years of King Richard. The worst was the failure of the last great devastating raid which the English launched against France. Thomas of Woodstock, the youngest son of Edward III., took a powerful army to Calais, and marched through Picardy and Champagne, past Orleans, and finally to Rennes in Brittany, but accomplished nothing save the ruin of his own troops and the wasting of a vast sum of money. Meanwhile taxation was heavy, the whole nation was seething with discontent, and—what was worst—no way was visible out of the miserable situation; ministers and councillors were repeatedly displaced, but their successors always proved equally incompetent to find a remedy.

This period of murmuring and misery culminated in the Great Revolt of 1381, a phenomenon whose origins must be sought in the most complicated causes, but whose outbreak was due in the main to a general feeling that the

The Great Revolt of 1381.

realm was being misgoverned, and that some one must be made responsible for its maladministration. It was actually provoked by the unwise and unjust poll-tax of one shilling a head on all adult persons, voted by the parliament of Northampton in November 1380. The last poll-tax had been carefully graduated on a sliding scale so as to press lightly on the poorest classes; in this one a shilling for each person had to be exacted from every township,

though it was provided that “the strong should help the weak” to a certain extent. But in hundreds of villages there were no “strong” residents, and the poorest cottager had to pay his three groats. The peasantry defended themselves by the simple device of understating the numbers of their families; the returns made it appear that the adult population of England had gone down from 1,355,000 to 896,000 since the poll-tax of 1379. Thereupon the government sent out commissioners to revise the returns and exact the missing shillings. Their appearance led to a series of widespread and preconcerted riots, which soon spread over all England from the Wash to the Channel, and in a few days developed into a formidable rebellion. The poll-tax was no more than the spark which fired the mine; it merely provided a good general grievance on which all malcontents could unite. In the districts which took arms two main causes of insurrection may be differentiated; the first and the most widespread was the discontent of the rural population with the landowners and the Statute of Labourers. Their aim was to abolish all villein-service, and to wring from their lords the commutation of all manorial customs and obligations for a small rent—fourpence an acre was generally the sum suggested. But there was a simultaneous outbreak in many urban districts. In Winchester, London, St Albans, Canterbury, Bury, Beverley, Scarborough and many other places the rioting was as violent as in the countryside. Here the object of the insurgents was in most cases to break down the local oligarchy, who engrossed all municipal office and oppressed the meaner citizens; but in less numerous instances their end was to win charters from lords (almost always ecclesiastical lords) who had hitherto refused to grant them. But it must not be forgotten that there was also a tinge of purely political discontent about the rising; the insurgents everywhere proclaimed their intention to destroy “traitors,” of whom the most generally condemned were the chancellor, Archbishop Sudbury, and the treasurer, Sir Robert Hailes, the two persons most responsible for the levy of the poll-tax. Often the

rebels added the name of John of Gaunt to the list, looking upon him as the person ultimately responsible for the mismanagement of the war and the misgovernment of the realm. It must be added that though the leaders of the revolt were for the most part local demagogues, the creatures of the moment, there were among them a few fanatics like the “mad priest of Kent,” John Ball, who had long preached socialist doctrines from the old text:

“When Adam delved and Eve span
Who was then the gentleman?”

and clamoured for the abolition of all differences of rank, status and property. Though many clerics were found among the rebels, it does not seem that any of them were Wycliffites, or that the reformer’s teaching had played any part in exciting the peasantry at this time. No contemporary authority ascribes the rising to the Lollards.

The riots had begun, almost simultaneously in Kent and Essex: from thence they spread through East Anglia and the home counties. In the west and north there were only isolated and sporadic outbreaks, confined to a few turbulent towns. In the countryside the insurrection was accompanied by wholesale burnings of manor-rolls, the hunting down of unpopular bailiffs and landlords, and a special crusade against the commissioners of the poll-tax and the justices who had been enforcing the Statute of Labourers. There was more arson and blackmailing than murder, though some prominent persons perished, such as the judge, Sir John Cavendish, and the prior of Bury. In many regions the rising was purely disorderly and destitute of organization. This was not, however, the case in Kent and

Wat Tyler.

London. The mob which had gathered at Maidstone and Canterbury marched on the capital many thousands

strong, headed by a local demagogue named Wat Tyler, whom they had chosen as their captain; his most prominent lieutenant was the preacher John Ball. They announced their intention of executing all “traitors,” seizing the person of the king, and setting up a new government for the realm. The royal council and ministers showed grievous incapacity and cowardice—they made no attempt to raise an army, and opened negotiations with the rebels. While these were in progress the malcontent party in London, headed by three aldermen, opened the gates of the city to Tyler and his horde. They poured in, and, joined by the London mob, sacked John of Gaunt’s palace of the Savoy, the Temple, and many other buildings, while the ministers took refuge with the young king in the Tower. It was well known that not only the capital and the neighbouring counties but all eastern England was ablaze, and the council in despair sent out the young king to parley with Tyler at Mile End. The rebels at first demanded no more than that Richard should declare villeinage abolished, and that all feudal dues and services should be commuted for a rent of fourpence an acre. This was readily conceded, and charters were drawn up to that effect and sealed by the king. But, while the meeting was still going on, Tyler went off to the Tower with a part of his horde, entered the fortress unopposed, and murdered the unhappy chancellor, Archbishop Sudbury, the treasurer, and several victims more. This was only the beginning of massacre. Instead of dispersing with their charters, as did many of the peasants, Tyler and his confederates ran riot through London, burning houses and slaying lawyers, officials, foreign merchants and other unpopular persons. This had the effect of frightening the propertied classes in the city, who had hitherto observed a timid neutrality, and turned public opinion against the insurgents. Next day the rebel leaders again invited the king to a conference, in the open space of Smithfield, and laid before him a programme very different from that propounded at Mile End. Tyler demanded that all differences of rank and status should cease, that all

church lands should be confiscated and divided up among the laity, that the game laws should be abolished, and that “no lord should any longer hold lordship except civilly.” Apparently he was set on provoking a refusal, and thus getting an excuse for seizing the person of the king. But matters went otherwise than he had expected; when he waxed unmannerly, and unsheathed his dagger to strike one of the royal retinue who had dared to answer him back, the mayor of London, William Walworth, drew his cutlass and cut him down. The mob strung their bows, and were about to shoot down the king and his suite. But Richard—who showed astounding nerve and presence of mind for a lad of fourteen—cantered up to them shouting that he would be their chief and captain and would give them their rights. The conference was continued, but, while it was in progress, the mayor brought up the whole civic militia of London, who had taken arms when they saw that the triumph of the rebels meant anarchy, and rescued the king out of the hands of the mob. Seeing such a formidable body of armed men opposed to them, the insurgents dispersed—without their reckless and ready-witted captain they were helpless (June 15, 1381).

This was the turning-point of the rebellion; within a few days the council had collected a considerable army, which marched through Essex scattering such rebel bands as still held together. Kent was pacified at the same time; and Henry Despenser, the warlike bishop of Norwich, made a separate campaign against the East Anglian insurgents, defeating them at the skirmish of North Walsham, and hanging the local leader Geoffrey Lister, who had declared himself “king of the commons” (June 25, 1381). After this there was nothing remaining save to punish the leaders of the revolt; a good many scores of them were hanged, though the vengeance exacted does not seem to have been greater than was justified by the numerous murders and burnings of which they had been guilty; the fanatic Ball was, of course, among the first to suffer. On the 30th of August the rough methods of

Suppression of the rising.

martial law were suspended, and on the 14th of December the king issued an amnesty to all save certain leaders who had hitherto escaped capture. A parliament had been called in November; it voted that all the charters given by the king at Mile End were null and void, no manumissions or grants of privileges could have been valid without the consent of the estates of the realm, “and for their own parts they would never consent to such, of their own free will nor otherwise, even to save themselves from sudden death.”

The rebellion, therefore, had failed either to abolish villeinage in the countryside or to end municipal oligarchy in the towns, and many lords took the opportunity of the time of reaction in order to revindicate old claims over their bondsmen. Nevertheless serfdom continued to decline all through the latter years of the 14th century, and was growing obsolete in the 15th.

***Decline of the
manorial system.***

This, however, was the result not of the great revolt of 1381, but of economic causes working out their inevitable progress. The manorial system was already doomed, and the rent-paying tenant farmers, who had begun to appear after the Black Death, gradually superseded the villeins as the normal type of peasantry during the two generations that followed the outbreak that is generally known as “Wat Tyler’s rebellion.”

King Richard, though he had shown such courage and ready resources at Smithfield, was still only a lad of fourteen. For three years more he was under the control of tutors and governors appointed by his council. Their

***Wycliffe and the
Lollards.***

rule was incompetent, but the chief danger to the realm had passed away when both Charles V. of France and his great captain Du Guesclin died in 1380. The new king at Paris was a young boy, whose councils were swayed by a knot of quarrelsome and selfish uncles; the vigour of the attack on England began to slacken. Nevertheless there was no change in the fortune of war, which continued to be disastrous, if on a smaller scale than before. The chief

domestic event of the time was the attack of the clerical party on Wycliffe and his followers. The reformer had begun to develop dogmatic views, in addition to his old theories about the relations of Church and State. When he proceeded to deny the doctrine of transubstantiation, to assert the all-sufficiency of the Scriptures as a rule of life, to denounce saint-worship, pilgrimages, and indulgences, and to declare the pope to be Antichrist, he frightened his old supporter John of Gaunt and the politicians of the anti-clerical clique. They ceased to support him, and his followers became a sect rather than a political party. He and his disciples were expelled from Oxford, and ere long the bishops began to arrest and try them for heresy. Wycliffe himself, strange to say, was not molested. He survived to publish his translation of the Bible and to die in peace in December 1383. But his followers were being hunted, and imprisoned or forced to recant, all through the later years of Richard II. Yet they continued to multiply, and exercised at times considerable influence; though they had few supporters among the baronage, yet among the lesser gentry and still more among the burgher class and in the universities they were strong. It was not till the next reign, when the bishops succeeded in calling in the crown to their aid, and passed the statute *De heretico comburendo*, that Lollardy ceased to flourish.

King Richard meanwhile had grown to man's estate, and had resolved to take the reins of power into his own hands. He was wayward, high-spirited and self-confident. He wished to restore the royal powers which had slipped into the hands of the council and parliament during his minority, and had small doubts of his capacity to restore it. His chosen instruments were two men whom his enemies called his "favourites," though it was absurd to apply the name either to an elderly statesman like Michael de la Pole, who was made chancellor in 1384, or to Robert de Vere, earl of Oxford, a young noble of the oldest lineage, who was the king's other confidant. Neither of them was an upstart, and both, the one from his experience and the other from his

Richard's personal rule.

high station, were persons who might legitimately aspire to a place among the advisers of the king. But Richard was tactless; he openly flouted his two uncles, John of Gaunt and Thomas of Woodstock, and took no pains to conciliate either the baronage or the commons. His autocratic airs and his ostentatious preference for his confidants—of whom he made the one earl

Impeachment of the king's "favourites."

of Suffolk and the other marquess of Dublin—provoked both lords and commons. Pole was impeached on a groundless charge of corruption and condemned, but Richard at once pardoned him and restored him to favour. De Vere was banished to Ireland, but at his master's desire omitted to leave the realm. The contemptuous disregard for the will of parliament which the king displayed brought on him a worse fate than he deserved. His youngest uncle, Thomas of Woodstock, duke of Gloucester, was a designing and ambitious prince who saw his own advantage in embittering the strife between Richard and his parliament. John of Gaunt having departed to Spain, where he was stirring up civil strife in the name of his wife, the heiress of Peter the Cruel, Gloucester put himself at the head of the opposition. Playing the part of the demagogue, and exaggerating all his nephew's petulant acts and sayings, he declared the constitution in danger, and took arms at the head of a party of peers, the earls of Warwick, Arundel and Nottingham, and Henry, earl of Derby, the son of John of Gaunt, who

The "lords appellant."

called themselves the lords appellant, because they were ready to "appeal" Richard's councillors of treason. Public opinion was against the king, and the small army which his confidant De Vere raised under the royal banner was easily scattered by Gloucester's forces at the rout of Radcot Bridge (Dec. 20, 1387). Oxford and Suffolk succeeded in escaping to France, but the king and the rest of his adherents fell into the hands of the lords appellant. They threatened for a moment to depose him, but finally placed him under the control of a council and ministers chosen by themselves, and to put him

***Execution of the
king's friends.***

in a proper state of terror, executed Lord Beauchamp, the judge, Sir Robert Tressilian, and six or seven more of his chief friends. This was a piece of gratuitous cruelty, for the king, though wayward and unwise, had done nothing to justify such treatment.

***Richard rules
constitutionally.***

To the surprise of the nation Richard took his humiliation quietly. But he was merely biding his time; he had sworn revenge in his heart, but he was ready to wait long for it. For the next nine years he appeared an unexceptionable sovereign, anxious only to conciliate the nation and parliament. He got rid of the ministers imposed upon him by the lords appellant, but replaced them by Bishop Wykeham and other old statesmen against whom no objection could be raised. He disarmed Gloucester by making a close alliance with his elder uncle John of Gaunt, who had been absent in Spain during the troubles of 1387-1388, and was displeased at the violent doings of his brother. His rule was mild and moderate, and he succeeded at last in

Peace with France.

freeing himself from the incubus of the French war—the source of most of the evils of the time, for it was the heavy taxation required to feed this struggle which embittered all the domestic politics of the realm. After two long truces, which filled the years 1390-1395, a definitive peace was at last concluded, by which the English king kept Calais and the coast-strip of Guienne, from Bordeaux to Bayonne, which had never been lost to the enemy. To confirm the peace, he married Isabella, the young daughter of Charles VI. (Nov. 1396); he had lost his first wife, the excellent Anne of Bohemia, two years before.

The king seemed firmly seated on his throne—so much so that in 1395 he had found leisure for a long expedition to Ireland, which none of his ancestors had visited since King John. He compelled all the native princes

***Richard reduces
Ireland to obedience.***

to do him homage, and exercised the royal authority in such a firm manner as had never before been known in the island. But those who looked forward to quiet and prosperous times both for Ireland and for England were destined to be undeceived. In 1397 Richard carried out an extraordinary and unexpected *coup d'état*, which he had evidently premeditated for many years. Having lived down his unpopularity, and made himself many powerful friends, he resolved to take his long-deferred revenge on Gloucester and the other lords

***His revenge on
Gloucester and the
lords appellant.***

appellant. He trumped up a vain story that his uncle was once more conspiring against him, arrested him, and sent him over to Calais, where he was secretly murdered in prison. At the same time Gloucester's two chief confederates of 1387, the earls of Arundel and Warwick, were tried and sentenced to death: the former was actually executed, the latter imprisoned for life. The other two lords appellant, Mowbray, duke of Norfolk,² and Henry of Bolingbroke, the son of John of Gaunt, were dealt with a year later. Richard pretended to hold them among his best friends,

***Banishment of
Bolingbroke and
Norfolk.***

but in 1398 induced Bolingbroke to accuse Norfolk of treasonable language. Mowbray denied it, and challenged his accuser to a judicial duel. When they were actually facing each other in the lists at Coventry, the king forbade them to fight, and announced that he banished them both—Henry for six years, Norfolk for life.

Having thus completed his vengeance on those who had slain his friends ten years before—their respective punishments were judiciously adapted to their several responsibilities in that matter—Richard began to behave in an arbitrary and unconstitutional fashion. He evidently thought that no one would dare to lift a hand against him after the examples that he had just made. This might have been so, if he had continued to rule as cautiously as during the

***Arbitrary rule of
Richard.***

time when he was nursing his scheme of revenge. But now his brain seemed to be turned by success—indeed his wild language at times seemed to argue that he was not wholly sane. He declared that all pardons issued since 1387 were invalid, and imposed heavy fines on persons, and even on whole shires, that had given the lords appellant aid. He made huge forced loans, and employed recklessly the abuse of purveyance. He browbeat the judges on the bench, and kept many persons under arrest for indefinite periods without a trial. But the act which provoked the nation most was that he terrified the parliament which met at Shrewsbury in 1398 into voting away its powers to a small committee of ten persons, all creatures of his own. This body he used as his instrument of government, treating its assent as equivalent to that of a whole parliament in session. There seemed to be an end to the constitutional liberties of England.

Such violence, however, speedily brought its own punishment. In 1399 Richard sailed over to Ireland to put down a revolt of the native princes, who had defeated and slain the earl of March, his cousin and their lord-

Second expedition to Ireland.

lieutenant. While he was absent Henry of Bolingbroke landed at Ravenspur with a small body of exiles and mercenaries. He pretended that he had merely come to

claim the estates and title of his father John of Gaunt, who had died a few months before. The adventurer was at once joined by the earl of

Henry of Bolingbroke lands in England.

Northumberland and all the lords of the north; the army which was called out against him refused to fight, and joined his banner, and in a few days he was master of all England (July 1399). King Richard, hurrying back

from Ireland, landed at Milford Haven just in time to learn that the levies raised in his name had dispersed or joined the enemy. He still had with him a considerable force, and might have tried the fortune of war with some prospect of success. But his conduct seemed dictated by absolute infatuation; he might have fought, or he might have fled to his father-in-law

Flight of Richard.

in France, if he judged his troops untrustworthy. Instead of taking either course, he deserted his army by night, and fled into the Welsh mountains, apparently with the intention of collecting fresh adherents from North Wales and Cheshire, the only regions where he was popular. But Bolingbroke had already seized Chester, and was marching against him at the head of such a large army that the countryside refused to stir. After skulking for three weeks in the hills, Richard surrendered to his cousin at Flint, on the 19th of August 1399, having previously stipulated that if he consented to abdicate

Surrender and abdication of Richard.

his life should be spared, his adherents pardoned, and an honourable livelihood assured to him. This surrender put the crown to his career of folly. He should have known that Henry would never feel safe while he survived, and that no oaths could be trusted in such circumstances. At all costs he should have endeavoured to escape abroad, a course that was still in his power.

Richard carried out his part of the bargain; he executed a deed of abdication in which he owned himself “insufficient and useless.” It was read to a parliament summoned in his name on the 30th of September, and the throne was declared vacant. There was small doubt as to the personality of his successor; possession is

Accession of Henry IV.

nine points of the law, and Henry of Bolingbroke for the moment had the whole nation at his back. His hereditary title indeed was imperfect; though he was the eldest descendant of Edward III. in the male line after Richard, yet there was a whole family which stood between him and the crown. From Lionel of Clarence, the second son of Edward III. (John of Gaunt was only the third) descended the house of March, and the late king had proclaimed that Edmund of March would be his heir if he should die childless. Fortunately for Bolingbroke the young earl was only six years of age; not a voice was raised in his favour in parliament. When

Henry stood forward and claimed the vacant throne by right of conquest and also by right of descent, no one gainsaid him. Lords and commons voted that they would have him for their king, and he was duly crowned on the 13th of October 1399. No faith was kept with the unhappy Richard; he was placed in close and secret confinement, and denied the ordinary comforts of life. Moreover the adherents for whose safety he had stipulated were at once impeached of treason.

Henry of Lancaster came to the throne, for all intents and purposes as an elective king; he had to depend for the future on his ability to conciliate and satisfy the baronage and the commons by his governance. For by his usurpation he had sanctioned the theory that kings can be deposed for incapacity and maladministration. If he himself should become unpopular, all the arguments that he had employed against Richard might be turned against himself. The prospect was not reassuring; his revenue was small, and parliament would certainly murmur if he tried to increase it. The late king was not without partisans and admirers. There was a considerable chance that the French king might declare war—nominally to avenge his son-in-law, really to win Calais and Bordeaux. Of the partisans who had placed Henry on the throne many were greedy, and some were wholly unreasonable. But he trusted to his tact and his energy, and cheerfully undertook the task of ruling as a constitutional king—the friend of the parliament that had placed him on the throne.

The problem proved more weary and exhausting than he had suspected. From the very first his reign was a time of war, foreign and domestic, of murmuring, and of humiliating shifts and devices. Henry commenced his career by granting the adherents of Richard II. their lives, after they had been first declared guilty of treason and had been deprived of the titles, lands and

Position of the new king.

Rebellion of the earls.

endowments given them by the late king. Their reply to this very modified show of mercy was to engage in a desperate conspiracy against him. If they had waited till his popularity had waned, they might have had some chance of success, but in anger and resentment they struck too soon. The earls of Kent and Huntingdon, close kinsmen of Richard on his mother's side, the earl of Salisbury—a noted Lollard—and the lords Despenser and Lumley took arms at midwinter (Jan. 4, 1400) and attempted to seize the king at Windsor. They captured the castle, but Henry escaped, raised the levies of London against them, and beat them into the west. Kent and Salisbury were slain at Cirencester, the others captured and executed with many of their followers. Their rebellion sealed the fate of the master in whose cause they had risen. Henry and his counsellors were determined that there should be

Murder of Richard. no further use made of the name of the “lawful king,” and Richard was deliberately murdered by privation—insufficient clothing, food and warmth—in his dungeon at Pontefract Castle (Feb. 17, 1400). It is impossible not to pity his fate. He had been wayward, unwise and occasionally revengeful; but his provocation had been great, and if few tyrants have used more violent and offensive language, few have committed such a small list of actual crimes. It was a curious commentary on Henry's policy, that Richard, even when dead, did not cease to give him trouble. Rumour got abroad, owing to the secrecy of his end, that he was not really dead, and an impostor long lived at the Scottish court who claimed to be the missing king, and was recognized as Richard by many malcontents who wished to be deceived.

The rising of the earls was only the first and the least dangerous of the trials of Henry IV. Only a few months after their death a rebellion of a far more formidable sort broke out in Wales—where Richard II. had been popular, and the house of March, his natural heirs, held large estates. The leader was a gentleman named Owen Glendower, who had the blood of the ancient kings of

***Welsh rising under
Owen Glendower.***

Gwynedd in his veins. Originally he had taken to the hills as a mere outlaw, in consequence of a quarrel with one of the marcher barons; but after many small successes he began to be recognized as a national leader by his countrymen, and proclaimed himself prince of Wales. The king marched against him in person in 1400 and 1401, but Glendower showed himself a master of guerrilla warfare; he refused battle, and defied pursuit in his mountains, till the stores of the English army were exhausted and Henry was forced to retire. His prestige as a general was shaken, and his treasury exhausted by these fruitless irregular campaigns.

Meanwhile worse troubles were to come. The commons were beginning to murmur at the king's administration; they had obtained neither the peace nor the diminished taxation which they had been promised. Moreover, among some classes at least, he had won desperate hatred by his policy in matters of religion. One of his chief supporters in 1399 had been Archbishop Arundel, an old enemy of Richard II. and brother to the earl who had been beheaded in 1397. Arundel was determined to extirpate the Lollards, and used his influence on the king to induce him to frame and pass through parliament the detestable statute *De heretico comburendo*, which recognized death by burning at the stake as the penalty of heresy, and bound the civil authorities to arrest, hand over to the church courts, and receive back for execution, all contumacious Lollards. Henry himself does not seem to have been particularly enthusiastic for persecution, but in order to keep the church party on his side he was forced to sanction it. The burnings began with that of William Sawtré, a London vicar, on the 2nd of March 1401; they continued intermittently throughout the reign. The victims were nearly all clergy or citizens; the king shrank from touching the Lollards of higher rank, and even employed in his service some who were notoriously tainted with heresy.

Discontent of the commons.

Statute De heretico comburendo.

External troubles continued to multiply during Henry's earlier years. The Scots had declared war, and there was every sign that the French would soon follow suit, for the king's failure to crush
War with Scotland. Glendower had destroyed his reputation for capacity.

The rebel achieved his greatest success in June 1402, when he surprised and routed the whole levy of the marcher lords at Bryn G'las, between Pilleth and Knighton, capturing (among many other prisoners) Sir Edmund Mortimer, the uncle and guardian of the young earl of March, whom all malcontents regarded as the rightful monarch of England. A few months after the king's fortune seemed to take a turn for the

better, when the Scots were defeated at Homildon Hill
Battle of Homildon Hill. by the earl of Northumberland and his son Henry

Percy, the celebrated "Hotspur." But this victory was to be the prelude to new dangers: half the nobility of Scotland had been captured in the battle, and Northumberland intended to fill his coffers with their ransoms; but the king looked upon them as state prisoners and announced his intention of taking them out of the earl's hands. Northumberland was a greedy and unscrupulous Border chief, who regarded himself as entitled to exact whatever he chose from his master, because he had been the first to join him at his landing in 1399, and had lent him a consistent support ever since. He had been amply rewarded by grants of land and money, but was not yet satisfied. In indignation at the first refusal that he had met, the earl conspired with Glendower to raise rebellion

in the name of the rightful heirs of King Richard, the
Conspiracy of Northumberland with Glendower. house of March. The third party in the plot was Sir Edmund Mortimer, Glendower's captive, who was easily persuaded to join a movement for the aggrandizement of his own family. He married Owen's daughter, and became his trusted lieutenant. Northumberland also enlisted the services of

his chief Scottish prisoner, the earl of Douglas, who promised him aid from beyond Tweed.

In July 1403 came the crisis of King Henry's reign; while Glendower burst into South Wales, and overran the whole countryside as far as Cardiff and Carmarthen, the Percies raised their banner in the North. The old earl

Insurrection in the north and west.

set himself to subdue Yorkshire; his son Hotspur and the earl of Douglas marched south and opened communication with the Welsh. All Cheshire, a district always faithful to the name of Richard II., rose in their favour, and they were joined by Hotspur's uncle, the earl of Worcester. They then advanced towards Shrewsbury, where they hoped that Glendower might meet them. But long ere the Welsh could appear, King Henry was on the spot; he brought the rebels to action at Hatley Field, just outside the gates of

Defeat of the rebels at Shrewsbury.

Shrewsbury, and inflicted on them a complete defeat, in which his young son Henry of Monmouth first won his reputation as a fighting man. Hotspur was slain, Worcester taken and beheaded, Douglas desperately wounded (July 23, 1403). On receiving this disastrous news the earl of Northumberland sued for pardon; the king was unwise enough to grant it, merely punishing him by fining him and taking all his castles out of his hands.

By winning the battle of Shrewsbury Henry IV. had saved his crown, but his troubles were yet far from an end. The long-expected breach with France had at last come to pass; the duke of Orleans, without any

War with France renewed.

declaration of war, had entered Guienne, while a French fleet attacked the south-west of England, and burnt Plymouth. Even more menacing to the king's prosperity was the news that another squadron had appeared off the coast of Wales, and landed stores and succours for Glendower, who had now conquered the whole principality save a few isolated fortresses. The drain of

money to meet this combination of foreign war and domestic rebellion was more than the king's exchequer could meet. He was driven into unconstitutional ways of raising money, which recalled all the misdoings of his predecessor. Hence came a series of rancorous quarrels with his parliaments, which grew more disloyal and clamorous at every new session. The cry was raised that the taxes were heavy not because of the French or Welsh wars, but because Henry lavished his money on favourites and unworthy dependents. He was forced to bow before the storm, though the charge had small foundation: the greater part of his household was dismissed, and the war-taxes were paid not to his treasurer but to a financial committee appointed by parliament.

Parliament assumes control of the finances.

It was not till 1405 that the worst of Henry's troubles came to an end. This year saw the last of the convulsions that threatened to overturn him,—a rising in the North headed by the old earl of Northumberland, by Richard Scrope, archbishop of York, and by Thomas Mowbray the earl marshal. It might have proved even more dangerous than the rebellion of 1403, if Henry's unscrupulous general Ralph, earl of Westmorland, had not lured Scrope and Mowbray to a conference, and then arrested them under circumstances of the vilest treachery. He handed them over to the king, who beheaded them both outside the gate of York, without any proper trial before their peers. Northumberland thereupon fled to Scotland without further fighting. He remained in exile till January 1408, when he made a final attempt to raise rebellion in the North, and was defeated and slain at the battle of Bramham Moor.

Rising of 1405 in the North.

Long before this last-named fight Henry's fortunes had begun to mend. Glendower was at last checked by the untiring energy of the king's eldest son, Henry of Monmouth, who had been given charge of the Welsh war.

***Suppression of the
Welsh rising.***

Even when French aid was sent him, the rebel chief proved unable to maintain his grip on South Wales. He was beaten out of it in 1406, and Aberystwyth Castle, where his garrison made a desperate defence for two years, became the southern limit of his dominions. In the end of 1408 Prince Henry captured this place, and six weeks later Harlech, the greatest stronghold of the rebels, where Sir Edmund Mortimer, Owen's son-in-law and most trusted captain, held out till he died of starvation. From this time onwards the Welsh rebellion gradually died down, till Owen relapsed into the position from which he had started, that of a guerrilla chief maintaining a predatory warfare in the mountains. From 1409 onward he ceased to be a public danger to the realm, yet so great was his cunning and activity that he was never caught, and died still maintaining a hopeless rebellion so late as 1416.

The French war died down about the same time that the Welsh rebellion became insignificant. Louis of Orleans, the head of the French war party, was murdered by his cousin John, duke of Burgundy, in November 1407,

***End of the French
and Scottish wars.***

and after his death the French turned from the struggle with England to indulge in furious civil wars. Calais, Bordeaux and Bayonne still remained safe under the English banner. The Scottish war had ended even earlier. Prince James, the heir of Robert III., had been captured at sea in 1406. The duke of Albany, who became regent when Robert died, had no wish to see his nephew return, and concluded a corrupt agreement with the king of England, by which he undertook to keep Scotland out of the strife, if Henry would prevent the rightful heir from returning to claim his own.³ Hence Albany and his son ruled at Edinburgh for seventeen years, while James was detained in an honourable captivity at Windsor.

From 1408 till his death in 1413 Henry was freed from all the dangers which had beset his earlier years. But he got small enjoyment from the

crown which no longer tottered on his brow. Soon after his execution of Archbishop Scrope he had been smitten with a painful disorder, which his enemies declared to be the punishment inflicted on him by heaven for the prelate's death. It grew gradually worse, and developed into what his contemporaries called leprosy—a loathsome skin disease accompanied by bouts of fever, which sometimes kept him bedridden for months at a time. From 1409 onwards he became a mere invalid, only able to assert himself in rare intervals of convalescence. The domestic politics of the realm during his last five years were nothing more than a struggle between two court factions who desired to use his name. The one was headed by his son Henry, prince of Wales, and his half-brothers John, Henry and Thomas Beaufort, the base-born but legitimized children of John of Gaunt. The other was under the direction of Archbishop Arundel, the king's earliest ally, who had already twice served him as chancellor, and had the whole church party at his back. Arundel was backed by Thomas duke of Clarence, the king's second son, who was an enemy of the Beauforts, and not on the best terms with his own elder brother, the prince of Wales. The fluctuating influence of each party with the king was marked by the passing of the chancellorship from Arundel to Henry Beaufort and back again during the five years of Henry's illness. The rivalry between them was purely personal; both were prepared to go on with the "Lancastrian experiment," the attempt to govern the realm in a constitutional fashion by an alliance between the king and the parliament; both were eager persecutors of the Lollards; both were eager to make profit for England by interfering in the civil wars of the Orleanists and Burgundians which were now devastating France.

*Illness of the king.
Faction in the court.*

The prince of Wales, it is clear, gave much umbrage to his father by his eagerness to direct the policy of the crown ere yet it had fallen to him by inheritance. The king suspected, and with good reason, that his son wished him to abdicate, and resented the idea. It seems that a plot with such an

Prince Hal.

object was actually on foot, and that the younger Henry gave it up in a moment of better feeling, when he realized the evil impression that the unfilial act would make upon the nation. At this time the prince gave small promise of developing into the model monarch that he afterwards became. There was no doubt of his military ability, which had been fully demonstrated in the long Welsh wars, but he is reputed to have shown himself arrogant, contentious and over-given to loose-living. There were many, Archbishop Arundel among them, who looked forward with apprehension to his accession to the throne.

The two parties in the council of Henry IV. were agreed that it would be profitable to intervene in the wars of France, but they differed as to the side which offered the most advantages. Hence came action which seemed

English expedition to France.

inconsistent, if not immoral; in 1411, under the prince's influence, an English contingent joined the Burgundians and helped them to raise the siege of Paris. In 1412, by Arundel's advice, a second army under the duke of Clarence crossed the Channel to co-operate with the Orleanists. But the French factions, wise for once, made peace at the time of Clarence's expedition, and paid him 210,000 gold crowns to leave the country! The only result of the two expeditions was to give the English soldiery a poor opinion of French military capacity, and a notion that money was easily to be got from the distracted realm beyond the narrow seas.

On the 20th of March 1413, King Henry's long illness at last reached a fatal issue, and his eldest son ascended the throne. The new king had everything in his favour; his father had borne the odium of usurpation and

Accession of Henry V.

fought down the forces of anarchy. The memory of Richard II. had been forgotten; the young earl of March had grown up into the most harmless and

unenterprising of men, and the nation seemed satisfied with the new dynasty, whose first sovereign had shown himself, under much provocation, the most moderate and accommodating of constitutional monarchs.

Henry V. on his accession bade farewell to the faults of his youth. He seems to have felt a genuine regret for the unfilial conduct which had vexed his father's last years, and showed a careful determination to turn over a new leaf and give his enemies no scope for criticism. From the first he showed a sober and grave bearing; he reconciled himself to all his enemies,

His character. gave up his youthful follies, and became a model king according to the ideas of his day. There is no doubt that he had a strong sense of moral responsibility, and that he was sincerely pious. But his piety inspired him to redouble the persecution of the unfortunate Lollards, whom his father had harried only in an intermittent fashion; and his sense of moral responsibility did not prevent him from taking the utmost advantage of the civil wars of his unhappy neighbours of France.

The first notable event of Henry's reign was his assault upon the Lollards. His father had spared their lay chiefs, and contented himself with burning preachers or tradesmen. Henry arrested John Oldcastle, Lord Cobham, their leading politician, and had him tried and condemned to the stake. But

Persecution of the Lollards. Oldcastle escaped from the Tower before the day fixed for his execution, and framed a wild plot for slaying or deposing his persecutor. He planned to gather the Lollards of London and the Home Counties under arms, and to

Rising under Oldcastle. seize the person of the king—a scheme as wild as the design of Guy Fawkes or the Fifth Monarchy Men in later generations, for the sectaries were not strong enough to coerce the whole nation. Henry received early notice of the plot, and nipped it in the bud, scattering Oldcastle's levies in St Giles' Fields

(Jan. 10, 1414) and hanging most of his lieutenants. But their reckless leader escaped, and for three years led the life of an outlaw, till in 1417 he was finally captured, still in arms, and sent to the stake.

This danger having passed, Henry set himself to take advantage of the troubles of France. He threatened to invade that realm unless the Orleans faction, who had for the moment possession of the person of the mad king

Henry V. and France. Charles VI., should restore to him all that Edward III. had owned in 1360, with Anjou and Normandy in addition. The demand was absurd and exorbitant and was refused, though the French government offered him the hand of their king's daughter Catherine with a dowry of 800,000 crowns and the districts of Quercy and Périgord—sufficiently handsome terms. When he began to collect a fleet and an army, they added to the offer the Limousin and other regions; but Henry was determined to pick his quarrel, and declared war in an impudent and hypocritical manifesto, in which he declared that he was driven into strife against his will. The fact was that he had secured the promise of the neutrality or the co-operation of the Burgundian faction, and thought that he could crush the Orleanists with ease.

He sailed for France in August 1415, with an army compact and well-equipped, but not very numerous. On the eve of his departure he detected and quelled a plot as wild and futile as that of Oldcastle. The conspirators

Henry invades France. were his cousin, Richard, earl of Cambridge, Lord Scrope, and Sir Thomas Grey, a kinsman of the Percies. They had planned to raise a rebellion in the name of the earl of March, in whose cause Wales and the North were to have been called to arms. But March himself refused to stir, and betrayed them to the king, who promptly beheaded them, and set sail five days later. He landed near the mouth of the Seine, and commenced his campaign by besieging and capturing Harfleur, which the Orleanists made no attempt to

succour. But such a large number of his troops perished in the trenches by a pestilential disorder, that he found himself too weak to march on Paris, and took his way to Calais across Picardy, hoping, as it seems, to lure the French to battle by exposing his small army to attack. The plan was hazardous, for the Orleanists turned out in great numbers and almost cut him off in the marshes of the Somme. When he had struggled across them,

Battle of Agincourt. and was half-way to Calais, the enemy beset him in the fields of Agincourt (Oct. 25, 1415). Here Henry vindicated his military reputation by winning a victory even more surprising than those of Crécy, and Poitiers, for he was outnumbered in an even greater proportion than the two Edwards had been in 1346 and 1356, and had to take the offensive instead of being attacked in a strong position. The heavily armoured French noblesse, embogged in miry meadows, proved helpless before the lightly equipped English archery. The slaughter in their ranks was terrible, and the young duke of Orleans, the head of the predominant faction of the moment, was taken prisoner with many great nobles. However, so exhausted was the victorious army that Henry merely led it back to Calais, without attempting anything more in

Effect of the battle. this year. The sole tangible asset of the campaign was the possession of Harfleur, the gate of Normandy, a second Calais in its advantages when future invasions were taken in hand. The moral effects were more important. The Orleanist party was shaken in its power; the rival Burgundian faction became more inclined to commit itself to the English cause, and the terror of the English arms weighed heavily upon both.

It was not till the next year but one that Henry renewed his invasion of France—the intervening space was spent in negotiations with Burgundy, and with the emperor Sigismund, whose aid the king secured in return for help in putting an end to the scandalous “great schism” which had been rending the

England and the council of Constance.

Western Church for so many years. The English deputation lent their aid to Sigismund at the council of Constance, when Christendom was at last reunited under a single head, though all the reforms which were to have accompanied the reunion were postponed, and ultimately avoided altogether, by the restored papacy.

In July 1417 Henry began his second invasion of France, and landed at the mouth of the Seine with a powerful army of 17,000 men. He had

*Henry's second
invasion of France.*

resolved to adopt a plan of campaign very different from those which Edward III. or the Black Prince had been wont to pursue, having in view nothing more than

the steady and gradual conquest of the province of Normandy. This he was able to accomplish without any interference from the government at Paris, for the constable Armagnac, who had succeeded the captive Orleans at the head of the anti-Burgundian party, had no troops to spare. He was engaged

*Conquest of
Normandy.*

in a separate campaign with Henry's ally John the Fearless, and left Normandy to shift for itself. One after another all the towns of the duchy were reduced,

save Rouen, the siege of which, as the hardest task, King Henry postponed till the rest of the countryside was in his hands. He sat down to besiege it in 1418, and was detained before its walls for many months, for the citizens made an admirable defence. Meanwhile a change had taken place in the domestic politics of France; the Burgundians seized Paris in May 1418; the

*Triumph of the
Burgundians.*

constable Armagnac and many of his partisans were massacred, and John the Fearless got possession of the person of the mad Charles VI., and became the

responsible ruler of France. He had then to choose between buying off his English allies by great concessions, or taking up the position of champion of French interests. He selected the latter rôle, broke with Henry, and tried to relieve Rouen. But all his efforts were foiled, and the Norman capital surrendered, completely starved out, on the 19th of January 1419. On this

Henry takes Rouen.

Burgundy resolved to open negotiations with Henry; he wished to free his hands for an attack on his domestic enemies, who had rallied beyond the Loire under the leadership of the dauphin Charles—from whom the party, previously known first as Orleanists and then as Armagnacs, gets for the future the name of the “Dauphinois.” The English king, however, seeing the manifest advantage of his position, tried to drive too hard a bargain; he demanded the old boundaries of 1360, with his new conquest of Normandy, the hand of the princess Catherine, and a great sum of ready money. Burgundy dared not concede so much, under pain of alienating all his more patriotic

Murder of John of Burgundy.

supporters. He broke off the conference of Meulan, and tried to patch up a peace with the dauphin, in order to unite all Frenchmen against the foreign invader. This laudable intention was wrecked by the treachery of the young heir to the French throne; on the bridge of Montereau Charles deliberately murdered the suppliant duke, as he knelt to do homage, thinking thereby that he would make an end of the Burgundian party (Sept. 9, 1419).

This abominable deed gave northern France for twenty years to an English master. The young duke of Burgundy, Philip the Good, and his

The Burgundians acknowledge Henry as heir of France.

supporters in Paris and the north, were so incensed with the dauphin’s cruel treachery that they resolved that he should never inherit his father’s crown. They proffered peace to King Henry, and offered to recognize his preposterous⁴ claim to the French throne, on condition that he should marry the princess Catherine and guarantee the constitutional liberties of the realm. The insane Charles VI. should keep nominal possession of the royal title till his death, but meanwhile the Burgundians would do homage to Henry as “heir of France.” These terms were

Treaty of Troyes.

welcomed by the English king, and ratified at the treaty of Troyes (May 21, 1420). Henry married the princess

Catherine, received the oaths of Duke Philip and his partisans, and started forth to conquer the Dauphinois at the head of an army of which half was composed of Burgundian levies. Paris, Picardy, Champagne, and indeed the greater part of France north of the Loire, acknowledged him as their sovereign.

Henry had only two years longer to live; they were spent in incessant and successful campaigning against the partisans of his brother-in-law, the dauphin Charles; by a long series of sieges the partisans of that worthless prince were evicted from all their northern strongholds.

Death of Henry V.

They fought long and bitterly, nor was this to be marvelled at, for Henry had a custom of executing as traitors all who withstood him, and those who had once defied him did well to fight to the last gasp, in order to avoid the block or the halter. In the longest and most desperate of these sieges, that of Meaux (Oct. 1421-March 1422), the king contracted a dysenteric ailment which he could never shake off. He survived for a few months, but died, worn out by his incessant campaigning, on the 31st of August 1422, leaving the crown of England and the heirship of France to his only child Henry of Windsor, an infant less than two years old.

Few sovereigns in history have accomplished such a disastrous life's work as this much-admired prince. If he had not been a soldier of the first ability and a diplomatist of the most unscrupulous sort, he could never have

Effects of his conquests.

advanced so far towards his ill-chosen goal, the conquest of France. His genius and the dauphin's murderous act of folly at Montereau conspired to make the incredible almost possible. Indeed, if Henry had lived five years longer, he would probably have carried his arms to the Mediterranean, and have united France and England in uneasy union for some short space of time. It is clear that they could not have been held together after his death, for none

but a king of exceptional powers could have resisted their natural impulse to break apart. As it was, Henry had accomplished just enough to tempt his countrymen to persevere for nearly thirty years in the endeavour to complete the task he had begun. France was ruined for a generation, England was exhausted by her effort, and (what was worse) her governing classes learnt in the long and pitiless war lessons of demoralization which were to bear fruit in the ensuing struggle of the two Roses. It is a strange fact that Henry, though he was in many respects a conscientious man, with a strong sense of responsibility, and a sincere piety, was so blind to the unrighteousness of his own actions that he died asserting that “neither ambition nor vainglory had led him into France, but a genuine desire to assert a righteous claim, which he desired his heirs to prosecute to the bitter end.”

The guardianship of the infant Henry VI. fell to his two uncles, John of Bedford and Humphrey of Gloucester, the two surviving brothers of the late king. Bedford became regent in France, and took over the heritage of the

Henry VI. war, in which he was vigorously aided by the young Philip of Burgundy, whose sister he soon after married.

Almost his first duty was to bury the insane Charles VI., who only survived his son-in-law for a few months, and to proclaim his little nephew king of France under the name of Henry II. Gloucester, however, had personal charge of the child, who was to be reared in England; he had also hoped to become protector of the realm, and to use the position for his own private interests, for he was a selfish and ambitious prince. But the council refused to let him assume the full powers of a regent, and bound him with many checks and restrictions, because they were well aware of his character. The tiresome and monotonous domestic history of England during the next twenty years consisted of little else than quarrels between Gloucester and the lords of the council, of whom the chief was the duke's half-uncle Henry Beaufort, bishop of Winchester, the last to

survive of all the sons of John of Gaunt. The duke and the bishop were both unscrupulous; but the churchman, with all his faults, was a patriotic statesman, while Gloucester cared far more for his own private ends than for the welfare of the realm.

While these two well-matched antagonists were wrangling in England, Bedford, a capable general and a wise administrator, was doing his best to carry out the task which the dying Henry V. had laid upon him, by crushing the dauphin, or Charles VII. as he now called himself since his father's death. As long as the Burgundian party lent the regent their aid, the limits of the land still

Bedford's rule in France.

unsubdued continued to shrink, though the process was slow. Two considerable victories, Cravant (1423) and Verneuil (1424), marked the early years of Bedford's campaigning; at each, it may be noted, a very large proportion of his army was composed of Burgundian auxiliaries. But after a time their assistance began to be given less freely; this was due to the

Humphrey of Gloucester.

selfish intrigues of Humphrey of Gloucester, who, regardless of the general policy of England, had quarrelled with Philip the Good. He had married Jacoba (Jacqueline), countess of Hainaut and Holland, a cousin of the Burgundian duke, who coveted and hoped to secure her lands. Pressing her claims, Gloucester came to open blows with Philip in Flanders and Hainaut (1424). In his anger the Burgundian ceased to support Bedford, and would have joined Charles VII. if revenge on the murderers of his father had not still remained his dominant passion. But Gloucester's attempt to seize Hainaut failed, and Philip, when he had got possession of his cousin's person and estates, allowed himself to be pacified by Bedford, who could prove that he had no part in his brother's late intrigues.

This quarrel having been appeased, the advance against the territories of Charles VII. was resumed. It went slowly on, till in 1428 the tide of war

reached the walls of Orleans, how the only place north of the Loire which remained unsubdued. The siege was long; but after the
Siege of Orleans. last army which the Dauphinois could raise had been beaten at the battle of Rouvray (Feb. 1429) it seemed that the end was near. Charles VII. was in such a state of despair after this last check, that he was actually taking into consideration a flight to Italy or Spain, and the abandonment of the struggle. He had shown himself so incapable and apathetic that his followers were sick of fighting for such a despicable master.

From this depth of despair the party which, with all its faults, represented the national sentiment of France was rescued by the astonishing exploits of Joan of Arc. Charles and his counsellors had no great confidence in the
Joan of Arc. mission of this prophetess and champion, when she presented herself to them, promising to relieve Orleans and turn back the English. But all expedients are worth trying in the hour of ruin, and seeing that Joan was disinterested and sincere, and that her preaching exercised a marked influence over the people and the soldiery, Charles allowed her to march with the last levies that he put into the field for the relief of Orleans. From that moment the fortune of war turned; the presence of the prophetess with the French troops had an immediate and incalculable effect. Under the belief that they were now led by a messenger from heaven, the Dauphinois fought with a fiery courage that they had never before displayed. Their movements were skilfully directed—whether by Joan’s generalship or that of her captains it boots not to inquire—and after the first successes which she achieved, in entering Orleans and capturing some of the besiegers’ forts around it, the English became panic-stricken. They were cowed, as they said, “by that disciple and limb of the fiend called La Pucelle, that used false enchantments and sorcery.” Suffolk, their commander, raised the siege, and sent to Bedford for reinforcements; but as he retreated he was set upon by

the victorious army, and captured with most of his men at Jargeau and Beaugency (June 1429). The succours which were coming to his aid from Paris were defeated by the Maid at Patay a few days later, and for the most part destroyed.

The regent Bedford was now in a desperate position. His field army had been destroyed, and on all sides the provinces which had long lain inert beneath the English yoke were beginning to stir. When Joan led forth the

*Coronation of
Charles VII. at
Reims.*

French king to crown him at Reims, all the towns of Champagne opened their gates to her one after another. A large reinforcement received from England only just enabled Bedford to save Paris and some of the fortresses of the Île de France. The rest revolted at the sight of the Maid's white banner. If Joan had been well supported by her master and his counsellors, it is probable that she might have completed her mission by expelling the English from France. But, despite all that she had done, Charles VII. and his favourites had a profound disbelief in her inspiration, and generally thwarted her plans. After an ill-concerted attack on Paris, in which Joan was wounded, the French army broke up for the winter. They had shaken the grip of the English on the north, and reconquered a vast stretch of territory, but they had failed by their own fault to achieve complete success. Nevertheless the crucial point of the war had passed; after 1429 the Burgundian party began to slacken in its support of the English cause, and to pass over piecemeal to the national side. This was but natural: the partisans who could remember nothing but the foul deed of Montereau were yearly growing fewer, and it was clear that Charles VII., personally despicable though he might be, represented the cause of French nationality.

The natural drift of circumstances was not stayed even by the disastrous end of the career of Joan of Arc in 1430. The king's ministers had refused to

take her counsels or to entrust her with another army, but she went forth with a small force of volunteers to relieve the important fortress of Compiègne. The place was saved, but in a sortie she was captured by the Burgundians, who sold her for 10,000 francs to Bedford. The regent handed her over for punishment as a sorceress to the French clergy of his own party. After a long trial, carried out with elaborate formality and great unfairness, the unhappy Joan was found guilty of proclaiming as divine visions what were delusions of the evil one, or of her own vain imagination, and when she persisted in maintaining their reality she was declared a relapsed heretic, and burnt at Rouen on the 30th of May 1431. Charles VII. took little interest in her fate, which he might easily have prevented by threatening to retaliate on the numerous English prisoners who were in his power. Seldom had a good cause such an unworthy figurehead as that callous and apathetic prince.

Capture and execution of Joan.

The movement which Joan had set on foot was in no way crushed by her execution. For the next four years the limits of the English occupation continued to recede. It was to no profit that Bedford brought over the young Henry VI. and had him crowned at Paris, in order to appeal to the loyalty of his French partisans by means of the king's forlorn youth and simplicity. Yet by endless feats of skilful generalship the regent continued to maintain a hold on Paris and on Normandy. The fatal blow was administered by Philip of Burgundy, who, tired of maintaining a failing cause, consented at last to forget his father's murder, and to be reconciled to Charles VII. Their alliance was celebrated by the treaty of Arras (Sept. 6, 1435), at which the English were offered peace and the retention of Normandy and Guienne if they would evacuate Paris and the rest of France. They would have been wise to accept the agreement; but with obstinate and

Philip of Burgundy joins Charles. Treaty of Arras.

misplaced courage they refused to acknowledge Charles as king of France, or to give up to him the capital.

Bedford, worn out by long campaigning, died at Rouen on the 14th of September 1435, just before the results of the treaty of Arras began to make themselves felt. With him died the best hope of the English party in France, for he had been well loved by the Burgundians, and many had adhered to the cause of Henry VI. solely because of their personal attachment to him. No worthy successor could be found—England had many hard-handed soldiers but no more statesmen of Bedford's calibre. It was no wonder that Paris was lost within six months of the regent's death, Normandy invaded, and Calais beleaguered by an army headed by England's new enemy, Philip of Burgundy. But the council, still backed by the nation, refused to give up the game; Burgundy was beaten off from Calais, and the young duke of York, the heir of the Mortimers, took the command at Rouen, and recovered much of what had been lost on the Norman side.

***Death of Bedford.
English defeats.***

The next eight years of the war were in some respects the most astonishing period of its interminable length. The English fought out the losing game with a wonderful obstinacy. Though every town that they held was eager to revolt, and though they were hopelessly outnumbered in every quarter, they kept a tight grip on the greater part of Normandy, and on their old domain in the Bordelais and about Bayonne. They lost nearly all their outlying possessions, but still made head against the generals of Charles VII. in these two regions. The leaders of this period of the war were the duke of York, and the aged Lord Talbot, afterwards earl of Shrewsbury. The struggle only ceased in 1444, when the English council, in which a peace party had at last been formed, concluded a two-year truce with King Charles, which they hoped to turn into a permanent treaty, on the condition that their king

Truce with France.

should retain what he held in Normandy and Guienne, but sign away his claim to the French crown, and relinquish the few places outside the two duchies which were still in his power—terms very similar to those rejected at Arras nine years before—but there was now much less to give up. To mark the reconciliation of the two powers Henry VI. was betrothed to the French king's niece, Margaret of Anjou. The two years' truce was repeatedly prorogued, and lasted till 1449, but no definitive treaty was ever concluded, owing to the bad faith with which both parties kept their promises.

The government in England was now in the hands of the faction which Bishop Beaufort had originally led, for after long struggles the churchman had at last crushed his nephew Humphrey. In 1441 the duchess of

*Supremacy of the
Beauforts in
England.*

Gloucester had been arrested and charged with practising sorcery against the health of the young king—apparently not without justification. She was tried and condemned to imprisonment for life; her guilt was

visited on her husband, on whose behalf she was acting, for if Henry had died his uncle would have come to the throne. For some years he was constrained to take a minor part in politics, only emerging occasionally to make violent and unwise protests against peace with France. The bishop now ruled, with his nephew Edmund Beaufort, duke of Somerset, and William de la Pole, earl of Suffolk, as his chief instruments. As he grew older he let the power slip into their hands, as it was they who were mainly responsible for the truce of 1444. King Henry, though he had reached the

*Character of Henry
VI.*

age of 23 at the time of his marriage, counted for nothing. He was a pious young man, simple to the verge of imbecility; a little later he developed actual

insanity, the heritage of his grandfather Charles VI. He showed a blind confidence in Suffolk and Somerset, who were wholly unworthy of it, for both were tricky and unscrupulous politicians. His wife Margaret of Anjou,

though she possessed all the fire and energy which her husband lacked, was equally devoted to these two ministers, and soon came to share their unpopularity.

The truce with France had offended the natural pride of the nation, which still refused to own itself beaten. The evacuation of the French fortresses in Maine and elsewhere, which was the price paid for the suspension of arms,

***Death of Humphrey
of Gloucester and
Henry Beaufort.***

was bitterly resented. Indeed the garrisons had to be threatened with the use of force before they would quit their strongholds. A violent clamour was raised against Suffolk and Somerset, and Humphrey of Gloucester emerged from his retirement to head the agitation. This led to his death; he was arrested by the order of the queen and the ministers at the parliament of Bury. Five days later he died suddenly in prison, probably by foul play, though it was given out that he had been carried off by a paralytic stroke. His estates were confiscated, and distributed among the friends of Suffolk and the queen. Six weeks later the aged Bishop Beaufort followed him to the grave—he had no share in Gloucester’s fate, having long before made over his power and the leadership of his party to his nephew Edmund of Somerset (1447).

The truce with France lasted for two years after the death of Duke Humphrey, and came to an end partly owing to the eagerness of the French to push their advantages, but much more from the treachery and bad faith of

***Renewal of the war
with France.***

Suffolk and Somerset, who gave the enemy an admirable *casus belli*. By their weakness, or perhaps with their secret connivance, the English garrisons of Normandy carried out plundering raids of the most impudent sort on French territory. When summoned to punish the offenders, and to make monetary compensation, Suffolk and Somerset shuffled and prevaricated, but gave no satisfaction. Thereupon the French king once more declared war (July

1449) and invaded Normandy. Somerset was in command; he showed hopeless incapacity and timidity, and in a few months the duchy which had been so long held by the swords of Bedford, York and Shrewsbury was hopelessly lost. The final blow came when a small army of relief sent over from England was absolutely exterminated by the French at the battle of Formigny (April 15, 1450). Somerset, who had retired into Caen, surrendered two months later after a feeble defence, and the English power in northern France came to an end.

Loss of Normandy.

Even before this final disaster the indignation felt against Suffolk and Somerset had raised violent disturbances at home. Suffolk was impeached on many charges, true and false; it was unfair to accuse him of treason, but quite just to lay double-dealing and bad faith to his charge. The king tried to save him from the block by banishing him before he could be tried. But while he was sailing to Flanders his ship was intercepted by some London vessels, which were on the look-out for him, and he was deliberately murdered. The instigators of the act were never discovered. But, though Suffolk was gone, Somerset yet survived, and their partisans still engrossed the confidence of the king. To clear out the government, and punish those responsible for the late disasters, the commons of Kent rose in insurrection under a captain who called himself John Mortimer, though his real name seems to have been John Cade. He was a soldier of fortune who had served in the French wars, and claimed to be in the confidence of the duke of York, the person to whom the eyes of all who hated Somerset and the present régime were now directed.

Jack Cade's Rebellion.

Cade was not a social reformer, like his predecessor Wat Tyler, with whom he has often been compared, but a politician. Though he called himself "John Amend-all," and promised to put down abuses of every kind,

the main part of the programme which he issued was intended to appeal to national sentiment, not to class feeling. Whether he was the tool of other and more highly placed malcontents, or whether he was simply a ready-witted adventurer playing his own game, it is hard to determine. His first success was marvellous; he defeated the king's troops, made a triumphant entry into London and held the city for two days. He seized and beheaded Lord Saye, the treasurer, and several other unpopular persons, and might have continued his dictatorship for some time if the Kentish mob that followed him had not fallen to general pillage and arson. This led to the same results that had been seen in Tyler's day. The propertied classes in London took arms to suppress anarchy, and beat the insurgents out of the city. Cade, striving to keep up the rising outside the walls, was killed in a skirmish a month later, and his bands dispersed.

But the troubles of England were only just beginning; the protest against the misgovernment of Somerset and the rest of the confidants of the king and queen was now taken up by a more important personage than the

Richard, duke of York, heads the opposition.

adventurer Cade. Richard, duke of York, the heir to the claims of the house of Mortimer—his mother was the sister of the last earl of March—now placed himself at the head of the opposition. He had plausible grounds for doing so; though he had distinguished himself in the French wars, and was, since the death of Humphrey of Gloucester, the first prince of the blood royal, he had been ignored and flouted by the king's ministers, who had sent him into a kind of honourable banishment as lord-lieutenant of Ireland, and had forbidden him to re-enter the realm. When, in defiance of this mandate, he came home and announced his intention of impeaching Somerset, he took the first step which was to lead to the Wars of the Roses.

Yet he was a cautious and in the main a well-intentioned prince, and the extreme moderation of his original demands seems to prove that he did not

at first aim at the crown. He merely required that Somerset and his friends should be dismissed from office and made to answer for their misgovernment. Though he backed his demands by armed demonstration—twice calling out his friends and retainers to support his policy—he carefully refrained for five long years from actual violence. Indeed in 1452 he consented to abandon his protests, and to lend his aid to the other party for a great national object, the recovery of Guienne. For in the previous year Charles VII. had dealt with Bordeaux and Bayonne as he had already dealt with Normandy, and had met with no better resistance while completing the conquest. Six months' experience of French rule, however, had revealed to the Bordelais how much they had lost when they surrendered. Their old loyalty to the house of Plantagenet burst once more into flame; they rose in arms and called for aid to England. For a moment the quarrel of York and Somerset was suspended, and the last English army that crossed the seas during the Hundred Years' War landed in Guienne, joined the insurgents, and for a time swept all before it. But there seemed to be a curse on whatever Henry VI. and Somerset took in hand. On the 17th of July 1453 the veteran earl of Shrewsbury and the greater part of his Anglo-Gascon

***Battle of Castillon.
Loss of Guienne.***

host were cut to pieces at the hard-fought battle of Castillon. Bordeaux, though left to defend itself, held out for eighty days after Talbot's defeat and death, and then made its final submission to the French. The long struggle was over, and England now retained nothing of her old transmarine possessions save Calais and the Channel Islands. The ambition of Henry V. had finally cost her the long-loyal Guienne, as well as all the ephemeral conquests of his own sword.

The last crowning disaster of the administration of the favourites of Henry VI. put an end to the chance that a way out of domestic strife might be found in the vigorous prosecution of the French war. For the next twenty years the battles of England were to be fought on her own soil, and between

her own sons. It was a righteous punishment for her interference in the unnatural strife of Orleanists and Burgundians that the struggle between York and Lancaster was to be as bitter and as bloody as that between the two French factions.

V. THE WARS OF THE ROSES (1453-1497)

The Wars of the Roses have been ascribed to many different causes by different historians. To some their origin is mainly constitutional. Henry VI., it is argued, had broken the tacit compact which the house of Lancaster

Origin of the Wars of the Roses.

had made with the nation; instead of committing the administration of the realm to ministers chosen for him by, or at least approved by, his parliament, he persisted in retaining in office persons like Suffolk and Somerset, who had forfeited the confidence of the people by their many failures in war and diplomacy, and were suspected of something worse than incapacity. They might not be so personally odious as the favourites of Edward II. or of Henry III., but they were even more dangerous to the state, because they were not foreign adventurers but great English peers. In spite of the warnings given by the assault on Suffolk in 1450, by Jack Cade's insurrection, and by the first armed demonstrations of Richard of York in 1450 and 1452, the king persisted in keeping his friends in office, and they had to be removed by the familiar and forcible methods that had been applied in earlier ages by the lords ordainers or the lords appellant. Undoubtedly there is much truth in this view of the situation; if Henry VI., or perhaps we should rather say, if his queen Margaret of Anjou, had been content to accept ministries in which the friends of Richard of York were fairly represented, it is probable that he might have died a king, and have transmitted his crown to his natural heir. But this explanation of the Wars of the Roses is not complete; it accounts for their outbreak, but not for their long continuance.

According to another school the real key to the problem is simply the question of the succession to the crown. If the wedlock of Henry VI. and Margaret of Anjou had been fruitful during the first few years after their

Claims of the duke of York to the crown.

marriage, no one would have raised the question of a change of dynasty. But when they remained childless for seven years, and strong suspicion arose that there was a project on foot to declare the Beauforts heirs to the throne, the claim of Richard of York, as the representative of the houses of Clarence and March, was raised by those who viewed the possible accession of the incapable and unpopular Somerset with terror and dislike. When once the claims of York had been displayed and stated by his imprudent partisan, Thomas Yonge, in the parliament of 1451, there was no possibility of hiding the fact that in the strict legitimate line of succession he had a better claim than the reigning king. He disavowed any pretensions to the crown for nine years; it was only in 1460 that he set forth his title with his own mouth. But his friends and followers were not so discreet; hence when a son was at last born to Henry and Margaret, in 1453, the succession question was already in the air and could no longer be ignored. If the claim of York was superior

Birth of Edward, prince of Wales.

to that of Lancaster in the eyes of a considerable part of the nation, it was no longer possible to consider the problem solved by the birth of a direct heir to the actual occupant of the throne. Though Duke Richard behaved in the most correct fashion, acknowledged the infant Edward as prince of Wales, and made no attempt to assert dynastic claims during his two regencies in 1454 and 1455-1456, yet the queen and her partisans already looked upon him as a pretender to the throne. It is this fact which accounts for the growing

Queen Margaret.

bitterness of the Yorkist and Lancastrian parties during the last years of Henry VI. Margaret believed herself to be defending the rights of her son against a would-be usurper. Duke Richard, on the other hand, considered himself as wrongfully

oppressed, and excluded from his legitimate position as a prince of the blood and a chief councillor of the crown. Nor can there be any doubt that the queen took every opportunity of showing her suspicion of him, and deliberately kept him and his friends from sharing in the administration of the realm. This might have been more tolerable if the Lancastrian party had shown any governing power; but both while Somerset was their leader, down to his death in the first battle of St Albans, and while in 1456-1459 Exeter, Wiltshire, Shrewsbury and Beaumont were the queen's trusted agents, the condition of England was deplorable. As a contemporary chronicler wrote, "the realm was out of all good governance—as it has been many days before: the king was simple, and led by covetous councillors, and owed more than he was worth. His debts increased daily, but payment

Condition of the country.

was there none, for all the manors and possessions that pertained to the crown he had given away, so that he had almost nought to live on. For these misgovernances the hearts of the people were turned from them that had the land in rule, and their blessing was turned to cursing. The officers of the realm, and especially the earl of Wiltshire the treasurer, for to enrich himself plundered poor people and disinherited rightful heirs, and did many wrongs. The queen was defamed, that he that was called the prince was not the king's son, but a bastard gotten in adultery." When it is added that the Lancastrian party avoided holding a parliament for three years, because they dared not face it, and that the French were allowed to sack Fowey, Sandwich and other places because there was no English fleet in existence, it is not wonderful that many men thought that the cup of the iniquities of the house of Lancaster was full. In the military classes it was felt that the honour of the realm was lost; in mercantile circles it was thought that the continuance for a few years more of such government would make an end of English trade. Some excuse must be found for getting rid of the queen and her friends, and the doubtful legitimacy of the Lancastrian claim to the

crown afforded such an excuse. Hence came the curious paradox, that the party which started as the advocates of the rights of parliament against the incapable ministers appointed by the crown, ended by challenging the right of parliament, exercised in 1399, to depose a legitimate king and substitute for him another member of the royal house. For Richard of York in 1460 and Edward IV. in 1461 put in their claim to the throne, not as the elect of the nation, but as the possessors of a divine hereditary right to the succession, there having been no true king of England since the death of Richard II. Hence Edward assumed the royal title in March 1461, was crowned in June, but called no parliament till November. When it met, it acknowledged him as king, but made no pretence of creating or electing him to be sovereign.

But putting aside the constitutional aspects of the Wars of the Roses, it is necessary to point out that they had another aspect. From one point of view they were little more than a great faction fight between two alliances of

*Motives of the
contending parties.*

over-powerful barons. Though the Lancastrians made much play with the watchword of loyalty to the crown, and though the Yorkists never forgot to speak of the need for strong and wise governance, and the welfare of the realm, yet personal and family enmities had in many cases more effect in determining their action than a zeal for King Henry's rights or for the prosperity of England. It is true that some classes were undoubtedly influenced in their choice of sides mainly by the general causes spoken of above; the citizens of London and the other great towns (for example) inclined to the Yorkist faction simply because they saw that under the Lancastrian rule the foreign trade of England was being ruined, and insufficient security was given for life and property. But the leading men among the baronage were undoubtedly swayed by ambition and resentment, by family ties and family feuds, far more than by enlightened statesmanship or zeal for the king or the commonweal. It would be going too far to seek the origin of the Yorkist

party—as some have done—in the old enmity of the houses of March, Norfolk and Salisbury against Henry IV. But it is not so fantastic to ascribe its birth to the personal hatred that existed between Richard of York and Edmund of Somerset, to the old family grudge (going back to 1405) between the Percies and the Nevilles, to the marriage alliance that bound the houses of York and Neville together, and to other less well-remembered quarrels or blood-ties among the lesser baronage. As an example of how such motives worked, it may suffice to quote the case of those old enemies, the Bonvilles and Courtenays, in the west country. While Lord Bonville supported the queen, the house of Courtenay were staunch Yorkists, and the earl of Devon joined in the armed demonstration of Duke Richard in 1452. But when the earl changed his politics and fought on the Lancastrian side at St Albans in 1455, the baron at once became a strenuous adherent of the duke, adhered firmly to the white rose and died by the axe for its cause.

Richard of York, in short, was not merely the head of a constitutional opposition to misgovernment by the queen's friends, nor was he merely a legitimist claimant to the crown, he was also the head of a powerful baronial league, of which the most prominent members were his kinsmen, the Nevilles, Mowbrays and Bouchiers. The Nevilles alone, enriched with the ancient estates of the Beauchamps and Montagus, and with five of their name in the House of Lords, were a sufficient nucleus for a faction. They were headed by the two most capable politicians and soldiers then alive in England, the two Richards, father and son, who held the earldoms of Salisbury and Warwick, and were respectively brother-in-law and nephew to York. It must be remembered that a baron of 1450 was not strong merely by reason of the spears and bows of his household and his tenantry, like a baron of the 13th century. The pernicious practice of "livery and maintenance" was now at its zenith; all over England in times of stress the knighthood and gentry were wont to pledge themselves, by sealed bonds of

*The baronial party.
The Nevilles.*

indenture, to follow the magnate whom they thought best able to protect them. They mounted his badge, and joined his banner when strife broke out, in return for his championship of their private interests and his promise to “maintain” them against all their enemies. A soldier and statesman of the ability and ambition of Richard of Warwick counted hundreds of such adherents, scattered over twenty shires. The system had spread so far that the majority of the smaller tenants-in-chief, and even many of the lesser barons, were the sworn followers of an insignificant number of the greater lords. An alliance of half-a-dozen of these over-powerful subjects was a serious danger to the crown. For the king could no longer count on raising a national army against them; he could only call out the adherents of the lords of his own party. The factions were fairly balanced, for if the majority of the baronage were, on the whole, Lancastrian, the greatest houses stood by the cause of York.

Despite all this, there was still, when the wars began, a very strong feeling in favour of compromise and moderation. For this there can be no doubt that Richard of York was mainly responsible. When he was twice

Attitude of Richard of York.

placed in power, during the two protectorates which followed Henry’s two long fits of insanity in 1454 and 1455-1456, he carefully avoided any oppression of his

enemies, though he naturally took care to put his own friends in office. Most of all did he show his sincere wish for peace by twice laying down the protectorate when the king was restored to sanity. He was undoubtedly goaded into his last rebellion of 1459 by the queen’s undisguised preparations for attacking him. Yet because he struck first, without waiting for a definite *casus belli*, public opinion declared so much against him that

Suppression of York’s rebellion. Executions and confiscations.

half his followers refused to rally to his banner. The revulsion only came when the queen, victorious after the rout of Ludford, applied to the vanquished Yorkists those penalties of confiscation and attainder which

Duke Richard had always refused to employ in his day of power. After the harsh doings at the parliament of Coventry (1459), and the commencement of political executions by the sending of Roger Neville and his fellows to the scaffold, the trend of public opinion veered round, and Margaret and her friends were rightly held responsible for the embittered nature of the strife. Hence came the marvellous success of the Yorkist counterstroke in June 1460, when the exiled Warwick, landing in Kent with a mere handful of

*The earl of Warwick
defeats the
Lancastrians at
Northampton.*

men, was suddenly joined by the whole of the south of England and the citizens of London, and inflicted a crushing defeat on the Lancastrians at Northampton before he had been fifteen days on shore (July 10, 1460). The growing rancour of the struggle was marked by the fact that the Yorkists, after Northampton, showed themselves by no means so merciful and scrupulous as in their earlier days. Retaliatory executions began, though on a small scale, and when York reached London he at last began to talk of his rights to the crown, and to propose the deposition of Henry VI. Yet moderation was still so far prevalent in the ranks of his adherents that they refused to follow him to such lengths. Warwick and the other leading men of the party dictated a compromise, by which Henry was to reign for the

*Richard of York
declared heir to the
throne.*

term of his natural life, but Duke Richard was to be recognized as his heir and to succeed him on the throne. They had obviously borrowed the expedient from the terms of the treaty of Troyes. But the act of parliament which embodied it did not formally disinherit the reigning king's son, as the treaty of Troyes had done, but merely ignored his existence.

It would have been well for England if this agreement had held, and the crown had passed peaceably to the house of York, after the comparatively short and bloodless struggle which had just ended. But Duke Richard had forgotten to reckon with the fierce and unscrupulous energy of Queen Margaret, when she was at bay in defence of her son's rights. Marching

***Battle of Wakefield.
Richard slain.***

with a trifling force to expel her from the north, he was surprised and slain at Wakefield (Dec. 30, 1460). But it

was not his death that was the main misfortune, but the fact that in the battle the Lancastrians gave no quarter to small or great, and that after it they put to death York's brother-in-law Salisbury and other prisoners. The heads of the duke and the earl were set up over the gates of

Battle of St Albans.

York. This ferocity was repeated when Margaret and her northern host beat Warwick at the second battle of St Albans (Feb. 17, 1461), where they had the good

fortune to recover possession of the person of King Henry. Lord Bonville and the other captives of rank were beheaded next morning.

After this it was but natural that the struggle became a mere record of massacres and executions. The Yorkists proclaimed Edward, Duke Richard's heir, king of England; they took no further heed of the claims of

***Edward, earl of
March, proclaimed
as Edward IV.***

King Henry, declared their leader the true successor of Richard II., and stigmatized the whole period of the Lancastrian rule as a mere usurpation. They adopted a strict legitimist theory of the descent of the crown, and

denied the right of parliament to deal with the succession. This was the first step in the direction of absolute monarchy which England had seen since the short months of King Richard's tyranny in 1397-1399. It was but the first of many encroachments of the new dynasty upon the liberties that had been enjoyed by the nation under the house of Lancaster.

The revenge taken by the new king and his cousin Richard of Warwick for the slaughter at Wakefield and St Albans was prompt and dreadful. They were now well supported by the whole of southern England; for not only

***Changed character of
the war.***

had the queen's ferocity shocked the nation, but the reckless plundering of her northern moss-troopers in the home counties had roused the peasantry and

townsfolk to an interest in the struggle which they had never before displayed. Up to this moment the civil war had been conducted like a great faction fight; the barons and their liveried retainers had been wont to seek some convenient heath or hill and there to fight out their quarrel with the minimum of damage to the countryside. The deliberate harrying of the Midlands by Margaret's northern levies was a new departure, and one

Battle of Towton.

bitterly resented. The house of Lancaster could never for the future count on an adherent south of Trent or east of Chiltern. The Yorkist army that marched in pursuit of the raiders, and won the bloody field of Towton under Warwick's guidance, gave no quarter. Not only was the slaughter in that battle and the pursuit more cruel than anything that had been seen since the day of Evesham, but the executions that followed were ruthless. Ere Edward

Ruthless reprisals of the Yorkists.

turned south he had beheaded two earls—Devon and Wiltshire—and forty-two knights, and had hanged many prisoners of lesser estate. The Yorkist parliament of November 1461 carried on the work by attainting 133 persons, ranging from Henry VI. and Queen Margaret down through the peerage and the knighthood to the clerks and household retainers of the late king. All the estates of the Lancastrian lords, living or dead, were confiscated, and their blood was declared corrupted. This brought into the king's hands such a mass of plunder as no one had handled since William the Conqueror.

Personal rule of Edward IV.

Edward IV. could not only reward his adherents with it, so as to create a whole new court noblesse, but had enough over to fill his exchequer for many years, and to enable him to dispense with parliamentary grants of money for an unexampled period. Between 1461 and 1465 he only asked for £37,000 from the nation—and won no small popularity thereby. For, in their joy at being quit of taxation, men forgot that they were losing the lever by which

their fathers had been wont to move the crown to constitutional concessions.

After Towton peace prevailed south of the Tyne and east of the Severn, for it was only in Northumberland and in Wales that the survivors of the Lancastrian faction succeeded in keeping the war alive. King Edward, as

***Civil war in the north
and west.***

indolent and pleasure-loving in times of ease as he was active and ruthless in times of stress and battle, set himself to enjoy life, handing over the suppression of the rebels to his ambitious and untiring cousin Richard of Warwick. The annals of the few contemporary chroniclers are so entirely devoted to the bickerings in the extreme north and west, that it is necessary to insist on the fact that from 1461 onwards the civil war was purely local, and nine-tenths of the realm enjoyed what passed for peace in the 15th century. The campaigns of 1462-63-64, though full of incident and bloodshed, were not of first-rate political importance. The cause of Lancaster had been lost at Towton, and all that Queen Margaret succeeded in accomplishing was to keep Northumberland in revolt, mainly by means of French and Scottish succours. Her last English partisans, attainted men who had lost their lands and lived with the shadow of the axe ever before them, fought bitterly enough. But the obstinate and hard-handed Warwick beat them down again

***Battle of Hexham.
Imprisonment of
Henry VI.***

and again, and the old Lancastrian party was almost exterminated when the last of its chiefs went to the block in the series of wholesale executions that followed the battle of Hexham (May 15, 1464). A year later Henry VI. himself fell into the hands of his enemies, as he lurked in Lancashire, and with his consignment to the Tower the dynastic question seemed finally solved in favour of the house of York.

The first ten years of the reign of Edward IV. fall into two parts, the dividing point being the avowal of the king's marriage to Elizabeth

Woodville in November 1464. During the first of these periods Edward reigned but Warwick governed; he was not only the fighting man, but the statesman and diplomatist of the Yorkist party, and enjoyed a complete ascendancy over his young master, who long preferred thriftless ease to the toils of personal monarchy. Warwick represented the better side of the victorious cause; he was no mere factious king-maker, and his later nickname of “the last of the barons” by no means expresses his character or his position. He was strong, not so much by reason of his vast estates and his numerous retainers, as by reason of the confidence which the greater part of the nation placed in him. He never forgot that the Yorkist party had started as the advocates of sound and strong administration, and the mandates of the popular will against the queen’s incapable and corrupt ministers. “He ever had the goodwill of the people because he knew how to give them fair words, and always spoke not of himself but of the augmentation and good governance of the kingdom, for which he would spend his life; and thus he had the goodwill of England, so that in all the land he was the lord who was held in most esteem and faith and credence.” As long as he remained supreme, parliaments were regularly held, and the house of York appeared to be keeping its bargain with the nation. His policy was sound; peace with France, the rehabilitation of the dwindling foreign trade of England, and the maintenance of law and justice by strong-handed governance were his main aims.

Richard Neville, earl of Warwick.

But Warwick was one of those ministers who love to do everything for themselves, and chafe at masters and colleagues who presume to check or to criticise their actions. He was surrounded and supported, moreover, by a group of brothers and cousins, to whom he gave most of his confidence, and most of the preferment that came to his hands. England has always chafed against a family oligarchy, however well it may do its work. The Yorkist magnates who did not belong to the clan of the Nevilles were not

unnaturally jealous of that house, and Edward IV. himself gradually came to realize the ignominious position of a king who is managed and overruled by a strong-willed and arbitrary minister.

His first sign of revolt was his secret marriage to Elizabeth Woodville, a lady of decidedly Lancastrian connexions, for her father and her first husband were both members of the defeated faction. Warwick was at the

***Edward IV. marries
Elizabeth Woodville.***

moment suing for the hand of Louis XI.'s sister-in-law in his master's name, and had to back out of his negotiations in a sudden and somewhat ridiculous

fashion. His pride was hurt, but for two years more there was no open breach between him and his master, though their estrangement grew more and more marked when Edward continued to heap titles and estates on his wife's numerous relatives, and to conclude for them marriage alliances with all the great Yorkist families who were not of the Neville connexion. In this

***Breach between
Warwick and the
king.***

way he built up for himself a personal following within the Yorkist party; but the relative strength of this faction and of that which still looked upon Warwick as the true representative of the cause had yet to be tried.

The king had in his favour the prestige of the royal name, and a popularity won by his easy-going affability and his liberal gifts. The earl had his established reputation for disinterested devotion to the welfare of the realm, and his brilliant record as a soldier and statesman. In districts as far apart as Kent and Yorkshire, his word counted for a good deal more than that of his sovereign.

Unhappily for England and for himself, Warwick's loyalty was not sufficient to restrain his ambition and his resentment. He felt the ingratitude of the king, whom he had made, so bitterly that he stooped ere long to

***Warwick organizes a
rebellion.***

intrigue and treason. Edward in 1467 openly broke with him by dismissing his brother George Neville

from the chancellorship, by repudiating a treaty with France which the earl had just negotiated, and by concluding an alliance with Burgundy against which he had always protested. Warwick enlisted in his cause the king's younger brother George of Clarence, who desired to marry his daughter and heiress Isabella Neville, and with the aid of this unscrupulous but unstable young man began to organize rebellion. His first experiment in treason was

Rising of "Robin of Redesdale."

the so-called "rising of Robin of Redesdale," which was ostensibly an armed protest by the gentry and commons of Yorkshire against the maladministration of the realm by the king's favourites—his wife's relatives, and the courtiers whom he had lately promoted to high rank and office. The rebellion was headed by well-known adherents of the earl, and the nickname of "Robin of Redesdale" seems to have covered the personality of his kinsman Sir John Conyers. When the rising was well started Warwick declared his sympathy with the aims of the insurgents, wedded his daughter to Clarence despite the king's prohibition of the match, and raised a force at Calais with which he landed in Kent.

But his plot was already successful before he reached the scene of operations. The Yorkshire rebels beat the royalist army at the battle of Edgecote (July 6, 1469). A few days later Edward himself was captured at

***Battle of Edgecote.
Edward a prisoner.***

Olney and put into the earl's hands. Many of his chief supporters, including the queen's father, Lord Rivers, and her brother, John Woodville, as well as the newly-created earls of Pembroke and Devon, were put to death with Warwick's connivance, if not by his direct orders. The king was confined for some weeks in the great Neville stronghold of Middleham Castle, but presently released on conditions, being compelled to accept new ministers nominated by Warwick. The earl supposed that his cousin's spirit was broken and that he would give no further trouble. In this he erred grievously. Edward vowed revenge for his slaughtered favourites, and waited his opportunity. Warwick

*Execution of the
queen's relatives.*

had lost credit by using such underhand methods in his attack on his master, and had not taken sufficient care to conciliate public opinion when he reconstructed the government. His conduct had destroyed his old reputation for disinterestedness and honesty.

In March 1470 the king seized the first chance of avenging himself. Some unimportant riots had broken out in Lincolnshire, originating probably in mere local quarrels, but possibly in Lancastrian intrigues. To

*King Edward drives
Warwick into exile.*

suppress this rising the king gathered a great force, carefully calling in to his banner all the peers who were offended with Warwick or, at any rate, did not belong to his family alliance. Having scattered the Lincolnshire bands, he suddenly turned upon Warwick with his army, and caught him wholly unprepared. The earl and his son-in-law Clarence were hunted out of the realm before they could collect their partisans, and fled to France; Edward seemed for the first time to be master in his own realm.

But the Wars of the Roses had one more phase to come. Warwick's name was still a power in the land, and his expulsion had been so sudden that he had not been given an opportunity of trying his strength. His old enmity for

*Warwick takes up the
cause of Henry VI.*

the house of Lancaster was completely swallowed up in his new grudge against the king that he had made. He opened negotiations with the exiled Queen Margaret, and offered to place his sword at her disposition for the purpose of overthrowing King Edward and restoring King Henry. The queen had much difficulty in forcing herself to come to terms with the man who had been the bane of her cause, but finally, was induced by Louis XI. to conclude a bargain. Warwick married his younger daughter to her son Edward, prince of Wales, as a pledge of his good faith, and swore allegiance to King Henry in the cathedral of Angers. He then set himself to stir up the

He lands in England.

Yorkshire adherents of the house of Neville to distract the attention of Edward IV. When the king had gone northward to attack them, the earl landed at Dartmouth (Sept. 1470) with a small force partly composed of Lancastrian exiles, partly of his own men. His appearance had the effect on which he had calculated. Devon rose in the Lancastrian interest; Kent, where the earl's

King Edward in exile.

name had always been popular, took arms a few days later; and London opened its gates. King Edward, hurrying south to oppose the invader, found his army melting away from his banner, and hastily took ship at Lynn and fled to Holland. He found a refuge with his brother-in-law and ally Charles the Bold, the great duke of Burgundy.

King Henry was released and replaced on the throne, and for six months Warwick ruled England as his lieutenant. But there was bitterness and mistrust between the old Lancastrian faction and the Nevilles, and Queen

Restoration of Henry VI.

Margaret refused to cross to England or to trust her son in the king-maker's hands. Her partisans doubted his sincerity, while many of the Yorkists who had hitherto followed Warwick in blind admiration found it impossible to reconcile themselves to the new régime. The duke of Clarence in particular, discontented at the triumph of Lancaster, betrayed his father-in-law, and opened secret negotiations with his exiled brother. Encouraged by the news of the dissensions among his enemies, Edward IV. resolved to try his fortune once more, and landed near Hull on the 15th of

Edward returns to England.

March 1471 with a body of mercenaries lent him by the duke of Burgundy. The campaign that followed was most creditable to Edward's generalship, but must have been fatal to him if Warwick had been honestly supported by his lieutenants. But the duke of Clarence betrayed to his brother the army which he had gathered in King

***Battle of Barnet.
Death of Warwick.***

Henry's name, and many of the Lancastrians were slow to join the earl, from their distrust of his loyalty. Edward, dashing through the midst of the slowly gathering levies of his opponents, seized London, and two days later defeated and slew Warwick at the battle of Barnet (April 13, 1471).

On that same day Queen Margaret and her son landed at Weymouth, only to hear that the earl was dead and his army scattered.

***Battle of Tewkesbury.
Death of Edward,
prince of Wales.***

But she refused to consider the struggle ended, and gathered the Lancastrians of the west for a final rally.

On the fatal day of Tewkesbury (May 3, 1471) her army was beaten, her son was slain in the flight, and the greater part of her chief captains were taken prisoner. She herself was captured next day. The

victorious Edward sent to the block the last Beaufort duke of Somerset, and nearly all the other captains of rank, whether Lancastrians or followers of Warwick. He then moved to London, which was being threatened by Kentish levies raised in Warwick's name, delivered the city, and next day caused the unhappy Henry VI. to be murdered in the Tower (May 21, 1471).

Capture of Queen Margaret and murder of Henry VI.

The descendants of Henry IV. were now extinct, and the succession question seemed settled for ever. No one dreamed of raising against King Edward the claims of the remoter heirs of John of Gaunt—the young earl of Richmond, who represented the Beauforts by a female descent, or the king of Portugal, the grandson of Gaunt's eldest daughter. Edward was now king indeed, with no over-powerful cousin at his elbow to curb his will. He had, moreover, at his disposal plunder almost as valuable as that which he had divided up in 1461—the estates of the great Neville clan and their adherents. A great career seemed open before him; he had proved himself a fine soldier and an unscrupulous diplomatist; he was in the very prime of life, having not yet attained his thirty-first year. He might have devoted himself to foreign politics and have rivalled the exploits of Edward III. or Henry V.—for the state of the continent was all in his favour—or might have set himself to organize an absolute monarchy on the ruins of the parliament and the baronage. For the successive attainders of the Lancastrians and the Nevilles had swept away many of the older noble families, and Edward's house of peers consisted for the main part of new men, his own partisans promoted for good service, who had not the grip on the land that their predecessors had possessed.

Edward IV.

But Edward either failed to see his opportunity or refused to take it. He did not plunge headlong into the wars of Louis XI. and Charles of

Burgundy, nor did he attempt to recast the institutions of the realm. He

Character of the reign.

settled down into inglorious ease, varied at long intervals by outbursts of spasmodic tyranny. It would seem that the key to his conduct was that he hated the hard work without which a despotic king cannot hope to assert his personality, and preferred leisure and vicious self-indulgence. In many ways the later years of his reign were marked with all the signs of absolutism. Between 1475 and 1483 he called only one single parliament, and that was summoned not to give him advice, or raise him money, but purely and solely to attain his brother, the duke of Clarence, whom he had resolved to

Murder of the duke of Clarence.

destroy. The duke's fate (Feb. 17, 1478) need provoke no sympathy, he was a detestable intriguer, and had given his brother just offence by a series of deeds of high-handed violence and by perpetual cavilling. But he had committed no act of real treason since his long-pardoned alliance with Warwick, and was not in any way dangerous; so that when the king caused him to be attainted, and then privately murdered in the Tower, there was little justification for the fratricide.

Edward was a thrifty king; he was indeed the only medieval monarch of England who succeeded in keeping free of debt and made his revenue suffice for his expenses. But his methods of filling his purse were often

Fiscal policy.

unconstitutional and sometimes ignominious. When the resources drawn from confiscations were exhausted, he raised "benevolences"—forced gifts extracted from men of wealth by the unspoken threat of the royal displeasure—instead of applying to parliament for new taxes. But his most profitable source of revenue was drawn from abroad. Having allied himself with his brother-in-law Charles of Burgundy against the king of France, he led an army into Picardy in 1475, and then by the treaty of Picquigny sold peace to Louis XI. for 75,000 gold crowns down, and an annual pension (or tribute as he

preferred to call it) of 50,000 crowns more. It was regularly paid up to the last year of his reign. Charles the Bold, whom he had thus deliberately deserted in the middle of their joint campaign, used the strongest language about this mean act of treachery, and with good cause. But the king cared not when his pockets were full. Another device of Edward for filling his exchequer was a very stringent enforcement of justice; small infractions of the laws being made the excuse for exorbitant fines. This was a trick which Henry VII. was to turn to still greater effect. In defence of both it may be pleaded that after the anarchy of the Wars of the Roses a strong hand was needed to restore security for life and property, and that it was better that penalties should be over-heavy rather than that there should be no penalties at all. Another appreciable source of revenue to Edward was his private commercial ventures. He owned many ships, and traded with great profit to himself abroad, because he could promise, as a king, advantages to foreign buyers and sellers with which no mere merchant could compete.

During the last period of Edward's rule England might have been described as a despotism, if only the king had cared to be a despot. But except on rare occasions he allowed his power to be disguised under the old machinery of the medieval monarchy, and made no parade of his autocracy. Much was pardoned by the nation to one who gave them comparatively efficient and rather cheap government, and who was personally easy of access, affable and humorous. It is with little justification that he has been called the "founder of the new monarchy," and the spiritual ancestor of the Tudor despotism. Another king in his place might have merited such titles, but Edward was too careless, too unsystematic, too lazy, and too fond of self-indulgence to make a real tyrant. He preferred to be a man of pleasure and leisure, only awaking now and then to perpetrate some act of arbitrary cruelty.

England was not unprosperous under him. The lowest point of her fortunes had been reached under the administration of Margaret of Anjou, during the weary years that preceded the outbreak of the civil wars in 1459.

Condition of the country.

At that time the government had been bankrupt, foreign trade had almost disappeared, the French and pirates of all nations had possession of the Channel, and the nation had lost heart, because there seemed no way out of the trouble save domestic strife, to which all looked forward with dismay. The actual war proved less disastrous than had been expected. It fell heavily upon the baronage and their retainers, but passed lightly, for the most part, over the heads of the middle classes. The Yorkists courted the approval of public opinion by their careful avoidance of pillage and requisitions; and the Lancastrians, though less scrupulous, only once launched out into general raiding and devastation, during the advance of the queen's army to St Albans in the early months of 1461. As a rule the towns suffered little or nothing—they submitted to the king of the moment, and were always spared by the victors. It is one of the most curious features of these wars that no town ever stood a siege, though there were several long and arduous sieges of baronial castles, such as Harlech, Alnwick and Bamborough. Warwick, with his policy of conciliation for the masses and hard blows for the magnates, was mainly responsible for this moderation. In battle he was wont to bid his followers spare the commons in the pursuit, and to smite only the knights and nobles. Towton, where the Yorkist army was infuriated by the harrying of the Midlands by their enemies in the preceding campaign, was the only fight that ended in a general massacre. There were, of course, many local feuds and riots which led to the destruction of property; well-known instances are the private war about Caister Castle between the duke of Norfolk and the Pastons, and the "battle of Nibley Green," near Bristol, between the Berkeleys and the Talbots. But on the whole there was no ruinous devastation of the land. Prosperity seems to

have revived early during the rule of York; Warwick had cleared the seas of pirates, and both he and King Edward were great patrons of commerce, though the earl's policy was to encourage trade with France, while his master wished to knit up the old alliance with Flanders by adhering to the

***Commercial
development.***

cause of Charles of Burgundy. Edward did much in his later years to develop interchange of commodities with the Baltic, making treaties with the Hanseatic League which displeased the merchants of London, because of the advantageous terms granted to the foreigner. The east coast ports seem to have thriven under his rule, but Bristol was not less prosperous. On the one side, developing the great salt-fish trade, her vessels were encompassing Iceland, and feeling their way towards the Banks of the West; on the other they were beginning to feel their way into the Mediterranean. The famous William Canynges, the patriarch of Bristol merchants, possessed 2500 tons of shipping, including some ships of 900 tons, and traded in every sea. Yet we still find complaints that too much merchandize reached and left England in foreign bottoms, and King Edward's treaty with the Hansa was censured mainly for this reason. Internal commerce was evidently developing in a satisfactory style, despite of the wars; in especial raw wool was going out of England in less bulk than of old, because cloth woven at home was becoming the staple export. The woollen manufactures which had begun in the eastern counties in the 14th century were now spreading all over the

***Manufactures and
wool trade.***

land, taking root especially in Somersetshire, Yorkshire and some districts of the Midlands. Coventry, the centre of a local woollen and dyeing industry, was probably the inland town which grew most rapidly during the 15th century. Yet there was still a large export of wool to Flanders, and the long pack-trains of the Cotswold flockmasters still wound eastward to the sea for the benefit of the merchants of the staple and the continental manufacturer.

As regards domestic agriculture, it has been often stated that the 15th century was the golden age of the English peasant, and that his prosperity was little affected either by the unhappy French wars of Henry VI. or by the

State of the rural population.

Wars of the Roses. There is certainly very little evidence of any general discontent among the rural population, such as had prevailed in the times of Edward III. or Richard II. Insurrections that passed as popular, like the risings of Jack Cade and Robin of Redesdale, produced manifestos that spoke of political grievances but hardly mentioned economic ones. There is a bare mention of the Statute of Labourers in Jack Cade's ably drafted chapter of complaints. It would seem that the manorial grudges between landowner and peasant, which had been so fierce in the 14th century, had died down as the lords abandoned the old system of working their demesne by villein labour. They were now for the most part letting out the soil to tenant-farmers at a moderate rent, and the large class of yeomanry created by this movement seem to have been prosperous. The less popular device of turning old manorial arable land into sheep-runs was also known, but does not yet seem to have grown so common as to provoke the popular discontents which were to prevail under the Tudors. Probably such labour as was thrown out of work by this tendency was easily absorbed by the growing needs of the towns. Some murmurs are heard about "enclosures," but they are incidental and not widely spread.

One of the best tests of the prosperity of England under the Yorkist rule seems to be the immense amount of building that was on hand. Despite the needs of civil war, it was not on castles that the builders' energy was spent;

Architecture.

the government discouraged fortresses in private hands, and the dwellings of the new nobility of Edward IV. were rather splendid manor-houses, with some slight external protection of moat and gate-house, than old-fashioned castles. But the church-building of the time is enormous and magnificent. A

very large proportion of the great Perpendicular churches of England date back to this age, and in the cathedrals also much work was going on.

Material prosperity does not imply spiritual development, and it must be confessed that from the intellectual and moral point of view 15th-century England presents an unpleasing picture. The Wycliffite movement, the one

*Religious condition
of the country.*

phenomenon which at the beginning of the century seemed to give some promise of better things, had died down under persecution. It lingered on in a subterranean fashion among a small class in the universities and the minor clergy, and had some adherents among the townsfolk and even among the peasantry. But the Lollards were a feeble and helpless minority; they no longer produced writers, organizers or missionaries. They continued to be burnt, or more frequently to make forced recantations, under the Yorkist rule, though the list of trials is not a long one. Little can be gathered concerning them from chronicles or official records. We only know that they continued to exist, and occasionally produced a martyr. But the governing powers were not fanatics, bent on seeking out victims; the spirit of Henry V. and Archbishop Arundel was dead. The life of the church seems, indeed, to have been in a more stagnant and torpid condition in this age than at any other period of English history. The great prelates from Cardinal Beaufort down to Archbishops Bouchier and Rotherham, and Bishop John Russell—trusted supporters of the Yorkist dynasty—were mere politicians with nothing spiritual about them. Occasionally they appear in odious positions. Rotherham was the ready tool of Edward IV. in the judicial murder of Clarence. Russell became the obsequious chancellor of Richard III. Bouchier made himself responsible in 1483 for the taking of the little duke of York from his mother's arms in order to place him in the power of his murderous uncle. It is difficult to find a single bishop in the whole period who was respected for his piety or virtue. The best of them were capable statesmen, the worst were mean time-servers. Few of the

higher clergy were such patrons of learning as many prelates of earlier ages. William Grey of Ely and James Goldwell of Norwich did something for scholars, and there was one bishop in the period who came to sad grief through an intellectual activity which was rare among his contemporaries. This was the eccentric Reginald Pecock of Chichester, who, while setting himself to confute Lollard controversialists, lapsed into heresy by setting “reason” above “authority.” He taught that the organization and many of the dogmas of the medieval church should be justified by an appeal to private judgment and the moral law, rather than to the scriptures, the councils, or the fathers. For taking up this dangerous line of defence, and admitting his doubts about several received articles of faith, he was attacked by the Yorkist archbishop Bourchier in 1457, compelled to do penance, and shut up in a monastery for the rest of his life. He seems to have had no school of followers, and his doctrines died with him.

In nothing is the general stagnation of the church in the later 15th century shown better than by the gradual cessation of the monastic chronicles. The stream of narrative was still flowing strongly in 1400; by 1485 it has run dry, even St Albans, the mother of historians, produced no annalist after Whethamstede, whose story ceases early in the Wars of the Roses. The only monastic chronicler who went on writing for a few years after the extinction of the house of York was the “Croyland continuator.” For the last two-thirds of the century the various “London chronicles,” the work of laymen, are much more important than anything which was produced in the religious houses. The regular clergy indeed seem to have been sunk in intellectual torpor. Their numbers were falling off, their zeal was gone; there is little good to be said of them save that they were still in some cases endowing England with splendid architectural decorations. But even in the wealthier abbeys we find traces of thriftless administration, idleness, self-indulgence and occasionally grave moral scandals. The parochial clergy were probably in a healthier

condition; but the old abuses of pluralism and non-residence were as rampant as ever, and though their work may have been in many cases honourably carried out, it is certain that energy and intelligence were at a low ebb.

The moral faults of the church only reflected those of the nation. It was a hard and selfish generation which witnessed the Wars of the Roses and the dictatorship of Edward IV. The iniquitous French war, thirty years of plunder and demoralization, had corrupted the minds of the governing classes before the civil strife began.

Moral decay of the nation.

Afterwards the constant and easy changes of allegiance, as one faction or the other was in the ascendant, the wholesale confiscations and attainders, the never-ending executions, the sudden prosperity of adventurers, the premium on time-serving and intrigue, sufficed to make the whole nation cynical and sordid. The claim of the Yorkists to represent constitutional opposition to misgovernment became a mere hypocrisy. The claim of the Lancastrians to represent loyalty soon grew almost as hollow. Edward IV. with his combination of vicious self-indulgence and spasmodic cruelty was no unfit representative of his age.

The "Paston Letters."

The *Paston Letters*, that unique collection of the private correspondence of a typical family of *nouveaux riches*, thriftless, pushing, unscrupulous, give us the true picture of the time. All that can be said in favour of the Yorkists is that they restored a certain measure of national prosperity, and that their leaders had one redeeming virtue in their addiction to literature. The learning which had died out in monasteries began to flourish again in the corrupt soil of the court. Most of Edward's favourites had literary tastes. His constable Tiptoft, the "butcher earl" of Worcester, was a figure who might have stepped out of

Influence of the Italian Renaissance.

the Italian Renaissance. A graduate of Pavia, a learned lawyer, who translated Caesar and Cicero, composed works both in Latin and English, and habitually

impaled his victims, he was a man of a type hitherto unknown in England. Antony, Lord Rivers, the queen's brother, was a mere adventurer, but a poet of some merit, and a great patron of Caxton. Hastings, the Bouchiers, and other of the king's friends were minor patrons of literature. It is curious to find that Caxton, an honest man, and an enthusiast as to the future of the art of printing, which he had introduced into England, waxes enthusiastic as to the merits of the intelligent but unscrupulous peers who took an interest in his endeavours. Of the detestable Tiptoft he writes that "there flowered in virtue and cunning none like him among the lords of the temporalty in science and moral virtue"! And this is no time-serving praise of a patron, but disinterested tribute to a man who had perished long before on the scaffold.

The uneventful latter half of the reign of Edward IV. ended with his death at the age of forty-one on the 9th of April 1483. He had ruined a splendid constitution by the combination of sloth and evil living, and during his last

Death of Edward IV.

years had been sinking slowly into his grave, unable to take the field or to discharge the more laborious duties of royalty. Since Clarence's death he had been

gradually falling into the habit of transferring the conduct of great matters of state to his active and hard-working youngest brother, Richard, duke of Gloucester, who had served him well and faithfully ever since he first took

Richard, duke of Gloucester.

the field at Barnet. Gloucester passed as a staid and religious prince, and if there was blood on his hands, the same could be said of every statesman of his time.

His sudden plunge into crime and usurpation after his brother's death was wholly unexpected by the nation. Indeed it was his previous reputation for loyalty and moderation which made his scandalous *coup d'état* of 1483 possible. No prince with a sinister reputation would have had the chance of executing the series of crimes which placed him on the throne. But when Richard declared that he was the victim of plots and intrigues, and was

striking down his enemies only to defend his own life and honour, he was for some time believed.

At the moment of King Edward's death his elder son by Elizabeth Woodville, Edward, prince of Wales, was twelve; his younger son Richard, duke of York, was nine. It was clear that there would be a long minority, and that the only possible claimants for the regency were the queen and Richard of Gloucester. Elizabeth was personally unpopular, and the rapacity and insolence of her family was well known. Hence when Richard of Gloucester seized on the person of the young king, and imprisoned Lord Rivers and Sir Richard Grey, the queen's brother and son, on the pretence that they were conspiring against him, his action was regarded with equanimity by the people. Nor did the fact that the duke took the title of "protector and defender of the realm" cause any surprise. Suspensions only became rife after Richard had seized and beheaded without any trial, Lord Hastings, the late king's most familiar friend, and had arrested at the same moment the archbishop of York, Morton, bishop of Ely, and Lord Stanley, all persons of unimpeachable loyalty to the house of Edward IV. It was not plausible to accuse such persons of plotting with the queen to overthrow the protector, and public opinion began to turn against Gloucester. Nevertheless he went on recklessly with his design, having already enlisted the support of a party of the greater peers, who were ready to follow him to any length of treason. These confidants, the duke of Buckingham, the lords Howard and Lovel, and a few more, must have known from an early date that he was aiming at the crown, though it is improbable that they suspected that his plan involved the murder of the rightful heirs as well as mere usurpation.

On the 16th of June, Richard, using the aged archbishop Bouchier as his tool, got the little duke of York out of his mother's hands, and sent him to join his brother in the Tower. A few days later, having packed London with

his own armed retainers and those of Buckingham and his other confidants, he openly put forward his pretensions to the throne. Edward IV., as he asserted, had been privately contracted to Lady Eleanor Talbot before he ever met Queen Elizabeth. His children therefore were bastards, the offspring of a bigamous union. As to the son and daughter of the duke of Clarence, their blood had been corrupted by their father's attainder, and they could not be reckoned as heirs to the crown. He himself, therefore, was the legitimate successor of Edward IV. This preposterous theory was set forth by Buckingham, first to the mayor and corporation of London, and next day to an assembly of the estates of the realm held in St Paul's. Cowed by the show of armed force, and remembering the fate of Hastings, the two assemblies received the claim with silence which gave consent. Richard,

***Richard III.
crowned.***

after a hypocritical show of reluctance, allowed himself to be saluted as king, and was crowned on the 6th of July 1483. Before the coronation ceremony he had issued orders for the execution of the queen's relatives, who had been in prison since the beginning of May. He paid his adherents lavishly for their support, making Lord Howard duke of Norfolk, and giving Buckingham enormous grants of estates and offices.

Having accomplished his *coup d'état* Richard started for a royal progress through the Midlands, and a few days after his departure sent back secret orders to London for the murder of his two nephews in the Tower. There is

***Murder of the
princes.***

no reason to doubt that they were secretly smothered on or about the 15th of July by his agent Sir James Tyrrell, or that the bones found buried under a staircase in the fortress two hundred years after belonged to the two unhappy lads. But the business was kept dark at the time, and it was long before any one could assert with certainty that they were dead or alive. Richard never published any statement as to their end, though some easy tale of a fever, a conflagration, or an accident might have served him better than the mere

silence that he employed. For while many persons believed that the princes still existed there was room for all manner of impostures and false rumours.

The usurper's reign was from the first a troubled one. Less than three months after his coronation the first insurrection broke out; it was headed—strangely enough—by the duke of Buckingham, who seems to have been shocked by the murder of the princes; he must have been one of the few who had certain information of the crime. He did not take arms in his own cause, though after the house of York the house of Buckingham had the best claim to the throne, as representing Thomas of Woodstock, the youngest son of Edward III. His plan was to unite the causes of York and Lancaster by wedding the Lady Elizabeth, the eldest sister of the murdered princes, to Henry Tudor, earl of Richmond, a young exile who represented the very doubtful claim of the Beauforts to the Lancastrian heritage. Henry was the son of Margaret Beaufort, the daughter of John, first duke of Somerset, and the niece of Edmund, second duke, who fell at St Albans. All her male kinsmen had been exterminated in the Wars of the Roses.

Buckingham's rebellion.

This promising scheme was to be supported by a rising of those Yorkists who rejected the usurpation of Richard III., and by the landing on the south coast of Henry of Richmond with a body of Lancastrian exiles and foreign mercenaries. But good organization was wanting, and chance fought for the king. A number of scattered risings in the south were put down by Richard's troops, while Buckingham, who had raised his banner in Wales, was prevented from bringing aid by a week of extraordinary rains which made the Severn impassable. Finding that the rest of the plan had miscarried, Buckingham's retainers melted away from him, and he was forced to fly. A few days later he was betrayed, handed over to the king, and beheaded (Nov. 2, 1483). Meanwhile Richmond's little fleet was dispersed by the same storms that

Execution of Buckingham.

scattered Buckingham's army, and he was forced to return to Brittany without having landed in England.

Here King Richard's luck ended. Though he called a parliament early in 1484, and made all manner of gracious promises of good governance, he felt that his position was insecure. The nation was profoundly disgusted with his unscrupulous policy, and the greater part of the leaders of the late insurrection had escaped abroad and were weaving new plots. Early in the spring he lost his only son and heir, Edward, prince of Wales, and the question of the succession to the crown was opened from a new point of view. After some hesitation Richard named his nephew John de la Pole, earl of Lincoln, a son of his sister, as his heir. But he also bethought him of another and a most repulsive plan for strengthening his position. His queen, Anne Neville, the daughter of the kingmaker, was on her death-bed. With indecent haste he began to devise a scheme for marrying his niece Elizabeth, whose brothers he had murdered but a year before. Knowledge of this scheme is said to have shortened the life of the unfortunate Anne, and many did not scruple to say that her husband had made away with her.

When the queen was dead, and some rumours of the king's intentions got abroad, the public indignation was so great that Richard's councillors had to warn him to disavow the projected marriage, if he wished to retain a single

***Henry of Richmond
lands at Milford.***

adherent. He yielded, and made public complaint that he had been slandered—which few believed.

Meanwhile the conspirators of 1483 were busy in organizing another plan of invasion. This time it was successfully carried out, and the earl of Richmond landed at Milford Haven with many exiles, both Yorkists and Lancastrians, and 1000 mercenaries lent him by the princess regent of France. The Welsh joined him in great numbers, not forgetting that by his Tudor descent he was their own kinsman, and when he reached Shrewsbury English adherents also began to flock in to his banner,

Battle of Bosworth.

for the whole country was seething with discontent, and Richard III. had but few loyal adherents. When the rivals met at Bosworth Field (Aug. 22, 1485) the king's army was far the larger, but the greater part of it was determined not to fight. When battle was joined some left the field and many joined the pretender. Richard, however, refused to fly, and was slain, fighting to the last, along with the duke of Norfolk and a few other of his more desperate partisans. The slaughter was small, for treason, not the sword, had settled the day. The battered crown which had fallen from Richard's helmet was set on the victor's head by Lord Stanley, the chief of the Yorkist peers who had joined his standard, and his army hailed him by the new title of Henry VII.

No monarch of England since William the Conqueror, not excluding Stephen and Henry IV., could show such a poor title to the throne as the first of the Tudor kings. His claim to represent the house of Lancaster was

Henry VII.

of the weakest—when Henry IV. had assented to the legitimating of his brothers the Beauforts, he had attached a clause to the act, to provide that they were given every right save that of counting in the line of succession to the throne. The true heir to the house of John of Gaunt should have been sought among the descendants of his eldest legitimate daughter, not among those of his base-born sons. The earl of Richmond had been selected by the conspirators as their figure-head mainly because he was known as a young man of ability, and because he was unmarried and could therefore take to wife the princess Elizabeth, and so absorb the Yorkist claim in his own. This had been the essential part of the bargain, and Henry was ready to carry it out, but he insisted that he should first be recognized as king in his own right, lest it might be held that he ruled merely as his destined wife's consort. He was careful to hold his first parliament and get his title acknowledged before he married the princess. When he had done so, he had the triple claim by conquest, by election and by inheritance, safely united.

Yet his position was even then insecure; the vicissitudes of the last thirty years had shaken the old prestige of the name of king, and a weaker and less capable man than Henry Tudor might have failed to retain the crown that he had won. There were plenty of possible pretenders in existence; the earl of Lincoln, whom Richard III. had recognized as his heir, was still alive; the two children of the duke of Clarence might be made the tools of conspirators; and there was a widespread doubt as to whether the sons of Edward IV. had actually died in the Tower. The secrecy with which their uncle had carried out their murder was destined to be a sore hindrance to his successor.

Bosworth Field is often treated as the last act of the Wars of the Roses. This is an error; they were protracted for twelve years after the accession of Henry VII., and did not really end till the time of Blackheath Field and the siege of Exeter (1497). The position of the first Tudor king is misconceived if his early years are regarded as a time of strong governance and well-established order.

Early years of the reign.

On the contrary he was in continual danger, and was striving with all the resources of a ready and untiring mind to rebuild foundations that were absolutely rotten. Phenomena like the Cornish revolt (which recalls Cade's insurrection) and the Yorkshire rising of 1489, which began with the death

Insurrections and plots.

of the earl of Northumberland, show that at any moment whole counties might take arms in sheer lawlessness, or for some local grievance. Loyalty was such an uncertain thing that the king might call out great levies yet be forced to doubt whether they would fight for him—at Stoke Field it seems that a large part of Henry's army misbehaved, much as that of Richard III. had done at Bosworth. The demoralization brought about by the evil years between 1453 and 1483 could not be lived down in a day—any sort of treason was possible to the generation that had seen the career of Warwick and the usurpation of Gloucester. The survivors of that time were capable of

taking arms for any cause that offered a chance of unreasonable profit, and no one's loyalty could be trusted. Did not Sir William Stanley, the best paid of those who betrayed Richard III., afterwards lose his head for a deliberate plot to betray Henry VII.? The various attempts that were made to overturn the new dynasty seem contemptible to the historian of the 20th century. They were not so contemptible at the time, because England and Ireland were full of adventurers who were ready to back any cause, and who looked on the king of the moment as no more than a successful member of their own class—a base-born Welshman who had been lucky enough to become the figurehead of the movement that had overturned an unpopular usurper. The organizing spirits of the early troubles of the reign of Henry VII. were irreconcilable Yorkists who had suffered by the change of dynasty; but their hopes of success rested less on their own strength than on the not ill-founded notion that England would tire of any ruler who had to raise taxes and reward his partisans. The position bore a curious resemblance to that of the early years of Henry IV., a king who, like Henry VII., had to vindicate a doubtful elective title to the throne by miracles of cunning and activity. The later representative of the house of Lancaster was fortunate, however, in having less formidable enemies than the earlier; the power of the baronage had been shaken by the Wars of the Roses no less than the power of the crown; so many old estates had passed rapidly from hand to hand, so many old titles were represented by upstarts destitute of local influence, that the feudal danger had become far less. Risings like that of the Percies in 1403 were not the things which the seventh Henry had to fear. He was lucky too in having no adversary of genius of the type of Owen Glendower. Welsh national spirit indeed was enlisted on his own side. Yet leaderless seditions and the plots of obvious impostors sufficed to make his throne tremble, and a ruler less resolute, less wary, and less unscrupulous might have been overthrown.

The first of the king's troubles was an abortive rising in the north riding of Yorkshire, the only district where Richard III. seems to have enjoyed personal popularity. It was led by Lord Lovel, Richard's chamberlain and admiral; but the insurgents dispersed when Henry marched against them with a large force (1486), and Lovel took refuge in Flanders with Margaret of York, the widow of Charles the Bold of Burgundy, whose dower towns were the refuge of all English exiles, and whose coffers were always open to subsidize plots against her niece's husband. Under the auspices of this rancorous princess the second conspiracy was hatched in the following year (1487). Its leaders were Lovel and John, earl of Lincoln, whom Richard III. had designated as his heir. But the Yorkist banner was to be raised, not in the name of Lincoln, but in that of the boy Edward of Clarence, then a prisoner in the Tower. His absence and captivity might seem a fatal

hindrance, but the conspirators had prepared a
Lambert Simnel. "double" who was to take his name till he could be released. This was a lad named Lambert Simnel, the son of an Oxford organ-maker, who bore a personal resemblance to the young captive. The conspirators seem to have argued that Henry VII. would not proceed to murder the real Edward, but would rather exhibit him to prove the imposition; if he took the more drastic alternative Lincoln could fall back on his own claim to the crown.

In May 1487 Lincoln and Lovel landed in Ireland accompanied by other exiles and 2000 German mercenaries. The cause of York was popular in the Pale, and the Anglo-Irish barons seem to have conceived the notion that Henry VII. was likely to prove too strong and capable a king to suit their convenience. The invading army was welcomed by almost all the lords, and the spurious Clarence was crowned at Dublin by the name of Edward VI. A few weeks later Lincoln had recruited his army with 4000 or 5000 Irish adventurers under Thomas Fitzgerald, son of the earl of Kildare, and had taken ship for England. He landed in Lancashire, and pushed forward,

hoping to gather the English Yorkists to his aid. But few had joined him when King Henry brought him to action at Stoke, near *Battle of Stoke.* Newark, on the 17th of July. Despite the doubtful conduct of part of the royal army, and the fierce resistance of the Germans and Irish, the rebel army was routed. Lincoln and Fitzgerald were slain; Lovel disappeared in the rout; the young impostor Simnel was taken prisoner. Henry treated him with politic contempt, and made him a cook boy in his kitchen. He lived for many years after in the royal household. The Irish lords were pardoned on renewing their oaths of fealty; the king did not wish to entangle himself in costly campaigns beyond St George's Channel till he had made his position in England more stable.

The Yorkist cause was crushed for four years, till it was raised again by Margaret of Burgundy, with an imposture even more preposterous than that of Lambert Simnel. In the intervening space, however, while Henry VII. was comparatively undisturbed by domestic rebellion, *Foreign alliances.* he found opportunity for a first tentative experiment at interfering in European politics. He allied himself with Ferdinand and Isabella of Spain and with Maximilian of Austria, who was ruling the Netherlands in behalf of his young son, Philip, the heir of the Burgundian inheritance, for the purpose of preventing France from annexing Brittany, the last great fief of the crown which had not yet been absorbed into the Valois royal domain. This struggle, the only continental war in which the first of the Tudors risked his fortunes, was not prosecuted with any great energy, and came to a necessary end when Anne, duchess of Brittany, in whose behalf it was being waged, disappointed her allies by marrying Charles VIII. of her own free will (Dec. 1491). Henry very wisely proceeded to get out of the war on the best terms possible, and, to the disgust of Maximilian, sold peace to the French king for 600,000 crowns, as well as an additional sum representing arrears of the pension which Louis

Treaty of Étaples.

XI. had been bound to pay to Edward IV. This treaty of Étaples was, in short, a repetition of Edward's treaty of Picquigny, equally profitable and less disgraceful, for Maximilian of Austria, whom Henry thus abandoned, had given more cause of offence than had Charles of Burgundy in 1475. Domestic malcontents did not scruple to hint that the king, like his father-in-law before him, had made war on France, not with any hope of renewing the glories of Crécy or Agincourt, still less with any design of helping his allies, but purely to get first grants from his parliament, and then a war indemnity from his enemies. In any case he was wise to make peace. France was now too strong for England, and both Maximilian and Ferdinand of Spain were selfish and shiftily allies. Moreover, it was known that the one dominating desire of Charles VIII. was to conquer Italy, and it was clear that his ambitions in that direction were not likely to prove dangerous to England.

In the year of the treaty of Étaples the Yorkist conspiracies began once more to thicken, and Henry was fortunate to escape with profit from the French war before his domestic troubles recommenced. Ever since 1483 it

Yorkist plots. Perkin Warbeck.

had been rumoured that one or both of the sons of Edward IV. had escaped, not having been murdered in the Tower. Of this widespread belief the plotters now took advantage; they held that much more could be accomplished with such a claim than by using that of the unfortunate Edward of Clarence, whose chances were so severely handicapped by his being still the prisoner of Henry VII. The scheme for producing a false Plantagenet was first renewed in Ireland, where Simnel's imposture had been so easily taken up a few years before. The tool selected was one Perkin Warbeck, a handsome youth of seventeen or eighteen, the son of a citizen of Tournai, who had lived for some time in London, where Perkin had actually been born. There is a bare possibility that the young adventurer may have been an illegitimate son of Edward IV.; his likeness to the late king was much noticed. When he

declared himself to be Richard of York, he obtained some support in Ireland from the earl of Desmond and other lords; but he did not risk open rebellion till he had visited Flanders, and had been acknowledged as her undoubted nephew by Duchess Margaret. Maximilian of Austria also took up his cause, as a happy means of revenging himself on Henry VII. for the treaty of Étaples. There can be small doubt that both the duchess and the German King (Maximilian had succeeded to his father's crown in 1493) were perfectly well aware that they were aiding a manifest fraud. But they made much of Perkin, who followed the imperial court for two years, while his patron was intriguing with English malcontents. The emissaries from Flanders got many promises of assistance, and a formidable rising might have taken place had not Henry VII. been well served by his spies. But in the winter of 1494-1495 the traitors were themselves betrayed, and a large number of arrests were made, including not only Lord Fitzwalter and a number of well-known knights of Yorkist families, but Sir William Stanley, the king's chamberlain, who had been rewarded with enormous gifts for his good service at Bosworth, and was reckoned one of the chief supports of the throne. Stanley and several others were beheaded, the rest hanged or imprisoned. This vigorous action on the part of the king seems to have cowed all Warbeck's supporters on English soil. But the pretender nevertheless sailed from Flanders in July 1495 with a following of 2000 exiles and German mercenaries. He attempted to land at Deal, but his vanguard was destroyed by Kentish levies, and he drew off and made for Ireland. Suspecting that this would be his goal, King Henry had been doing his best to strengthen his hold on the Pale, whither he had sent his capable servant Sir Edward Poynings as lord deputy. Already before Warbeck's arrival Poynings had arrested the earl of Kildare, Simnel's old supporter, cowed some of the Irish by military force, and bought over others by promises of subsidies and pensions. But his best-remembered achievement was that he had induced the Irish parliament to pass the ordinances known

as “Poynings’ Law,” by which it acknowledged that it could pass no legislation which had not been approved by the king and his council, and agreed that all statutes passed by the English parliament should be in force in Ireland. That such terms could be imposed shows the strength of Poynings’ arm, and his vigour was equally evident when Warbeck came ashore in Munster in July 1495. Few joined the impostor save the earl of Desmond, and he was repulsed from Waterford, and dared not face the army which the lord deputy put into the field against him. Thereupon, abandoning his Irish schemes, Warbeck sailed to Scotland, whose young king James IV. had just been seduced by the emperor Maximilian into declaring war on England. He promised the Scottish king Berwick and 50,000 crowns in return for the aid of an army. James took the offer, gave him the hand of his kinswoman Catherine Gordon, daughter of the earl of Huntly, and took him forth for a raid into Northumberland (1496). But a pretender backed by Scottish spears did not appeal to the sympathies of the English borderers. The expedition fell flat; not a man joined the banner of the white rose, and James became aware that he had set forth on a fool’s errand. But Warbeck soon found other allies of a most unexpected sort. The heavy taxation granted by the English parliament for the Scottish war had provoked discontent and rioting in the south-western counties. In Cornwall especially the disorders grew to such a pitch that local

Cornish rebellion.

demagogues called out several thousand men to resist the tax-collectors, and finally raised open rebellion, proposing to march on London and compel the king to dismiss his ministers. These spiritual heirs of Jack Cade were Flammock, a lawyer of Bodmin, and a farrier named Michael Joseph. Whether they had any communication with Warbeck it is impossible to say; there is no proof of such a connexion, but their acts served him well. A Cornish army marched straight on London, picking up some supporters in Devon and Somerset on

their way, including a discontented baron, Lord Audley, whom they made their captain.

So precarious was the hold of Henry VII. on the throne that he was in great danger from this outbreak of mere local turbulence. The rebels swept over five counties unopposed, and were only stopped and beaten in a hard

Battle of Blackheath. fight on Blackheath, when they had reached the gates of London. Audley, the farrier and the lawyer were all captured and executed (June 18, 1497). But the crisis

was not yet at an end. Warbeck, hearing of the rising, but not of its suppression, had left Scotland, and appeared in Devonshire in August. He rallied the wrecks of the west country rebels, and presently appeared before the gates of Exeter with nearly 8000 men. But the citizens held out against him, and presently the approach of the royal army was reported. The pretender led off his horde to meet the relieving force, but when he reached Taunton he found that his followers were so dispirited that disaster was certain. Thereupon he absconded by night, and took sanctuary in the abbey of Beaulieu. He offered to confess his imposture if he were promised his life, and the king accepted the terms. First at Taunton and again at Westminster, Perkin publicly recited a long narrative of his real parentage, his frauds and his adventures. He was then consigned to not over strict confinement in the Tower, and might have fared no worse than Lambert Simnel if he had possessed his soul in patience. But in the next year he corrupted his warders, broke out from his prison, and tried to escape beyond seas. He was captured, but the king again spared his life, though he was placed for the future in a dungeon “where he could see neither moon nor sun.” Even this did not tame the impostor’s mercurial temperament. In 1499 he again planned an escape, which was to be shared by another prisoner, the unfortunate Edward of Clarence, earl of Warwick, whose cell was in the storey above his own. But there were traitors among the Tower officials whom they suborned to help them, and the king was warned of the plot. He

allowed it to proceed to the verge of execution, and then arrested both the false and the true Plantagenet. Evidence of a suspicious character was produced to show that they had planned rebellion as well as mere escape, and both were put to death with some of their accomplices. Warbeck deserved all that he reaped, but the unlucky Clarence's fate estranged many hearts from the king. The simple and weakly young man, who had spent fifteen of his twenty-five years in confinement, had, in all probability, done no more than scheme for an escape from his dungeon. But as the true male heir of the house of Plantagenet he was too dangerous to be allowed to survive.

Execution of Warbeck and Edward of Clarence.

The turbulent portion of the reign of Henry VII. came to an end with Blackheath Field and the siege of Exeter. From that time forward the Tudor dynasty was no longer in serious danger; there were still some abortive plots, but none that had any prospect of winning popular support. The chances of Warbeck and Clarence had vanished long before they went to the scaffold. The Yorkist claim, after Clarence's death, might be supposed to have passed to his cousin Edmund, earl of Suffolk, the younger brother of that John, earl of Lincoln, who had been declared heir to the crown by Richard III., and had fallen at Stoke field. Fully conscious of the danger of his position, Suffolk fled to the continent, and lived for many years as a pensioner of the emperor Maximilian. Apparently he dabbled in treason; it is at any rate certain that in 1501 King Henry executed some, and imprisoned others, of his relatives and retainers. But his plots, such as they were, seem to have been futile. There was no substratum of popular discontent left in England on which a dangerous insurrection might be built up. It was to be forty years before another outbreak of turbulence against the crown was to break forth.

Establishment of the Tudor dynasty.

VI. THE TUDOR DESPOTISM AND THE BEGINNINGS OF THE REFORMATION (1497-1528)

The last twelve years of the reign of Henry VII. present in most respects a complete contrast to the earlier period, 1485-1497. There were no more rebellions, and—as we have already seen—no more plots that caused any serious danger. Nor did the king indulge his unruly subjects in foreign wars, though he was constantly engaged in negotiations with France, Scotland, Spain and the emperor, which from time to time took awkward turns. But Henry was determined to win all that he could by diplomacy, and not by force of arms. His cautious, but often unscrupulous, dealings with the rival continental powers had two main ends: the first was to keep his own position safe by playing off France against the Empire and Spain; the second was to get commercial advantages by dangling his alliance before each power in turn. Flanders was still the greatest customer of England, and it was therefore necessary above all things to keep on good terms with the archduke Philip, the son of Maximilian, who on coming of age had taken over the rule of the Netherlands from his father. The king's great triumphs were the conclusion of the *Intercursus Magnus* of 1496 and the *Intercursus Malus* (so called by the Flemings, not by the English) of 1506. The former provided for a renewal of the old commercial alliance with the house of Burgundy, on the same terms under which it had existed in the time of Edward IV.; the rupture which had taken place during the years when Maximilian was backing Perkin Warbeck had been equally injurious to both parties. The *Malus Intercursus* on the other hand gave England some privileges which she had not before enjoyed—exemption from local tolls in Antwerp and Holland, and a licence for English merchants to sell cloth retail as well as wholesale—a concession which hit the Netherland small traders and

middlemen very hard. Another great commercial advantage secured by Henry VII. for his subjects was an increased share of the trade to the Scandinavian countries. The old treaties of Edward IV. with the Hanseatic League had left the Germans still in control of the northern seas. Nearly all the Baltic goods, and most of those from Denmark and Norway, had been reaching London or Hull in foreign bottoms. Henry allied himself with John of Denmark, who was chafing under the monopoly of the Hansa, and obtained the most ample grants of free trade in his realms. The Germans murmured, but the English shipping in eastern and northern waters continued to multiply. Much the same policy was pursued in the Mediterranean. Southern goods hitherto had come to Southampton or Sandwich invariably in Venetian carracks, which took back in return English wool and metals. Henry concluded a treaty with Florence, by which that republic undertook to receive his ships in its harbours and to allow them to purchase all eastern goods that they might require. From this time forward the Venetian monopoly ceased, and the visits of English merchant vessels to the Mediterranean became frequent and regular.

Nor was it in dealing with old lines of trade alone that Henry Tudor showed himself the watchful guardian of the interests of his subjects. He must take his share of credit for the encouragement of the exploration of the seas of the Far West. The British traders had already pushed far into the Atlantic before Columbus discovered America; fired by the success of the great navigator they continued their adventures, hoping like him to discover a short “north-west passage” to Cathay and Japan. With a charter from the king giving him leave to set up the English banner on all the lands he might discover, the Bristol Genoese trader John Cabot successfully passed the great sea in 1497, and discovered Newfoundland and its rich fishing stations. Henry rewarded him with a pension of £20 a year, and encouraged him to further exploration, in which he discovered all the American

English navigators.

coastline from Labrador to the mouth of the Delaware—a great heritage for England, but one not destined to be taken up for colonization till more than a century had passed.

Henry's services to English commerce were undoubtedly of far more importance to the nation than all the tortuous details of his foreign policy. His chicanery need not, however, be censured over much, for the princes

***Foreign policy of
Henry VII.***

with whom he had to deal, and notably Ferdinand and Maximilian, were as insincere and selfish as himself.

Few diplomatic haggings have been so long and so sordid as that between England and Spain over the marriage treaty which gave the hand of Catherine of Aragon first to Henry's eldest son Arthur, and then, on his premature death in 1502, to his second son Henry. The English king no doubt imagined that he had secured a good bargain, as he had kept the princess's dowry, and yet never gave Ferdinand any practical assistance in war or peace. It is interesting to find that he had for some time at the end of his reign a second Spanish marriage in view; his wife Elizabeth of York having died in 1503, he seriously proposed himself as a suitor for Joanna of Castile, the elder sister of Catherine, and the widow of the archduke Philip, though she was known to be insane. Apparently he hoped thereby to gain vantage ground for an interference in Spanish politics, which would have been most offensive to Ferdinand. Nothing came of the project, which contrasts strangely with the greater part of Henry's sober and cautious schemes.

On the other hand a third project of marriage alliance which Henry carried out in 1503 was destined to be consummated, and to have

***Marriage of James
IV. of Scotland and
Margaret Tudor.***

momentous, though long-deferred, results. This was the giving of the hand of his daughter Margaret to James IV. of Scotland. Thereby he bought quiet on the Border and alliance with Scotland for no more than

some ten years. But—as it chanced—the issue of this alliance was destined to unite the English and the Scottish crowns, when the male line of the Tudors died out, and Henry, quite unintentionally, had his share in bringing about the consummation, by peaceful means, of that end which Edward I. had sought for so long to win by the strong hand.

All the foreign politics of the reign of Henry VII. have small importance compared with his work within the realm. The true monument of his ability was that he left England tamed and orderly, with an obedient people and a full exchequer, though he had taken it over wellnigh in a state of anarchy. The mere suppression of insurrections like those of Simnel and Warbeck was a small part of his task. The harder part was to recreate a spirit of order and subordination among a nation accustomed to long civil strife. His instruments were ministers of ability chosen from the clergy and the gentry—he seems to have been equally averse to trusting the baronage at the one end of the social scale, or mere upstarts at the other, and it is notable that no one during his reign can be called a court favourite. The best-known names among his servants were his great chancellor, Archbishop Morton, Foxe, bishop of Winchester, Sir Reginald Bray, and the lawyers Empson and Dudley. These two last bore the brunt of the unpopularity of the financial policy of the king during the latter half of his reign, when the vice of avarice seems to have grown upon him beyond all reason. But Henry was such a hard-working monarch, and so familiar with all the details of administration, that his ministers cannot be said to have had any independent authority, or to have directed their master's course of action.

The machinery employed by the first of the Tudors for the suppression of domestic disorder is well known. The most important item added by him to the administrative machinery of the realm was the famous Star Chamber, which was licensed by the parliament of 1487. It consisted of a small

The Star Chamber.

committee of ministers, privy councillors and judges, which sat to deal with offences that seemed to lie outside the scope of the common law, or more frequently with the misdoings of men who were so powerful that the local courts could not be trusted to execute justice upon them, such as great landowners, sheriffs and other royal officials, or turbulent individuals who were the terror of their native districts. The need for a strong central court directly inspired by the king, which could administer justice without respect of persons, was so great, that the constitutional danger of establishing an autocratic judicial committee, untrammelled by the ordinary rules of law, escaped notice at the time. It was not till much later that the nation came to look upon the Star Chamber as the special engine of royal tyranny and to loathe its name. In 1500 it was for the common profit of the realm that there should exist such a court, which could reduce even the most powerful offender to order.

One of the most notable parts of the king's policy was his long-continued and successful assault on the abuse of "livery and maintenance," which had been at its height during the Wars of the Roses. We have seen the part which

Suppression of livery and maintenance.

it had taken in strengthening the influence of those who were already too powerful, and weakening the ordinary operation of the law. Henry put it down with a strong hand, forbidding all liveries entirely, save for the mere domestic retainers of each magnate. His determination to end the system was well shown by the fact that he heavily fined even the earl of Oxford, the companion of his exile, the victor of Bosworth, and the most notoriously loyal peer in the realm, for an ostentatious violation of the statute. Where Oxford was punished, no less favoured person could hope to escape. By the end of the reign the little hosts of badged adherents which had formed the nucleus for the armies of the Wars of the Roses had ceased to exist.

Edward IV., as has been already remarked, had many of the opportunities of the autocrat, if only he had cared to use them; but his sloth and self-indulgence stood in the way. Henry VII., the most laborious and systematic

of men, turned them to account. He formed his
Personal rule. personal opinion on every problem of administration and intervened himself in every detail. In many

respects he was his own prime minister, and nothing was done without his knowledge and consent. A consistent policy may be detected in all his acts—that of gathering all the machinery of government into his own hands. Under the later Plantagenets and the Lancastrian kings the great check on the power of the crown had been that financial difficulties were continually compelling the sovereign to summon parliaments. The estates had interfered perpetually in all the details of governance, by means of the power of the purse. Edward IV., first among English sovereigns, had been able to dispense with parliaments for periods of many years, because he did not need their grants save at long intervals. Henry was in the same position; by strict economy, by the use of foreign subsidies, by the automatic growth of his revenues during a time of peace and returning prosperity, by confiscation and forfeitures, he built himself up a financial position which rendered it unnecessary for him to make frequent appeals to parliament. Not the least fertile of his expedients was that regular exploitation of the law as a source of revenue, which had already been seen in the time of his father-in-law. This part of Henry's policy is connected with the name of his two extortionate "fiscal judges" Empson and Dudley, who "turned law and justice into rapine" by their minute inquisition into all technical breaches of legality, and the nice fashion in which they adapted the fine to the wealth of the misdemeanant, without any reference to his moral guilt or any regard for extenuating circumstances. The king must take the responsibility for their unjust doings; it was his coffers which mainly profited by their chicane. In his later years he fell into the vice of hoarding money for its

own sake; so necessary was it to his policy that he should be free, as far as possible, from the need for applying to parliament for money, that he became morbidly anxious to have great hoards in readiness for any possible day of financial stress. At his death he is said to have had £1,800,000 in hard cash laid by. Hence it is not strange to find that he was able to dispense with parliaments in a fashion that would have seemed incredible to a 14th-century king. In his whole reign he only asked them five times for grants of taxation, and three of the five requests were made during the first seven years of his reign. In the eyes of many men parliament lost the main reason for its existence when it ceased to be the habitual provider of funds for the ordinary expenses of the realm. Those who had a better conception of its proper functions could see that it had at any rate been stripped of its chief power when the king no longer required its subsidies. There are traces of a want of public interest in its proceedings, very different from the anxiety with which they used to be followed in Plantagenet and Lancastrian times. Legislation, which only incidentally affects him, is very much less exciting to the ordinary citizen than taxation, which aims directly at his pocket. It is at any rate clear that during the latter years of his reign, when the time of impostures and rebellions had ended, Henry was able to dispense with parliaments to a great extent, and incurred no unpopularity by doing so. Indeed he was accepted by the English people as the benefactor who had delivered them from anarchy; and if they murmured at his love of hoarding, and cursed his inquisitors Empson and Dudley, they had no wish to change the Tudor rule, and were far from regarding the times of the “Lancastrian experiment” as a lost golden age. The present king might be unscrupulous and avaricious, but he was cautious, intelligent and economical; no one would have wished to recall the régime of that “crowned saint” Henry VI.

Nevertheless when the first of the Tudors died, on the 21st of April 1509, there were few who regretted him. He was not a monarch to rouse enthusiasm, while much was expected from his brilliant, clever and

Henry VIII.

handsome son Henry VIII., whose magnificent presence and manly vigour recalled the early prime of Edward IV. Some years later England realized that its new king had inherited not only the physical beauty and strength of his grandfather, but also every one of his faults, with the sole exception of his tendency to sloth. Henry VIII. indeed may be said, to sum up his character in brief, to have combined his father's brains with his grandfather's passions. Edward IV. was selfish and cruel, but failed to become a tyrant because he lacked the energy for continuous work. Henry VII. was unscrupulous and untiring, but so cautious and wary that he avoided violent action and dangerous risks. Their descendant had neither Edward's sloth nor Henry's moderation; he was capable of going to almost any lengths in pursuit of the gratification of his ambition, his passions, his resentment or his simple love of self-assertion. Yet, however far he might go on the road to tyranny, Henry had sufficient cunning, versatility and power of cool reflection, to know precisely when he had reached the edge of the impossible. He had his father's faculty for gauging public opinion, and estimating dangers, and though his more venturesome temperament led him to press on far beyond the point at which the seventh Henry would have halted, he always stopped short on the hither side of the gulf. It was the most marvellous proof of his ability that he died on his throne after nearly forty years of autocratic rule, during which he had roused more enmities and done more to change the face of the realm than any of the kings that were before him.

But it was long before the nation could estimate all the features of the magnificent but sinister figure which was to dominate England from 1509 to 1547. At his accession Henry VIII. was only eighteen years of age, and, if his character was already formed, it was only the attractive side of it that was yet visible. His personal beauty, his keen intelligence, his scholarship, his love of music and the arts, his kingly ambition, were all obvious

enough. His selfishness, his cruelty, his ingratitude, his fierce hatred of criticism and opposition, his sensuality, had yet to be discovered by his subjects. A suspicious observer might have detected something ominous in the first act of his reign—the arrest and attainder of his father’s unpopular ministers, Empson and Dudley, whose heads he flung to the people in order to win a moment’s applause. Whatever their faults, they had served the house of Tudor well, and it was a grotesque perversion of justice to send them to the scaffold on a charge of high treason. A similar piece of cruelty was the execution, some time later, of the earl of Suffolk, who had been languishing long years in the Tower; he was destroyed not for any new plots, but simply for his Yorkist descent. But in Henry’s earlier years such acts were still unusual; it was not till he had grown older, and had learnt how much the nation would endure, that judicial murder became part of his established policy.

Henry’s first outburst of self-assertion took the form of reversing his father’s thrifty and peaceful policy, by plunging into the midst of the continental wars from which England had been held back by his cautious parent. The adventure was wholly unnecessary, and also unprofitable. But while France was engaged in the “Holy War” against the pope, Venice, the emperor, and Ferdinand of Spain, Henry renewed the old claims of the Plantagenets, and hoped, if not to win back the position of Edward III., at least to recover the duchy of Aquitaine, or some parts of it. He lent an army to Ferdinand for the invasion of Gascony, and landed himself at Calais with 25,000 men, to beat up the northern border of France. Little good came of his efforts. The Spanish king gave no assistance, and the northern campaign, though it included the brilliant battle of the Spurs (August 16th, 1513), accomplished nothing more than the capture of Tournai and Théroutanne. It was soon borne in upon King Henry that France, even when engaged with other enemies, was too strong to be overrun in the old style. Moreover, his allies

*Continental projects
of Henry VIII.*

were giving him no aid, though they had eagerly accepted his great subsidies. With a sudden revulsion of feeling Henry offered peace to

Treaty of Étapes. France, which King Louis XII. gladly bought, agreeing to renew the old pension or tribute that Henry VII. had received by the treaty of Étapes. Their reconciliation and alliance were sealed by the marriage of the French king to Henry's favourite sister Mary, who was the bridegroom's junior by more than thirty years. Their wedlock and the Anglo-French alliance lasted only till the next year, when Louis died, and Mary secretly espoused an old admirer, Charles Brandon, afterwards duke of Suffolk, King Henry's greatest friend and confidant.

While the French war was still in progress there had been heavy fighting on the Scottish border. James IV., reverting to the traditionary policy of his ancestors, had taken the opportunity of attacking England while her king

*War with Scotland.
Battle of Flodden.* and his army were overseas. He suffered a disaster which recalls that of David II. at Neville's Cross—a fight which had taken place under precisely similar political conditions. After taking a few Northumbrian castles, James was brought to action at Flodden Field by the earl of Surrey (September 9th, 1513). After a desperate fight lasting the greater part of a day, the Scots were outmanœuvred and surrounded. James IV.—who had refused to quit the field—was slain in the forefront of the battle, with the greater part of his nobles; with him fell also some 10,000 or 12,000 of his men. Scotland, with her military power brought low, and an infant king on the throne, was a negligible quantity in international politics for some years. The queen dowager, Margaret Tudor, aided by a party that favoured peace and alliance with England, was strong enough to balance the faction under the duke of Albany which wished for perpetual war and asked for aid from France.

With the peace of 1514 ended the first period of King Henry's reign. He was now no longer a boy, but a man of twenty-three, with his character fully developed; he had gradually got rid of his father's old councillors, and had chosen for himself a minister as ambitious and energetic as himself, the celebrated Thomas Wolsey, whom he had just made archbishop of York, and who obtained the rank of cardinal from the pope in the succeeding year. Wolsey was the last of the great clerical ministers of the middle ages, and by no means the worst. Like so many of his predecessors he had risen from the lower middle classes, through the royal road of the church; he had served Henry VII.'s old councillor Foxe, bishop of Winchester, as secretary, and from his household had passed into that of his master. He had been an admirable servant to both, full of zeal, intelligence and energy, and not too much burdened with scruples. The young king found in him an instrument well fitted to his hand, a man fearless, ingenious, and devoted to the furtherance of the power of the crown, by which alone he had reached his present position of authority. For fourteen years he was his master's chief minister—the person responsible in the nation's eyes for all the more unpopular assertions of the royal prerogative, and for all the heavy taxation and despotic acts which Henry's policy required. It mattered little to Henry that the cardinal was arrogant, tactless and ostentatious; indeed it suited his purpose that Wolsey should be saddled by public opinion with all the blame that ought to have been laid on his own shoulders. It was convenient that the old nobility should detest the upstart, and that the commons should imagine him to be the person responsible for the demands for money required for the royal wars. As long as his minister served his purposes and could execute his behests Henry gave him a free hand, and supported him against all his enemies. It was believed at the time, and is still sometimes maintained by historians, that Wolsey laid down schemes of policy and persuaded his master to adopt them; but the truth would appear to be that

Henry was in no wise dominated by the cardinal, but imposed on him his own wishes, merely leaving matters of detail to be settled by his minister. Things indifferent might be trusted to him, but the main lines of English diplomacy and foreign policy show rather the influence of the king's personal desires of the moment than that of a statesman seeking national ends.

It has often been alleged that Henry, under the guidance of Wolsey, followed a consistent scheme for aggrandizing England, by making her the state which kept the balance of power of Europe in her hands. And it is pointed out that during the years of the cardinal's ascendancy the alliance of England was sought in turn by the great princes of the continent, and proved the make-weight in the scales. This is but a superficial view of the situation. Henry, if much courted, was much deceived by his contemporaries. They borrowed his money and his armies, but fed him with vain promises and illusory treaties. He and his minister were alternately gulled by France and by the emperor, and the net result of all their activity was bankruptcy and discontent at home and ever-frustrated hopes abroad. It is hard to build up a reputation for statecraft for either Henry or Wolsey on the sum total of English political achievement during their collaboration.

During the first few years of the cardinal's ascendancy the elder race of European sovereigns, the kings with whom Henry VII. had been wont to haggle, disappeared one after the other. Louis of France died in 1515,

Henry VIII. and the rivalry of Francis I. and Charles V.

Ferdinand of Aragon in 1516, the emperor Maximilian—the last survivor of his generation—in 1519. Louis was succeeded by the active, warlike and shifty Francis I.; the heritage of both Ferdinand and Maximilian—his maternal and paternal grandfathers—fell to Charles of Habsburg, who already possessed the Netherlands in his father's right and Castile in that of his mother. The enmity of the house of Valois and the house of Habsburg,

which had first appeared in the wars of Charles VIII. and Maximilian, took a far more bitter shape under Francis I. and Charles V., two young princes who were rivals from their youth. Their wars were almost perpetual, their peaces never honestly carried out. Their powers were very equally balanced; if Charles owned broader lands than Francis, they were more scattered and in some cases less loyal. The solid and wealthy realm of France proved able to make head against Spain and the Netherlands, even when they were backed by the emperor's German vassals. Charles was also distracted by many stabs in the back from the Ottoman Turks, who were just beginning their attack on Christendom along the line of the Danube. To each of the combatants it seemed that the English alliance would turn the scale in his own favour. Henry was much courted, and wooed with promises of lands to be won from the other side by his ally of the moment. But neither Charles nor Francis wished him to be a real gainer, and he himself was a most untrustworthy friend, for he was quite ready to turn against his ally if he seemed to be growing too powerful, and threatened to dominate all Europe; the complete success of either party would mean that England would sink once more into a second-rate power. How faithless and insincere was Henry's policy may be gauged from the fact that in 1520, after all the pageantry of the "Field of the Cloth of Gold" and his vows of undying friendship for Francis, he met Charles a few weeks later at Gravelines, and concluded with him a treaty which pledged England to a defensive alliance against the king's "good brother" of France. Such things happened not once nor twice during the years of Wolsey's ministry. It was hardly to be wondered at, therefore, if Henry's allies regularly endeavoured to cheat him

***Failure of Henry's
diplomacy.***

out of his share of their joint profits. What use was there in rewarding a friend who might become an enemy to-morrow? The greatest deception of all was in 1522, when Charles V., who had made the extraordinary promise that he would get Wolsey made pope, and lend Henry an army to conquer northern

France, failed to redeem his word in both respects. He caused his own old tutor, Adrian of Utrecht, to be crowned with the papal tiara, and left the English to invade Picardy entirely unassisted. But this was only one of many such disappointments.

The result of some twelve years of abortive alliances and ill-kept treaties was that Henry had obtained no single one of the advantages which he had coveted, and that he had lavished untold wealth and many English lives upon phantom schemes which crumbled between his fingers. His subjects had already begun to murmur; the early parliaments of his reign had been passive and complaisant; but by 1523 the Commons had been goaded into resistance. They granted only half the subsidies asked from them, pleading that three summers more of such taxation as the cardinal demanded for his master would leave the realm drained of its last penny, and reduced to fall back on primitive forms of barter, “clothes for victuals and bread for cheese,” out of mere want of coin. Fortunately for the king his subjects laid all the blame upon his mouthpiece the cardinal, instead of placing it where it was due. On Wolsey’s back also was saddled the most iniquitous of Henry’s acts of tyranny against individuals—the judicial murder of the duke of Buckingham, the highest head among the English nobility. For some hasty words, amplified by the doubtful evidence of treacherous retainers, together with a foolish charge of dabbling with astrologers, the heir of the royal line of Thomas of Woodstock had been tried and executed with scandalous haste. His only real crime was that, commenting on the lack of male heirs to the crown—for after many years of wedlock with Catherine of Aragon Henry’s sole issue was one sickly daughter—he had been foolish enough to remark that if anything should happen to the king he himself was close in succession to the crown. The cardinal bore the blame, because he and Buckingham had notoriously disliked each other; but the

*Beginnings of
parliamentary
resistance.*

*Execution of the
duke of Buckingham.*

deed had really been of the king's own contriving. He was roused to implacable wrath by anyone who dared to speak on the forbidden topic of the succession question.

In the later years of Wolsey's ascendancy, nevertheless, that same question was the subject of many anxious thoughts. From Henry's own mind it was never long absent; he yearned for a male heir, and he was growing tired of his wife Catherine, who was some years older than himself, had few personal attractions, and was growing somewhat of an invalid. Somewhere about the end of 1526 those who were in the king's intimate confidence began to be aware that he was meditating a divorce—a thing not lightly to be taken in hand, for the queen was the aunt of the emperor Charles V., who would be vastly offended at such a proposal. But Henry's doubts had been marvellously stimulated by the fact that he had become enamoured of another lady—the beautiful, ambitious and cunning Anne Boleyn, a niece of the duke of Norfolk, who had no intention of becoming merely the king's mistress, but aspired to be his consort.

Question of the king's divorce.

The question of the king's divorce soon became inextricably confused with another problem, whose first beginnings go back to a slightly earlier date. What was to be the attitude of England towards the Reformation? It

England and the Reformation.

was now nearly ten years since Martin Luther had posted up his famous theses on the church door at Wittenberg, and since he had testified to his faith before the diet of Worms. All Germany was now convulsed with the first throes of the revolt against the papacy, and the echoes of the new theological disputes were being heard in England. King Henry himself in 1521 had deigned to write an abusive pamphlet against Luther, for which he had been awarded the magnificent title of *Fidei Defensor* by that cultured sceptic Pope Leo X. About the same time we begin to read of orders issued

by the bishops for the discovery and burning of all Lutheran books—a clear sign that they were reaching England in appreciable quantities. Hitherto it had been only the works of Wycliffe that had merited this attention on the part of inquisitors. In the Wycliffite remnant, often persecuted but never exterminated, there already existed in England the nucleus of a Protestant party. All through the reign of Henry VII. and the early years of Henry VIII. the intermittent burning of “heretics,” and their far more frequent recantations, had borne witness to the fact that the sect still lingered on. The Wycliffites were a feeble folk, compelled to subterranean ways, and destitute of learned leaders or powerful supporters. But they survived to see Luther’s day, and to merge themselves in one body with the first English travelling scholars and merchants who brought back from the continent the doctrines of the German Reformation. The origins of a Protestant party, who were not mere Wycliffites, but had been first interested in dogmatic controversy by coming upon the works of Luther, can be traced back to the year 1521 and to the university of Cambridge. There a knot of scholars, some of whom were to perish early at the stake, while others were destined to become the leaders of the English Reformation, came together and encouraged each other to test the received doctrines of contemporary orthodoxy by searching the Scriptures and the works of the Fathers. The sect spread in a few years to London, Oxford and other centres of intellectual life, but for many years its followers were not numerous; like the old Lollardy, Protestantism took root only in certain places and among certain classes—notably the lesser clergy and the merchants of the great towns.

King Henry and those who wished to please him professed as great a hatred and contempt for the new purveyors of German doctrines as for the belated disciples of Wycliffe. But there was another movement, whose origins went back for many centuries, which they were far from discouraging, and were prepared to utilize when it suited their convenience.

This was the purely political feeling against the tyranny of the papacy, and the abuses of the national church, which in early ages had given supporters to William the Conqueror and Henry II., which had dictated the statutes of Mortmain and of Praemunire. Little had been heard of the old anti-clerical party in England since the time of Henry IV.; it had apparently been identified in the eyes of the orthodox with that Lollardy with which it had for a time allied itself, and had shared in its discredit. But it had always continued to exist, and in the early years of Henry VIII. had been showing unmistakable signs of vitality. The papacy of the Renaissance was a fair mark for criticism. It was not hard to attack the system under which Rodrigo Borgia wore the tiara, while Girolamo Savonarola went to the stake; or in which Julius II. exploited the name of Christianity to serve his territorial policy in Italy, and Leo X. hawked his indulgences round Europe to raise funds which would enable him to gratify his artistic tastes. At no period had the official hierarchy of the Western Church been more out of touch with common righteousness and piety. Moreover, they were sinning under the eyes of a laity which was far more intelligent and educated, more able to think and judge for itself, less the slave of immemorial tradition, than the old public of the middle ages. In Italy the Renaissance might be purely concerned with things intellectual or artistic, and seem to have little or no touch with things moral. Beyond the Alps it was otherwise; among the Teutonic nations at least the revolt against the scholastic philosophy, the rout of the obscurantists, the eager pursuit of Hellenic culture, had a religious aspect. The same generation which refused to take thrice-translated and thrice-garbled screeds from Aristotle as the sum of human knowledge, and went back to the original Greek, was also studying the Old and New Testaments in their original tongues, and drawing from them conclusions as unfavourable to the intelligence as to the scholarship of the orthodox medieval divines. Such a discovery as that which showed that the "False Decretals," on which so much of the power of the papacy rested,

were mere 9th-century forgeries struck deep at the roots of the whole traditional relation between church and state.

The first English scholars of the Renaissance, like Erasmus on the continent, did not see the logical outcome of their own discoveries, nor realize that the campaign against obscurantism would develop into a campaign against Roman orthodoxy. Sir Thomas More, the greatest of them, was actually driven into reaction by the violence of Protestant controversialists, and the fear that the new doctrines would rend the church in twain. He became himself a persecutor, and a writer of abusive pamphlets unworthy of the author of the *Utopia*. But to the younger generation the irreconcilability of modern scholarship and medieval formulae of faith became more and more evident. One after another all the cardinal doctrines were challenged by writers who were generally acute, and almost invariably vituperative. For the controversies of the Reformation were conducted by both sides, from kings and prelates down to gutter pamphleteers, in language of the most unseemly violence.

But, as has been already said, the scholars and theologians had less influence in the beginning of the English Reformation than the mere lay politicians, whose anti-clerical tendencies chanced to fit in with King Henry's convenience when he quarrelled with the papacy. It is well to note that the first attacks of parliament on the church date back to two years before Luther published his famous theses. The contention began in 1515 with the fierce assault by the Commons on the old abuse of benefit of clergy, and the immunity of clerical criminals from due punishment for secular crimes—a question as old as the times of Henry II. and Becket. But the discussion spread in later years from this particular point into a general criticism of the church and its relations to the state, embracing local grievances as well as the questions which turned on the dealings of the papacy with the crown. The old complaints which had been raised against

the Church of England in the days of Edward I. or Richard II. had lost none of their force in 1526. The higher clergy were more than ever immersed in affairs of state, “Caesarean” as Wycliffe would have called them. It was only necessary to point to the great cardinal himself, and to ask how far his spiritual duties at York were properly discharged while he was acting as the king’s prime minister. The cases of Foxe and Morton were much the same; the former passed for a well-meaning man, yet had been practically absent from his diocese for twenty years. Pluralism, nepotism, simony and all the other ancient abuses were more rampant than ever. The monasteries had ceased to be even the nurseries of literature; their chronicles had run dry, and secular priests or laymen had taken up the pens that the monks had dropped. They were wealthier than ever, yet did little to justify their existence; indeed the spirit of the age was so much set against them that they found it hard to keep up the numbers of their inmates. Truculent pamphleteers like Simon Fish, who wrote *Beggars’ Supplication*, were already demanding “that these sturdy boobies should be set abroad into the world, to get wives of their own, and earn their living by the sweat of their brows, according to the commandment of God; so might the king be better obeyed, matrimony be better kept, the gospel better preached, and none should rob the poor of his alms.” It must be added that monastic scandals were not rare; though the majority of the houses were decently ordered, yet the unexceptionable testimony of archiepiscopal and episcopal visitations shows that in the years just before the Reformation there was a certain number of them where chastity of life and honesty of administration were equally unknown. But above all things the church was being criticized as an *imperium in imperio*, a privileged body not amenable to ordinary jurisdiction, and subservient to a foreign lord—the pope. And it was true that, much as English churchmen might grumble at papal exactions, they were generally ready as a body to support the pope against the crown; the traditions of the medieval church made it impossible for them to do

otherwise. That there would in any case have been a new outbreak of anti-clerical and anti-papal agitation in England, under the influence of the Protestant impulse started by Luther in Germany, is certain. But two special causes gave its particular colour to the opening of the English Reformation; the one was that the king fell out with the papacy on the question of his divorce. The other was that the nation at this moment was chafing bitterly against a clerical minister, whom it (very unjustly) made responsible for the exorbitant taxation which it was enduring, in consequence of the king's useless and unsuccessful foreign wars. The irony of the situation lay in the facts that Henry was, so far as dogmatic views were concerned, a perfectly orthodox prince; he had a considerable knowledge of the old theological literature, as he had shown in his pamphlet against Luther, and though he was ready to repress clerical immunities and privileges that were inconvenient to the crown, he had no sympathy whatever with the doctrinal side of the new revolt against the system of the medieval church. Moreover, Wolsey, whose fall was to synchronize with the commencement of the reforming movement, was if anything more in sympathy with change than was his master. He was an enlightened patron of the new learning, and was inclined to take vigorous measures in hand for the pruning away of the abuses of the church. It is significant that his great college at Oxford—"Cardinal's College" as he designed to call it, "Christ Church" as it is named to-day—was endowed with the revenues of some score of small monasteries which he had suppressed on the ground that they were useless or ill-conducted. His master turned the lesson to account a few years later; but Henry's wholesale destruction of religious houses was carried out not in the interests of learning, but mainly in those of the royal exchequer.

(C. W. C. O.)

VII. THE REFORMATION AND THE AGE OF ELIZABETH (1528-1603)

Wolsey did not fall through any opposition to reform; nor was he opposed to the idea of a divorce. Indeed, both in France and Spain he was credited with the authorship of the project. But he differed from Henry on the question of Catherine's successor. Wolsey desired a French marriage to consummate the breach upon which he was now bent with the emperor; and war, in fact, was precipitated with Spain in 1528. This is said to have been done without Henry's consent; he certainly wished to avoid war with Charles V., and peace was made after six months of passive hostility. Nor did Henry want a French princess; his affections were fixed for the time on Anne Boleyn, and she was the hope of the anti-clerical party. The crisis was brought to a head by the failure of Wolsey's plan to obtain a divorce. Originally it had been suggested that the ecclesiastical courts in England were competent without recourse to Rome. Wolsey deprecated this procedure, and application was made to Clement VII. Wolsey relied upon his French and Italian allies to exert the necessary powers of persuasion; and in 1528 a French army crossed the Alps, marched through Italy and threatened to drive Charles V. out of Naples. Clement was in a position to listen to Henry's prayer; and Campeggio was commissioned with Wolsey to hear the suit and grant the divorce.

No sooner had Campeggio started than the fortunes of war changed. The French were driven out of Naples, and the Imperialists again dominated Rome; the Church, wrote Clement to Campeggio, was completely in the power of Charles V. The cardinal, therefore, must on no account pronounce against Charles's aunt; if he could not persuade Henry and Catherine to agree on a mutual separation, he must simply pass the time and come to no conclusion. Hence it was June 1529 before the court got to work at all, and then its proceedings were only preparatory to an adjournment and revocation of the suit to Rome in August. Clement VII. had, in his own words, made up his

Fall of Wolsey.

Question of the divorce.

mind to live and die an imperialist; the last remnants of the French army in Italy had been routed, and the pope had perforce concluded the treaty of Barcelona, a sort of family compact between himself and Charles, whereby he undertook to protect Charles's aunt, and the emperor to support the Medici dynasty in Florence. This peace was amplified at the treaty of Cambrai (August 1529) into a general European pacification in which England had no voice. So far had it fallen since 1521.

In every direction Wolsey had failed, and his failure involved the triumph of the forces which he had opposed. The fate of the papal system in England was bound up with his personal fortunes. It was he and he alone who had kept parliament at arm's length and the enemies of the church at bay. He had interested the king, and to some extent the nation, in a spirited foreign policy, had diverted their attention from domestic questions, and had staved off that parliamentary attack on the church which had been threatened fifteen years before. Now he was doomed, and both Campeggio and Cardinal du Bellay were able to send their governments accurate outlines of the future policy of Henry VIII. The church was to be robbed of its wealth, its power and its privileges, and the papal jurisdiction was to be abolished. In October Wolsey was deprived of the great seal, and surrendered many of his ecclesiastical preferments, though he was allowed to retain his archbishopric of York which he now visited for the first time. The first lay ministry since Edward the Confessor's time came into office; Sir Thomas More became lord chancellor, and Anne Boleyn's father lord privy seal; the only prominent cleric who remained in office was Stephen Gardiner, who succeeded Wolsey as bishop of Winchester.

Parliament met in November 1529 and passed many acts against clerical exactions, mortuaries, probate dues and pluralities, which evoked a passionate protest from Bishop Fisher: "Now, with the Commons," he cried in the House of Lords, "is nothing but 'Down with the Church.'" During

***Attack on the church
in parliament.***

1530 Henry's agents were busy abroad making that appeal on the divorce to the universities which Cranmer had suggested. In 1531 the clergy in convocation, terrified by the charge of *praemunire* brought against them for recognizing Wolsey's legatine authority, paid Henry a hundred and eighteen thousand pounds and recognized him as supreme head of the church so far as the law of Christ would allow. The details of this surrender were worked out by king and Commons in 1532; but Gardiner and More secured the rejection by the Lords of the bill in which they were embodied, and it was not till 1533, when More had ceased to be chancellor and Gardiner to be secretary, that a parliamentary statute annihilated the independent legislative authority of the church. An act was, however, passed in 1532 empowering the king, if he thought fit, to stop the payment of annates to Rome. Henry suspended his consent in order to induce the pope to grant Cranmer his bulls as archbishop of Canterbury where he succeeded Warham late in 1532. The stratagem was successful, and Henry cast off all disguise. The act of annates was confirmed; another prohibiting appeals to Rome and providing for the appointment of bishops without recourse to the papacy was passed; and Cranmer declared Henry's marriage with Catherine null

***Henry VIII. marries
Anne Boleyn.***

and void and that with Anne Boleyn, which had taken place about January 25, 1533, valid. Anne was crowned in June, and on the 7th of September the future Queen Elizabeth was born. At length in 1534 Clement VII. concluded the case at Rome, pronouncing in favour of Catherine's marriage, and drawing up a bull of excommunication against Henry and his abettors. But he did not venture to publish it; public opinion in England, while hostile to the divorce, was not in favour of the clergy or the pope, and the rivalry between Charles V. and Francis I. was too bitter to permit of joint, or even isolated, action against Henry. Charles was only too anxious to avoid the duty of carrying out the pope's commands, and a year later he was once

more involved in war with France. Henry was able to deal roughly with such manifestations as Elizabeth Barton's visions, and in the autumn of 1534 to obtain from parliament the Act of Supremacy which transferred to him the juridical, though not the spiritual, powers of the pope. No penalties were attached to this act, but another passed in the same session made it treason to attempt to deprive the king of any of his titles, of which supreme head of the church was one, being incorporated in the royal style by letters patent of January 1535. Fisher and More were executed on this charge; they had been imprisoned in the previous year for objecting to take the form of oath to the succession as vested in Anne Boleyn's children which the commissioners prescribed. But their lives could only be forfeit on the supposition that they sought to deprive the king of his royal supremacy. Many of the friars observant of Greenwich and monks of the Charterhouse were involved in a similar fate, but there was no general resistance, and Henry, now inspired or helped by Thomas Cromwell, was able to proceed with the next step in the Reformation, the dissolution of the monasteries.

The Act of Supremacy.

It was Cecil's opinion twenty-five years later that, but for the dissolution, the cause of the Reformation could not have succeeded. Such a reason could hardly be avowed, and justification had to be sought in the condition of the monasteries themselves. The action of Wolsey and other bishops before 1529, the report of a commission of cardinals appointed by Paul III. in 1535, the subsequent experience of other, even Catholic, countries give collateral support to the conclusions of the visitors appointed by Cromwell, although they were dictated by a desire not to deal out impartial justice, but to find reasons for a policy already adopted in principle. That they exaggerated the evils of monastic life hardly admits of doubt; but even a Henry VIII. and a Thomas Cromwell would not have dared to attack, or succeeded in destroying, the monasteries had they retained their original purity and

Dissolution of the monasteries.

influence. As it was their doubtful reputation and financial embarrassments enabled Henry to offer them as a gigantic bribe to the upper classes of the laity, and the Reformation parliament met for its last session early in 1536 to give effect to the reports of the visitors and to the king's and their own desires.

But it had barely been dissolved in April when it became necessary to call another. In January the death of Catherine had rejoiced the hearts of Henry and Anne Boleyn, but Anne's happiness was short-lived. Two miscarriages and the failure to produce the requisite male heir linked her in Henry's mind and in misfortune to Catherine; unlike Catherine she was unpopular and not above suspicion. The story of her tragedy is still one of the most horrible and mysterious pages in English history. It is certain that Henry was tired and wanted to get rid of her; but if she were innocent, why were charges brought against her which were not brought against Catherine of Aragon and Anne of Cleves? and why were four other victims sacrificed when one would have been enough? The peers a year before could acquit Lord Dacre; would they have condemned the queen without some show of evidence? and unless there was suspicious evidence, her daughter was inhuman in making no effort subsequently to clear her mother's character.

Execution of Queen Anne Boleyn.

However that may be, Anne was not only condemned and executed, but her marriage was declared invalid and her daughter a bastard. Parliament was required to establish the succession on the new basis of Henry's new queen, Jane Seymour. It also empowered the king to leave the crown by will if he had no legitimate issue; but the illegitimate son, the duke of Richmond, in whose favour this provision is said to have been conceived, died shortly afterwards.

Fortunately for Henry, Queen Jane roused no domestic or foreign animosities; Charles V. and Francis I. were at war; and the pope's and

Pole's attempt to profit by the Pilgrimage of Grace came too late to produce any effect except the ruin of Pole's family. The two risings of 1536 in Lincolnshire and Yorkshire were provoked partly by the dissolution of the monasteries, partly by the collection of a subsidy and fears of fresh taxation on births, marriages and burials, and partly by the protestantizing Ten Articles of 1536 and Cromwell's *Injunctions*. They were conservative demonstrations in favour of a restoration of the old order by means of a change of ministry, but not a change of dynasty. The Lincolnshire rising was over before the middle of October, the more serious revolt in Yorkshire under Aske lasted through the winter. Henry's lieutenants were compelled to temporize and make concessions. Aske was invited to come to London and hoodwinked by Henry into believing that the king was really bent on restoration and reform. But an impatient outburst of the insurgents and a foolish attempt to seize Hull and Scarborough gave Henry an excuse for repudiating the concessions made in his name. He could afford to do so because England south of the Trent remained stauncher to him than England north of it did to the Pilgrimage. Aske and other leaders were tried and executed, and summary vengeance was wreaked on the northern counties, especially on the monasteries. The one satisfactory outcome was the establishment of the Council of the North, which gave the shires between the Border and the Trent a stronger and more efficient government than they had ever had before.

Probably the Pilgrimage had some effect in moderating Henry's progress. The monasteries did not benefit and in 1538-1539 the greater were involved in the fate which had already overtaken the less. But no further advances were made towards Protestantism after the publication and authorization of the "Great" Bible in English. The Lutheran divines who came to England in 1538 with a project for a theological union were rebuffed; the parliament elected in

The Pilgrimage of Grace.

The "Six Articles."

1539 was Catholic, and only the reforming bishops in the House of Lords offered any resistance to the Six Articles which reaffirmed the chief points in Catholic doctrine and practice. The alliance between pope, emperor and French king induced Henry to acquiesce in Cromwell's scheme for a political understanding with Cleves and the Schmalkaldic League, which might threaten Charles V.'s position in Germany and the Netherlands, but could not be of much direct advantage to England. Cromwell rashly sought to wed Henry to this policy, proposed Anne of Cleves as a bride for Henry, now once more a widower, and represented the marriage as England's sole protection against a Catholic league. Henry put his neck under the yoke, but soon discovered that there was no necessity; for Charles and Francis were

***Fall of Thomas
Cromwell.***

already beginning to quarrel and had no thought of a joint attack on England. The discovery was fatal to Cromwell; after a severe struggle in the council he was abandoned to his enemies, attainted of treason and executed. Anne's marriage was declared null, and Henry found a fifth queen in Catherine Howard, a niece of Norfolk, a protégée of Gardiner, and a friend of the Catholic church.

Nevertheless there was no reversal of what had been done, only a check to the rate of progress. Cranmer remained archbishop and compiled an English Litany, while Catherine Howard soon ceased to be queen; charges of loose conduct, which in her case at any rate were not instigated by the king, were made against her and she was brought to the block; she was succeeded by Catherine Parr, a mild patron of the new learning. The Six Articles were only fitfully put in execution, especially in 1543 and 1546: all the plots against Cranmer failed; and before he died Henry was even considering the advisability of further steps in the religious reformation, apart from mere spoliation like the confiscation of the chantry lands.

But Scotland, Ireland and foreign affairs concerned him most. Something substantial was achieved in Ireland; the papal sovereignty was abolished and Henry received from the Irish parliament the title of king instead of lord of Ireland. The process was begun of converting Irish chieftains into English peers which eventually divorced the Irish people from their natural leaders; and principles of English law and government were spread beyond the Pale. In Scotland Henry was less fortunate. He failed to win over James V. to his anti-papal policy, revived the feudal claim to suzerainty, won the battle of Solway Moss (1542), and then after James's death bribed and threatened the Scots estates into concluding a treaty of marriage between their infant queen and Henry's son. The church in Scotland led by Beaton, and the French party led by James V.'s widow, Mary of Guise, soon reversed this decision, and Hertford's heavy hand was (1544) laid on Edinburgh in revenge. France was at the root of the evil, and Henry was thus induced once more to join Charles V. in war (1543). The joint invasion of 1544 led to the capture of Boulogne, but the emperor made peace in order to deal with the Lutherans and left Henry at war with France. The French attempted to retaliate in 1545, and burnt some villages in the Isle of Wight and on the coast of Sussex. But their expedition was a failure, and peace was made in 1546, by which Henry undertook to restore Boulogne in eight years' time on payment of eight hundred thousand crowns. Scotland was not included in the pacification, and when Henry died (January 28, 1547) he was busy preparing to renew his attempt on Scotland's independence.

Policy in Ireland and Scotland.

He left a council of sixteen to rule during his son's minority. The balance of parties which had existed since Cromwell's fall had been destroyed in the last months of the reign by the attainder of Norfolk and his son Surrey, and the exclusion of Gardiner and Thirlby from the council of regency. Men of the new learning prevailed, and Hertford (later duke of Somerset), as uncle to Edward

Edward VI.

VI., was made protector of the realm and governor of the king's person. He soon succeeded in removing the trammels imposed upon his authority, and made himself king in everything but name. He used his arbitrary power to modify the despotic system of the Tudors; all treason laws since Edward III., all heresy laws, all restrictions upon the publication of the Scriptures were removed in the first parliament of the reign, and various securities for

***Progress of the
Reformation.***

liberty were enacted. The administration of the sacrament of the altar in both elements was permitted, the Catholic interpretation of the mass was rendered optional, images were removed, and English was introduced into nearly the whole of the church service. In the following session (1548-1549) the first Act of Uniformity authorized the first Book of Common Prayer. It met with strenuous resistance in Devon and in Cornwall, where rebellions added to the thickening troubles of the protector.

His administration was singularly unsuccessful. In 1547 he won the great but barren victory of Pinkie Cleugh over the Scots, and attempted to push on the marriage and union by a mixture of conciliation and coercion. He

***Administration of the
protector Somerset.***

made genuine and considerable concessions to Scottish feeling, guaranteeing autonomy and freedom of trade, and suggesting that the two realms should adopt the indifferent style of the empire of Great Britain. But he also seized Haddington in 1548, held by force the greater part of the Lowlands, and, when Mary was transported to France, revived the old feudal claims which he had dropped in 1547. France was, as ever, the backbone of the Scots resistance; men and money poured into Edinburgh to assist Mary of Guise and the French faction. The protector's offer to restore Boulogne could not purchase French acquiescence in the union of England and Scotland; and the bickerings on the borders in France and open fighting in Scotland led the French to declare war on England in August 1549. They were encouraged by dissensions in England. Somerset's own brother, Thomas

Seymour, jealous of the protector, intrigued against the government; he sought to secure the hand of Elizabeth, the favour of Edward VI. and the support of the Suffolk line, secretly married Catherine Parr, and abused his office as lord high admiral to make friends with pirates and other enemies of order. Foes of the family, such as Warwick and Southampton, saw in his factious conduct the means of ruining both the brothers. Seymour was brought to the block, and the weak consent of the protector seriously damaged him in the public eye. His notorious sympathy with the peasantry further alienated the official classes and landed gentry, and his campaign against enclosures brought him into conflict with the strongest forces of the time. The remedial measures which he favoured failed; and the rising of Ket in Norfolk and others less important in nearly all the counties of England, made Somerset's position impossible. Bedford and Herbert suppressed the rebellion in the west, Warwick that in Norfolk (July-August 1549). They then combined with the majority of the council and the discontented Catholics to remove the protector from office and imprison him in the Tower (October).

The Catholics hoped for reaction, the restoration of the mass, and the release of Gardiner and Bonner, who had been imprisoned for resistance to the protector's ecclesiastical policy. But Warwick meant to rely on the

*Administration of the
duke of
Northumberland.*

Protestant extremists; by January 1550 the Catholics had been expelled from the council, and the pace of the Reformation increased instead of diminishing. Peace was made with France by the surrender of Boulogne and abandonment of the policy of union with Scotland (March 1550); and the approach of war between France and the emperor, coupled with the rising of the princes in Germany, relieved Warwick from foreign apprehensions and gave him a free hand at home. Gardiner, Bonner, Heath, Day and Tunstall were one by one deprived of their sees; a new ordinal simplified the ritual of ordination, and a second Act of Uniformity and

Book of Common Prayer (1552) repudiated the Catholic interpretation which had been placed on the first and imposed a stricter conformity to the Protestant faith. All impediments to clerical marriage were removed, altars and organs were taken down, old service books destroyed and painted windows broken; it was even proposed to explain away the kneeling at the sacrament. The liberal measures of the protector were repealed, and new treasons were enacted; Somerset himself, who had been released and restored to the council in 1550, became an obstacle in Warwick's path, and was removed by means of a bogus plot, being executed in January 1552; while Warwick had himself made duke of Northumberland, his friend Dorset duke of Suffolk, and Herbert earl of Pembroke.

*Establishment of
Protestantism.*

But his ambition and violence made him deeply unpopular, and the failing health of Edward VI. opened up a serious prospect for Northumberland. He was only safe so long as he controlled the government, and prevented the administration of justice, and the knowledge that not only power but life was at stake drove him into a desperate plot for the retention of both. He could trade upon Edward's precocious hatred of Mary's religion, he could rely upon French fears of her Spanish inclinations, and the success which had attended his schemes in England deluded him into a belief that he could supplant the Tudor with a Dudley dynasty. His son Guilford Dudley was hastily married to Lady Jane Grey, the eldest granddaughter of Henry VIII.'s younger sister Mary. Henry's two daughters, Mary and Elizabeth, the descendants of his elder sister Margaret, and Lady Jane's mother, the duchess of Suffolk, were all to be passed over, and the succession was to be vested in Lady Jane and her heirs male. Edward was persuaded that he could devise the crown by will, the council and the judges were browbeaten into acquiescence, and three days after Edward's death (July 6, 1553), Lady Jane Grey was proclaimed queen in London. Northumberland had miscalculated the temper of the nation, and failed to

kidnap Mary. She gathered her forces in Norfolk and Suffolk, Northumberland rode out from London to oppose her, but defection dogged his steps, and even in London Mary was proclaimed queen behind his back by his fellow-conspirators. Mary entered London amid unparalleled popular rejoicings, and Northumberland was sent to a well-deserved death on the scaffold.

Mary was determined from the first to restore papalism as well as Catholicism, but she had to go slowly. The papacy had few friends in England, and even Charles V., on whom Mary chiefly relied for guidance,

***Queen Mary.
Restoration of the old
religion.***

was not eager to see the papal jurisdiction restored. He wanted England to be first firmly tied to the Habsburg interests by Mary's marriage with Philip. Nor was it generally anticipated that Mary would do more than restore religion as it had been left by her father. She did not attempt anything further in 1553 than the repeal of Edward VI.'s legislation and the accomplishment of the Spanish marriage. The latter project provoked fierce resistance; various risings were planned for the opening months of 1554, and Wyatt's nearly proved successful. Only his arrogance and procrastination and Mary's own courage saved her throne. But the failure of this protest enabled Mary to carry through the Spanish marriage, which was consummated in July; and in the ensuing parliament (Oct.-Jan. 1554-1555) all anti-papal legislation was repealed; Pole was received as legate; the realm was reconciled to Rome; and, although the holders of abbey lands were carefully protected against attempts at restitution, the church was empowered to work its will with regard to heresy. The Lollard statutes were revived, and between February 1555 and November 1558 some three hundred Protestants were burnt at the stake. They began with John Rogers and Rowland Taylor, and Bishops Ferrar of St Davids and Hooper of Gloucester. Ridley and Latimer were not burnt until October 1555, and Cranmer not till March 1556. London, Essex, Hertfordshire, East Anglia,

Kent and Sussex provided nearly all the victims; only one was burnt north of the Trent, and only one south-west of Wiltshire. But in the Protestant districts neither age nor sex was spared; even the dead were dug up and burnt. The result was to turn the hearts of Mary's people from herself, her church and her creed. Other causes helped to convert their enthusiastic

*Unpopularity of the
Spanish marriage.
Philip II.*

loyalty into bitter hatred. The Spanish marriage was a failure from every point of view. In spite of Mary's repeated delusions, she bore no child, and both parliament and people resisted every attempt to deprive Elizabeth of her right to the succession. Philip did all he could to conciliate English affections, but they would not have Spanish control at any price. They knew that his blandishments were dictated by ulterior designs, and that the absorption of England in the Habsburg empire was his ultimate aim. As it was, the Spanish connexion checked England's aspirations; her adventurers were warned off the Spanish Main, and even trade with the colonies of Philip's ally Portugal was prohibited. They had to content themselves with the Arctic Ocean and Muscovy; and they soon found themselves at war in Philip's interests. Philip himself refused to declare war on Scotland on England's behalf, but he induced Mary to declare war on France on his own (1557). The glory of the war fell to the Spaniards at St Quentin (1557) and Gravelines (1558), but the shame to England by the loss of Calais (Jan. 1558). Ten months later Mary died (Nov. 17), deserted by her husband and broken-hearted at the loss of Calais and her failure to win English hearts back to Rome.

The Spanish and Venetian ambassadors in London were shocked at what they regarded as the indecent rejoicings over Elizabeth's accession. The nation, indeed, breathed a new life. Papal control of its ecclesiastical, and Spanish control of its foreign policy ceased, and it had a queen who gloried in being "mere English." There was really no possible rival sovereign, and no possible alternative policy. The English were tugging at the chain and

Accession of Elizabeth. English national struggle with Spain.

Elizabeth had to follow; her efforts throughout were aimed at checking the pace at which her people wanted to go. She could not have married Philip had she wished to, and she could not have kept her sea-dogs off the Spanish Main. They were willing to take all the risks and relieve her of all responsibility; they filled her coffers with Spanish gold which they plundered as pirates, knowing that they might be hanged if caught; and they fought Elizabeth's enemies in France and in the Netherlands as irregulars, taking their chance of being shot if taken prisoners. While Elizabeth nursed prosperity in peace, her subjects sapped the strength of England's rivals by attacks which were none the less damaging because they escaped the name of war.

It required all Elizabeth's finesse to run with the hare and hunt with the hounds; but she was, as Henry III. of France said, *la plus fine femme du monde*, and she was ably seconded by Cecil who had already proved himself an adept in the art of taking cover. Nevertheless, English policy in their hands was essentially aggressive. It could not be otherwise if England was to emerge from the slough in which Mary had left it. The first step was to assert the principle of England for the English; the queen would have no foreign husband, though she found suitors useful as well as attractive. Spanish counsels were applauded and neglected, and the Spaniards soon departed. Elizabeth was glad of Philip's support at the negotiations for peace at Cateau Cambrésis (1559), but she took care to assert the independence of her diplomacy and of England's interests. At home the church was made once more English. All foreign jurisdiction was repudiated, and under the style "supreme governor" Elizabeth reclaimed nearly all the power which Henry VIII. had exercised as "supreme head." The Act of Uniformity (1559) restored with a few modifications the second prayer-book of Edward VI. The bishops almost

Triumph of the new religion. The Act of Uniformity.

unanimously refused to conform, and a clean sweep was made of the episcopal bench. An eminently safe and scholarly archbishop was found in Matthew Parker, who had not made himself notorious by resistance to authority even under Mary. The lower clergy were more amenable; the two hundred who alone are said to have been ejected should perhaps be multiplied by five; but even so they were not one in seven, and these seven were clergy who had been promoted in Mary's reign, or who had stood the celibate and other tests of 1553-1554. Into the balance must be thrown the hundreds, if not thousands, of zealots who had fled abroad and returned in 1558-1559. The net result was that a few years later the lower house of convocation only rejected by one vote a very puritanical petition against vestments and other "popish dregs."

The next step was to expand the principle of England for the English into that of Britain for the British, and Knox's reformation in 1559-1560 provided an opportunity for its application. By timely and daring

Elizabeth and Scotland.

intervention in Scotland Elizabeth procured the expulsion of the French bag and baggage from North Britain, and that French avenue to England was closed for ever. The logic of this plan was not applied to Ireland; there it was to be Ireland for the English for many a generation yet to come; and so Ireland remained Achilles' heel, the vulnerable part of the United Kingdom. The Protestant religion was forced upon the Irish in a foreign tongue and garb and at the point of foreign pikes; and national sentiment supported the ancient faith and the ancient habits in resistance to the Saxon innovations.

In other directions the expansion of England, the third stage in the development of Elizabeth's policy, was more successful. The attractions of the Spanish Main converted the seafaring folk of south-west England into

Struggle against the Spanish dominion at sea.

hardy Protestants, who could on conscientious as well as other grounds contest a papal allocation of new worlds to Spain and Portugal. Their monopoly was

broken up by Hawkins, Drake, Frobisher, Raleigh, and scores of others who recognized no peace beyond the line; and although, as far as actual colonies went, the results of Elizabeth's reign were singularly meagre, the idea had taken root and the ground had been prepared. In every direction English influence penetrated, and Englishmen before 1603 might be found in every quarter of the globe, following Drake's lead into the Pacific, painfully breaking the ice in search of a north-east or a north-west passage, hunting for slaves in the wilds of Africa, journeying in caravans across the steppes of Russia into central Asia, bargaining with the Turks on the shores of the Golden Horn, or with the Greeks in the Levant, laying the foundations of the East India Company, or of the colonies of Virginia and Newfoundland.

This expansion was mainly at the expense of Spain; but at first Spain was regarded as Elizabeth's friend, not France. France had a rival candidate for Elizabeth's throne in Mary Stuart, the wife of the dauphin who soon (1559) became king as Francis II.; and Spanish favour was sought to neutralize this threat. Fortunately for Elizabeth, Francis died in 1560, and the French government passed into the hands of Catherine de' Medici, who had no cause to love her daughter-in-law and the Guises. France, too, was soon paralysed by the wars of religion which Elizabeth judiciously fomented with anything but religious motives. Mary Stuart returned to Scotland with nothing but her brains and her charms on which to rely in her struggle with her people and her rival. She was well equipped in both respects, but human passions spoilt her chance; her heart turned her head. Elizabeth's head was stronger and she had no heart at all. When Mary married Darnley she had the ball at her feet; the pair had the best claims to the English succession and enjoyed the united affections of the Catholics. But they soon ceased to love one another, and could not control their jealousies. There followed rapidly the murders of Rizzio and Darnley, the Bothwell marriage, Mary's defeat, captivity, and flight into England (1568). It was a difficult problem

for Elizabeth to solve; to let Mary go to France was presenting a good deal more than a pawn to her enemies; to restore her by force to her Scottish throne might have been heroic, but it certainly was not politics; to hand her over to her Scottish foes was too mean even for Elizabeth; and to keep her in England was to nurse a spark in a powder-magazine. Mary was detained in the hope that the spark might be carefully isolated.

But there was too much inflammable material about. The duke of Norfolk was a Protestant, but his convictions were weaker than his ambition, and he fell a victim to Mary's unseen charms. The Catholic north of England was

***Rebellion of 1569
and
excommunication of
Elizabeth.***

to rise under the earls of Westmorland and Northumberland, who objected to Elizabeth's seizure of their mines and jurisdictions as well as to her proscription of their faith; and the pope was to assist

with a bull of deposition. Norfolk, however, played the coward; the bull came nearly a year too late, and the rebellion of the earls (1569) was easily crushed. But the conspiracies did not end, and Spain began to take a hand. Elizabeth, partly in revenge for the treatment of Hawkins and Drake at San Juan de Ulloa, seized some Spanish treasure on its way to the Netherlands (Dec. 1569). Alva's operations were fatally handicapped by this disaster, but Philip was too much involved in the Netherlands to declare war on England.

***Plots against
Elizabeth. Relations
with France and
Spain.***

But his friendship for Elizabeth had received a shock, and henceforth his finger may be traced in most of the plots against her, of which the Ridolfi conspiracy was the first. It cost Norfolk his head and Mary more of her

scanty liberty. Elizabeth also began to look to France, and in 1572, by the treaty of Blois, France instead of Spain became England's ally, while Philip constituted himself as Mary's patron. The massacre of St Bartholomew placed a severe strain upon the new alliance, but was not fatal to it. A series of prolonged but hollow marriage negotiations between Elizabeth and first Anjou (afterwards Henry III.) and then Alençon (afterwards duke of Anjou)

served to keep up appearances. But the friendship was never warm; Elizabeth's relations with the Huguenots on the one hand and her fear of French designs on the Netherlands on the other prevented much cordiality. But the alliance stood in the way of a Franco-Spanish agreement, limited Elizabeth's sympathy with the French Protestants, and enabled her to give more countenance than she otherwise might have done to the Dutch.

Gradually Philip grew more hostile under provocation; slowly he came to the conclusion that he could never subdue the Dutch or check English attacks on the Spanish Main without a conquest of England. Simultaneously

The Jesuit missions. the counter-Reformation began its attacks; the "Jesuit invasion" took place in 1580, and Campion went to the block. A papal and Spanish attempt upon Ireland in the

same year was foiled at Smerwick. But more important was Philip's acquisition of the throne of Portugal with its harbours, its colonies and its marine. This for the first time gave him a real command of the sea, and at least doubled the chances of a successful attack upon England. But Philip's mind moved slowly and only on provocation. It took a year or two to satisfy him that Portugal was really his; not until 1583 was the fleet of the pretender Don Antonio destroyed in the Azores. The victor, Santa Cruz, then suggested an armada against England, but the English Catholics could not be brought into line with a Spanish invasion. The various attempts to square James VI. of Scotland had not been successful, and events in the Netherlands and in France disturbed Philip's calculations. But his purpose was now probably fixed. After the murder of William the Silent (1584) Elizabeth sided more openly with the Dutch; the Spanish ambassador

Execution of Mary, queen of Scots, 1587. Mendoza was expelled from England for his intrigues with Elizabeth's enemies (1586); and on the discovery of Babington's plot Elizabeth yielded to the demand of her parliament and her ministers for Mary's execution (1587); her death removed the only possible centre for a Catholic rebellion in case of a

Spanish attack. It also removed Philip's last doubts; Mary had left him her claims to the English throne, and he might, now that she was out of his path, hope to treat England like Portugal. Drake's "singeing of Philip's beard" in Cadiz harbour in 1587 delayed the expedition for a year, and a storm again postponed it in the early summer of 1588. At length the armada sailed in July under the incompetent duke of Medina Sidonia; its object was to secure command of the narrow seas and facilitate the transport of Parma's army from the Netherlands to England. But Philip after his twenty years' experience in the Netherlands can hardly have hoped to conquer a bigger and richer country with scantier means and forces. He relied in fact

***The Great Armada,
1588.***

upon a domestic explosion, and the armada was only to be the torch. This miscalculation made it a hopeless enterprise from the first. Scarcely an English Catholic would have raised a finger in Philip's favour; and when he could not subdue the two provinces of Holland and Zeeland, it is absurd to suppose that he could have simultaneously subdued them and England as well. English armies were not perhaps very efficient, but they were as good as the material with which William of Orange began his task. Philip, however, was never given the opportunity. His armada was severely handled in a week's fighting on its way up the Channel, and was driven off the English ports into the German Ocean; there a south-west gale drove it far from its rendezvous, and completed the havoc which the English ships had begun. A miserable remnant alone escaped destruction in its perilous flight round the north and west of Scotland.

The defeat of the armada was the beginning and not the end of the war; and there were moments between 1588 and 1603 when England was more seriously alarmed than in 1588. The Spaniards seized Calais in 1596; at another time they threatened England from Brest, and the "invisible" armada of 1599 created a greater panic than the "invincible" armada of 1588. It was not till the very end of the reign that what was in some ways

the most dangerous of Spanish aggressions was foiled at Kinsale. Nor were the English counter-attacks very happy; the attempt on Portugal in 1589 under Drake and Norris proved a complete failure. The raid on Cadiz under Essex and Raleigh in 1596 was attended with better results, but the “Islands” voyage to the Azores in 1597 was a very partial success. Still it was now a war upon more or less equal terms, and there was little more likelihood that it would end with England’s than with Spain’s loss of national independence. The subjection of the Netherlands was now almost out of the question, and although Elizabeth’s help had not enabled the Protestant cause to win in France, Henry IV. built up a national monarchy which would be quite as effectual a bar to the ambitions of Spain.

Elizabeth had in fact safely piloted England through the struggle to assert its national independence in religion and politics and its claim to a share in the new inheritance which had been opened up for the nations of Europe;

Last years of Elizabeth. and the passionate loyalty which had supported her as the embodiment of England’s aspirations somewhat cooled in her declining years. She herself grew more cautious and conservative than ever, and was regarded as an obstacle by the hotheads in war and religion. She sided with the “scribes,” Burghley and Sir Robert Cecil, against the men of war, Essex and Raleigh; and she abetted Whitgift’s rigorous persecution of the Puritans whose discontent with her *via media* was rancorously expressed in the Martin Marprelate tracts. Essex’s folly and failure to crush Hugh O’Neill’s rebellion (1599), the most serious effort made in the reign to throw off the English yoke in Ireland, involved him in treason and brought him to the block. Parliament was beginning to quarrel with the royal prerogative, particularly when expressed in the grant of monopolies, and even Mountjoy’s success in Ireland (1602-1603) failed to revive popular enthusiasm for the dying queen. Strange as it may seem, the accession of James I. was hailed as heralding a new and gladder age by Shakespeare, and minor writers (March 24, 1603).

VIII. THE STUART MONARCHY, THE GREAT REBELLION AND THE RESTORATION (1603-1689)

The defeat of the Spanish armada in 1588 had been the final victory gained on behalf of the independence of the English church and state. The fifteen years which followed had been years of successful war; but they had been also years during which the nation had been preparing itself to conform its institutions to the new circumstances in which it found itself in consequence of the great victory. When James arrived from Scotland to occupy the throne of Elizabeth he found a general desire for change. Especially there was a feeling that there might be some relaxation in the ecclesiastical arrangements. Roman Catholics and Puritans alike wished for a modification of the laws which bore hardly on them. James at first relaxed the penalties under which the Roman Catholics suffered, then he grew frightened by the increase of their numbers and reimposed the penalties. The gunpowder plot (1605) was the result, followed by a sharper persecution than ever (see [GUNPOWDER PLOT](#)).

The Puritans were invited to a conference with the king at Hampton Court (1604). They no longer asked, as many of them had asked in the beginning of Elizabeth's reign, to substitute the presbyterian discipline for the episcopal government. All they demanded was to be allowed permission, whilst remaining as ministers in the church, to omit the usage of certain ceremonies to which they objected. It was the opinion of Bacon that it would be wise to grant their request. James thought otherwise, and attempted to carry out the Elizabethan conformity more strictly than it had been carried out in his predecessor's reign.

In 1604 the Commons agreed with Bacon. They declared that they were no Puritans themselves, but that, with such a dearth of able ministers, it was not well to lose the services of any one who was capable of preaching the gospel. By his refusal to entertain their views James placed himself in opposition to the Commons in a matter which touched their deeper feelings. As a necessary consequence every dispute on questions of smaller weight assumed an exaggerated importance. The king had received a scanty revenue with his crown, and he spent freely what little he had. As the Commons offered grudging supplies, the necessity under which he was of filling up the annual deficit led him to an action by which a grave constitutional question was raised.

James I. and the Commons.

From the time of Richard II. to the reign of Mary no attempt had been made to raise duties on exports and imports without consent of parliament. But Mary had, under a specious pretext, recommenced to a slight extent the evil practice, and Elizabeth had gone a little further in the same direction. In 1606 a merchant named John Bates (*q.v.*) resisted the payment of an imposition—as duties levied by the sole authority of the crown were then called. The case was argued in the court of exchequer, and was there decided in favour of the crown. Shortly afterwards new impositions were set to the amount of £70,000 a year. When parliament met in 1610 the whole subject was discussed, and it was conclusively shown that, if the barons of the exchequer had been right in any sense, it was only in that narrow technical sense which is of no value at all. A compromise attempted broke down, and the difficulty was left to plague the next generation. The king was always able to assert that the judges were on his side, and it was as yet an acknowledged principle of the constitution that parliament could not change the law without the express consent of the crown, even if, which was not the case in this matter, the Lords had sided with the Commons. James's attempt to obtain further supplies from the Commons by opening a

bargain for the surrender of some of his old feudal prerogatives, such as wardship and marriage, which had no longer any real meaning except as a means of obtaining money in an oppressive way, broke down, and early in 1611 he dissolved his first parliament in anger. A second parliament, summoned in 1614, met with the same fate after a session of a few weeks.

The dissolution of this second parliament was followed by a short imprisonment of some of the more active members, and by a demand made through England for a benevolence to make up the deficiency which parliament had neglected to meet. The court represented that, as no compulsion was used, there was nothing illegal in this proceeding. But as the names of those who refused to pay were taken down, it cannot be said that there was no indirect pressure.

The most important result of the breach with the parliament of 1614, however, was the resolution taken by James to seek refuge from his financial and other troubles in a close alliance with the king of Spain. His

Attempted union with Scotland.

own accession had done much to improve the position of England in its relation with the continental powers.

Scotland was no longer available as a possible enemy to England, and though an attempt to bind the union between the two nations by freedom of commercial intercourse had been wrecked upon the jealousy of the English Commons (1607), a legal decision had granted the status of national subjects to all persons born in Scotland after the king's accession in England. Ireland, too, had been thoroughly overpowered at the

The colonization of Ulster.

end of Elizabeth's reign, and the flight of the earls of Tyrone and Tyrconnel in 1607 had been followed by the settlement of English and Scottish colonists in

Ulster, a measure which, in the way in which it was undertaken, sowed the seeds of future evils, but undoubtedly conduced to increase the immediate strength of the English government in Ireland.

Without fear of danger at home, therefore, James, who as king of Scotland had taken no part in Elizabeth's quarrel with Philip II., not only suspended hostilities immediately on his accession, and signed a peace in the following year, but looked favourably on the project of a Spanish marriage alliance, so that the chief Protestant and the chief Catholic powers might join together to impose peace on Europe, in the place of those hideous religious wars by which the last century had been disfigured. In 1611 circumstances had disgusted him with his new ally, but in 1614 he courted him again, not only on grounds of general policy, but because he hoped that the large portion which would accompany the hand of an infanta would go far to fill the empty treasury.

In this way the Spanish alliance, unpopular in itself, was formed to liberate the king from the shackles imposed on him by the English constitution. Its unpopularity, great from the beginning, became greater when Raleigh's execution (1618) caused the government to appear before the world as truckling to Spain. The obloquy under which James laboured increased when the Thirty Years' War broke out (1618), and when his daughter Elizabeth, whose husband, the elector palatine, was the unhappy claimant to the Bohemian crown (1619), stood forth as the lovely symbol of the deserted Protestantism of Europe. Yet it was not entirely in pity for German Protestants that the heart of Englishmen beat. Men felt that their own security was at stake. The prospect of a Spanish infanta as the bride of the future king of England filled them with suspicious terrors. In Elizabeth's time the danger, if not entirely external, did not come from the government itself. Now the favour shown to the Roman Catholics by the king opened up a source of mischief which was to some extent real, if it was to a still greater extent imaginary. Whether the danger were real or imaginary, the consequence of the distrust resulting from the suspicion was the reawakening of the slumbering demand for fresh persecution of the Roman

Catholics, a demand which made a complete reconciliation between the crown and the Lower House a matter of the greatest difficulty.

In 1621 the third parliament of James was summoned to provide money for the war in defence of his son-in-law's inheritance, the Palatinate, which he now proposed to undertake. But it soon appeared that he was not

Parliament and the monopolies.

prepared immediately to come to blows, and the Commons, voting a small sum as a token of their loyalty, passed to other matters. Indolent in his temper, James had been in the habit of leaving his patronage in the hands of a confidential favourite, and that position was now filled by George Villiers, marquess and afterwards duke of Buckingham. The natural consequence was that men who paid court to him were promoted, and those who kept at a distance from him had no notice taken of their merits. Further, a system of granting monopolies and other privileges had again sprung up. Many of these grants embodied some scheme which was intended to serve the interests of the public, and many actions which appear startling to us were covered by the extreme protectionist theories then in vogue. But abuses of every kind had clustered round them, and in many cases the profits had gone into the pockets of hangers-on of the court, whilst officials had given their assistance to the grantors even beyond their legal powers. James was driven by the outcry raised to abandon these monopolies, and an act of Parliament in 1624 placed the future grant of protections to new inventions under the safeguard of the judges.

The attack on the monopolies was followed by charges brought by the Commons before the Lords against persons implicated in carrying them into execution, and subsequently against Lord Chancellor Bacon as guilty of

Fall of Bacon.

corruption. The sentence passed by the Lords vindicated the right of parliament to punish officials who had enjoyed the favour of the crown, which had

fallen into disuse since the accession of the house of York. There was no open contest between parliament and king in this matter. But the initiative of demanding justice had passed from the crown to the Commons. It is impossible to overestimate the effect of these proceedings on the position of parliament. The crown could never again be regarded as the sum of the governmental system.

When the Commons met after the summer adjournment a new constitutional question was raised. The king was at last determined to find troops for the defence of the Palatinate, and asked the Commons for money to pay them. They in turn petitioned the crown to abandon the Spanish alliance, which they regarded as the source of all the mischief. James told them that they had no right to discuss business on which he had not asked their opinion. They declared that they were privileged to discuss any matter relating to the commonwealth which they chose to take in hand, and embodied their opinion in a protest, which they entered on their journals. The king tore the protest out of the book and dissolved parliament.

Then followed a fresh call for a benevolence, this time more sparingly answered than before. A year of fruitless diplomacy failed to save the Palatinate from total loss. The ill-considered journey to Madrid, in which Prince Charles, accompanied by Buckingham, hoped to wring from the Spanish statesmen a promise to restore the Palatinate in compliment for his marriage with the infanta, ended also in total failure. In the autumn of 1623 Charles returned to England without a wife, and without hope of regaining the Palatinate with Spanish aid.

He came back resolved to take vengeance upon Spain. The parliament elected in 1624 was ready to second him. It voted some supplies on the understanding that, when the king had matured his plans for carrying on the war, it should come together in the autumn to vote the necessary subsidies. It never met again. Charles had

The French alliance.

promised that, if he married a Roman Catholic, he would grant no toleration to the English Catholics in consideration of the marriage. In the autumn he had engaged himself to marry Henrietta Maria, the sister of the king of France, and had bound himself to grant the very conditions which he had declared to the Commons that he never would concede. Hence it was that he did not venture to recommend his father to summon parliament till the marriage was over. But though there was but little money to dispose of, he and Buckingham, who, now that James was sick and infirm, were the real leaders of the government, could not endure to abstain from the prosecution of the war. Early in 1625 an expedition, under Count Mansfeld, was sent to Holland that it might ultimately cut its way to the Palatinate. Left without pay and without supplies, the men perished by thousands, and when James died in March the new king had to meet his first parliament burthened by a broken promise and a disastrous failure.

When parliament met (1625) the Commons at first contented themselves with voting a sum of money far too small to carry on the extensive military and naval operations in which Charles had embarked. When the king explained his necessities, they intimated that they had no confidence in Buckingham, and asked that, before they granted further supply, the king would name counsellors whom they could trust to advise him on its employment. Charles at once dissolved parliament. He knew that the demand for ministerial responsibility would in the end involve his own responsibility, and, believing as he did that Buckingham's arrangements had been merely unlucky, he declined to sacrifice the minister whom he trusted.

Charles and Buckingham did their best to win back popularity by strenuous exertion. They attempted to found a great Protestant alliance on the continent, and they sent a great expedition to Cadiz. The Protestant alliance and the expedition to Cadiz ended in equal failure. The second

parliament of the reign (1626) impeached Buckingham for crimes against the state. As Charles would not dismiss him simply because the Commons were dissatisfied with him as a minister, they fell back on charging him with criminal designs. Once more Charles dissolved parliament to save Buckingham. Then came fresh enterprises and fresh failures. A fleet under Lord Willoughby (afterwards earl of Lindsey) was almost ruined by a storm. The king of Denmark, trusting to supplies from England which never came, was defeated at Lutter. A new war in addition to the Spanish war, broke out with France. A great expedition to Ré, under Buckingham's command (1627), intended to succour the Huguenots of La Rochelle against their sovereign, ended in disaster. In order to enable himself to meet expenditure on so vast a scale, Charles had levied a forced loan from his subjects. Men of high rank in society who refused to pay were imprisoned. Soldiers were billeted by force in private houses, and military officers executed martial law on civilians. When the imprisoned gentlemen appealed to the king's bench for a writ of *habeas corpus*, it appeared that no cause of committal had been assigned, and the judges therefore refused to liberate them. Still Charles believed it possible to carry on the war, and especially to send relief to La Rochelle, now strictly blockaded by the forces of the French crown. In order to find the means for this object he summoned his third parliament (1628). The Commons at once

The Petition of Right.

proceeded to draw a line which should cut off the possibility of a repetition of the injuries of which they complained. Charles was willing to surrender his claims to billet soldiers by force, to order the execution of martial law in time of peace, and to exact forced loans, benevolences, or any kind of taxation, without consent of parliament; but he protested against the demand that he should surrender the right to imprison without showing cause. It was argued on his behalf that in case of a great conspiracy it would be necessary to trust the crown with unusual powers to enable it to preserve the peace. The Commons, who

knew that the crown had used the powers which it claimed, not against conspirators, but against the commonwealth itself, refused to listen to the argument, and insisted on the acceptance of the whole Petition of Right, in which they demanded redress for all their grievances. The king at last gave his consent to it, as he could obtain money in no other way. In after times, when any real danger occurred which needed a suspension of the ordinary safeguards of liberty, a remedy was found in the suspension of the law by act of parliament; such a remedy, however, only became possible when king and parliament were on good terms of agreement with one another.

That time was as yet far distant. The House of Commons brought fresh charges against Buckingham, whose murder soon after the prorogation removed one subject of dispute. But when they met again (1629) they had

***Crown and
parliament.***

two quarrels left over from the preceding session. About a third part of the king's revenue was derived from customs duties which had for many generations been granted by parliament to each sovereign for life. Charles held that this grant was little more than a matter of form, whilst the Commons held that it was a matter of right. But for the other dispute the difficulty would probably have been got over. The strong Protestantism of Elizabeth's reign had assumed a distinctly Calvinistic form, and the country gentlemen who formed the majority of the House of Commons were resolutely determined that no other theology than that of Calvin should be taught in England. In the last few years a reaction against it had arisen especially in the universities, and those who adopted an unpopular creed, and who at the same time showed tendencies to a more ceremonial form of worship, naturally fell back on the support of the crown. Charles, who might reasonably have exerted himself to secure a fair liberty for all opinions, promoted these unpopular divines to bishoprics and livings, and the divines in turn exalted the royal prerogative above parliamentary rights. He now proposed that both sides should keep silence on the points in dispute. The

Commons rejected his scheme, and prepared to call in question the most obnoxious of the clergy. In this irritated temper they took up the question of tonnage and poundage, and instead of confining themselves to the great public question, they called to the bar some custom-house officers who happened to have seized the goods of one of their members. Charles declared that the seizure had taken place by his orders. When they refused to accept the excuse, he dissolved parliament, but not before a tumult took place in the House, and the speaker was forcibly held down in his chair whilst resolutions hostile to the government were put to the vote.

For eleven years no parliament met again. The extreme action of the Lower House was not supported by the people, and the king had the opportunity, if he chose to use it, of putting himself right with the nation after no long delay. But he never understood that power only attends sympathetic leadership. He contented himself with putting himself technically in the right, and with resting his case on the favourable decisions of the judges. Under any circumstances, neither the training nor the position of judges is such as to make them fit to be the final arbiters of political disputes. They are accustomed to declare what the law is, not what it ought to be. These judges, moreover, were not in the position to be impartial. They had been selected by the king, and were liable to be deprived of their office when he saw fit. In the course of Charles's reign two chief justices and one chief baron were dismissed or suspended. Besides the ordinary judges there were the extraordinary tribunals, the court of high commission nominated by the crown to punish ecclesiastical offenders, and the court of star chamber, composed of the privy councillors and the chief justices, and therefore also nominated by the crown, to inflict fine, imprisonment, and even corporal mutilation on lay offenders. Those who rose up in any way against the established order were sharply punished.

The harsh treatment of individuals only calls forth resistance when constitutional morality has sunk deeply into the popular mind. The ignoring of the feelings and prejudices of large classes has a deeper effect. Charles's foreign policy, and his pretentious claim to the sovereignty of the British seas, demanded the support of a fleet, which might indeed be turned to good purpose in offering a counterpoise to the growing navies of France and Holland. The increasing estrangement between him and the nation made him averse from the natural remedy of a parliament, and he reverted to the absolute practices of the middle ages, in order that he might strain them far beyond the warrant of precedent to levy a tax under the name of ship-money, first on the port towns and then on the whole of England. Payment was resisted by John Hampden, a Buckinghamshire squire; but the judges declared that the king was in the right (1638). Yet the arguments used by Hampden's lawyers sunk deeply into the popular mind, and almost every man in England who was called on to pay the tax looked upon the king as a wrong-doer under the forms of law.

In his ecclesiastical policy Charles was equally out of touch with the feelings of his people. He shared to the full his father's dislike and distrust of the Puritans, and he supported with the whole weight of the crown the attempt of William Laud (*q.v.*), since 1633 archbishop of Canterbury, to enforce conformity to the ritual prescribed by the Prayer Book. At the same time offence was given to the Puritans by an order that every clergyman should read the Declaration of Sports, in which the king directed that no one should be prevented from dancing or shooting at the butts on Sunday afternoon. Many of the clergy were suspended or deprived, many emigrated to Holland or New England, and of those who remained a large part bore the yoke with feelings of ill-concealed dissatisfaction. Suspicion was easily aroused that a deep plot existed, of which Laud was believed to be the

centre, for carrying the nation over to the Church of Rome, a suspicion which seemed to be converted into a certainty when it was known that Panzani and Conn, two agents of the pope, had access to Charles, and that in 1637 there was a sudden accession to the number of converts to the Roman Catholic Church amongst the lords and ladies of the court.

In the summer of 1638 Charles had long ceased to reign in the affections of his subjects. But their traditionary loyalty had not yet failed, and if he had not called on them for fresh exertions, it is possible that the coming revolution would have been long delayed. Men were ready to shout applause in honour of Puritan martyrs like Prynne, Burton and Bastwick, whose ears were cut off in 1637, or in honour of the lawyers who argued such a case as that of Hampden. But no signs of active resistance had yet appeared. Unluckily for Charles, he was likely to stand in need of the active co-operation of Englishmen. He had attempted to force a new Prayer Book upon the Scottish nation. A riot at Edinburgh in 1637 quickly led to national resistance, and when in November 1638 the general assembly at Glasgow set Charles's orders at defiance, he was compelled to choose between tame submission and immediate war. In 1639 he gathered an English force, and marched towards the border. But English laymen, though asked to supply the money which he needed for the support of his army, deliberately kept it in their pockets, and the contributions of the clergy and of official persons were not sufficient to enable him to keep his troops long in the field. The king, therefore, thought it best to agree to terms of pacification. Misunderstandings broke out as to the interpretation of the treaty, and Charles having discovered that the Scots were intriguing with France, fancied that England, in hatred of its ancient foe, would now be ready to rally to his standard. After an interval of eleven years, in April 1640 he once more called a parliament.

*Charles and
Scotland.*

The Short Parliament, as it was called, demanded redress of grievances, the abandonment of the claim to levy ship-money, and a complete change in the ecclesiastical system. Charles thought that it would not be worth while

***The Short
Parliament.***

even to conquer Scotland on such terms, and dissolved parliament. A fresh war with Scotland followed.

Wentworth, now earl of Strafford, became the leading adviser of the king. With all the energy of his disposition he threw himself into Charles's plans, and left no stone unturned to furnish the new expedition with supplies and money. But no skilfulness of a commander can avail when soldiers are determined not to fight. The Scots crossed the

***The Scottish
invasion.***

Tweed, and Charles's army was well pleased to fly before them. In a short time the whole of

Northumberland and Durham were in the hands of the invaders. Charles was obliged to leave these two counties in their hands as a pledge for the payment of their expenses; and he was also obliged to summon parliament to grant him the supplies which he needed for that object.

When the Long Parliament met in November 1640 it was in a position in which no parliament had been before. Though nominally the Houses did not command a single soldier, they had in reality the whole Scottish army at

***The Long
Parliament.***

their back. By refusing supplies they would put it out of the king's power to fulfil his engagements to that

army, and it would immediately pursue its onward march to claim its rights. Hence there was scarcely anything which the king could venture to deny the Commons. Under Pym's leadership, they began by asking the head of Strafford. Nominally he was accused of a number of

***Attainder of
Strafford.***

acts of oppression in the north of England and in Ireland. His real offence lay in his attempt to make the

king absolute, and in the design with which he was credited of intending to bring over an Irish army to crush the liberties of

England. If he had been a man of moderate abilities he might have escaped. But the Commons feared his commanding genius too much to let him go free. They began with an impeachment. Difficulties arose, and the impeachment was turned into a bill of attainder. The king abandoned his minister, and the execution of Strafford left Charles without a single man of supreme ability on his side. Then came rapidly a succession of blows at the supports by which the Tudor monarchy had been upheld. The courts of star chamber and high commission and the council of the north were abolished. The raising of tonnage and poundage without a parliamentary grant was declared illegal. The judges who had given obnoxious decisions were called to answer for their fault and were taught that they were responsible to the House of Commons as well as the king. Finally a bill was passed providing that the existing House should not be dissolved without its own consent.

It was clearly a revolutionary position which the House had assumed. But it was assumed because it was impossible to expect that a king who had ruled as Charles had ruled could take up a new position as the exponent of the feelings which were represented in the Commons. As long as Charles lived he could not be otherwise than an object of suspicion; and yet if he were dethroned there was no one available to fill his place. There arose therefore two parties in the House, one ready to trust the king, the other disinclined to put any confidence in him at all. The division was the sharper because it coincided with a difference in matters of religion. Scarcely any one wished to see the Laudian ceremonies upheld. But the members who favoured the king, and who formed a considerable minority, wished to see a certain liberty of religious thought, together with a return under a modified Episcopacy to the forms of worship which prevailed before Laud had taken the church in hand. The other side, which had the majority by a few votes, wished to see the Puritan creed prevail in all its strictness, and were favourable to the establishment of the Presbyterian discipline. The king by his unwise action threw power into the hands of his opponents. He listened

with tolerable calmness to their Grand Remonstrance, but his attempt to seize the five members whom he accused of high treason made a good understanding impossible. The Scottish army had been paid off some months before, and civil war was the only means of deciding the quarrel.

At first the fortune of war wavered. Edgehill was a drawn battle (1642), and the campaign of 1643, though it was on the whole favourable to the king, gave no decisive results. Before the year was at an end parliament invited a new Scottish army to intervene in England.

The civil war.

As an inducement, the Solemn League and Covenant was signed by all Parliamentary Englishmen, the terms of which were interpreted by the Scots to bind England to submit to Presbyterianism, though the most important clauses had been purposely left vague, so as to afford a loophole of escape. The battle of Marston Moor, with the defeat of the Royalist forces in the north, was the result. But the

battle did not improve the position of the Scots. They had been repulsed, and the victory was justly ascribed to the English contingent. The composition of that

Presbyterians and Independents.

contingent was such as to have a special political significance. Its leader was Oliver Cromwell. It was formed by men who were fierce Puritan enthusiasts, and who for the very reason that the intensity of their religion separated them from the mass of their countrymen, had learnt to uphold with all the energy of zeal the doctrine that neither church nor state had a right to interfere with the forms of worship which each congregation might select for itself (see [CONGREGATIONALISM](#) and [CROMWELL, OLIVER](#)). The principle advocated by the army, and opposed by the Scots and the majority of the House of Commons, was liberty of sectarian association. Some years earlier, under the dominion of Laud, another principle had been proclaimed by Chillingworth and Hales, that of liberty of thought within the unity of the church. Both these movements conduced to the ultimate establishment of toleration, but for the present the Independents were to have their way.

The Presbyterian leaders, Essex and Manchester, were not successful leaders. The army was remodelled after Cromwell's pattern, and the king was finally crushed at Naseby (1645). The next year (1646) he surrendered

The second civil war.

to the Scots. Then followed two years of fruitless negotiation, in which after the Scots abandoned the king to the English parliament, the army took him out of the hands of the parliament, whilst each in turn tried to find some basis of arrangement on which he might reign without ruling. Such a basis could not be found, and when Charles stirred up a fresh civil war and a Scottish invasion (1648) the leaders of the army vowed that, if victory was theirs, they would bring him to justice. To do this it was necessary to drive out a large number of the members of the House of Commons by what was

Execution of the king.

known as Pride's Purge, and to obtain from the mutilated Commons the dismissal of the House of Lords, and the establishment of a high court of justice, before which the king was brought to trial and sentenced to death. He was beheaded on a scaffold outside the windows of Whitehall (1649).⁵

The government set up was a government by the committees of a council of state nominally supporting themselves on the House of Commons, though the members who still retained their places were so few that the

The Commonwealth.

council of state was sufficiently numerous to form a majority in the House. During eleven years the nation passed through many vicissitudes in its forms of government. These forms take no place in the gradual development of English institutions, and have never been referred to as affording precedents to be followed. To the student of political science, however, they have a special interest of their own, as they show that when men had shaken themselves loose from the chain of habit and prejudice, and had set themselves to build up a political shelter under which to dwell, they were irresistibly attracted by that which was permanent in the old constitutional

forms of which the special development had of late years been so disastrous. After Cromwell had suppressed resistance in Ireland (1649), had conquered Scotland (1650), and had overthrown the son of the late king, the future Charles II., at Worcester (1651), the value of government by an assembly was tested and found wanting. After Cromwell had expelled the remains of the Long Parliament (1653), and had set up another assembly of nominated members, that second experiment was found equally wanting. It was necessary to have recourse to one head of the executive government,

*Cromwell's
protectorate.*

controlling and directing its actions. Cromwell occupied this position as lord protector. He did all that was in his power to do to prevent his authority from degenerating into tyranny. He summoned two parliaments, of only one House, and with the consent of the second parliament he erected a second House, so that he might have some means of checking the Lower House without constantly coming into personal collision with its authority. As far as form went, the constitution in 1658, so far as it differed from the Stuart constitution, differed for the better. But it suffered from one fatal defect. It was based on the rule of the sword. The only substitute for traditional authority is the clearly expressed expression of the national will, and it is impossible to doubt that if the national will had been expressed it would have swept away Cromwell and all his system. The majority of the upper and middle classes, which had united together against Laud, was now reunited against Cromwell. The Puritans themselves were but a minority, and of that minority considerable numbers disliked the free liberty accorded to the sects. Whilst the worship of the Church of England was proscribed, every illiterate or frenzied enthusiast was allowed to harangue at his pleasure. Those who cared little for religion felt insulted when they saw a government with which they had no sympathy ruling by means of an army which they dreaded and detested. Cromwell did his best to avert a social revolution, and to direct the energies of his supporters into the channels of

merely political change. But he could not prevent, and it cannot be said that he wished to prevent, the rise of men of ability from positions of social inferiority. The nation had striven against the arbitrary government of the king; but it was not prepared to shake off the predominance of that widely spreading aristocracy which, under the name of country gentlemen, had rooted itself too deeply to be easily passed by. Cromwell's rule was covered with military glory, and there can be no doubt that he honestly applied himself to solve domestic difficulties as well. But he reaped the reward of those who strive for something better than the generation in which they live is able to appreciate. His own faults and errors were remembered against him. He tried in vain to establish constitutional government and religious toleration (see [CROMWELL, OLIVER](#)). When he died (1658) there remained branded on the national mind two strong impressions which it took more than a century to obliterate—the dread of the domination of a standing army, and abhorrence of the very name of religious zeal.

The eighteen months which followed deepened the impression thus formed. The army had appeared a hard master when it lent its strength to a wise and sagacious rule. It was worse when it undertook to rule in its own name, to set up and pull down parliaments and governments. The only choice left to the nation seemed to be one between military tyranny and military anarchy. Therefore it was that when Monk advanced from Scotland and declared for a free parliament, there was little doubt that the new parliament would recall the exiled king, and seek to build again on the old foundations.

The Restoration was effected by a coalition between the Cavaliers, or followers of Charles I., and the Presbyterians who had originally opposed him. It was only after the nature of a great reaction that the latter should for a time be swamped by the former. The Long Parliament of the Restoration met in 1661, and the Act

of Uniformity entirely excluded all idea of reform in the Puritan direction, and ordered the expulsion from their benefices of all clergymen who refused to express approval of the whole of the Book of Common Prayer (1662). A previous statute, the Corporation Act (1661), ordered that all members of corporations should renounce the Covenant and the doctrine that subjects might in any case rightfully use force against their king, and should receive the sacrament after the forms of the Church of England. The object for which Laud had striven, the compulsory imposition of uniformity, thus became part of the law of the land.

Herein lay the novelty of the system of the Restoration. The system of Laud and the system of Cromwell had both been imposed by a minority which had possessed itself of the powers of government. The new uniformity was imposed by parliament, and parliament had the nation behind it. For the first time, therefore, all those who objected to the established religion sought, not to alter its forms to suit themselves, but to gain permission to worship in separate congregations. Ultimately, the dissenters, as they began to be called, would obtain their object. As soon as it became clear to the mass of the nation that the dissenters were in a decided minority, there would be no reason to fear the utmost they could do even if the present liberty of worship and teaching were conceded to them. For the present, however, they were feared out of all proportion to their numbers. They counted amongst them the old soldiers of the Protectorate, and though that army had been dissolved, it always seemed possible that it might spring to arms once more. A bitter experience had taught men that a hundred of Oliver's Ironsides might easily chase a thousand Cavaliers; and as long as this danger was believed to exist, every effort would be made to keep dissent from spreading. Hence the Conventicle Act (1664) imposed penalties on those taking part in religious meetings in private houses, and the Five Mile Act (1665) forbade an expelled clergyman to come within five miles of a corporate borough, the very place where he was most likely

to secure adherence, unless he would swear his adhesion to the doctrine of non-resistance.

The doctrine of non-resistance was evidently that by which, at this time, the loyal subject was distinguished from those whom he stigmatized as disloyal. Yet even the most loyal found that, if it was wrong to take up arms

Doctrine of non-resistance.

against the king, it might be right to oppose him in other ways. Even the Cavaliers did not wish to see

Charles II. an absolute sovereign. They wished to reconstruct the system which had been violently interrupted by the events of the autumn of 1641, and to found government on the co-operation between king and parliament, without defining to themselves what was to be done if the king's conduct became insufferable. Openly, indeed, Charles II. did not force them to reconsider their position. He did not thrust members of the Commons into prison, or issue writs for ship-money. He laid no claim to taxation which had not been granted by parliament. But he was extravagant and self-indulgent, and he wanted more money than they were willing to

The first Dutch war.

supply. A war with the Dutch broke out, and there were strong suspicions that Charles applied money voted for the fleet to the maintenance of a vicious and luxurious court. Against the vice and luxury, indeed, little objection was likely to be brought. The over-haste of the Puritans to drill England into ways of morality and virtue had thrown at least the upper classes into a slough of revelry and baseness. But if the vice did not appear objectionable the expense did, and a new chapter in the financial history of the government was opened when the Commons, having previously gained control over taxation, proceeded to vindicate their right to control expenditure.

As far, indeed, as taxation was concerned, the Long Parliament had not left its successor much to do. The abolition of feudal tenures and purveyance had long been demanded, and the conclusion of an arrangement

The Commons aim at control over expenditure.

which had been mooted in the reign of James I. is only notable as affording one instance out of many of the tendency of a single class to shift burdens off its own shoulders. The predominant landowners preferred the grant of an excise, which would be taken out of all pockets, to a land-tax which would exclusively be felt by those who were relieved by the abolition of the tenures. The question of expenditure was constantly telling on the relations between the king and the House of Commons. After the Puritan army had been disbanded, the king resolved to keep on foot a petty force of 5000 men, and he had much difficulty in providing for it out of a revenue which had not been intended by those who voted it to be used for such a purpose. Then came the Dutch war, bringing with it a suspicion that some at least of the money given for paying sailors and fitting out ships was employed by Charles on very different objects. The Commons accordingly, in 1665, succeeded in enforcing, on precedents derived from the reigns of Richard II. and Henry IV., the right of appropriating the supplies granted to special objects; and with more difficulty they obtained, in 1666, the appointment of a commission empowered to investigate irregularities in the issue of moneys. Such measures were the complement of the control over taxation which they had previously gained, and as far as their power of supervision went, it constituted them and not the king the directors of the course of government. If this result was not immediately felt, it was because the king had a large certain revenue voted to him for life, so that, for the present at least, it was only his extraordinary expenses which could be brought under parliamentary control. Nor did even the renewal of parliamentary impeachment, which ended in the banishment of Lord Chancellor Clarendon (1667), bring on any direct collision with the king. If the Commons wished to be rid of him because he upheld the prerogative, the king was equally desirous to be rid of him because he looked coldly on the looseness of the royal morals.

The great motive power of the later politics of the reign was to be found beyond the Channel. To the men of the days of Charles II., Louis XIV. of France was what Philip II. of Spain had been to the men of the days of Elizabeth. Gradually, in foreign policy, the commercial emulation with the Dutch, which found vent in one war in the time of the Commonwealth, and in two wars in the time of Charles II., gave way to a dread, rising into hatred, of the arrogant potentate who, at the head of the mightiest army in Europe, treated with contempt all rights which came into collision with his own wishes. Louis XIV., moreover, though prepared to quarrel with the pope in the matter of his own authority over the Gallican Church, was a bigoted upholder of Catholic orthodoxy, and Protestants saw in his political ambitions a menace to their religion. In the case of England there seemed a special danger to Protestantism; for whatever religious sympathies Charles II. possessed were with the Roman Catholic faith, and in his annoyance at the interference of the Commons with his expenditure he was not ashamed to stoop to become the pensioner of the French king. In 1670 the secret treaty of Dover was signed. Charles was to receive from Louis £200,000 a year and the aid of 6000 French troops to enable him to declare himself a convert, and to obtain special advantages for his religion, whilst he was also to place the forces of England at Louis's disposal for his purposes of aggression on the continent of Europe.

Charles had no difficulty in stirring up the commercial jealousy of England so as to bring about a second Dutch war (1672). The next year, unwilling to face the dangers of his larger plan, he issued a declaration of indulgence, which, by a single act of the prerogative, suspended all penal laws against Roman Catholics and dissenters alike. To the country gentlemen who constituted the cavalier parliament, and who had long been drifting into opposition to the crown, this was intolerable. The

Charles II. and Louis XIV.

Second Dutch war, and declaration of indulgence.

predominance of the Church of England was the prime article of their political creed; they dreaded the Roman Catholics; they hated and despised the dissenters. Under any circumstances an indulgence would have been most distasteful to them. But the growing belief that the whole scheme was merely intended to serve the purposes of the Roman Catholics converted their dislike into deadly opposition. Yet the parliament resolved to base its opposition upon constitutional grounds. The right claimed by the king to suspend the laws was questioned, and his claim to special authority in ecclesiastical matters was treated with contempt. The king gave way and withdrew his declaration. But no solemn act of parliament declared it to be illegal, and in due course of time it would be heard of again.

The Commons followed up their blow by passing the Test Act, making the reception of the sacrament according to the forms of the Church of England, and the renunciation of the doctrine of transubstantiation, a necessary qualification for office. At once it appeared what a hold the members of the obnoxious church had had upon the administration of the state. The lord high admiral, the lord treasurer, and a secretary of state refused to take the test. The lord high admiral was the heir to the throne, the king's brother, the duke of York.

Charles, as usual, bent before the storm. In Danby (see [LEEDS, 1ST DUKE OF](#)) he found a minister whose views answered precisely to the views of the existing House of Commons. Like the Commons, Danby wished to silence both Roman Catholics and dissenters. Like the Commons, too, he wished to embark on a foreign policy hostile to France. But he served a master who regarded Louis less as a possible adversary than as a possible paymaster. Sometimes Danby was allowed to do as he liked, and the marriage of the duke of York's eldest daughter Mary to her cousin the prince of Orange was

the most lasting result of his administration. More often he was obliged to follow where Charles led, and Charles was constantly ready to sell the neutrality of England for large sums of French gold. At last one of these negotiations was detected, and Danby, who was supposed to be the author instead of the unwilling instrument of the intrigue, was impeached. In order to save his minister, Charles dissolved parliament (1678). He could not have chosen a more unlucky time for his own quiet.

The Popish plot.

The strong feeling against the Roman Catholics had been quickened into a flame by a great imposture. The inventors of the so-called popish plot charged the leading English Roman Catholics with a design to murder the king. Judges and juries alike were maddened with excitement, and listened greedily to the lies which poured forth from the lips of profligate informers. Innocent blood was shed in abundance.

The excitement had its root in the uneasy feeling caused by the knowledge that the heir to the throne was a Roman Catholic. Three parliaments were summoned and dissolved. In each parliament the main

The Exclusion Bill.

question at issue between the Commons and the crown was the Exclusion Bill, by which the Commons sought to deprive the duke of York of his inheritance; and it was notorious that the leaders of the movement wished the crown to descend to the king's illegitimate son, the duke of Monmouth.

The principles by which the Commons were guided in these parliaments were very different from those which had prevailed in the first parliament of the Restoration. Those principles, to which that party adhered which about

Whigs and Tories.

this time became known as the Tory party, had been formed under the influence of the terror caused by militant Puritanism. In the state the Tory inherited the ideas of Clarendon, and, without being at all ready to abandon the claims of

parliaments, nevertheless somewhat inconsistently spoke of the king as ruling by a divine and indefeasible title, and wielding a power which it was both impious and unconstitutional to resist by force. In the church he inherited the ideas of Laud, and saw in the maintenance of the Act of Uniformity the safeguard of religion. But the hold of these opinions on the nation had been weakened with the cessation of the causes which had produced them. In 1680 twenty years had passed since the Puritan army had been disbanded. Many of Cromwell's soldiers had died, and most of them were growing old. The dissenters had shown no signs of engaging in plots or conspiracies. They were known to be only a comparatively small minority of the population, and though they had been cruelly persecuted, they had suffered without a thought of resistance. Dread of the dissenters, therefore, had become a mere chimaera, which only those could entertain whose minds were influenced by prejudice. On the other hand, dread of the Roman Catholics was a living force. Unless the law were altered a Roman Catholic would be on the throne, wielding all the resources of the prerogative, and probably supported by all the resources of the king of France. Hence the leading principle of the Whigs, as the predominant party was now called, was in the state to seek for the highest national authority in parliament rather than in the king, and in the church to adopt the rational theology of Chillingworth and Hales, whilst looking to the dissenters as allies against the Roman Catholics, who were the enemies of both.

Events were to show that it was a wise provision which led the Whigs to seek to exclude the duke of York from the throne. But their plan suffered under two faults, the conjunction of which was ruinous to them for the time.

Tory reaction. In the first place, their choice of Monmouth as the heir was infelicitous. Not only was he under the stain of illegitimacy, but his succession excluded the future succession of Mary, whose husband, the prince of Orange, was the hope of Protestant Europe. In the second place, drastic remedies are never generally

acceptable when the evil to be remedied is still in the future. When, in the third of the short parliaments held at Oxford the Whigs rode armed into the city, the nation decided that the future danger of a Roman Catholic succession was incomparably less than the immediate danger of another civil war. Loyal addresses poured in to the king. For the four remaining years of his reign he ruled without summoning any parliament. Whigs were brought before prejudiced juries and partial judges. Their blood flowed on the scaffold. The charter of the city of London was confiscated. The reign of the Tories was unquestioned. Yet it was not quite what the reign of the Cavaliers had been in 1660. The violence of the Restoration had been directed primarily against Puritanism, and only against certain forms of government so far as they allowed Puritans to gain the upper hand. The violence of the Tories was directed against rebellion and disorder, and only against dissenters so far as they were believed to be the fomenters of disorder. Religious hatred had less part in the action of the ruling party, and even from its worst actions a wise man might have predicted that the day of toleration was not so far off as it seemed.

The accession of James II. (1685) put the views of the opponents of the Exclusion Bill to the test. A new parliament was elected, almost entirely composed of decided Tories. A rebellion in Scotland, headed by the earl of

James II., 1685-1688.

Argyll, and a rebellion in England, headed by the duke of Monmouth, were easily suppressed. But the inherent difficulties of the king's position were not thereby overcome. It would have been hard, in days in which religious questions occupied so large a space in the field of politics, for a Roman Catholic sovereign to rule successfully over a Protestant nation. James set himself to make it, in his case, impossible. It may be that he did not consciously present to himself any object other than fair treatment for his co-religionists. On the one hand, however, he alienated even reasonable opponents by offering no guarantees that equality so gained would not be

converted into superiority by the aid of his own military force and of the assistance of the French king; whilst on the other hand he relied, even more strongly than his father had done, on the technical legality which exalted the prerogative in defiance of the spirit of the law. He began by making use of the necessity of resisting Monmouth to increase his army, under the pretext of the danger of a repetition of the late rebellion; and in the regiments thus levied he appointed many Roman Catholic officers who had refused to comply with the Test Act. Rather than submit to the gentlest remonstrance, he prorogued parliament, and proceeded to obtain from the court of king's bench a judgment in favour of his right to dispense with all penalties due by law, in the same way that his grandfather had appealed to the judges in the matter of the post-nati. But not only was the question put by James II. of far wider import than the question put by James I., but he deprived the court to which he applied of all moral authority by previously turning out of office the judges who were likely to disagree with him, and by appointing new ones who were likely to agree with him. A court of high commission of doubtful legality was subsequently erected (1686) to deprive or suspend clergymen who made themselves obnoxious to the court, whilst James appointed Roman Catholics to the headship of certain colleges at Oxford. The legal support given him by judges of his own selection was fortified by the military support of an army collected at Hounslow Heath; and a Roman Catholic, the earl of Tyrconnel, was sent as lord-deputy to Ireland (1687) to organize a Roman Catholic army on which the king might fall back if his English forces proved insufficient for his purpose.

Thus fortified, James issued a declaration of indulgence (1687) granting full religious liberty to all his subjects. The belief, that the grant of liberty to all religions was only intended to serve as a cloak for the ascendancy of one, was so strong that the measure roused the opposition of all those who objected to see the king's will substituted for the law, even if they wished to see

James's declaration of indulgence.

the Protestant dissenters tolerated. In spite of this opposition, the king thought it possible to obtain a parliamentary sanction for his declaration. The parliament to which he intended to appeal was, however, to be as different a body from the parliament which met in the first year of his reign as the bench of judges which had approved of the dispensing power had been different from the bench which existed at his accession. A large number of the borough members were in those days returned by the corporations, and the corporations were accordingly changed. But so thoroughly was the spirit of the country roused, that many even of the new corporations were set against James's declaration, and he had therefore to abandon for a time the hope of seeing it accepted even by a packed House of Commons. All, however, that he could do to give it force he did. He

Trial of the seven bishops.

ordered the clergy to read it in all pulpits (1688). Seven bishops, who presented a petition asking him to relieve the clergy from the burthen of proclaiming what they believed to be illegal, were brought to trial for publishing a seditious libel. Their acquittal by a jury was the first serious blow to the system adopted by the king.

Another event which seemed likely to consolidate his power was in reality the signal of his ruin. The queen bore him a son. There was thus no longer a strong probability that the king would be succeeded at no great

Revolution of 1688.

distance of time by a Protestant heir. Popular incredulity expressed itself in the assertion that, as James had attempted to gain his ends by means of a packed bench of judges and a packed House of Commons, he had now capped the series of falsifications by the production of a supposititious heir. The leaders of both parties combined to invite the prince of Orange to come to the rescue of the religion and laws of England. He landed on the 5th of November at Brixham. Before he could reach London every class of English society had declared in his favour. James was deserted even by his

army. He fled to France, and a convention parliament, summoned without the royal writ, declared that his flight was equivalent to abdication, and offered the crown in joint sovereignty to William and Mary (1689).

IX. THE REVOLUTION AND THE AGE OF ANNE (1689-1714)

The Revolution, as it was called, was more than a mere change of sovereigns. It finally transferred the ultimate decision in the state from the king to parliament. What parliament had been in the 15th century with the

*William III. and
Mary II., 1689.*

House of Lords predominating, that parliament was to be again in the end of the 17th century with the House of Commons predominating. That House of Commons was far from resting on a wide basis of popular suffrage. The county voters were the freeholders; but in the towns, with some important exceptions, the electors were the richer inhabitants who formed the corporations of the boroughs, or a body of select householders more or less under the control of some neighbouring landowner. A House so chosen was an aristocratic body, but it was aristocratic in a far wider sense than the House of Lords was aristocratic. The trading and legal classes found their representation there by the side of the great owners of land. The House drew its strength from its position as a true representative of the effective strength of the nation in its social and economical organization.

Such was the body which firmly grasped the control over every branch of the administration. Limiting in the Bill of Rights the powers assumed by the crown, the Commons declared that the king could not keep a standing army in time of peace without consent of parliament; and they made that consent effectual, as far as legislation could go, by passing a Mutiny Act year by year for twelve months only, so as to prevent the crown from exercising military discipline without their authority. Behind these legal contrivances

stood the fact that the army was organized in the same way as the nation was organized, being officered by gentlemen who had no desire to overthrow a constitution through which the class from which they sprung controlled the government. Strengthened by the cessation of any fear of military violence, the Commons placed the crown in financial dependence on themselves by granting a large part of the revenue only for a limited term of years, and by putting strictly in force their right of appropriating that revenue to special branches of expenditure.

Such a revolution might have ended in the substitution of the despotism of a class for the despotism of a man. Many causes combined to prevent this result. The landowners, who formed the majority of the House, were not elected directly, as was the case with the nobility of the French states-general, by their own class, but by electors who, though generally loyal to

Causes in favour of liberty.

them, would have broken off from them if they had attempted to make themselves masters of their fellow citizens. No less important was the almost absolute independence of the judges, begun at the beginning of the reign, by the grant of office to them during good behaviour instead of during the king's pleasure, and finally secured by the clause in the Act of Settlement in 1701, which protected them against dismissal except on the joint address of both Houses of Parliament. Such an improvement, however, finds its full counterpart in another great step already taken. The more representative a government becomes, the more necessary it is for the well-being of the nation that the expression of individual thought should be free in every direction. If it is not so, the government is inclined to proscribe unpopular opinion, and to forget that new opinions by which the greatest benefits are likely to be conferred are certain at first to be entertained by a very few, and are quite certain to be unpopular as soon as they come into collision with the opinions of the majority. In the middle ages the benefits of the liberation of thought from state control had been secured by the antagonism between

church and state. The Tudor sovereigns had rightfully asserted the principle that in a well-ordered nation only one supreme power can be allowed to exist; but in so doing they had enslaved religion. It was fortunate that, just at the moment when parliamentary control was established over the state, circumstances should have arisen which made the majority ready to restore to the individual conscience that supremacy over religion which the medieval ecclesiastics had claimed for the corporation of the universal church. Dissenters had, in the main, stood shoulder to shoulder with churchmen in rejecting the suspicious benefits of James, and both gratitude and policy forbade the thought of replacing them under the heavy yoke which had been imposed on them at the Restoration. The exact mode in which relief should be afforded was still an open question. The idea prevalent with the more liberal minds amongst the clergy was that of comprehension—that is to say, of so modifying the prayers and ceremonies of the church as to enable the dissenters cheerfully to enter in. The scheme was one which had approved itself to minds of the highest order—to Sir Thomas More, to Bacon, to Hales and to Jeremy Taylor. It is one which, as long as beliefs are not very divergent, keeps up a sense of brotherhood overruling the diversity of opinion. It broke down, as it always will break down in practice, whenever the difference of belief is so strongly felt as to seek earnestly to embody itself in diversity of outward practice. The greater part of the clergy of the church felt that to surrender their accustomed formularies was to surrender somewhat of the belief which those formularies signified, while the dissenting clergy were equally reluctant to

The Toleration Act.

adopt the common prayer book even in a modified form. Hence the Toleration Act, which guaranteed the right of separate assemblies for worship outside the pale of the church, though it embodied the principles of Cromwell and Milton, and not those of Chillingworth and Hales, was carried without difficulty, whilst the proposed scheme of comprehension never had a

chance of success (1689). The choice was one which posterity can heartily approve. However wide the limits of toleration be drawn, there will always be those who will be left outside. By religious liberty those inside gain as much as those who are without. From the moment of the passing of the Toleration Act, no Protestant in England performed any act of worship except by his own free and deliberate choice. The literary spokesman of the new system was Locke. His *Letters concerning Toleration* laid down the principle which had been maintained by Cromwell, with a wider application than was possible in days when the state was in the hands of a mere minority only able to maintain itself in power by constant and suspicious vigilance.

One measure remained to place the dissenters in the position of full membership of the state. The Test Act excluded them from office. But the memory of the high-handed proceedings of Puritan rulers was still too recent to allow Englishmen to run the risk of a reimposition of their yoke, and this feeling, fanciful as it was, was sufficient to keep the Test Act in force for years to come.

The complement of the Toleration Act was the abolition of the censorship of the press (1695). The ideas of the author of the *Areopagitica* had at last prevailed. The attempt to fix certain opinions on the nation which were pleasing to those in power was abandoned by king and parliament alike. The nation, or at least so much of it as cared to read books or pamphlets on political subjects, was acknowledged to be the supreme judge, which must therefore be allowed to listen to what counsellors it pleased.

This new position of the nation made itself felt in various ways. It was William's merit that, fond as he was of power, he recognized the fact that he could not rule except so far as he carried the goodwill of the nation with him. No doubt he was helped to an intelligent perception of the new

situation by the fact that, as a foreigner, he cared far more for carrying on war successfully against France than for influencing the domestic legislation of a country which was not his own, and by the knowledge that the conduct of the struggle which lasted till he was able to treat with France on equal terms at Ryswick (1697) was fairly trusted to his hands. Nevertheless these years of war called for the united action of a national government, and in seeking to gain this support for himself, he hit upon an expedient which opened a new era in constitutional politics.

The supremacy of the House of Commons would have been an evil of no common magnitude, if it had made government impossible. Yet this was precisely what it threatened to do. Sometimes the dominant party in the House pressed with unscrupulous rancour upon its opponents. Sometimes the majority shifted from side to side as the House was influenced by passing gusts of passion or sympathy, so that, as it was said at the time, no man could foretell one day what the House would be pleased to do on the next. Against the first of these dangers William was to a great extent able to guard by the exercise of his right of dissolution, so as to appeal to the constituencies, which did not always share in the passions of their representatives. But the second danger could not be met in this way. The only cure for waywardness is responsibility, and not only was this precisely what the Commons had not learned to feel, but it was that which it was impossible to make them feel directly. A body composed of several hundred members cannot carry on government with the requisite steadiness of action and clearness of insight. Such work can only fitly be entrusted to a few, and whenever difficult circumstances arise it is necessary that the action of those few be kept in harmony by the predominance of one. The scheme on which William hit, by the advice of the earl of Sunderland, was that which has since been known as cabinet government. He selected as his ministers the leading members of the two Houses who had the confidence of the majority of the House of

Beginning of cabinet government.

Commons. In this way, the majority felt an interest in supporting the men who embodied their own opinions, and fell in turn under the influence of those who held them with greater prudence or ability than fell to the lot of the average members of the House. All that William doubtless intended was to acquire a ready instrument to enable him to carry on the war with success. In reality he had refounded, on a new basis, the government of England. His own personal qualities were such that he was able to dominate over any set of ministers; but the time would come when there would be a sovereign of inferior powers. Then the body of ministers would step into his place. The old rude arrangements of the middle ages had provided by frequent depositions that an inefficient sovereign should cease to rule, and those arrangements had been imitated in the cases of Charles I. and James II. Still the claim to rule had, at least from the time of Henry III., been derived from hereditary descent, and the interruption, however frequently it might occur, had been regarded as something abnormal, only to be applied where there was an absolute necessity to prevent the wielder of executive authority from setting at defiance the determined purpose of the nation. After the Revolution not only had the king's title been so changed as to make him more directly than ever dependent on the nation, but he now called into existence a body which derived its own strength from its conformity with the wishes of the representatives of the nation.

For the moment it seemed to be but a temporary expedient. When the war came to an end, the Whig party which had sustained William in his struggle with France split up. The dominant feeling of the House of Commons was no longer the desire to support the crown against a foreign enemy, but to make government as cheap as possible, leaving future dangers to the chances of the future. William had not so understood the new invention of a united ministry as binding him to take into his service a united ministry of men whom he regarded as fools and knaves. He allowed the Commons to reduce the army to a skeleton, to question his actions, and to treat him as if

he were a cipher. But it was only by slow degrees that he was brought to acknowledge the necessity of choosing his ministers from amongst the men who had done these things.

The time came when he needed again the support of the nation. The death of Charles II., the heirless king of the huge Spanish monarchy, had long been expected. Since the peace of Ryswick, William and Louis XIV. had

***The Spanish
succession.***

come to terms by two successive partition treaties for a division of those vast territories in such a way that the whole of them should not fall into the hands of a near relation either of the king of France or of the emperor, the head of the house of Austria. When the king of Spain actually died in 1700, William seemed to have no authority in England whatever; and Louis was therefore encouraged to break his engagements, and to accept the whole of the Spanish inheritance for his grandson, who became Philip V. of Spain. William saw clearly that such predominance of France in Europe would lead to the development of pretensions unbearable to other states. But the House of Commons did not see it, even when the Dutch garrisons were driven by French troops out of the posts in the Spanish Netherlands which they had occupied for many years (1701).

William had prudently done all that he could to conciliate the Tory majority. In the preceding year (1700) he had given office to a Tory ministry, and he now (1701) gave his assent to the Act of Settlement, which

***The Act of
Settlement.***

secured the succession of the crown to the electress Sophia of Hanover, daughter of James I.'s daughter Elizabeth, to the exclusion of all Roman Catholic claimants, though it imposed several fresh restrictions on the prerogative. William was indeed wise in keeping his feelings under control. The country sympathized with him more than the Commons did, and when the House imprisoned the gentlemen deputed by the freeholders of Kent to present a

petition asking that its loyal addresses might be turned into bills of supply, it simply advertised its weakness to the whole country.

The reception of this Kentish petition was but a foretaste of the discrepancy between the Commons and the nation, which was to prove the marked feature of the middle of the century now opening. For the present

The Grand Alliance. the House was ready to give way. It requested the king to enter into alliance with the Dutch. William went yet further in the direction in which he was urged. He formed an alliance with the emperor, as well as with the Netherlands, to prevent the union of the crowns of France and Spain, and to compel France to evacuate the Netherlands. An unexpected event came to give him all the strength he needed. James II. died, and Louis acknowledged his son as the rightful king of England. Englishmen of both parties were stung to indignation by the insult. William dissolved parliament, and the new House of Commons, Tory as it was by a small majority, was eager to support the king. It voted men and money according to his wishes. England was to be the soul of the Grand Alliance against France. But before a blow was struck William was thrown from his horse. He died on the 8th of March 1702. "The man," as Burke said of him, "was dead, but the Grand Alliance survived in which King William lived and reigned."

Upon the accession of Anne, war was at once begun. The Grand Alliance became, as William would have wished, a league to wrest the whole of the Spanish dominions from Philip, in favour of the Austrian archduke Charles.

Queen Anne, 1702-1714. It found a chief of supreme military and diplomatic genius in the duke of Marlborough. His victory at Blenheim (1704) drove the French out of Germany. His victory of Ramillies (1706) drove them out of the Netherlands. In Spain, Gibraltar was captured by Rooke (1704) and Barcelona by Peterborough

(1705). Prince Eugene relieved Turin from a French siege, and followed up the blow by driving the besiegers out of Italy.

The influence of Marlborough at home was the result partly of the prestige of his victories, partly of the dominating influence of his strong-minded duchess ("Mrs Freeman") over the queen (see [ANNE](#), queen of England). The duke cared little for home politics in themselves; but he had his own ends, both public and private, to serve, and at first gave his support to the Tories, whose church policy was regarded with favour by the queen. Their efforts were directed towards the restriction of the Toleration Act within narrow limits. Many dissenters had evaded the Test Act by partaking of the communion in a church, though they subsequently attended their own chapels. An Occasional Conformity Bill, imposing penalties on those who adopted this practice, twice passed the Commons (1702, 1703), but was rejected by the House of Lords, in which the Whig element predominated. The church was served in a nobler manner in 1704 by the abandonment of

Union with Scotland.

first-fruits and tenths by the queen for the purpose of raising the pittance of the poorer clergy (see [QUEEN ANNE'S BOUNTY](#)). In 1707 a piece of legislation of the highest value was carried to a successful end. The Act of Union, passed in the parliaments of England and Scotland, joined the legislatures of the two kingdoms and the nations themselves in an indissoluble bond.

The ministry in office at the time of the passing of the Act of Union had suffered important changes since the commencement of the reign. The Tories had never been as earnest in the prosecution of the war as the Whigs;

United Whig ministry.

and Marlborough, who cared above all things for the furtherance of the war, gradually replaced Tories by Whigs in the ministry. His intention was doubtless to conciliate both parties by admitting them both to a share of power; but the Whigs were determined to have all or none, and in 1708 a purely Whig

ministry was formed to support the war as the first purely Whig ministry had supported it in the reign of William. The years of its power were the years of the victories of Oudenarde (1708) and of Malplaquet (1709), bringing with them the entire ruin of the military power of Louis XIV.

Such successes, if they were not embraced in the spirit of moderation, boded no good to the Whigs. It was known that even before the last battle Louis had been ready to abandon the cause of his grandson, and that his offers had been rejected because he would not consent to join the allies in turning him out of Spain. A belief spread in England that Marlborough wished the endless prolongation of the war for his own selfish ends. Spain was far away, and, if the Netherlands were safe, enough had been done for the interests of England. The Whigs were charged with refusing to make peace when an honourable and satisfactory peace was not beyond their reach.

As soon as the demand for a vigorous prosecution of the war relaxed, the Whigs could but rely on their domestic policy, in which they were strongest in the eyes of posterity but weakest in the eyes of contemporaries. It was known that they looked for the principle on which the queen's throne rested to the national act of the Revolution, rather than to the birth of the sovereign as the daughter of James II., whilst popular feeling preferred, however inconsistently, to attach itself to some fragment of hereditary right. What was of greater consequence was, that it was known that they were the friends of the dissenters, and that their leaders, if they could have had their way, would not only have maintained the Toleration Act, but would also have repealed the Test Act. In 1709 a sermon preached by Dr Sacheverell (*q.v.*) denounced toleration and the right of resistance in tones worthy of the first days of the Restoration. Foolish as the sermon was, it was but the reflection of folly which was widely spread amongst the rude and less educated classes. The Whig leaders unwisely took up the challenge and

impeached Sacheverell. The Lords condemned the man, but they condemned him to an easy sentence. His trial was the signal for riot. Dissenting chapels were sacked to the cry of High Church and Sacheverell. The queen, who had personal reasons for disliking the Whigs, dismissed them from office (1710), and a Tory House of Commons was elected amidst the excitement to support the Tory ministry of Harley and St John.

After some hesitation the new ministry made peace with France, and the treaty of Utrecht (1713), stipulating for the permanent separation of the crowns of France and Spain, and assigning Milan, Naples and the Spanish

Netherlands to the Austrian claimant, accomplished all that could reasonably be desired, though the abandonment to the vengeance of the Spanish government of her Catalan allies, and the base desertion of her continental confederates on the very field of action, brought dishonour on the good name of England. The Commons gladly welcomed the cessation of the war. The approval of the Lords had been secured by the creation of twelve Tory peers. In home politics the new ministry was in danger of being carried away by its more violent supporters. St John, now Viscount Bolingbroke,

with unscrupulous audacity placed himself at their head. The Occasional Conformity Bill was at last carried (1711). To it was added the Schism Act (1714), forbidding dissenters to keep schools or engage in tuition. Bolingbroke went still farther. He engaged in an intrigue for bringing over the Pretender to succeed the queen upon her death. This wild conduct alienated the moderate Tories, who, much as they wished to see the throne occupied by the heir of the ancient line, could not bring themselves to consent to its occupation by a Roman Catholic prince. Such men, therefore, when Anne died (1714) joined the Whigs in proclaiming the elector of Hanover king as George I.

X. THE HANOVERIAN KINGS (1714-1793)

The accession of George I. brought with it the predominance of the Whigs. They had on their side the royal power, the greater part of the aristocracy, the dissenters and the higher trading and commercial classes.

Accession of the House of Hanover.

The Tories appealed to the dislike of dissenters prevalent amongst the country gentlemen and the country clergy, and to the jealousy felt by the agricultural classes towards those who enriched themselves by trade. Such a feeling, if it was aroused by irritating legislation, might very probably turn to the advantage of the exiled house, especially as the majority of Englishmen were to be found on the Tory side. It was therefore advisable that government should content itself with as little action as possible, in order to give time for old habits to wear themselves out. The landing of the Pretender in Scotland (1715), and the defeat of a portion of his army which had advanced to Preston—a defeat which was the consequence of the apathy of his English supporters, and which was followed by the complete suppression of the rebellion—gave increased strength to the Whig government. But they were reluctant to face an immediate dissolution, and

Repeal of Occasional Conformity Act and Schism Act.

the Septennial Act was passed (1716) to extend to seven years the duration of parliaments, which had been fixed at three years by the Triennial Act of William and Mary. Under General Stanhope an effort was made to draw legislation in a more liberal direction. The Occasional Conformity Act and the Schism Act were repealed (1719); but the majorities on the side of the government were unusually small, and Stanhope, who would willingly have repealed the Test Act so far as it related to dissenters, was compelled to abandon the project as entirely impracticable. The Peerage Bill, introduced at the same time to limit the

royal power of creating peers, was happily thrown out in the Commons. It was proposed, partly from a desire to guard the Lords against such a sudden increase of their numbers as had been forced on them when the treaty of Utrecht was under discussion, and partly to secure the Whigs in office against any change in the royal councils in a succeeding reign. It was in fact conceived by men who valued the immediate victory of their principles more than they trusted to the general good sense of the nation. The Lords were at this time, as a matter of fact, not merely wealthier but wiser than the Commons; and it is no wonder that, in days when the Commons, by passing the Septennial Act, had shown their distrust of their own constituents, the peers should show, by the Peerage Bill, their distrust of that House which was elected by those constituencies. Nevertheless, the remedy was worse than the disease, for it would have established a close oligarchy, bound sooner or later to come into conflict with the will of the nation, and only to be overthrown by a violent alteration of the constitution.

The excitement following on the bursting of the South Sea Bubble (q.v.), and the death or ruin of the leading ministers, brought Sir Robert Walpole to the front (1721). As a man of business when men of business were few in the House of Commons, he was eminently fit to manage the affairs of the country. But he owed his long continuance in office especially to his sagacity. He clearly saw, what Stanhope had failed to see, that the mass of the nation was not fitted as yet to interest itself wisely in affairs of government, and that therefore the rule must be kept in the hands of the upper classes. But he was too sensible to adopt the coarse expedient which had commended itself to Stanhope, and he preferred humouring the masses to contradicting them.

The struggle of the preceding century had left its mark in every direction on the national development. Out of the reaction against Puritanism had come a widely-spread relaxation of morals, and also, as far as the educated

class was concerned, an eagerness for the discussion of all social and religious problems. The fierce excitement of political life had quickened thought, and the most anciently received doctrines were held of little worth until they were brought to the test of reason. It was a time when the pen was more powerful than the sword, when a secretary of state would treat with condescension a witty pamphleteer, and when such a pamphleteer might hope, not in vain, to become a secretary of state.

It was in this world of reason and literature that the Whigs of the Peerage Bill moved. Walpole perceived that there was another world which understood none of these things. With cynical insight he discovered that a great government cannot rest on a clique, however distinguished. If the mass of the nation was not conscious of political wants, it was conscious of material wants. The merchant needed protection for his trade; the voters gladly welcomed election days as bringing guineas to their pockets. Members of parliament were ready to sell their votes for places, for pensions, for actual money. The system was not new, as Danby is credited with the discovery that a vote in the House of Commons might be purchased. But with Walpole it reached its height.

Such a system was possible because the House of Commons was not really accountable to its constituents. The votes of its members were not published, and still less were their speeches made known. Such a silence could only be maintained around the House when there was little interest in its proceedings. The great questions of religion and taxation which had agitated the country under the Stuarts were now fairly settled. To reawaken those questions in any shape would be dangerous. Walpole took good care never to repeat the mistake of the Sacheverell trial. When on one occasion he was led into the proposal of an unpopular excise he at once drew back. England in his days was growing rich. Englishmen were bluff and independent, in their ways often coarse and unmannerly. Their life was the

life depicted on the canvas of Hogarth and the pages of Fielding. All high imagination, all devotion to the public weal, seemed laid asleep. But the political instinct was not dead, and it would one day express itself for better ends than an agitation against an excise bill or an outcry for a popular war. A government could no longer employ its powers for direct oppression. In his own house and in his own conscience, every Englishman, as far as the government was concerned, was the master of his destiny. By and by the idea would dawn on the nation that anarchy is as productive of evil as tyranny, and that a government which omits to regulate or control allows the strong to oppress the weak, and the rich to oppress the poor.

Walpole's administration lasted long enough to give room for some feeble expression of this feeling. When George I. was succeeded by George II. (1727), Walpole remained in power. His eagerness for the possession of that power which he desired to use for his country's good, together with the incapacity of two kings born and bred in a foreign country to take a leading part in English affairs, completed the change which had been effected when William first entrusted the conduct of government to a united cabinet. There was now for the first time a prime minister in England, a person who was himself a subject imposing harmonious action on the cabinet. The change was so gradually and silently effected that it is difficult to realize its full importance. So far, indeed, as it only came about through the incapacity of the first two kings of the house of Hanover, it might be undone, and was in fact to a great extent undone by a more active successor. But so far as it was the result of general tendencies, it could never be obliterated. In the ministries in which Somers and Montagu on the one hand and Harley and St John on the other had taken part, there was no prime minister except so far as one member of the administration dominated over his colleagues by the force of character and intelligence. In the reign of George III., even North

George II. 1727-1760.

and Addington were universally acknowledged by that title, though they had little claim to the independence of action of a Walpole or a Pitt.

The change was, in fact, one of the most important of those by which the English constitution has been altered from an hereditary monarchy with a parliamentary regulative agency to a parliamentary government with an hereditary regulative agency. In Walpole's time the forms of the constitution had become, in all essential particulars, what they are now. What was wanting was a national force behind them to set them to their proper work.

The growing opposition which finally drove Walpole from power was not entirely without a nobler element than could be furnished by personal rivalry, or ignorant distrust of commercial and financial success. It was well

The Opposition. that complaints that a great country ought not to be governed by patronage and bribery should be raised, although, as subsequent experience showed, the causes which rendered corruption inevitable were not to be removed by the expulsion of Walpole from office. But for one error, indeed, it is probable that Walpole's rule would have been still further prolonged. In 1739 a

War with Spain. popular excitement arose for a declaration of war against Spain. Walpole believed that war to be certainly unjust, and likely to be disastrous. He had, however,

been so accustomed to give way to popular pressure that he did not perceive the difference between a wise and timely determination to leave a right action undone in the face of insuperable difficulties, and an unwise and cowardly determination to do that which he believed to be wrong and imprudent. If he had now resigned rather than demean himself by acting against his conscience, it is by no means unlikely that he would have been recalled to power before many years were over. As it was, the failures of the war recoiled on his own head, and in 1742 his long ministry came to an end.

After a short interval a successor was found in Henry Pelham. All the ordinary arts of corruption which Walpole had practised were continued, and to them were added arts of corruption which Walpole had disdained to practise. He at least understood that there were certain principles in accordance with which he wished to conduct public affairs, and he had driven colleague after colleague out of office rather than allow them to distract his method of government. Pelham and his brother, the Thomas Pelham, duke of Newcastle, had no principles of government whatever. They offered place to every man of parliamentary skill or influence. There was no opposition, because the ministers never attempted to do anything which would arouse opposition, and because they were ready to do anything called for by any one who had power enough to make himself dangerous; and in 1743 they embarked on a useless war with France in order to please the king, who saw in every commotion on the continent of Europe some danger to his beloved Hanover.

Ministry of Henry Pelham.

At most times in the history of England such a ministry would have been driven from office by the outcry of an offended people. In the days of the Pelhams, government was regarded as lying too far outside the all-important private interests of the community to make it worth while to make any effort to rescue it from the degradation into which it had fallen; yet the Pelhams had not been long in power before this serene belief that the country could get on very well without a government in any real sense of the word was put to the test. In 1745 Charles Edward, the son of the Pretender, landed in Scotland. He was followed by many of the Highland clans, always ready to draw the sword against the constituted authorities of the Lowlands; and even in the Lowlands, and especially in Edinburgh, he found adherents, who still felt the sting inflicted by the suppression of the national independence of Scotland. The British army was in as chaotic a condition as

The Rebellion of 1745.

the British government, and Charles Edward inflicted a complete defeat on a force which met him at Prestonpans. Before the end of the year the victor, at the head of 5000 men, had advanced to Derby. But he found no support in England, and the mere numbers brought against him compelled him to retreat, to find defeat at Culloden in the following year (1746). The war on the continent had been waged with indifferent success. The victory of Dettingen (1743) and the glorious defeat of Fontenoy (1745) had achieved no objects worthy of English intervention, and the peace of Aix-la-Chapelle put an end in 1748 to hostilities which should never have been begun. The government pursued its inglorious career as long as Henry Pelham lived. He had at least some share in the financial ability of Walpole, and it was not till he died in 1754 that the real difficulties of a system which was based on the avoidance of difficulties had fairly to be faced.

The change which was needed was not any mere re-adjustment of the political machine. Those who cared for religion or morality had forgotten that man is an imaginative and emotional being. Defenders of Christianity

Moral and religious atmosphere.

and of deism alike appealed to the reason alone.

Enthusiasm was treated as a folly or a crime, and earnestness of every kind was branded with the name of enthusiasm. The higher order of minds dwelt with preference upon the beneficent wisdom of the Creator. The lower order of minds treated religion as a kind of life assurance against the inconvenience of eternal death. Upon such a system as this human nature was certain to revenge itself. The

Wesley and Whitefield.

preaching of Wesley and Whitefield appealed direct to

the emotions, with its doctrine of “conversion,” and called upon each individual not to understand, or to admire, or to act, but vividly to realize the love and mercy of God. In all this there was nothing new. What was new was that Wesley added an organization, Methodism (*q.v.*), in which each of his followers unfolded to one another the secrets of their heart, and became accountable to his

fellows. Large as the numbers of the Methodists ultimately became, their influence is not to be measured by their numbers. The double want of the age, the want of spiritual earnestness and the want of organized coherence, would find satisfaction in many ways which would have seemed strange to Wesley, but which were, nevertheless, a continuance of the work which he began.

As far as government was concerned, when Henry Pelham died (1754) the lowest depth of baseness seemed to have been reached. The duke of Newcastle, who succeeded his brother, looked on the work of corruption

*Ministry of
Newcastle.*

with absolute pleasure, and regarded genius and ability as an awkward interruption of that happy arrangement which made men subservient to flattery and money.

Whilst he was in the very act of trying to drive from office all men who were possessed of any sort of ideas, he was surprised by a great war. In America, the French settlers in Canada and the English settlers on the Atlantic coast were falling to blows for the possession of the vast territories drained by the Ohio and its tributaries. In India, Frenchmen and Englishmen had striven during the last war for authority over the native states round Pondicherry and Madras, and the conflict threatened to break out anew. When war began in earnest, and the reality of danger came home to Englishmen by the capture of Minorca (1756), there arose a demand for a more capable government than any which Newcastle could offer. Terrified by the storm of obloquy which he aroused, he fled from office. A government was formed, of which the soul was William Pitt. Pitt was, in some sort, to the political life of Englishmen what Wesley was to their religious life. He brought no new political ideas into their minds, but he ruled them by the force of his character and the example of his purity. His weapons were trust and confidence. He appealed to the patriotism of his fellow-countrymen, to their imaginative love for the national greatness, and he did not appeal in vain. He perceived instinctively that a large number,

even of those who took greedily the bribes of Walpole and the Pelhams, took them, not because they loved money better than their country, but because they had no conception that their country had any need of them at

*Ministry of Pitt and
Newcastle.*

all. It was a truth, but it was not the whole truth. The great Whig families rallied under Newcastle and drove Pitt from office (1757). But if Pitt could not govern without Newcastle's corruption, neither could Newcastle govern without Pitt's energy. At last a compromise was effected, and Newcastle undertook the work of bribing, whilst Pitt undertook the work of governing (see [CHATHAM, WILLIAM PITT, 1ST EARL OF](#)).

The war which had already broken out, the Seven Years' War (1756-1763), was not confined to England alone. By the side of the duel between France and England, a war was going on upon the continent of Europe, in which Austria—with its allies, France, Russia and the German princes—had fallen upon the new kingdom of Prussia and its sovereign Frederick II. England and Prussia therefore necessarily formed an alliance. Different as the two governments were, they were both alike in recognizing, in part at least, the conditions of progress. Even in Pitt's day England, however imperfectly, rested its strength on the popular will. Even in Frederick's day Prussia was ruled by administrators selected for their special knowledge. Neither France nor Austria had any conception of the necessity of fulfilling these requirements. Hence the strength of England and of Prussia. The war seemed to be a mere struggle for territory. There was no feeling in either Pitt or Frederick, such as there was in the men who contended half a century later against Napoleon, that they were fighting the battles of the civilized world. There was something repulsive as well in the enthusiastic nationalism of Pitt as in the cynical nationalism of Frederick. Pitt's sole object was to exalt England to a position in which she would fear no rival. But in so doing he exalted that which, in spite of all that had happened, best deserved to be exalted. The habits of individual energy fused together by the inspiration of patriotism conquered Canada. The unintelligent over-regulation of the French government could not maintain the colonies which had been founded in happier times. In 1758 Louisburg was taken, and the mouth of the St Lawrence guarded against France. In 1759 Quebec fell before Wolfe, who died at the moment of victory. In the same year the naval victories of Lagos and Quiberon Bay established the supremacy of the British at sea. The battle of Plassey (1757) had laid Bengal at the feet of Clive; and Coote's victory at Wandiwash (1760) led to the final ruin of the relics of French authority in southern India. When George II. died (1760)

The Seven Years' War.

England was the first maritime and colonial power in the world (see [SEVEN YEARS' WAR](#); [CANADA: History](#); [INDIA: History](#)).

In George III. the king once more became an important factor in English politics. From his childhood he had been trained by his mother and his instructors to regard the breaking down of the power of the great families as

George III., 1760-1820.

the task of his life. In this he was walking in the same direction as Pitt. If the two men could have worked together, England might have been spared many

misfortunes. Unhappily, the king could not understand Pitt's higher qualities, his bold confidence in the popular feeling, and his contempt for corruption and intrigue. And yet the king's authority was indispensable to Pitt, if he was to carry on his conflict against the great families with success. When the war came to an end, as it must come to an end sooner or later, Pitt's special predominance, derived as it was from his power of breathing a martial spirit into the fleets and armies of England, would come to an end too. Only the king, with his hold upon the traditional instincts of loyalty and the force of his still unimpaired prerogative, could, in ordinary times, hold head against the wealthy and influential aristocracy. Unfortunately, George III. was not wise enough to deal with the difficulty in a high-minded fashion. With a well-intentioned but narrow mind, he had nothing in him to strike the imagination of his subjects. He met influence with influence, corruption with corruption, intrigue with intrigue. Unhappily, too, his earliest relations with Pitt involved a dispute on a point

Pitt's resignation.

on which he was right and Pitt was wrong. In 1761 Pitt resigned office, because neither the king nor the cabinet were willing to declare war against Spain in the

midst of the war with France. As the war with Spain was inevitable, and as, when it broke out in the following year (1762), it was followed by triumphs for which Pitt had prepared the way, the prescience of the great war-minister appeared to be fully established. But it was his love of war, not his

skill in carrying it on, which was really in question. He would be satisfied with nothing short of the absolute ruin of France. He would have given England that dangerous position of supremacy which was gained for France by Louis XIV. in the 17th century, and by Napoleon in the 19th century. He would have made his country still more haughty and arrogant than it was, till other nations rose against it, as they have three times risen against France, rather than submit to the intolerable yoke. It was a happy thing for England that peace was signed (1763).

Even as it was, a spirit of contemptuous disregard of the rights of others had been roused, which would not be easily allayed. The king's premature attempt to secure a prime minister of his own choosing in Lord Bute (1761) came to an end through the minister's incapacity (1763). George Grenville, who followed him, kept the king in leading strings in reliance upon his parliamentary majority. Something, no doubt, had been accomplished by the incorruptibility of Pitt. The practice of bribing members of parliament by actual presents in money came to an end, though the practice of bribing them by place and pension long continued. The arrogance which Pitt displayed towards foreign nations was displayed by Grenville towards classes of the population of the British dominions. It was enough for him to establish a right. He never put himself in the position of those who were to suffer by its being put in force.

The first to suffer from Grenville's conception of his duty were the American colonies. The mercantile system, which had sprung up in Spain in the 16th century, held that colonies were to be entirely prohibited from trading, except with the mother country. Every European country had adopted this view, and the acquisition of fresh colonial dominions by England, at the peace of 1763, had been made not so much through lust of empire as

through love of trade. Of all English colonies, the American were the most populous and important. Their proximity to the Spanish colonies in the West Indies had naturally led to a contraband trade. To this trade Grenville put a stop, as far as lay in his power. Obnoxious as this measure was in America, the colonists had acknowledged the principle on which it was founded too long to make it easy to resist it. Another step of Grenville's met with more open opposition. Even with all the experience of the century which followed, the relations between a mother country and her colonies are not easy to arrange. If the burthen of defence is to be borne in common, it can hardly be left to the mother country to declare war, and to exact the necessary taxation, without the consent of the colonies. If, on the other hand, it is to be borne by the mother country alone, she may well complain that she is left to bear more than her due share of the weight. The latter alternative forced itself upon the attention of Grenville. The British parliament, he held, was the supreme legislature, and, as such, was entitled to raise taxes in America to support the military forces needed for the defence of America. The act (1765) imposing a stamp tax on the American colonies was the result.

As might have been expected, the Americans resisted. For them, the question was precisely that which Hampden had fought out in the case of ship-money. As far as they were concerned, the British parliament had stepped into the position of Charles I. If Grenville had remained in office he would probably have persisted in his resolution. He was driven from his post by the king's resolve no longer to submit to his insolence, and a new ministry was formed under the marquess of Rockingham, composed of some of those leaders of the Whig aristocracy who had not followed the Grenville ministry. They were well-intentioned, but weak, and without political ability; and the king regarded them with distrust, only qualified by his abhorrence of the ministry which they superseded.

***The Rockingham
ministry.***

As soon as the bad news came from America, the ministry was placed between two recommendations. Grenville, on the one hand, advised that the tax should be enforced. Pitt, on the other, declared that the British parliament had absolutely no right to tax America, though he held that it had the right to regulate, or in other words to tax, the commerce of America for the benefit of the British merchant and manufacturer. Between the two the government took a middle course. It obtained from parliament a total repeal of the Stamp Act, but it also passed a Declaratory Act, claiming for the British parliament the supreme power over the colonies in matters of taxation, as well as in matters of legislation.

The Declaratory Act and repeal of Stamp Act.

It is possible that the course thus adopted was chosen simply because it was a middle course. But it was probably suggested by Edmund Burke, who was then Lord Rockingham's private secretary, but who for some time to come was to furnish thought to the party to which he attached himself. Burke carried into the world of theory those politics of expediency of which Walpole had been the practical originator. He held that questions of abstract right had no place in politics. It was therefore as absurd to argue with Pitt that England had a right to regulate commerce, as it was to argue with Grenville that England had a right to levy taxes. All that could be said was, that it was expedient in a widespread empire that the power of final decision should be lodged somewhere, and that it was also expedient not to use that power in such a way as to irritate those whom it was the truest wisdom to conciliate.

Burke's political theory.

The weak side of this view was the weak side of all Burke's political philosophy. Like all great innovators, he was intensely conservative where he was not an advocate of change. With new views on every subject relating to the exercise of power, he shrank even from entertaining the slightest question relating to the

Arguments of Pitt and Burke.

distribution of power. He recommended to the British parliament the most self-denying wisdom, but he could not see that in its relation to the colonies the British parliament was so constituted as to make it entirely unprepared to be either wise or self-denying. It is true that if he had thought out the matter in this direction, he would have been led further than he or any other man in England or America was at that time prepared to go. If the British parliament was unfit to legislate for America, and if, as was undoubtedly the case, it was impossible to create a representative body which was fit to legislate, it would follow that the American colonies could only be fairly governed as practically independent states, though they might possibly remain, like the great colonies of our own day, in a position of alliance rather than of dependence. It was because the issues opened led to changes so far greater than the wisest statesman then perceived, that Pitt's solution, logically untenable as it was, was preferable to Burke's. Pitt would have given bad reasons for going a step in the right direction. Burke gave excellent reasons why those who were certain to go wrong should have the power to go right.

Scarcely were the measures relating to America passed when the king turned out the ministry. The new ministry was formed by Pitt, who was created earl of Chatham (1766), on the principle of bringing together men who had shaken themselves loose from any of the different Whig cliques. Whatever chance the plan had of succeeding was at an end when Chatham's mind temporarily gave way under stress of disease (1767). Charles Townshend, a brilliant, headstrong man, led parliament in the way which had been prepared by the Declaratory Act, and laid duties on tea and other articles of commerce entering the ports of America.

Ministry of Lord Chatham.

It was impossible that the position thus claimed by the British parliament towards America should affect America alone. The habit of obtaining

money otherwise than by the consent of those who are required to pay it would be certain to make parliament careless of the feelings and interests of that great majority of the population at home, which was unrepresented in parliament. The resistance of America to the taxation imposed was therefore not without benefit to the people of the mother country. Already there were signs of a readiness in parliament to treat even the constituencies with

Wilkes and "The North Briton."

contempt. In 1763, in the days of the Grenville ministry, John Wilkes, a profligate and scurrilous writer, had been arrested on a general warrant—that is to say, a warrant in which the name of no individual was mentioned—as the author of an alleged libel on the king, contained in No. 45 of *The North Briton*. He was a member of parliament, and as such was declared by Chief Justice Pratt to be privileged against arrest. In 1768 he was elected member for Middlesex. The House of Commons expelled him. He was again elected, and again expelled. The third time, the Commons gave the seat to which Wilkes was a third time chosen to Colonel Luttrell, who was far down in the poll. Wilkes thus became the representative of a great constitutional principle, the principle that the electors have a right to choose their representatives without restriction, save by the regulations of the law.

For the present the contention of the American colonists and of the defenders of Wilkes at home was confined within the compass of the law. Yet in both cases it might easily pass beyond that compass, and might rest itself upon an appeal to the duty of governments to modify the law, and to enlarge the basis of their authority, when law and authority have become too narrow.

As regards America, though Townshend died, the government persisted in his policy. As resistance grew stronger in America, the king urged the use of compulsion. If he had not the wisdom of the country on his side, he had its prejudices. The arrogant spirit of Englishmen made them contemptuous

***Lord North's
ministry.***

towards the colonists, and the desire to thrust taxation upon others than themselves made the new colonial legislation popular. In 1770 the king made Lord North prime minister. He had won the object on which he had set his heart. A new Tory party had sprung up, not distinguished, like the Tories of Queen Anne's reign, by a special ecclesiastical policy, but by their acceptance of the king's claim to nominate ministers, and so to predominate in the ministry himself.

Unhappily the opposition, united in the desire to conciliate America, was divided on questions of home policy. Chatham would have met the new danger by parliamentary reform, giving increased voting power to the freeholders of the counties. Burke from principle, and his noble patrons mainly from lower motives, were opposed to any such change. As Burke had wished the British parliament to be supreme over the colonies, in confidence that this supremacy would not be abused, so he wished the great landowning connexion resting on the rotten boroughs to rule over the unrepresented people, in confidence that this power would not be abused. Amid these distractions the king had an easy game to play. He had all the patronage of the government in his hands, and beyond the circle which was influenced by gifts of patronage, he could appeal to the ignorance and self-seeking of the nation, with which, though he knew it not, he was himself in the closest sympathy.

No wonder resistance grew more vigorous in America. In 1773 the inhabitants of Boston threw ship-loads of tea into the harbour rather than pay the obnoxious duty. In 1774 the Boston Port Bill deprived Boston of its commercial rights, whilst the Massachusetts Government Bill took away from that colony the ordinary political liberties of Englishmen. The first skirmish of the inevitable war was fought at Lexington in 1775. In 1776 the

***The American War of
Independence.***

thirteen colonies united in the continental congress issued their Declaration of Independence. England put forth all its strength to beat down resistance; but the task, which seemed easy at a distance, proved impossible. It might have been so even had the war been conducted on the British side with greater military skill and with more insight into the conditions of the struggle, which was essentially a civil contest between men of the same race. But the initial difficulties of the vast field of operations were greatly increased by the want of skill of the British leaders in adapting themselves to new conditions, while even loyalist sentiment was shocked by the employment of German mercenaries and Red Indian savages against men of English blood. Even so, the issue of the struggle was for long doubtful, and there were moments when it might have ended by a policy of wise concession; but the Americans, though reduced at times to desperate straits, had the advantage of fighting in their own country, and above all they found in George Washington a leader after the model of the English country gentleman who had upheld the standard of liberty against the Stuarts, and worthy of the great cause for which they fought. In 1777 a British army under Burgoyne capitulated at Saratoga; and early in 1778 France, eager to revenge the disasters of the Seven Years' War, formed an alliance with the revolted colonies as free and independent states, and was soon joined by Spain.

Chatham, who was ready to make any concession to America short of independence, and especially of independence at the dictation of France, died in 1778. The war was continued for some years with varying results; but in 1781 the capitulation of a second British army under Cornwallis at Yorktown was a decisive blow, which brought home to the minds of the dunest the assurance that the conquest of America was an impossibility.

Before this event happened there had been a great change in public feeling in England. The increasing weight of taxation gave rise in 1780 to a

great meeting of the freeholders of Yorkshire, which in turn gave the signal for a general agitation for the reduction of unnecessary expense in the government. To this desire Burke gave expression in his bill for economical reform, though he was unable to carry it in the teeth of interested opposition. The movement in favour of economy was necessarily also a movement in favour of peace; and when the surrender of Yorktown was known (1782), Lord North at once resigned office.

The new ministry formed under Lord Rockingham comprised not only his own immediate followers, of whom the most prominent was Charles Fox, but the followers of Chatham, of whom Lord Shelburne was the acknowledged leader. A treaty of peace acknowledging the independence of the United States of America was at once set on foot; and the negotiation with France was rendered easy by the defeat of a French fleet by Rodney, and by the failure of the combined forces of France and Spain to take Gibraltar.

*The second
Rockingham
ministry.*

Already the ministry on which such great hopes had been placed had broken up. Rockingham died in July 1782. The two sections of which the government was composed had different aims. The Rockingham section, which now looked up to Fox, rested on aristocratic connexion and influence; the Shelburne section was anxious to gain popular support by active reforms, and to gain over the king to their side. Judging by past experience, the combination might well seem hopeless, and honourable men like Fox might easily regard it with suspicion. But Fox's allies took good care that their name should not be associated with the idea of improvement. They pruned Burke's Economical Reform Bill till it left as many abuses as it suppressed; and though the bill prohibited the grant of pensions above £300, they hastily gave away pensions of much larger value to their own friends before the bill had received the royal assent. They also opposed a

bill for parliamentary reform brought in by young William Pitt. When the king chose Shelburne as prime minister, they refused to follow him, and put forward the incompetent duke of Portland as their candidate for the office. The struggle was thus renewed on the old ground of the king's right to select his ministers. But while the king now put forward a minister notoriously able and competent to the task, his opponents put forward a man whose only claim to office was the possession of large estates. They forced their way back to power by means as unscrupulous as their claim to it was unjustifiable. They formed a coalition with Lord North, whose politics and character they had denounced for years.

The coalition.

The coalition, as soon as the peace with America and France had been signed (1783), drove Shelburne from office. The duke of Portland became the nominal head of the government, Fox and North its real leaders.

Such a ministry could not afford to make a single blunder. The king detested it, and the assumption by the Whig houses of a right to nominate the head of the government without reference to the national interests, could never be popular. The blunder was soon committed.

The India Bill.

Burke, hating wrong and injustice with a bitter hatred, had descried in the government of British India by the East India Company a disgrace to the English name. For many of the actions of that government no honourable man can think of uttering a word of defence. The helpless natives were oppressed and robbed by the company and its servants in every possible way. Burke drew up a bill, which was adopted by the coalition government, for taking all authority in India out of the hands of the company, and even placing the company's management of its own commercial affairs under control. The governing and controlling body was naturally to be a council appointed at home. The question of the nomination of this council at once drew the whole question within the domain of party politics. The whole patronage of India would be

in its hands, and, as parliament was then constituted, the balance of parties might be more seriously affected by the distribution of that patronage than it would be now. When, therefore, it was understood that the government bill meant the council to be named in the bill for four years, or, in other words, to be named by the coalition ministry, it was generally regarded as an unblushing attempt to turn a measure for the good government of India into a measure for securing the ministry in office. The bill of course passed the Commons. When it came before the Lords, it was thrown out in consequence of a message from the king, that he would regard any one who voted for it as his enemy.

The contest had thus become one between the influence of the crown and the influence of the great houses. Constitutional historians, who treat the question as one of merely theoretical politics, leave out of consideration this essential element of the situation, and forget that, if it was wrong for the king to influence the Lords by his message, it was equally wrong for the ministry to acquire for themselves fresh patronage with which to influence the Commons. But there was now, what there had not been in the time of Walpole and the Pelhams, a public opinion ready to throw its weight on one side or the other. The county members still formed the most independent portion of the representation, and there were many possessors of rotten boroughs, who were ready to agree with the county members rather than with the great landowners. In choosing Pitt, the young son of Chatham, for his prime minister, as soon as he had dismissed the coalition, George III. gave assurance that he wished his counsels to be directed by integrity and ability. After a struggle of many weeks, parliament was dissolved (1784), and the new House of Commons was prepared to support the king's minister by a large majority.

*Ministry of the
younger Pitt.*

As far as names go, the change effected placed the new Tory party in office for an almost uninterrupted period of forty-six years. It so happened, however, that after the first eight years of that period had passed by, circumstances occurred which effected so great a change in the composition and character of that party as to render any statement to this effect entirely illusive. During eight years, however, Pitt's ministry was not merely a Tory ministry resting on the choice of the king, but a Liberal ministry resting on national support and upon advanced political knowledge.

The nation which Pitt had behind him was very different from the populace which had assailed Walpole's Excise Bill, or had shouted for Wilkes and liberty. At the beginning of the century the intellect of thoughtful Englishmen had applied itself to speculative problems of religion and philosophy. In the middle of the century it applied itself to practical problems affecting the employment of industry. In 1776 Adam Smith published the *Wealth of Nations*. Already in 1762 the work of Brindley, the Bridgewater canal, the first joint of a network of inland water communication, was opened. In 1767 Hargreaves produced the spinning-jenny; Arkwright's spinning machine was exhibited in 1768; Crompton's mule was finished in 1779; Cartwright hit upon the idea of the power-loom in 1784, though it was not brought into profitable use till 1801. The Staffordshire potteries had been flourishing under Wedgwood since 1763, and the improved steam-engine was brought into shape by Watt in 1768. During these years the duke of Bedford, Coke of Norfolk, and Robert Bakewell were busy in the improvement of stock and agriculture.

The increase of wealth and prosperity caused by these changes went far to produce a large class of the population entirely outside the associations of the landowning class, but with sufficient intelligence to appreciate the advantages of a government carried on without regard to the personal

interests and rivalries of the aristocracy. The mode in which that increase of wealth was effected was even more decisive on the ultimate destinies of the country. The substitution of the organization of hereditary monarchy for the organization of wealth and station would ultimately have led to evils as great as those which it superseded. It was only tolerable as a stepping-stone to the organization of intelligence. The larger the numbers admitted to influence the affairs of state, the more necessary is it that they respect the powers of intellect. It would be foolish to institute a comparison between an Arkwright or a Crompton and a Locke or a Newton. But it is certain that for one man who could appreciate the importance of the treatise *On the Human Understanding* or the theory of gravitation, there were thousands who could understand the value of the water-frame, or the power-loom. The habit of looking with reverence upon mental power was fostered in no slight measure by the industrial development of the second half of the 18th century.

The supremacy of intelligence in the political world was, for the time, represented in Pitt. In 1784 he passed an India Bill, which left the commerce and all except the highest patronage of India in the hands of the East India Company, but which erected a department of the home government, named the board of control, to compel the company to carry out such political measures as the government saw fit. A bill for parliamentary reform was, however, thrown out by the opposition of his own supporters in parliament, whilst outside parliament there was no general desire for a change in a system which for the present produced such excellent fruits. Still more excellent was his plan of legislation for Ireland. Irishmen had taken advantage of the weakness of England during the American War to enforce upon the ministry of the day, in 1780 and 1782, an abandonment of all claim on the part of the English government and the English judges to interfere in any way with Irish affairs. From 1782, therefore, there were two

Pitt's India Bill.

independent legislatures within the British Isles—the one sitting at Westminster and the other sitting in Dublin. With these political changes Fox professed himself to be content. Pitt, whose mind was open to wider considerations, proposed to throw open commerce to both nations by removing all the restrictions placed on the trade of Ireland with England and with the rest of the world. The opposition of the English parliament was only removed by concessions continuing some important restrictions upon Irish exports, and by giving the English parliament the right of initiation in all measures relating to the regulation of the trade which was to be common to both nations. The Irish parliament took umbrage at the superiority claimed by England, and threw out the measure as an insult, though, even as it stood, it was undeniably in favour of Ireland. The lesson of the incompatibility of two coordinate legislatures was not thrown away upon Pitt.

In 1786 the commercial treaty with France opened that country to English trade, and was the first result of the theories laid down by Adam Smith ten years previously. The first attack upon the horrors of the slave-trade was made in 1788; and in the same year, in the debates on the Regency Bill caused by the king's insanity, Pitt defended against Fox the right of parliament to make provision for the exercise of the powers of the crown when the wearer was permanently or temporarily disabled from exercising his authority.

When the king recovered, he went to St Paul's to return thanks on the 23rd of April 1789. The enthusiasm with which he was greeted showed how completely he had the nation on his side. All the hopes of liberal reformers were now with him. All the hopes of moral and religious men were on his side as well. The seed sown by Wesley had grown to be a great tree. A spirit of thoughtfulness in religious matters and of moral energy was growing in the nation, and the king was endeared to his subjects, as much by his

domestic virtues as by his support of the great minister who acted in his name. The happy prospect was soon to be overclouded. On the 4th of May, eleven days after the appearance of George III. at St Paul's, the French states-general met at Versailles.

By the great mass of intelligent Englishmen the change was greeted with enthusiasm. It is seldom that one nation understands the tendencies and difficulties of another; and the mere fact that power was being transferred

*The French
Revolution; English
feeling.*

from an absolute monarch to a representative assembly led superficial observers to imagine that they were witnessing a mere repetition of the victory of the English parliament over the Stuart kings. In fact, that which was passing in France was of a totally different nature from the English struggle of the 17th century. In England, the conflict had been carried on for the purpose of limiting the power of the king. In France, it was begun in order to sweep away an aristocracy in church and state which had become barbarously oppressive. The French Revolution was not, therefore, a conflict for the reform of the political organization of the state, but one for the reorganization of the whole structure of society; and in proportion as it turned away from the path which English ignorance had marked out for it, Englishmen turned away from it in disgust. As they did not understand the aims of the French Revolutionists, they were unable to make that excuse for even so much of their conduct as admits of excuse. Three men, Fox, Burke and Pitt, however, represented three varieties of opinion into which the nation was very unequally divided.

Fox, generous and trustful towards the movements of large masses of men, had very little intellectual grasp of the questions at issue in France. He treated the struggle as one simply for the establishment of free institutions; and when at last the crimes of the leaders became patent to the world, he contented himself with lamenting the unfortunate fact, and fell back on the

argument that though England could not sympathize with the French tyrants, there was no reason why she should go to war with them.

Burke, on the other hand, while he failed to understand the full tendency of the Revolution for good as well as for evil, understood it far better than any Englishman of that day understood it. He saw that its main aim was equality, not liberty, and that not only would the French nation be ready, in pursuit of equality, to welcome any tyranny which would serve its purpose, but would be the more prone to acts of tyranny over individuals. This would arise from the remodelling of institutions, with the object of giving immediate effect to the will of the masses, which was especially liable to be counterfeited by designing and unscrupulous agitators. There is no doubt that in all this Burke was in the right, as he was in his denunciation of the mischief certain to follow when a nation tries to start afresh, and to blot out all past progress in the light of simple reason, which is often most fallible when it believes itself to be most infallible. Where he went wrong was in his ignorance of the special circumstances of the French nation, and his consequent blindness to the fact that the historical method of gradual progress was impossible where institutions had become so utterly bad as they were in France, and that consequently the system of starting afresh, to which he reasonably objected, was to the French a matter not of choice but of necessity. Nor did he see that the passion for equality, like every great passion, justified itself, and that the problem was, not how to obtain liberty in defiance of it, but how so to guide it as to obtain liberty by it and through it.

Burke did not content himself with pointing out speculatively the evils which he foreboded for the French. He perceived clearly that the effect of the new French principles could no more be confined to French territory than the principles of Protestantism in the 16th century could be confined to Saxony. He knew well that the appeal to abstract reason and the hatred of

aristocracy would spread over Europe like a flood, and, as he was in the habit of considering whatever was most opposed to the object of his dislike to be wholly excellent, he called for a crusade of all established governments against the anarchical principles of dissolution which had broken loose in France.

Pitt occupied ground apart from either Fox or Burke. He had neither Fox's sympathy for popular movements, nor Burke's intellectual appreciation of the immediate tendencies of the Revolution. Hence, whilst he pronounced against any active interference with France, he was an advocate of peace, not because he saw more than Fox or Burke, but because he saw less. He fancied that France would be so totally occupied with its own troubles that it would cease for a long time to be dangerous to other nations.

This view was soon to be stultified by the effect of the coalition against France in 1792 of Prussia and Austria. The proclamation of the allies calling on the French to restore the royal authority was answered by a passionate outburst of defiance. The king himself was suspected of complicity with the invaders of his country, and the rising of the 10th of August was followed by the proclamation of the republic and by the awful "September massacres" of helpless prisoners, guilty of no crime but noble birth, and therefore presumably of attachment to the old régime, and treason towards the new. This passionate attachment to the Revolution, which in France displayed itself in a carnival of insane suspicion and cruelty, inspired on the frontiers an astonishing patriotic resistance. Before the end of the year the invasion was repulsed, and the ragged armies of the Revolution had overrun Savoy and the Austrian Netherlands, and were threatening the aristocratic Dutch republic.

*Beginning of the
revolutionary wars.*

Very few governments in Europe were so rooted in the affections of their people as to be able to look without terror on the challenge thus thrown out to them. The English government was one of those very few. No mere despotism was here exercised by the king. No broad impassable line here divided the aristocracy from the people. The work of former generations of

Change of feeling in England.

Englishmen had been too well done to call for that breach of historical continuity which was a dire necessity in France. There was much need of reform. There was no need of a revolution. The whole of the upper and middle classes, with few exceptions, clung together in a fierce spirit of resistance; and the mass of the lower classes, especially in the country, were too well off to wish for change. The spirit of resistance to revolution quickly developed into a spirit of resistance to reform, and those who continued to advocate changes, more or less after the French model, were treated as the enemies of mankind. A fierce hatred of France and of all that attached itself to France became the predominating spirit of the nation.

Such a change in the national mind could not but affect the constitution of the Whig party. The reasoning of Burke would, in itself, have done little to effect its disruption. But the great landowners, who contributed so strong

Division of the Whig party.

an element in it, composed the very class which had most to fear from the principles of the Revolution. The old questions which had divided them from the king and Pitt in 1783 had dwindled into nothing before the appalling question of the immediate present. They made themselves the leaders of the war party, and they knew that that party comprised almost the whole of the parliamentary classes.

What could Pitt do but surrender? The whole of the intellectual basis of his foreign policy was swept away when it became evident that the continental war would bring with it an accession of French territory. He did

not abandon his opinions. His opinions rather abandoned him. A wider intelligence might have held that, let France gain what territorial aggrandizement it might upon the continent of Europe, it was impossible to resist such changes until the opponents of France had so purified themselves as to obtain a hold upon the moral feelings of mankind. Pitt could not take this view; perhaps no man in his day could be fairly expected to take it. He did not indeed declare war against France; but he sought to set a limit to her conquests in the winter, though he had not sought to set a limit to the conquests of the allied sovereigns in the preceding summer. He treated with supercilious contempt the National Convention, which had dethroned the king and proclaimed a republic. Above all, he took up a declaration by the Convention, that they would give help to all peoples struggling for liberty against their respective governments, as a challenge to England. The horror caused in England by the trial and execution of Louis XVI. completed the estrangement between the two countries, and though the declaration of war came from France (1793), it had been in great part brought about by the bearing of England and its government.

(S. R. G.)

XI. THE REVOLUTIONARY EPOCH, THE REACTION, AND THE TRIUMPH OF REFORM (1793-1837)

In appearance the great Whig landowners gave their support to Pitt, and in 1794 some of their leaders, the duke of Portland, Lord Fitzwilliam, and Windham, entered the cabinet to serve under him. In reality it was Pitt who

The government and the "revolutionary" agitation.

had surrendered. The ministry and the party by which it was supported might call themselves Tory still; but the great reforming policy of 1784 was at an end, and the government, unconscious of its own strength, conceived its main function to be at all costs to preserve the constitution,

which it believed to be in danger of being overwhelmed by the rising tide of revolutionary feeling. That this belief was idle it is now easy enough to see; at the time this was not so obvious. Thomas Paine's *Rights of Man*, published in 1791, a brilliant and bitter attack on the British constitution from the Jacobin point of view, sold by tens of thousands. Revolutionary societies with high-sounding names were established, of which the most conspicuous were the Revolution Society, the Society for Constitutional Information, the London Corresponding Society, and the Friends of the People. Of these, indeed, only the two last were directly due to the example of France. The Revolution Society, founded to commemorate the revolution of 1688, had long carried on a respectable existence under the patronage of cabinet ministers; the Society for Constitutional Information, of which Pitt himself had been a member, was founded in 1780 to advocate parliamentary reform; both had, however, developed under the influence of the events in France in a revolutionary direction. The London Corresponding Society, composed mainly of working-men, was the direct outcome of the excitement caused by the developments of the French Revolution. Its leaders were obscure and usually illiterate men, who delighted to propound their theories for the universal reformation of society and the state in rhetoric of which the characteristic phrases were borrowed from the tribune of the Jacobin Club. Later generations have learned by repeated experience that the eloquence of Hyde Park orators is not the voice of England; there were some even then—among those not immediately responsible for keeping order—who urged the government “to trust the people”;⁶ but with the object-lesson of France before them it is not altogether surprising that ministers refused to believe in the harmlessness of societies, which not only kept up a fraternal correspondence with the National Convention and the Jacobin Club, but, by attempting to establish throughout the country a network of affiliated clubs, were apparently aiming at setting up in Great Britain the Jacobin idea of popular control.

The danger, of course, was absurdly exaggerated; as indeed was proved by the very popularity of the repressive measures to which the government thought it necessary to resort, and which gave to the vapourings of a few knots of agitators the dignity of a widespread conspiracy for the overthrow of the constitution. On the 1st of December 1792 a proclamation was issued calling out the militia on the ground that a dangerous spirit of tumult and disorder had been excited by evil-disposed persons, acting in concert with persons in foreign parts, and this statement was repeated in the king's speech at the opening of parliament on the 13th. In spite of the protests of Sheridan and other members of the opposition, a campaign of press and other prosecutions now began which threatened to extinguish the most cherished right of Englishmen—liberty of speech. The country was flooded with government spies and informers, whose efforts were seconded by such voluntary societies as the Association for preserving Liberty and Property against Republicans and Levellers, founded by John Reeves, the historian of English law. No one was safe from these zealous and too often credulous defenders of the established order; and a few indiscreet words spoken in a coffee house were enough to bring imprisonment and ruin, as in the case of John Frost, a respectable attorney, condemned for sedition in March 1793. In Scotland the panic, and the consequent cruelty, were worse than in England. The meeting at Edinburgh of a "convention of delegates of the associated friends of the people," at which some foolish and exaggerated language was used, was followed by the trial of Thomas Muir, a talented young advocate whose brilliant defence did not save him from a sentence of fourteen years' transportation (August 30, 1793), while seven years' transportation was the punishment of the Rev. T. Fyshe Palmer for circulating an address from "a society of the friends of liberty to their fellow-citizens" in favour of a reform of the House of Commons. These sentences and the proceedings which led up to them, though attacked with

bitter eloquence by Sheridan and Fox, were confirmed by a large majority in parliament.

It was not, however, till late in the session of 1794 that ministers laid before parliament any evidence of seditious practices. In May certain leaders of democratic societies were arrested and their papers seized, and on the 13th a king's message directed the books of certain corresponding societies to be laid before both Houses. The committee of the House of Commons at once reported that there was evidence of a conspiracy to supersede the House of Commons by a national convention, and Pitt proposed and carried a bill suspending the Habeas Corpus Act. This was followed by further reports of the committees of both Houses, presenting evidence of the secret manufacture of arms and of other proceedings calculated to endanger the public peace. A series of state prosecutions followed. The trials of Robert Watt and David Downie for high treason (August and September 1794) actually revealed a treasonable plot on the part of a few obscure individuals at Edinburgh, who were found in the possession of no less than fifty-seven pikes of home manufacture, wherewith to overthrow the British government. The execution of Watt gave to this trial a note of tragedy which was absent from that of certain members of the Corresponding Society, accused of conspiring to murder the king by means of a poisoned arrow shot from an air-gun. The ridicule that greeted the revelation of the "Pop-gun Plot" marked the beginning of a reaction that found a more serious expression in the trials of Thomas Hardy, John Horne Tooke and John Thelwall (October and November 1794). The prisoners were accused of high treason, their chief offence consisting in their attempt to assemble a general convention of the people, ostensibly for the purpose of obtaining parliamentary reform, but really—as the prosecution urged—for subverting the constitution. This latter charge, though proved to the satisfaction of the committees of both Houses of Parliament, broke down under the cross-examination of the government

witnesses by the counsel for the defence, and could indeed only have been substantiated by a dangerous stretching of the doctrine of constructive treason. Happily the jury refused to convict, and its verdict saved the nation from the disgrace of meting out the extreme penalty of high treason to an attempt to hold a public meeting for the redress of grievances.

The common sense of a British jury had preserved, in spite of parliament and ministry, that free right of meeting which was to be one of the strongest instruments of future reform. The government, however, saw little reason in the events of the following months for reversing their coercive policy. The year 1795 was one of great suffering and great popular unrest; for the effect of the war upon industry was now beginning to be felt, and the distress had been aggravated by two bad harvests. The sudden determination of those in power, who had hitherto advocated reform, to stereotype the existing system, closed the avenues of hope to those who had expected an improvement of their lot from constitutional changes, and the disaffected temper of the populace that resulted was taken advantage of by the London Corresponding Society, emboldened by its triumph in the courts, to organize open and really dangerous demonstrations, such as the vast mass meeting at Copenhagen House on the 26th of October. On the 29th of October the king, on his way to open parliament, was attacked by an angry mob shouting, "Give us bread," "No Pitt," "No war," "No famine,"; and the glass panels of his state coach were smashed to pieces.

The result of these demonstrations was the introduction in the House of Lords, on the 4th of November, of the Treasonable Practices Bill, the main principle of which was that it modified the law of treason by dispensing with the necessity for the proof of an overt act in order to secure conviction; and in the House of Commons, on the 10th, of the Seditious Meetings Bill, which seriously limited the right of public meeting, making all meetings of over fifty persons, as well as all political debates and lectures, subject to the

previous consent and active supervision of the magistrates. In spite of the strenuous resistance of the opposition, led by Fox, and of numerous meetings of protest held outside the walls of parliament, both bills passed into law by enormous majorities. The inevitable result followed. The London Corresponding Society and other political clubs, deprived of the right of public meeting, became secret societies pledged to the overthrow of the existing system by any means. United Englishmen and United Scotsmen plotted with United Irishmen for a French invasion, and sedition was fomented in the army and the navy. Their baneful activities were exposed in the inquiries that followed the Irish rebellion of 1798, and the result was the Corresponding Societies Bill, introduced by Pitt on the 19th of April 1799, which completed the series of repressive measures and practically suspended the popular constitution of England. The right of public meeting, of free speech, of the free press had alike ceased for the time to exist.

The justification of the government in all this was the life and death struggle in which Great Britain was engaged with the power of republican France in Europe. Yet Pitt's conduct of the war, so far as the continent was concerned, had hitherto led to nothing but failure after failure. In 1794, in spite of the presence of an English army under the duke of York, the Austrian Netherlands had been finally conquered and annexed to the French republic; in 1795 the Dutch republic was affiliated to that of France, and the peace of Basel between Prussia and the French republic left Austria to continue the war alone with the aid of British subsidies. On the sea Great Britain had been more successful, Howe's victory of the 1st of June 1794 being the first of the long series of defeats inflicted on the French navy, while in 1795 a beginning was made of the vast expansion of the British Empire by the capture of Ceylon and the Cape of Good Hope from the Dutch (see [FRENCH REVOLUTIONARY WARS](#)). The war, however, had become so expensive, and its results were evidently so small, that there was a growing feeling in England

The Revolutionary War.

in favour of peace, especially as the Reign of Terror had come to an end in 1794, and a regular government, the Directory, had been appointed in 1795. At last Pitt was forced to yield to the popular clamour, and in 1796 Lord Malmesbury was sent to France to treat for peace. The negotiation, however, was at once broken off by his demand that France should abandon the Netherlands.

The French government, assured now of the assistance of Spain and Holland, and freed of the danger from La Vendée, now determined to attempt the invasion of Ireland. On the 16th of December a fleet of 17 battle-ships, 13 frigates and 15 smaller vessels set sail from Brest, carrying an expeditionary force of some 13,000 men under General Hoche. The British fleet, under Lord Bridport, was wintering at Spithead; and before it could put to sea the French had slipped past. Before it reached the coast of Ireland, however, the French fleet had already suffered serious losses, owing partly to the attacks of British frigate detachments, partly to the bad seamanship of the French crews and the rottenness of the ships. Only a part of the fleet succeeded in reaching Bantry Bay on the 20th of December, and of these a large number were scattered by a storm on the 23rd. Hoche himself, with the French admiral, had been driven far to the westward in an effort to avoid capture; the attempt of Grouchy, in his absence, to land a force was defeated by the weather, and by the end of the month the whole expedition was in full retreat for Brest. A French diversion on the coast of Pembroke was even less successful; a force of 1500 men, under Colonel Tate, an American adventurer, landed in Cardigan Bay on the 22nd of February 1797, but was at once surrounded by the local militia and surrendered without a blow.

A more serious attempt was now made to renew the enterprise by means of a junction of the French, Spanish and Dutch fleets. The victory of Jervis

over the Spanish fleet at St Vincent on the 14th of February postponed the imminence of the danger; but this again became acute

Mutinies at Spithead and the Nore.

owing to the general disaffection in the fleet, which in April and May found vent in the serious mutinies at Spithead and the Nore. The mutiny at Spithead, which was due solely to the intolerable conditions under which the seamen served at the time, was ended on the 17th of May by concessions: an increase of pay, the removal of officers who had abused their power of discipline, and the promise of a general free pardon. More serious was the outbreak at the Nore. The disaffection had spread practically to the whole of Admiral Duncan's fleet, and by the beginning of June the mutineers were blockading the Thames with no less than 26 vessels. The demands of the seamen were more extensive than at Spithead; their resistance was better organized; and they were suspected, though without reason, of harbouring revolutionary designs. The return of the Channel fleet to its duty emboldened the admiralty to refuse any concessions, and the vigorous measures of repression taken proved effective. One by one the mutinous crews surrendered; and the arrest of the ringleader, Richard Parker, on board the "Sandwich," on the 14th of June, brought the affair to an end.⁷ The seamen

Battle of Camperdown.

regained their reputation, and those who had been imprisoned their liberty, by Duncan's victory over the Dutch fleet at Camperdown (October 11), by which the immediate danger was averted. Though the French attempt at a concerted invasion had failed, however, the Directory did not abandon the enterprise, and commissioned Bonaparte to draw up fresh plans.

At the close of the year 1797 the position of Great Britain was indeed sufficiently alarming. On the 18th of April, during the very crisis of the mutiny at Spithead, Austria had signed with Bonaparte the humiliating terms of the preliminary peace of Leoben, which six months later were embodied in the treaty of Campo Formio (October 17). On the 10th of

August Portugal had concluded a treaty with the French Republic; and Great Britain was left without an ally in Europe. The mutiny at the Nore, the threat of rebellion in Ireland, the alarming fall in consols, argued strongly against continuing the war single-handed, and in July Lord Malmesbury had been sent to Lille to open fresh negotiations with the plenipotentiaries of France. The negotiations broke down on the refusal of England to restore the Cape of Good Hope to the Dutch. But though forced, in spite of misgivings, to continue the struggle, the British government in one very important respect was now in a far better position to do so. For though Great Britain was now isolated and her policy in Europe advertised as a failure, the temper of the British people was less inclined to peace in 1798 than it had been three years before. The early enthusiasm of the disfranchised classes for French principles had cooled with the later developments of the Revolution; the attempted invasions had roused the national spirit; and in the public imagination the sinister figure of Bonaparte, the rapacious conqueror, was beginning to loom large to the exclusion of lesser issues. Henceforth, in spite of press prosecutions and trials for political libel, the government was supported by public opinion in its vigorous prosecution of the war.

If the danger of French invasion was a reality, it was so mainly owing to the deplorable condition of Ireland, where the natural disaffection of the Roman Catholic majority of the population—deprived of political and many social rights, and exposed to the insults and oppression of a Protestant minority corrupted by centuries of ascendancy—invited the intervention of a foreign enemy. The full measure of the intolerable conditions prevailing in the country was revealed by the horrors of the rebellion of 1798, and after this had been suppressed Pitt decided that the only way to deal with the situation was to establish a union between Great Britain and Ireland, similar to that which had proved so successful in the case of England and Scotland. He

***The Act of Union
with Ireland.***

saw that to establish peace in Ireland the Roman Catholics would have to be enfranchised; he realized that to enfranchise them in a separated Ireland would be to subject the proud Protestant minority to an impossible domination, and to establish not peace but war. The Union, then, was in his view the necessary preliminary to Catholic emancipation, which was at the same time the reward held out to the majority of the Irish people for the surrender of their national quasi-independence. It was a bribe little likely to appeal to the Protestant minority which constituted the Irish parliament, and to them other inducements had to be offered if the scheme was to be carried through. These inducements were not all corrupt. Those members who stood out were, indeed, bought by a lavish distribution of money and coronets; but the advantages to Ireland which might reasonably be expected from the Union were many and obvious; and if all the promises held out by the promoters of the measure have even now not been realized, the fault is not theirs. The Act of Union was placed on the statute-book in 1800; Catholic emancipation was to have been accomplished in the following session, the first of the united parliament. But Pitt's policy broke on the stubborn obstinacy of George III., who believed himself bound by his coronation oath to resist any concession to the enemies of the Established Church. The disadvantage of the possession of too strait a conscience in politics was never more dismally illustrated. To the

Resignation of Pitt.

Irish people it was the first breach of faith in connexion with the Union, and threw them into opposition to a settlement into which they believed themselves to have been drawn under false pretences. Pitt, realizing this, had no option but to resign.

The resignation of the great minister who had so long held the reins of power coincided with a critical situation in Europe. The isolation of Bonaparte in Egypt, as the result of Nelson's victory of the Nile (1798), had enabled the allies to recover some of the ground lost to France. But this had merely increased Bonaparte's prestige, and on his return in 1799 he found

Bonaparte breaks up the coalition.

no difficulty in making himself master of France by the *coup d'état* of the 18th Brumaire. The campaign of Marengo followed (1800) and the peace of Lunéville, which not only once more isolated Great Britain, but raised up against her new enemies, to the list of whom she added by using her command of the sea to enforce the right of search in order to seize enemies' goods in neutral vessels. Russia joined with Sweden and Denmark, all hitherto friendly powers, in resistance to this claim.

Such was the position when Addington became prime minister. He was a man of weak character and narrow intellect, whose main claim to succeed

Addington ministry.

Pitt was that he shared to the full the Protestant prejudices of king and people. His tenure of power was, indeed, marked by British successes abroad; by Nelson's victory at Copenhagen, which broke up the northern alliance, and by Abercromby's victory at Alexandria, which forced the French to evacuate Egypt; but these had been prepared by the previous administration. Addington's real work was the peace of Amiens (1802), an experimental

The peace of Amiens.

peace, as the king called it, to see if the First Consul could be contented to restrain himself within the very wide limits by which his authority in Europe was still circumscribed.

In a few months Great Britain was made aware that the experiment would not succeed. Interference and annexation became the standing policy of the new French government; and Britain, discovering how little intention

Renewal of the war.

Bonaparte had of carrying out the spirit of the treaty, refused to abandon Malta, as she had engaged to do by the terms of peace. The war began again, no longer a war against revolutionary principles and their propaganda, but against the boundless ambitions of a military conqueror. This time the British nation

was all but unanimous in resistance. This time its resistance would be sooner or later supported by all that was healthy in Europe. The news that Bonaparte was making preparations on a vast scale for the invasion of England roused a stubborn spirit of resistance in the country. Volunteers were enrolled, and the coast was dotted with Martello towers, many of which yet remain as monuments of the time when the “army of England” was encamped on the heights near Boulogne within sight of the English cliffs. To meet so great a crisis Addington was not the man. He had been ceaselessly assailed, in and out of parliament, by the trenchant criticism, and often unmannerly wit, of “Pitt’s friends,” among whom George Canning was now conspicuous. Pitt himself had remained silent; but in view of the seriousness of the crisis and of a threatened illness of the king, which would have necessitated a regency and—in view of the prince of Wales’s dislike for him—his own permanent exclusion from office, he now put himself forward once more. The government majorities in the House now rapidly dwindled; on the 26th of April 1804, Addington resigned; and Pitt, after his attempt to form a national coalition ministry had broken down on the king’s refusal to admit Fox, became head of a government

Pitt returns to office. constructed on a narrow Tory basis. Of the members of the late government Lord Eldon, the duke of Portland, Lord Westmorland, Lord Castlereagh and Lord Hawkesbury retained office, the latter surrendering the foreign office to Lord Harrowby and going to the home office. Dundas, now Lord Melville, became first lord of the admiralty, and the cabinet further included Lord Camden, Lord Mulgrave and the duke of Montrose. Canning, Huskisson and Perceval were given subordinate offices.

Save for the commanding personality of Pitt, the new government was scarcely stronger than that which it had replaced. It had to face the same Whig opposition, led by Fox, who scoffed at the French peril, and reinforced by Addington and his friends; and the whole burden of meeting

this opposition fell upon Pitt; for Castlereagh, the only other member of the cabinet in the House of Commons, was of little use in debate. Nevertheless, fresh vigour was infused into the conduct of the war. The Additional Forces Act, passed in the teeth of a strenuous opposition, introduced the principle of a modified system of compulsion to supplement the deficiencies of the army and reserve, while the navy was largely increased. Abroad, Pitt's whole energies were directed to forming a fresh coalition against Bonaparte, who, on the 14th of May 1804, had proclaimed himself emperor of the French; but it was a year before Russia signed with Great Britain the treaty of St Petersburg (April 11, 1805), and the accession to the coalition of

Battle of Trafalgar. Austria, Sweden and Naples was not obtained till the following September. In the following month (October 21) Nelson's crowning victory at Trafalgar over the

allied fleets of France and Spain relieved England of the dread of invasion. It served, however, to precipitate the crisis on the continent of Europe; the great army assembled at Boulogne was turned eastwards; by the capitulation of Ulm (October 19) Austria lost a large part of her forces; and

Austerlitz. the last news that reached Pitt on his death-bed was that of the ruin of all his hopes by the crushing victory of Napoleon over the Russians and Austrians at Austerlitz (December 2).

Pitt died on the 23rd of January, and the refusal of Lord Hawkesbury to assume the premiership forced the king to summon Lord Grenville, and to agree to the inclusion of Fox in the cabinet as secretary for foreign affairs.

*Death of Pitt.
"Ministry of all the Talents."* Several members of Pitt's administration were admitted to this "Ministry of all the Talents," including Addington (now Lord Sidmouth), who had rejoined the ministry in December 1804 and again resigned, owing to a disagreement with Pitt as to the charges against Lord Melville (q.v.) in July 1805. The new ministry remained in office for a year, a disastrous year

which saw the culmination of Napoleon's power: the crushing of Prussia in the campaign of Jena, the formation of the Confederation of the Rhine and the end of the Holy Roman Empire. In the conduct of the war the British government had displayed little skill, frittering away its forces on distant expeditions, instead of concentrating them in support of Prussia or Russia, and the chief title to fame of the Ministry of all the Talents is that it secured the passing of the bill for the abolition of the slave-trade (March 25, 1807).

*Abolition of the
slave-trade.*

The death of Fox (September 13, 1806) deprived the ministry of its strongest member, and in the following March it fell on the old question of concessions to the Roman Catholics. True to his principles, Fox had done his best to negotiate terms of peace with Napoleon; but the breakdown of the attempt had persuaded even the Whigs that an arrangement was impossible, and in view of this fact Grenville thought it his duty to advise the king that the disabilities of Roman Catholics and dissenters in the matter of serving in the army and navy should be removed, in order that all sections of the nation might be united in face of the enemy. The situation, moreover, was in the highest degree anomalous; for by an act passed in 1793 Roman Catholics might hold commissions in the army in Ireland up to the rank of colonel, and this right had not been extended to England, though by the Act of Union the armies had become one. The king, however, was not to be moved from his position; and he was supported in this attitude not only by public opinion, but by a section of the ministry itself, of which Sidmouth made himself the mouthpiece. The demand of George III. that ministers should undertake never again to approach him on the subject of concessions to the Catholics was rejected by Grenville, rightly, as unconstitutional, and on the 18th of March 1807 he resigned.

Catholic question.

The new ministry, under the nominal headship of the valetudinarian duke of Portland, included Perceval as chancellor of the exchequer, Canning as foreign secretary and Castlereagh as secretary for war and the colonies. It

Portland ministry.

had given the undertaking demanded by the king; those of its members who, like Canning, were in favour of Catholic emancipation, arguing that, in view of greater and more pressing questions, it was useless to insist in a matter which could never be settled so long as the old king lived. Of more importance to Great Britain, for the time being, than any constitutional issues, was the life-and-death struggle with Napoleon, which had now entered on a new phase. Defeated at sea, but master now of the greater part of the continent of Europe, the French emperor planned to bring Great Britain to terms by

The continental system.

ruining her commerce with the vast territories under his influence. In November 1806 he issued from Berlin the famous decree prohibiting the importation of British goods and excluding from the harbours under his control even neutral ships that had touched at British ports. The British government replied by the

The Orders in Council.

famous Orders in Council of 1807, which declared all vessels trading with France liable to seizure, and that all such vessels clearing from France must touch at a British port to pay customs duties. To this Napoleon responded with the Milan decree (December 17), forbidding neutrals to trade in any articles imported from the British dominions. The effects of these measures were destined to be far-reaching. The Revolution had made war on princes and privilege, and the common people had in general gained wherever the Napoleonic régime had been substituted for their effete despotisms; but the “Continental System” was felt as an oppression in every humble household, suddenly deprived of the little imported luxuries, such as sugar and coffee, which custom had made necessities; and from this time date the beginnings of that popular revolt against Napoleon that was to culminate in the War of

Liberation. Great Britain, too, was to suffer from her own retaliatory policy.

War with America. The Americans had taken advantage of the war to draw into their own hands a large part of the British carrying trade, a process greatly encouraged by the establishment of the Continental System. This brought them into conflict with the British acting under the Orders in Council, and the consequent ill-feeling culminated in the war of 1812.

It was not only the completion of the Continental System, however, that made the year 1807 a fateful one for Great Britain. On the 7th of July the young emperor Alexander I. of Russia, fascinated by Napoleon's genius and

Treaty of Tilsit. bribed by the offer of a partition of the world, concluded the treaty of Tilsit, which not only brought Russia into the Continental System, but substituted for

a coalition against France a formidable coalition against England. A scheme for wresting from the British the command of the sea was only defeated by Canning's action in ordering the English fleet to capture the Danish navy, though Denmark was still nominally a friendly power (see [CANNING, GEORGE](#)). Meanwhile, in order to complete the ring fence round Europe

French Invasion of Spain and Portugal. against British commerce, Napoleon had ordered Junot to invade Portugal; Lisbon was occupied by the French, and the Portuguese royal family migrated to

Brazil. In the following year Napoleon seized the royal family of Spain, and gave the crown, which Charles VI. resigned on behalf of himself and his heir, to his brother Joseph, king of Naples. The revolt of the Spanish people that followed was the first of the national uprisings against his rule by which Napoleon was destined to be overthrown. In England it was greeted with immense popular enthusiasm, and the government, without realizing the full import of the step it was taking, sent an expedition to the Peninsula.

Peninsular War. It disembarked, under the command of Sir Arthur Wellesley, at Figueras on the 1st of August. It was the

beginning of the Peninsular War, which was destined not to end until, in 1814, the British troops crossed the Pyrenees into France, while the Allies were pressing over the Rhine. The political and military events on the continent of Europe do not, however, belong strictly to English history, though they profoundly affected its development, and they are dealt with elsewhere (see [EUROPE: History](#); [NAPOLEON](#); [NAPOLEONIC CAMPAIGNS](#); [PENINSULAR WAR](#); [WATERLOO CAMPAIGN](#)).

The war, while it lasted, was of course the main preoccupation of British ministers and of the British people. It entailed enormous sacrifices, which led to corresponding discontents; and differences as to its conduct produced

Walcheren expedition. Cabinet crisis.

frequent friction within the government itself. A cabinet crisis was the result of the outcome of the unfortunate Walcheren expedition of 1809. It had been Castlereagh's conception and, had it been as well

executed as it was conceived, it might have dealt a fatal blow at Napoleon's hopes of recovering his power at sea, by destroying his great naval establishments at Antwerp. It failed, and it became the subject of angry dispute between Canning and Castlereagh, a dispute embittered by personal rivalry and the friction due to the ill-defined relations of the foreign secretary to the secretary for war; the quarrel culminated in a duel, and in the resignation of both ministers (see [LONDONDERRY, 2ND MARQUESS OF](#), and [CANNING, GEORGE](#)). The duke of Portland resigned at the same time, and in

Perceval ministry.

the reconstruction of the ministry, under Perceval as premier, Lord Wellesley became foreign secretary, while Lord Liverpool, with Palmerston as his under-

secretary, succeeded Castlereagh at the war office. The most conspicuous member of this government was Wellesley, whose main object in taking office was to second his brother's efforts in the Peninsula. In this he was, however, only partially successful, owing to the incapacity of his colleagues to realize the unique importance of the operations in Spain. In November

1810 the old king's mind gave way, and on the 11th of February 1811, an act of parliament bestowed the regency, under certain restrictions, upon the prince of Wales. The prince had been on intimate terms with the Whig leaders, and it was assumed that his accession to power would mean a change of government. He had, however, been offended by their attitude on the question of the restriction of his authority as regent, and he continued Perceval in office. A year later, the king's insanity being proved incurable, the regency was definitively established (February 1812). Lord Wellesley took advantage of the reconstruction of the cabinet to resign a position in which he had not been given a free hand, and his post of foreign secretary was offered to Canning. Canning, however, refused to serve with Castlereagh as minister of war, and the latter received the foreign office, which he was to hold till his death in 1822. A month later, on the 11th of May, Perceval was assassinated in the lobby of the House of Commons, and Lord Liverpool became the head of a government that was to last till 1827.

The period covered by the Liverpool administration was a fateful one in the history of Europe. The year 1812 saw Napoleon's invasion of Russia, and the disastrous retreat from Moscow. In the following year Wellington's victory at Vitoria signalled the ruin of the French cause in Spain; while Prussia threw off the yoke of France, and Austria, realizing after cautious delay her chance of retrieving the humiliations of 1809, joined the alliance, and in concert with Russia and the other German powers overthrew Napoleon at Leipzig. The invasion of France followed in 1814, the abdication of Napoleon, the restoration of the Bourbons and the assembling of the congress of Vienna. The following year saw the return of Napoleon from Elba, the close of the congress of Vienna, and the campaign that ended with the battle of Waterloo. The succeeding period, after so much storm and stress, might seem dull and unprofitable; but it witnessed the instructive experiment of

the government of Europe by a concert of the great powers, and the first victory of the new principle of nationality in the insurrection of the Greeks. The share taken by Great Britain in all this, for which Castlereagh pre-eminently must take the praise or blame, is outlined in the article on the

***Foreign policy of
Castlereagh.***

history of Europe (*q.v.*). Here it must suffice to point out how closely the development of foreign affairs was interwoven with that of home politics. The great war, so long as it lasted, was the supreme affair of moment; the supreme interest when it was over was to prevent its recurrence. For above all the world needed peace, in order to recover from the exhaustion of the revolutionary epoch; and this peace, bought at so great a cost, could be preserved only by the honest co-operation of Great Britain in the great international alliance based on “the treaties.” This explains Castlereagh’s policy at home and abroad. He was grossly attacked by the Opposition in parliament and by irresponsible critics, of the type of Byron, outside; historians, bred in the atmosphere of mid-Victorian Liberalism, have re-echoed the cry against him and the government of which he was the most distinguished member; but history has largely justified his attitude. He was no friend of arbitrary government; but he judged it better that “oppressed nationalities” and “persecuted Liberals” should suffer than that Europe should be again plunged into war. He was hated in his day as the arch-opponent of reform, yet the triumph of the reform movement would have been impossible but for the peace his policy secured.

To say this is not to say that the attitude of the Tory government towards the great issues of home politics was wholly, or even mainly, inspired by a far-sighted wisdom. It had departed widely from the Toryism of Pitt’s

***Character of the Tory
party.***

younger years, which had sought to base itself on popular support, as opposed to the aristocratic exclusiveness of the Whigs. It conceived itself as the trustee of a system of government which, however theoretically imperfect,

alone of the governments of Europe had survived the storms of the Revolution intact. To tamper with a constitution that had so proved its quality seemed not so much a sacrilege as a folly. The rigid conservatism that resulted from this attitude served, indeed, a useful purpose in giving weight to Castlereagh's counsels in the European concert; for Metternich at least, wholly occupied with "propping up mouldering institutions," could not have worked harmoniously with a minister suspected of an itch for reform. At home, however, it undoubtedly tended to provoke that very revolution which it was intended to prevent. This was due not so much to the notorious corruption of the representative system as to the fact that it represented social and economic conditions that were rapidly passing away.

Both Houses of Parliament were in the main assemblies of aristocrats and landowners; but agriculture was ceasing to be the characteristic industry of the country and the old semi-feudal relations of life were in process of rapid dissolution. The invention of machinery and the concentration of the working population in manufacturing centres had all but destroyed the old village industries, and great populations were growing up outside the traditional restraints of the old system of class dependence. The distress inevitable in connexion with such an industrial revolution was increased by the immense burden of the war and by the high protective policy of the parliament, which restricted trade and deliberately increased the price of food in the interests of the agricultural classes. Between 1811 and 1814 bands of so-called "Luddites," starving operatives out of work, scoured the country, smashing machinery—the immediate cause of their misfortunes—and committing every sort of outrage. The fault of the government lay, not in taking vigorous measures for the suppression of these disorders, but in remaining obstinately blind to the true causes that had produced them. Ministers saw in the Luddite organization only another conspiracy against the state; and, so far from seeking means for removing the grievances that

Parliament and the industrial revolution.

underlay popular disaffection, the activity of parliament, inspired by the narrowest class interests, only tended to increase them. The price of food, already raised by the war, was still further increased by successive Corn

***Corn Laws and
Enclosure Acts.***

Laws, and the artificial value thus given to arable land led to the passing of Enclosure Bills, under which the country people were deprived of their common rights with very inadequate compensation, and life in the village communities was made more and more difficult. In the circumstances it is not surprising that the spirit of unrest grew apace. In 1815 the passing of a new Corn Law, forbidding the importation of corn so long as the price for home-grown wheat was under 80s. the quarter, led to riots in London. An attack made on the prince regent at the opening of parliament on the 28th of January 1817 led to an inquiry, which revealed the existence of an elaborate organization for the overthrow of the existing order. The repressive measures of 1795

***Repressive
legislation.***

and 1799 were now revived and extended, and a bill suspending the Habeas Corpus Act for a year was passed through both Houses by a large majority. On the 27th of March Lord Sidmouth opened the government campaign against the press by issuing a circular to the lords-lieutenants, directing them to instruct the justices of the peace to issue warrants for the arrest of any person charged on oath with publishing blasphemous or seditious libels. The legality of this suggestion was more than doubtful, but it was none the less acted on, and a series of press prosecutions followed, some—as in the case of the bookseller William Hone—on grounds so trivial that juries refused to convict. William Cobbett, the most influential of the reform leaders, in order to avoid arbitrary imprisonment, “deprived of pen, ink and paper,” suspended the *Political Register* and sailed for America. A disturbance that was almost an armed insurrection, which broke out in Derbyshire in June of this year, seemed to justify the severity of the government; it was

suppressed without great difficulty, and three of the ringleaders were executed.

It was, however, in 1819 that the conflict between the government and the new popular forces culminated. Distress was acute; and in the manufacturing towns mass meetings were held to discuss a remedy, which,

Agitation for reform. under the guidance of political agitators, was discovered in universal suffrage and annual parliaments. The right to return members to parliament

was claimed for all communities; and since this right was unconstitutionally withheld, unrepresented towns were invited to exercise it in anticipation of its formal concession. At Birmingham, accordingly, Sir Charles Wolseley was duly elected “legislatorial attorney and representative” of the town. Manchester followed suit; but the meeting arranged for the 9th of August was declared illegal by the magistrates, on the strength of a royal proclamation against seditious meetings issued on the 30th of July. Another meeting was accordingly summoned for the undoubtedly legal purpose of petitioning parliament in favour of reform. On the appointed day (August 16) thousands poured in from the surrounding districts. These men had been previously drilled, for the purpose, as their own leaders asserted, of enabling the vast assemblage to be conducted in an orderly manner; for the purpose, as the magistrates suspected, of preparing them for an armed insurrection. An attempt was made by a party of yeomanry to arrest a

The “Manchester Massacre.”

popular agitator, Henry Hunt; the angry mob surged round the horsemen, who found themselves powerless; the Riot Act was read, and the 15th Hussars charged the crowd with drawn swords. The meeting rapidly broke up, but not before six had been killed and many injured. The “Manchester Massacre” gave an immense impetus to the movement in favour of reform. The employment of soldiers to suppress liberty of speech stirred up the resentment of Englishmen as nothing else could have done, and this resentment was

increased by the conviction that the government was engaged with the “Holy Alliance” in an unholy conspiracy against liberty everywhere. The true tendency of Castlereagh’s foreign policy was not understood, nor had he any of the popular arts which would have enabled Canning to carry public opinion with him in cases where a frank explanation was impossible. The Liberals could see no more than that he appeared to be committed to international engagements, the logical outcome of which might be—as an orator of the Opposition put it—that Cossacks would be encamped in Hyde Park for the purpose of overawing the House of Commons.

The dangerous agitation that gave expression to this state of feeling was met by the government in the session of November 1819 by the passing of the famous Six Acts. The first of these deprived the defendant of the right of

The “Six Acts.”

traversing, but directed that he should be brought to trial within a year; the second increased the penalties for seditious libel; the third imposed the newspaper stamp duty on all pamphlets and the like containing news; the fourth (Seditious Meetings Act) once more greatly curtailed the liberty of public meetings; the fifth forbade the training of persons in the use of arms; the sixth empowered magistrates to search for and seize arms.

The apparent necessity for the passing of these exceptional measures was increased by the imminent death of the old king, the tragic close of whose long reign had won for him a measure of popular sympathy which was

Accession of George IV.

wholly lacking in the case of the prince regent. On the 23rd of February 1820 George III. died, and the regent became king as George IV. This was the signal for an outburst of popular discontent with the existing order of a far more ominous character than any that had preceded it. The king was generally loathed, not so much for his vices—which would have been, in this case as in others, condoned in a more popular monarch—but for the notorious meanness and

selfishness of his character. Of these qualities he took the occasion of his accession to make a fresh display. He had long been separated from his wife, Caroline of Brunswick; he now refused her the title of queen consort, forbade the mention of her name in the liturgy, and persuaded the government to promote an inquiry in parliament into her conduct, with a view to a divorce. Whatever grounds there may have been for this action, popular sympathy was wholly with Queen Caroline, who became the centre round which all the forces of discontent rallied. The failure of the Bill of Pains and Penalties against the queen, which was dropped after it had passed its third reading in the Lords by a majority of only seven, was greeted as a great popular triumph. The part played by the government in this unsavoury affair had discredited them even in the eyes of the classes whose fear of revolution had hitherto made them supporters of the established system; and the movement for reform received a new stimulus.

The Tory government itself realized the necessity for some concessions to the growing public sentiment. In 1821 a small advance was made. The reform bill (equal electoral districts) introduced by Lambton (afterwards

***Beginnings of
reform.***

Lord Durham) was thrown out; but the corrupt borough of Grampound in Cornwall was disfranchised and the seats transferred to the county of York. Even more significant was the change in the cabinet, which was strengthened by the admission of some of the more conservative section of the Opposition, Lord Sidmouth retiring and Robert Peel becoming home secretary. A bill for the removal of Catholic disabilities, too, was carried in the Commons, though rejected in the Lords; and the appointment of Lord Wellesley, an advocate of the Catholic claims, to the lord-lieutenancy of Ireland marked yet another stage in the settlement of a question which, more than anything else at that time, kept Ireland and Irishmen in a state of chronic discontent and agitation.

It is not without significance that this modification of the policy of the Tory government at home coincided with a modification of its relations with the European powers. The tendency of Metternich's system had long been growing distasteful to Castlereagh, who had consistently protested against the attempt to constitute the Grand Alliance general police of Europe and had specially protested against the Carlsbad Decrees (*q.v.*). The first steps towards the inevitable breach with the reactionary powers had already been taken before Castlereagh's tragic death on the eve of the congress of Verona brought George Canning into office as the executor of his policy. With Canning, foe of the Revolution and all its works though he was, the old liberal Toryism of Pitt's younger days seemed once more to emerge. It might have emerged in any case; but Canning, with his brilliant popular gifts and his frank appeal to popular support, gave it a revivifying stimulus which it would never have received from an aristocrat of the type of Castlereagh.

The new spirit was most conspicuous in foreign affairs; in the protest of Great Britain against the action of the continental powers at Verona (see [VERONA, CONGRESS OF](#)), in the recognition of the South American republics, and later in the sympathetic attitude of the government towards the insurrection in Greece. This policy had been foreshadowed in the instructions drawn up by Castlereagh for his own guidance at Verona; but Canning succeeded in giving it a popular and national colour and thus removing from the government all suspicion of sympathy with the reactionary spirit of the "Holy Alliance." In home affairs, too, the government made tentative advances in a Liberal direction. In January 1823 Vansittart was succeeded as chancellor of the exchequer by Robinson (afterwards Lord Goderich), and Huskisson became president of the Board of Trade. The term of office of the latter was marked by the first tentative efforts to modify the high

protective system by which British trade was hampered, especially by the Reciprocity of Duties Act (1823), a modification of the Navigation Acts, by which British and foreign shipping were placed on an equal footing, while the right to impose restrictive duties on ships of powers refusing to reciprocate was retained. In spite, however, of the improvement in trade that ultimately resulted from these measures, there was great depression; in 1825 there was a financial crisis that caused widespread ruin, and in 1826 the misery of the labouring poor led to renewed riots and machinery smashing. It became increasingly clear that a drastic alteration in the existing system was absolutely inevitable. As to this necessity, however, the ministry was in fact hopelessly divided. The government was one of compromise, in which even so burning a question as Catholic emancipation had been left open. Among its members were some—like the lord chancellor Eldon, the duke of Wellington, and the premier, Lord Liverpool, himself—whose Toryism was of the type crystallized under the influence of the Revolution, adamant against change. Such progressive measures as it had passed had been passed in the teeth of its own nominal supporters, even of its own members. In 1826 Lord Palmerston, himself a member of the government, wrote: “On the Catholic question, on the principles of commerce, on the corn laws, on the settlement of the currency, on the laws relating to trade in money, on colonial slavery, on the game laws...; on all these questions, and everything like them, the government will find support from the Whigs and resistance from their self-denominated friends.” It was, in fact, only the personal influence of Liverpool that held the ministry together, and when, on the 17th of February 1827, he was seized with an apoplectic fit, a crisis was inevitable.

The crisis, indeed, arose before the nominal expiration of the Liverpool administration. Two questions were, in the view of Canning and his supporters, of supreme importance—Catholic emancipation and the reform of the Corn Laws. The first of these had assumed a new urgency since the

***Catholic
Emancipation and
Corn Laws.***

formation in 1823 of the Catholic Association, which under the brilliant leadership of Daniel O'Connell established in Ireland a national organization that threatened the very basis of the government. In March 1826 Sir Francis Burdett had brought in a Catholic Relief Bill, which, passed in the Commons, was thrown out by the Lords. A year later Burdett's motion that the affairs of Ireland required immediate attention, though supported by Canning, was rejected in the Commons. A bill modifying the Corn Laws, introduced by Canning and Huskisson, passed the House of Commons on the 12th of April 1827, but was rejected by the Lords.

Meanwhile (April 10) Canning had become prime minister, his appointment being followed by the resignation of all the most conspicuous members of the Liverpool administration: Wellington,

Canning ministry.

Eldon, Melville, Bathurst, Westmorland and Peel, the latter of whom resigned on account of his opposition to Catholic emancipation. The new government had perforce to rely on the Whigs, who took their seats on the government side of the House, Lord Lansdowne being included in the cabinet. Before this coalition could be completed, however, Canning died (August 8). The short-lived Goderich

Wellington ministry.

administration followed; and in January 1828 the king, weary of the effort to arrange a coalition, summoned the duke of Wellington to office as head of a purely Tory cabinet. Yet the logic of facts was too strong even for the stubborn spirit of the Iron Duke. In May 1828, on the initiative of Lord John Russell, the Test and Corporation Acts were repealed; in the same session a Corn Bill, differing but little from those that Wellington had hitherto opposed, was passed; and finally, after a strenuous agitation which culminated in the

***Catholic
emancipation passed.
Revolution of 1830.***

election of O'Connell for Clare, and in spite of the obstinate resistance of King George IV., the Catholic Emancipation Bill was passed (April 10, 1829) by a

large majority. On the 26th of June 1830 the king died, exactly a month before the outbreak of the revolution in Paris that hurled Charles X. from the throne and led to the establishment of the Liberal Monarchy under Louis Philippe; a revolution that was to exert a strong influence on the movement for reform in England.

King William IV. ascended the throne at a critical moment in the history of the English constitution. Everywhere misery and discontent were apparent, manifesting themselves in riots against machinery, in rick-burning

William IV. on a large scale, and in the formation of trades unions which tended to develop into organized armies of sedition. All the elements of violent revolution were

present. Nor was there anything in the character of the new king greatly calculated to restore the damaged prestige of the crown; for, if he lacked the evil qualities that had caused George IV. to be loathed as well as despised, he lacked also the sense of personal dignity that had been the saving grace of George, while he shared the conservative and Protestant prejudices of his predecessors. Reform was now inevitable. The Wellington ministry, hated by the Liberals, denounced even by the Tories as traitorous for the few

Whig ministry under Lord Grey. concessions made, resigned on the 16th of November; and the Whigs at last came into office under Lord Grey, the ministry also including a few of the more Liberal

Tories. Lord Durham, perhaps the most influential leader of the reform movement, became privy seal, Althorp chancellor of the exchequer, Palmerston foreign secretary, Melbourne home secretary, Goderich colonial secretary. Lord John Russell, as paymaster-general, and Stanley (afterwards Lord Derby), as secretary for Ireland, held office outside the cabinet. With the actual House of Commons, however, the government was powerless to effect its purpose. Though it succeeded in carrying the second reading of the Reform Bill (March 21, 1831), it was defeated in committee, and appealed to the country. The result was a great governmental majority, and

The great Reform Bill.

the bill passed the Commons in September. Its rejection by the Lords on the 8th of October was the signal for dangerous rioting; and in spite of the opposition of the king, the bill was once more passed by the Commons (December 12). A violent agitation marked the recess. On the 14th of April 1832 the bill was read a second time in the Lords, but on the 7th of May was again rejected, whereupon the government resigned. The attempt of Wellington, at the king's instance, to form a ministry failed; of all the Tory obstructionists he alone had the courage to face the popular rage. On the 15th Lord Grey was in office again; the demand was made for a sufficient creation of peers to swamp the House of Lords; the king, now thoroughly alarmed, used his influence to persuade the peers to yield, and on the 4th of June the great Reform Bill became law. Thus was England spared the crisis of a bloody revolution, and proof given to the world that her ancient constitution was sufficiently elastic to expand with the needs of the times.

The effect of the Reform Bill, which abolished fifty-six "rotten" boroughs, and by reducing the representation of others set free 143 seats, which were in part conferred on the new industrial centres, was to transfer a large share of political power from the landed aristocracy to the middle classes. Yet the opposition of the Tories had not been wholly inspired by the desire to maintain the political predominance of a class. Canning, who had the best reason for knowing, defended the unreformed system on the ground that its very anomalies opened a variety of paths by which talent could make its way into parliament, and thus produced an assembly far more widely representative than could be expected from a more uniform and logical system. This argument, which the effect of progressive extensions of the franchise on the intellectual level of parliament has certainly not tended to weaken, was however far outweighed—as Canning himself would have come to see—by the advantage of reconciling with the old constitution the new forces which were destined during the century to transform the social

organization of the country. Nor, in spite of the drastic character of the Reform Bill, did it in effect constitute a revolution. The 143 seats set free were divided equally between the towns and the counties; and in the counties the landowning aristocracy was still supreme. In the towns the new £10 household franchise secured a democratic constituency; in the counties the inclusion of tenants at will (of £50 annual rent), as well as of copyholders and lease-holders, only tended to increase the influence of the landlords. There was as yet no secret ballot to set the voter free.

The result was apparent in the course of the next few years. The first reformed parliament, which met on the 29th of January 1833, consisted in the main of Whigs, with a sprinkling of Radicals and a compact body of Liberal Tories under Sir Robert Peel. Its great work was the act emancipating the slaves in the British colonies (August 30). Other burning questions were the condition of Ireland, the scandal of the established church there, the misery of the poor in England. In all these matters the House showed little enough of the revolutionary temper; so little, indeed, that in March Lord Durham resigned. To the Whig leaders the church was all but as sacrosanct as to the Tories, the very foundation of the constitution, not to be touched save at imminent risk to the state; the most they would adventure was to remedy a few of the more glaring abuses of an establishment imposed on an unwilling population. As for O'Connell's agitation for the repeal of the Union, that met with but scant sympathy in parliament; on the 27th of May 1834 his repeal motion was rejected by a large majority.

In July the Grey ministry resigned, and on the 16th Lord Melbourne became prime minister. His short tenure of office is memorable for the passing of the bill for the reform of the Poor Law (August). The reckless system of outdoor relief, which had pauperized whole
Melbourne ministry. neighbourhoods, was abolished, and the system of

unions and workhouses established (see [POOR LAW](#)). An attempt to divert some of the revenues of the Irish Church led in the autumn to serious differences of opinion in the cabinet; the king, as tenacious as his father of the exact obligations of his coronation oath, dismissed the ministry, and called the Tories to office under Sir Robert Peel and the duke of Wellington. Thus, within three years of the passing of the Reform Bill, the party which had most strenuously opposed it was again in office. Scarcely less striking testimony to the constitutional temper of the English was given by the new attitude of the party under the new conditions. In the “Tamworth manifesto”

The “Conservative” party.

of January 1835 Peel proclaimed the principles which were henceforth to guide the party, no longer Tory, but “Conservative.” The Reform Bill and its consequences were frankly accepted; further reforms were promised, especially in the matter of the municipal corporations and of the disabilities of the dissenters. The new parliament, however, which met on the 19th of February, was not favourable to the ministry, which fell on the 8th of April. Lord Melbourne once more came into office, and the Municipal Corporations Act of the 7th of September was the work of a Liberal government. This was the last measure of first-rate importance passed before the death of King William, which occurred on the 20th of June 1837.

It is impossible to exaggerate the importance, not only for England but for the world at large, of the epoch which culminated in the passing of the Reform Bill of 1832. All Europe, whether Liberal or reactionary, was watching the constitutional struggle with strained attention; the principles of monarchy and of constitutional liberty were alike at stake. To foreign observers it seemed impossible that the British monarchy could survive. Baron Brunnow, the Russian ambassador in London, sent home to the emperor Nicholas I. the most pessimistic reports. According to Brunnow, King William, by using his influence to secure the passage of the Reform Bill, had “cast his crown into the gutter”; the throne might endure for his

lifetime, but the next heir was a young and inexperienced girl, and, even were the princess Victoria ever to mount the throne—which was unlikely—she would be speedily swept off it again by the rising tide of republicanism. The course of the next reign was destined speedily to convince even Nicholas I. of the baselessness of these fears, and to present to all Europe the exemplar of a progressive state, in which the principles of traditional authority and democratic liberty combined for the common good.

(W. A. P.)

XII. THE REIGN OF VICTORIA (1837-1901)

The death of William IV., on the 20th of June 1837, placed on the throne of England a young princess, who was destined to reign for a longer period than any of her predecessors. The new queen, the only daughter of the duke of Kent, the fourth son of George III., had just attained her majority. Educated in comparative seclusion, her character and her person were unfamiliar to her future subjects, who were a little weary of the extravagances and eccentricities of her immediate predecessors. Her accession gave them a new interest in the house of Hanover. And their loyalty, which would in any case have been excited by the accession of a young and inexperienced girl to the throne of the greatest empire in the world, was stimulated by her conduct and appearance. She displayed from the first a dignity and good sense which won the affection of the multitude who merely saw her in public, and the confidence of the advisers who were admitted into her presence.

Queen Victoria's accession.

The ministry experienced immediate benefit from the change. The Whigs, who had governed England since 1830, under Lord Grey and Lord Melbourne, were suffering from the reaction which is the inevitable consequence of revolution. The country which, in half-a-dozen years, had seen a radical reform of parliament, a no less radical reform of municipal

corporations, the abolition of slavery, and the reconstruction of the poor laws, was longing for a period of political repose. The alliance, or understanding, between the Whigs and the Irish was increasing the distrust of the English people in the ministry, and Lord Melbourne's government, in the first half of 1837, seemed doomed to perish. The accession of the queen gave it a new lease of power. The election, indeed, which followed her accession did not materially alter the composition of the House of Commons. But the popularity of the queen was extended to her government. Taper's suggestion in *Coningsby* that the Conservatives should go to the country with the cry, "Our young queen and our old institutions," expressed, in an epigram, a prevalent idea. But the institution which derived most immediate benefit from the new sovereign was the old Whig ministry.

The difficulties of the ministry, nevertheless, were great. In the preceding years it had carried most of the reforms which were demanded in Great Britain; but it had failed to obtain the assent of the House of Lords to its

***Lord Melbourne's
difficulties.***

Irish measures. It had desired (1) to follow up the reform of English corporations by a corresponding reform of Irish municipalities; (2) to convert the tithes, payable to the Irish Church, into a rent charge, and to appropriate its surplus revenues to other purposes; (3) to deal with the chronic distress of the Irish people by extending to Ireland the principles of the English poor law. In the year which succeeded the accession of the queen it accomplished two of these objects. It passed an Irish poor law and a measure commuting tithes in Ireland into a rent charge. The first of these measures was carried in opposition to the views of the Irish, who thought that it imposed an intolerable burden on Irish property. The second was only carried on the government consenting to drop the appropriation clause, on which Lord Melbourne's administration had virtually been founded.

It was not, however, in domestic politics alone that the ministry was hampered. In the months which immediately followed the queen's accession news reached England of disturbances, or even insurrection in Canada. The rising was easily put down; but the condition of the colony was so grave that the ministry decided to suspend the constitution of lower Canada for three years, and to send out Lord Durham with almost dictatorial powers. Lord Durham's conduct was, unfortunately, marked by indiscretions which led to his resignation; but before leaving the colony he drew up a report on its condition and on its future, which practically became a text-book for his successors, and has influenced the government of British colonies ever since. Nor was Canada the only great colony which was seething with discontent. In Jamaica the planters, who had sullenly accepted the abolition of slavery, were irritated by the passage of an act of parliament intended to remedy some grave abuses in the management of the prisons of the island. The colonial House of Assembly denounced this act as a violation of its rights, and determined to desist from its legislative functions. The governor dissolved the assembly, but the new house, elected in its place, reaffirmed the decision of its predecessor; and the British ministry, in face of the crisis, asked parliament in 1839 for authority to suspend the constitution of the island for five years. The bill introduced for this purpose placed the Whig ministry in a position of some embarrassment. The advocates of popular government, they were inviting parliament, for a second time, to suspend representative institutions in an important colony. Supported by only small and dwindling majorities, they saw that it was hopeless to carry the measure, and they decided on placing their resignations in the queen's hands. The queen naturally sent for Sir Robert Peel, who undertook to form a government. In the course of the negotiations, however, he stated that it would be necessary to make certain changes in the household, which contained some great ladies closely connected with the leaders of the Whig party. The queen shrank from

The bed-chamber question.

separating herself from ladies who had surrounded her since she came to the throne, and Sir Robert thereupon declined the task of forming a ministry. Technically he was justified in adopting this course, but people generally felt that there was some hardship in compelling a young queen to separate herself from her companions and friends, and they consequently approved the decision of Lord Melbourne to support the queen in her refusal, and to resume office. The Whigs returned to place, but they could not be said to return to power. They did not even venture to renew the original Jamaica Bill. They substituted for it a modified proposal which they were unable to carry. They were obviously indebted for office to the favour of the queen, and not to the support of parliament.

Yet the session of 1839 was not without important results. After a long struggle, in which ministers narrowly escaped defeat in the Commons, and in the course of which they suffered severe rebuffs in the Lords, they

Penny postage.

succeeded in laying the foundation of the English system of national education. In the same session they were forced against their will to adopt a reform, which had been recommended by Rowland Hill, and to confer on the nation the benefit of a uniform penny postage. No member of the cabinet foresaw the consequences of this reform. The postmaster-general, Lord Lichfield, in opposing it, declared that, if the revenue of his office was to be maintained, the correspondence of the country, on which postage was paid, must be increased from 42,000,000 to 480,000,000 letters a year, and he contended that there were neither people to write, nor machinery to deal with, so prodigious a mass of letters. He would have been astonished to hear that, before the end of the century, his office had to deal with more than 3,000,000,000 postal packets a year, and that the net profit which it paid into the exchequer was to be more than double what it received in 1839.

In 1840 the ministry was not much more successful than it had proved in 1839. After years of conflict it succeeded indeed in placing on the statute book a measure dealing with Irish municipalities. But its success was

Fiscal policy. purchased by concessions to the Lords, which deprived the measure of much of its original merit. The closing years of the Whig administration were largely occupied

with the financial difficulties of the country. The first three years of the queen's reign were memorable for a constantly deficient revenue. The deficit amounted to £1,400,000 in 1837, to £400,000 in 1838, and to £1,457,000 in 1839. Baring, the chancellor of the exchequer, endeavoured to terminate this deficiency by a general increase of taxation, but this device proved a disastrous failure. The deficit rose to £1,842,000 in 1840. It was obvious that the old expedient of increasing taxation had failed, and that some new method had to be substituted for it. This new method Baring tried to discover in altering the differential duties on timber and sugar, and substituting a fixed duty of 8s. per quarter for the sliding duties hitherto payable on wheat. By these alterations he expected to secure a large increase of revenue, and at the same time to maintain a sufficient degree of protection for colonial produce. The Conservatives, who believed in protection, at once attacked the proposed alteration of the sugar duties. They were reinforced by many Liberals, who cared very little for protection, but a great deal about the abolition of slavery, and consequently objected to reducing the duties on foreign or slave-grown sugar. This combination of interests proved too strong for Baring and his proposal was rejected. As ministers, however, did not resign on their defeat, Sir Robert Peel followed up his victory by moving a vote of want of confidence, and this motion was carried in an exceptionally full house by 312 votes to 311.

Before abandoning the struggle, the Whigs decided on appealing from the House of Commons to the country. The general election which ensued largely increased the strength of the Conservative party. On the meeting of

Sir R. Peel forms a ministry.

the new parliament in August 1841, votes of want of confidence in the government were proposed and carried in both houses; the Whigs were compelled to resign office, and the queen again charged Sir Robert Peel with the task of forming a government. If the queen had remained unmarried, it is possible that the friction which had arisen in 1839 might have recurred in 1841. In February 1840, however, Her Majesty had married her cousin, Prince Albert of Saxe-Coburg-Gotha. She was, therefore, no longer dependent on the Whig ladies, to whose presence in her court she had attached so much importance in 1839. By the management of the prince—who later in the reign was known as the prince consort—the great ladies of the household voluntarily tendered their resignations; and every obstacle to the formation of the new government was in this way removed.

Thus the Whigs retired from the offices which, except for a brief interval in 1834-1835, they had held for eleven years. During the earlier years of their administration they had succeeded in carrying many memorable reforms: during the later years their weakness in the House of Commons had prevented their passing any considerable measures. But, if they had failed in this respect, Lord Melbourne had rendered conspicuous service to the queen. Enjoying her full confidence, consulted by her on every occasion, he had always used his influence for the public good; and perhaps those who look back now with so much satisfaction at the queen's conduct during a reign of unexampled length, imperfectly appreciate the debt which in this respect is owed to her first prime minister. The closing years of the Whig government were marked by external complications. A controversy on the boundary of Canada and the United States was provoking increasing bitterness on both sides of the Atlantic. The intervention of Lord Palmerston in Syria, which resulted in a great military success at Acre, was embittering the relations between France and England, while the unfortunate expedition to Afghanistan, which the Whigs had approved, was already producing

embarrassment, and was about to result in disaster. Serious, however, as were the complications which surrounded British policy in Europe, in the East, and in America, the country, in August 1841, paid more attention to what a great writer called the “condition of England” question. There had never been a period in British history when distress and crime had been so general. There had hardly ever been a period when food had been so dear, when wages had been so low, when poverty had been so widespread, and the condition of the lower orders so depraved and so hopeless, as in the early years of the queen’s reign. The condition of the people had prompted the formation of two great associations. The Chartists derived their name from the charter which set out their demands. The rejection of a monster petition which they presented to parliament in 1839 led to a formidable riot in Birmingham, and to a projected march from South Wales on London, in which twenty persons were shot dead at Newport. Another organization, in one sense even more formidable than the Chartist, was agitating at the same time for the repeal of the corn laws, and was known as the Anti-Corn Law League. It had already secured the services of two men, Cobden and Bright, who, one by clear reasoning, the other by fervid eloquence, were destined to make a profound impression on all classes of the people.

The new government had, therefore, to deal with a position of almost unexampled difficulty. The people were apparently sinking into deeper poverty and misery year after year. As an outward and visible sign of the inward distress, the state was no longer able to pay its way. It was estimated that the deficit, which had amounted to £1,842,000 in 1840, would reach £2,334,000 in 1841. It is the signal merit of Sir Robert Peel that he terminated this era of private distress and public deficits. He accomplished this task partly by economical administration—for no minister ever valued economy more—and partly by a reform of the financial system, effected in three great budgets. In the budget of 1842 Sir Robert Peel terminated the

Budget reforms.

deficit by reviving the income tax. The proceeds of the tax, which was fixed at 7d. in the £, and was granted in the first instance for three years, were more than sufficient to secure this object. Sir Robert used the surplus to reform the whole customs tariff. The duties on raw materials, he proposed, should never exceed 5%, the duties on partly manufactured articles 12%, and the duties on manufactured articles 20% of their value. At the same time he reduced the duties on stage coaches, on foreign and colonial coffee, on foreign and colonial timber, and repealed the export duties on British manufactures. The success of this budget in stimulating consumption and in promoting trade induced Sir Robert Peel to follow it up in 1845 with an even more remarkable proposal. Instead of allowing the income tax to expire, he induced parliament to continue it for a further period, and with the resources which were thus placed at his disposal he purged the tariff of various small duties which produced little revenue, and had been imposed for purposes of protection. He swept away all the duties on British exports; he repealed the duties on glass, on cotton wool, and still further reduced the duties on foreign and colonial sugar. This budget was a much greater step towards free trade than the budget of 1842. The chief object in his third budget in 1846—the reduction of the duty on corn to 1s. a quarter—was necessitated by causes which will be immediately referred to. But it will be convenient at once to refer to its other features. Sir Robert Peel told the house that, in his previous budgets, he had given the manufacturers of the country free access to the raw materials which they used. He was entitled in return to call upon them to relinquish the protection which they enjoyed. He decided, therefore, to reduce the protective duties on cotton, woollen, silk, metal and other goods, as well as on raw materials still liable to heavy taxation, such as timber and tallow. As the policy of 1842 and 1845 had proved unquestionably successful in stimulating trade, he proposed to extend it to agriculture. He reduced the duties on the raw materials which the farmers used, such as seed and maize, and in return he called on them to

give up the duties on cattle and meat, to reduce largely the duties on butter, cheese and hops, and to diminish the duty on corn by gradual stages to 1s. a quarter. In making these changes Sir Robert Peel avowed that it was his object to make the country a cheap one to live in. There is no doubt that they were followed by a remarkable development of British trade. In the twenty-seven years from 1815 to 1842 the export trade of Great Britain diminished from £49,600,000 to £47,280,000; while in the twenty-seven years which succeeded 1842 it increased from £47,280,000 to nearly £190,000,000. These figures are a simple and enduring monument to the minister's memory. It is fair to add that the whole increase was not due to free trade. It was partly attributable to the remarkable development of communications which marked this period.

Two other financial measures of great importance were accomplished in Sir Robert Peel's ministry. In 1844 some £250,000,000 of the national debt still bore an interest of 3½%. The improvement in the credit of the country enabled the government to reduce the interest on the stock to 3¼% for the succeeding ten years, and to 3% afterwards. This conversion, which effected an immediate saving of £625,000, and an ultimate saving of £1,250,000 a year, was by far the most important measure which had hitherto been applied to the debt; and no operation on the same scale was attempted for more than forty years. In the same year the necessity of renewing the charter of the Bank of England afforded Sir Robert Peel an opportunity of reforming the currency. He separated the issue department from the banking department of the bank, and decided that in future it should only be at liberty to issue notes against (1) the debt of £14,000,000 due to it from the government, and (2) any bullion actually in its coffers. Few measures of the past century have been the subject of more controversy than this famous act, and at one time its repeated suspension in periods of financial crises seemed to suggest the necessity of its

amendment. But opinion on the whole has vindicated its wisdom, and it has survived all the attacks which have been made upon it.

The administration of Sir Robert Peel is also remarkable for its Irish policy. The Irish, under O'Connell, had constantly supported the Whig ministry of Lord Melbourne. But their alliance, or understanding, with the

Ireland. Whigs had not procured them all the results which they had expected from it. The two great Whig measures, dealing with the church and the municipalities, had only been passed after years of controversy, and in a shape which deprived them of many expected advantages. Hence arose a notion in Ireland that nothing was to be expected from a British parliament, and hence began a movement for the repeal of the union which had been accomplished in 1801. This agitation, which smouldered during the reign of the Whig ministry, was rapidly revived when Sir Robert Peel entered upon office. The Irish contributed large sums, which were known as repeal rent, to the cause, and they held monster meetings in various parts of Ireland to stimulate the demand for repeal. The ministry met this campaign by coercive legislation regulating the use of arms, by quartering large bodies of troops in Ireland, and by prohibiting a great meeting at Clontarf, the scene of Brian Boru's victory, in the immediate neighbourhood of Dublin. They further decided in 1843 to place O'Connell and some of the leading agitators on their trial for conspiracy and sedition. O'Connell was tried before a jury chosen from a defective panel, was convicted on an indictment which contained many counts, and the court passed sentence without distinguishing between these counts. These irregularities induced the House of Lords to reverse the judgment, and its reversal did much to prevent mischief. O'Connell's illness, which resulted in his death in 1847, tended also to establish peace. Sir Robert Peel wisely endeavoured to stifle agitation by making considerable concessions to Irish sentiment. He increased the grant which was made to the Roman Catholic College at Maynooth; he established three

colleges in the north, south and west of Ireland for the undenominational education of the middle classes; he appointed a commission—the Devon commission, as it was called, from the name of the nobleman who presided over it—to investigate the conditions on which Irish land was held; and, after the report of the commission, he introduced, though he failed to carry, a measure for remedying some of the grievances of the Irish tenants. These

Free trade. wise concessions might possibly have had some effect in pacifying Ireland, if, in the autumn of 1845, they had not been forgotten in the presence of a disaster which suddenly fell on that unhappy country. The potato, which was the sole food of at least half the people of an overcrowded island, failed, and a famine of unprecedented proportions was obviously imminent. Sir Robert Peel, whose original views on protection had been rapidly yielding to the arguments afforded by the success of his own budgets, concluded that it was impossible to provide for the necessities of Ireland without suspending the corn laws; and that, if they were once suspended, it would be equally impossible to restore them. He failed, however, to convince two prominent members of his cabinet—Lord Stanley and the duke of Buccleuch—that protection must be finally abandoned, and considering it hopeless to persevere with a disunited cabinet he resigned office. On Sir Robert's resignation the queen sent for Lord John Russell, who had led the Liberal party in the House of Commons with conspicuous ability for more than ten years, and charged him with the task of forming a new ministry. Differences, which it proved impossible to remove, between two prominent Whigs—Lord Palmerston and Lord Grey—made the task impracticable, and after an interval Sir Robert Peel consented to resume power. Sir Robert Peel was probably aware that his fall had been only postponed. In the four years and a half during which his ministry had lasted he had done much to estrange his party. They said, with some truth, that, whether his measures were right or wrong, they were opposed to the principles which he had been

placed in power to support. The general election of 1841 had been mainly fought on the rival policies of protection and free trade. The country had decided for protection, and Sir R. Peel had done more than all his predecessors to give it free trade. The Conservative party, moreover, was closely allied with the church, and Sir Robert had offended the church by giving an increased endowment to Maynooth, and by establishing undenominational colleges—"godless colleges" as they were called—in Ireland. The Conservatives were, therefore, sullenly discontented with the conduct of their leader. They were lashed into positive fury by the proposal which he was now making to abolish the corn laws. Lord George Bentinck, who, in his youth, had been private secretary to Canning, but who in his maturer years had devoted more time to the turf than to politics, placed himself at their head. He was assisted by a remarkable man—Benjamin Disraeli—who joined great abilities to great ambition, and who, embittered by Sir Robert Peel's neglect to appoint him to office, had already displayed his animosity to the minister. The policy on which Sir Robert Peel resolved facilitated attack. For the minister thought it necessary, while providing against famine by repealing the corn laws, to ensure the preservation of order by a new coercion bill. The financial bill and the coercion bill were both pressed forward, and each gave opportunities for discussion and, what was then new in parliament, for obstruction. At last, on the very night on which the fiscal proposals of the ministers were accepted by the Lords, the coercion bill was defeated in the Commons by a combination of Whigs, radicals and protectionists; and Sir R. Peel, worn out with a protracted struggle, placed his resignation in the queen's hands.

Thus fell the great minister, who perhaps had conferred more benefits on his country than any of his predecessors. The external policy of his ministry had been almost as remarkable as its domestic programme. When he accepted office the country was on the eve of a great disaster in India; it was engaged in a serious dispute

Peel's foreign policy.

with the United States; and its relations with France were so strained that the two great countries of western Europe seemed unlikely to be able to settle their differences without war. In the earlier years of his administration the disaster in Afghanistan was repaired in a successful campaign; and Lord Ellenborough, who was sent over to replace Lord Auckland as governor-general, increased the dominion and responsibilities of the East India Company by the unscrupulous but brilliant policy which led to the conquest of Sind. The disputes with the United States were satisfactorily composed; and not only were the differences with France terminated, but a perfect understanding was formed between the two countries, under which Guizot, the prime minister of France, and Lord Aberdeen, the foreign minister of England, agreed to compromise all minor questions for the sake of securing the paramount object of peace. The good understanding was so complete that a disagreeable incident in the Sandwich Islands, in which the injudicious conduct of a French agent very nearly precipitated hostilities, was amicably settled; and the ministry had the satisfaction of knowing that, if their policy had produced prosperity at home, it had also maintained peace abroad.

On Sir R. Peel's resignation the queen again sent for Lord John Russell. The difficulties which had prevented his forming a ministry in the previous year were satisfactorily arranged, and Lord Palmerston accepted the seals of the foreign office, while Lord Grey was sent to the colonial office. The history of the succeeding years was destined, however, to prove that Lord Grey had had solid reasons for objecting to Lord Palmerston's return to his old post; for, whatever judgment may ultimately be formed on Lord Palmerston's foreign policy, there can be little doubt that it did not tend to the maintenance of peace. The first occasion on which danger was threatened arose immediately after the installation of the new ministry on the question of the Spanish marriages. The queen of Spain, Isabella, was a young girl still in her teens; the heir to the throne was her younger sister, the

The Spanish marriages.

infanta Fernanda. Diplomacy had long been occupied with the marriages of these children; and Lord Aberdeen had virtually accepted the principle, which the French government had laid down, that a husband for the queen should be found among the descendants of Philip V., and that her sister's marriage to the duc de Montpensier—a son of Louis Philippe—should not be celebrated till the queen was married and had issue. While agreeing to this compromise, Lord Aberdeen declared that he regarded the Spanish marriages as a Spanish, and not as a European question, and that, if it proved impossible to find a suitable consort for the queen among the descendants of Philip V., Spain must be free to choose a prince for her throne elsewhere. The available descendants of Philip V. were the two sons of Don Francis, the younger brother of Don Carlos, and of these the French government was in favour of the elder, while the British government preferred the younger brother. Lord Palmerston strongly objected to the prince whom the French government supported; and, almost immediately after acceding to office, he wrote a despatch in which he enumerated the various candidates for the queen of Spain's hand, including Prince Leopold of Saxe-Coburg, a near relation of the prince consort, among the number. Louis Philippe regarded this despatch as a departure from the principle on which he had agreed with Lord Aberdeen, and at once hurried on the simultaneous marriages of the queen with the French candidate, and of her sister with the duc de Montpensier. His action broke up the *entente cordiale* which had been established between Guizot and Lord Aberdeen.

The second occasion on which Lord Palmerston's vigorous diplomacy excited alarm arose out of the revolution which broke out almost universally in Europe in 1848. A rising in Hungary was suppressed by Austria with Russian assistance, and after its suppression many leading Hungarians took refuge in Turkish territory. Austria and Russia addressed demands to the Porte for their surrender. Lord Palmerston determined to

support the Porte in its refusal to give up these exiles, and actually sent the British fleet to the Dardanelles with this object. His success raised the credit of Great Britain and his own reputation. The presence of the British fleet, however, at the Dardanelles suggested to him the possibility of settling another long-standing controversy. For years British subjects settled in Greece had raised complaints against the Greek government. In particular

Don Pacifico. Don Pacifico, a Jew, but a native of Gibraltar, complained that, at a riot, in which his house had been attacked, he had lost jewels, furniture and papers which he alleged to be worth more than £30,000. As Lord Palmerston was unable by correspondence to induce the Greek government to settle claims of this character, he determined to enforce them; and by his orders a large number of Greek vessels were seized and detained by the British fleet. The French government tendered its good offices to compose the dispute, and an arrangement was actually arrived at between Lord Palmerston and the French minister in London. Unfortunately, before its terms reached Greece, the British minister at Athens had ordered the resumption of hostilities, and had compelled the Greek government to submit to more humiliating conditions. News of this settlement excited the strongest feelings both in Paris and London. In Paris, Prince Louis Napoleon, who had acceded to the presidency of the French republic, decided on recalling his representative from the British court. In London the Lords passed a vote of censure on Lord Palmerston's proceedings; and the Commons only sustained the minister by adopting a resolution approving in general terms the principles on which the foreign policy of the country had been conducted.

In pursuing the vigorous policy which characterized his tenure of the foreign office, Lord Palmerston frequently omitted to consult his colleagues in the cabinet, the prime minister, or the queen. In the course of 1849 Her Majesty formally complained to Lord John Russell that important despatches were sent off without her knowledge; and an arrangement was

**Palmerston
dismissed.**

made under which Lord Palmerston undertook to submit every despatch to the queen through the prime minister. In 1850, after the Don Pacifico debate, the queen repeated these commands in a much stronger memorandum. But Lord Palmerston, though all confidence between himself and the court was destroyed, continued in office. In the autumn of 1851 the queen was much annoyed at hearing that he had received a deputation at the foreign office, which had waited on him to express sympathy with the Hungarian refugees, and to denounce the conduct of “the despots and tyrants” of Russia and Austria, and that he had, in his reply, expressed his gratification at the demonstration. If the queen had had her way, Lord Palmerston would have been removed from the foreign office after this incident. A few days later the *coup d'état* in Paris led to another dispute. The cabinet decided to do nothing that could wear the appearance of interference in the internal affairs of France; but Lord Palmerston, in conversation with the French minister in London, took upon himself to approve the bold and decisive step taken by the president. The ministry naturally refused to tolerate this conduct, and Lord Palmerston was summarily removed from his office.

The removal of Lord Palmerston led almost directly to the fall of the Whig government. Before relating, however, the exact occurrences which produced its defeat, it is necessary to retrace our steps and describe the policy which it had pursued in internal matters during the six years in which it had been in power. Throughout that period the Irish famine had been its chief anxiety and difficulty. Sir Robert Peel had attempted to deal with it (1) by purchasing large quantities of Indian corn, which he had retailed at low prices in Ireland, and (2) by enabling the grand juries to employ the people on public works, which were to be paid out of moneys advanced by the state, one-half being ultimately repayable by the locality. These measures were not entirely successful. It was found, in practice, that the sale of Indian corn at low prices by the government checked the efforts of private

Irish famine.

individuals to supply food; and that the offer of comparatively easy work to the poor at the cost of the public, prevented their seeking harder private work either in Ireland or in Great Britain. The new government, with this experience before it, decided on trusting to private enterprise to supply the necessary food, and on throwing the whole cost of the works which the locality might undertake on local funds. If the famine had been less severe, this policy might possibly have succeeded. Universal want, however, paralysed every one. The people, destitute of other means of livelihood, crowded to the relief works. In the beginning of 1847 nearly 750,000 persons—or nearly one person out of every ten in Ireland—were so employed. With such vast multitudes to relieve, it proved impracticable to exact the labour which was required as a test of destitution. The roads, which it was decided to make, were blocked by the labourers employed upon them, and by the stones, which the labourers were supposed to crush for their repair. In the presence of this difficulty the government decided, early in 1847, gradually to discontinue the relief works, and to substitute for them relief committees charged with the task of feeding the people. At one time no less than 3,000,000 persons—more than one-third of the entire population of Ireland—were supported by these committees. At the same time it decided on adopting two measures of a more permanent character. The poor law of 1838 had made no provision for the relief of the poor outside the workhouse, and outdoor relief was sanctioned by an act of 1847. Irish landlords complained that their properties, ruined by the famine, and encumbered by the extravagances of their predecessors, could not bear the cost of this new poor law; and the ministry introduced and carried a measure enabling the embarrassed owners of life estates to sell their property and discharge their liabilities. It is the constant misfortune of Ireland that the measures intended for her relief aggravate her distress. The encumbered estates act, though it substituted a solvent for an insolvent

proprietary, placed the Irish tenants at the mercy of landlords of whom they had no previous knowledge, who were frequently absentees, who bought the land as a matter of business, and who dealt with it on business principles by raising the rent. The new poor law, by throwing the maintenance of the poor on the soil, encouraged landlords to extricate themselves from their responsibilities by evicting their tenants. Evictions were made on a scale which elicited from Sir Robert Peel an expression of the deepest abhorrence. The unfortunate persons driven from their holdings and forced to seek a refuge in the towns, in England, or—when they could afford it—in the United States, carried with them everywhere the seeds of disease, the constant handmaid of famine.

Famine, mortality and emigration left their mark on Ireland. In four years, from 1845 to 1849, its population decreased from 8,295,000 to 7,256,000, or by more than a million persons; and the decline which took place at that time went on to the end of the century. The population of Ireland in 1901 had decreased to 4,457,000 souls. This fact is the more remarkable, because Ireland is almost the only portion of the British empire, or indeed of the civilized world, where such a circumstance has occurred. We must go to countries like the Asiatic provinces of Turkey, devastated by Ottoman rule, to find such a diminution in the numbers of the people as was seen in Ireland during the last half of the 19th century. It was probably inevitable that the distress of Ireland should have been followed by a renewal of Irish outrages. A terrible series of agrarian crimes was committed in the autumn of 1847; and the ministry felt compelled, in

Rebellion of 1848.

consequence, to strengthen its hands by a new measure of coercion, and by suspending the Habeas Corpus Act in Ireland. The latter measure at once brought to a crisis the so-called rebellion of 1848, for his share in which Smith O'Brien, an Irish member of parliament, was convicted of high treason. The government, however, did not venture to carry out the grim sentence which

the law still applied to traitors, and introduced an act enabling it to commute the death penalty to transportation. The “insurrection” had from the first proved abortive. With Smith O’Brien’s transportation it practically terminated.

In the meanwhile the difficulties which the government was experiencing from the Irish famine had been aggravated by a grave commercial crisis in England. In the autumn of 1847 a series of failures in the great commercial centres created a panic in the city of London, which forced consols down to 78, and induced the government to take upon itself the responsibility of suspending the Bank Charter Act. That step, enabling the directors of the Bank of England to issue notes unsecured by bullion, had the effect of gradually restoring confidence. But a grave commercial crisis of this character is often attended with other than financial consequences. The stringency of the money market increases the distress of the industrial classes by diminishing the demand for work; and, when labour suffers, political agitation flourishes. Early in 1848, moreover, revolutions on the continent produced a natural craving for changes at home. Louis Philippe was driven out of Paris, the emperor of Austria was driven out of Vienna, the Austrian soldiery had to withdraw from Milan, and even in Berlin the crown had to make terms with the people. While thrones were falling or tottering in every country in Europe, it was inevitable that excitement and agitation should prevail in Great Britain. The Chartists, reviving the machinery which they had endeavoured to employ in 1839, decided on preparing a monster petition to parliament, which was to be escorted to Westminster by a monster procession. Their preparations excited general

Chartism. alarm, and on the invitation of the government no less than 170,000 special constables were sworn in to protect life and property against a rabble. By the judicious arrangements, however, which were made by the duke of Wellington, the peace of the metropolis was secured. The Chartists were

induced to abandon the procession which had caused so much alarm, and the monster petition was carried in a cab to the House of Commons. There it was mercilessly picked to pieces by a select committee. It was found that, instead of containing nearly 6,000,000 signatures, as its originators had boasted, less than 2,000,000 names were attached to it. Some of the names, moreover, were obviously fictitious, or even absurd. The exposure of these facts turned the whole thing into ridicule, and gave parliament an excuse for postponing measures of organic reform which might otherwise have been brought forward.

If the ministry thus abstained from pressing forward a large scheme of political reform, it succeeded in carrying two measures of the highest commercial and social importance. In 1849 it supplemented the free trade policy, which Sir Robert Peel had developed, by the repeal of the Navigation Acts. Briefly stated, these acts, which had been originated during the Protectorate of Cromwell, and continued after the Restoration, reserved the whole coasting trade of the country for British vessels and British seamen, and much of the foreign trade for British vessels, commanded and chiefly manned by British subjects. The acts, therefore, were in the strictest sense protective, but they were also designed to increase the strength of Great Britain at sea, by maintaining large numbers of British seamen. They had been defended by Adam Smith on the ground that defence was “of much more importance than opulence,” and by the same reasoning they had been described by John Stuart Mill as, “though economically disadvantageous, politically expedient.” The acts, however, threw a grave burden on British trade and British shipowners. Their provisions by restricting competition naturally tended to raise freights, and by restricting employment made it difficult for shipowners to man their vessels. Accordingly the government wisely determined on their repeal; and one of the last and greatest battles between Free Trade and Protection was fought over the question. The second reading

of the government bill was carried in the House of Lords by a majority of only ten: it would not have been carried at all if the government had not secured a much larger number of proxies than their opponents could obtain.

If the repeal of the Navigation Acts constituted a measure of the highest commercial importance, the passage of the Ten Hours Bill in 1847 marked the first great advance in factory legislation. Something, indeed, had already

Ten Hours Bill. been done to remedy the evils arising from the employment of women and very young children in factories and mines. In 1833 Lord Ashley, better known

as Lord Shaftesbury, had carried the first important Factory Act. In 1842 he had succeeded, with the help of the striking report of a royal commission, in inducing parliament to prohibit the employment of women and of boys under ten years of age in mines. And in 1843 Sir James Graham, who was home secretary in Sir Robert Peel's administration, had been compelled by the pressure of public opinion to introduce a measure providing for the education of children employed in factories, and for limiting the hours of work of children and young persons. The educational clauses of this bill were obviously framed in the interests of the Church of England, and raised a heated controversy which led to the abandonment of the measure; and in the following year Sir James Graham introduced a new bill dealing with the labour question alone. Briefly stated, his proposal was that no child under nine years of age should be employed in a factory, and that no young person under eighteen should be employed for more than twelve hours a day. This measure gave rise to the famous controversy on the ten hours clause, which commenced in 1844 and was protracted till 1847. Lord Ashley and the factory reformers contended, on the one hand, that ten hours were long enough for any person to work; their opponents maintained, on the contrary, that the adoption of the clause would injure the working-classes by lowering the rate of wages, and ruin the manufacturers by exposing them to foreign competition. In 1847 the reform was at last adopted. It is a

remarkable fact that it was carried against the views of the leading statesmen on both sides of the House. It was the triumph of common sense over official arguments.

During the first four years of Lord John Russell's government, his administration had never enjoyed any very large measure of popular support, but it had been partly sustained by the advocacy of Sir Robert Peel.

Death of Peel. The differences which estranged Sir Robert from his old supporters were far greater than those which separated him from the Whigs, and the latter were therefore constantly able to rely on his assistance. In the summer of 1850, however, a lamentable accident—a fall from his horse—deprived the country of the services of its great statesman. His death naturally affected the position of parties. The small remnant of able men, indeed, who had been associated with him in his famous administration, still maintained an attitude of neutrality. But the bulk of the Conservative party rallied under the lead of Lord Stanley (afterwards Derby) in the House of Lords, and gradually submitted to, rather than accepted, the lead of Disraeli in the House of Commons.

In the autumn which succeeded Sir Robert Peel's death, an event which had not been foreseen agitated the country and produced a crisis. During the years which had succeeded the Reform Bill a great religious movement had

Oxford movement. influenced politics both in England and Scotland. In England, a body of eminent men at Oxford—of whom J.H., afterwards Cardinal, Newman was the chief, but who numbered among their leaders Hurrell Froude, the brother of the historian, and Keble, the author of the *Christian Year*—endeavoured to prove that the doctrines of the Church of England were identical with those of the primitive Catholic Church, and that every Catholic doctrine might be held by those who were within its pale. This view was explained in a

remarkable series of tracts, which gave their authors the name of Tractarians. The most famous of these, and the last of the series, Tract XC., was published three years after the queen's accession to the throne. In Scotland, the Presbyterian Church—mainly under the guidance of Dr Chalmers, one of the most eloquent preachers of the century—was simultaneously engaged in a contest with the state on the subject of ecclesiastical patronage. Both movements had this in common, that they indicated a revival of religious energy, and aimed at vindicating the authority of the church, and resisting the interference of the state in church matters. The Scottish movement led to the disruption of the Church of Scotland and the formation of the Free Church in 1843. The Tractarian movement was ultimately terminated by the secession of Newman and many of his associates from the Church of England, and their admission to the Church of Rome. These secessions raised a feeling of alarm throughout England. The people, thoroughly Protestant, were excited by the proofs—which they thought were afforded—that the real object of the Tractarians was to reconcile England with Rome; and practices which are now regarded as venial or even praiseworthy—such as the wearing of the surplice in the pulpit, and the institution of the weekly offertory—were denounced because they were instituted by the Tractarians, and were regarded as insidious devices to lead the country Romewards. The sympathies of the Whigs, and especially of the Whig prime minister, Lord John Russell, were with the people; and Lord John displayed his dislike to the Romanizing tendencies of the Tractarians by appointing Renn Dickson Hampden—whose views had been formally condemned by the Hebdomadal Board at Oxford—to the bishopric of Hereford. The High Church party endeavoured to oppose the appointment at every stage; but their attempts exposed them to a serious defeat. The courts held that, though the appointment of a bishop by the crown required confirmation in the archbishop's court, the confirmation was a purely ministerial act which could not be refused. The effort which

the High Church party had made to resist Dr Hampden's appointment had thus resulted in showing conclusively that authority resided in the crown, and not in the archbishop. It so happened that about the same time this view was confirmed by another judicial decision. The lord chancellor presented the Rev. G.C. Gorham to a living in Devonshire; and Dr Phillpotts, the bishop of Exeter, declined to institute him, on the ground that he held heretical views on the subject of baptism. The court of arches upheld the bishop's decision. The finding of the court, however, was reversed by the privy council, and its judgment dealt a new blow at the Tractarian party. For it again showed that authority—even in doctrine—resided in the crown and not in the church. Within a few months of this famous decision the pope—perhaps encouraged by the activity and despondency of the High Church party—issued a brief “for re-establishing and extending the Catholic faith in England,” and proceeded to divide England and Wales into twelve sees. One of them—Westminster—was made an archbishopric, and the new dignity was conferred on Nicholas Patrick Stephen Wiseman, who was almost immediately afterwards created cardinal. The publication of this brief caused much excitement throughout the country, which was fanned by a letter from the prime minister to the bishop of Durham, condemning the brief as “insolent and insidious” and “inconsistent with the queen's supremacy, with the rights of our bishops and clergy, and with the spiritual independence of the nation.” Somewhat unnecessarily the prime minister went on to condemn the clergymen of the Church of England who had subscribed the Thirty-nine Articles, “who have been the most forward in leading their own flocks, step by step, to the very edge of the precipice.”

In accordance with the promise of Lord John Russell's letter, the ministry, at the opening of the session of 1851, introduced a measure forbidding the assumption of territorial titles by the priests and bishops of the Roman Catholic Church, declaring all gifts made to them and all acts done by them under these titles null and void, and forfeiting to the crown all

***Ecclesiastical Titles
Bill.***

property bequeathed to them. The bill naturally encountered opposition from many Liberals, while it failed to excite any enthusiasm among Conservatives, who thought its remedies inadequate. In the middle of the debates upon it the government was defeated on another question—a proposal to reduce the county franchise—and, feeling that it could no longer rely on the support of the House of Commons, tendered its resignation. But Lord Stanley, whom the queen entrusted with the duty of forming a new administration, was compelled to decline the task, and Lord John resumed office. Mild as the original Ecclesiastical Titles Bill had been thought, the new edition of it, which was introduced after the restoration of the Whigs to power, was still milder. Though, after protracted debates, it at last became law, it satisfied nobody. Its provisions, as was soon found, could be easily evaded, and the bill, which had caused so much excitement, and had nearly precipitated the fall of a ministry, remained a dead letter. The government, in fact, was experiencing the truth that, if a defeated ministry may be occasionally restored to place, it cannot be restored to power. The dismissal of Lord Palmerston from the foreign office in 1851 further increased the embarrassments of the government. In February 1852 it was defeated on a proposal to revive the militia, and resigned.

The circumstances which directly led to the defeat of the Whigs were, in one sense, a consequence of the revolutionary wave which had swept over Europe in 1848. The fall of Louis Philippe in that year created a panic in

French scare.

Great Britain. Men thought that the unsettled state of France made war probable, and they were alarmed at the defenceless condition of England. Lord Palmerston, speaking in 1845, had declared that “steam had bridged the Channel”; and the duke of Wellington had addressed a letter to Sir John Burgoyne, in which he had demonstrated that the country was not in a position to resist an invading force. The panic was so great that the ministry felt it necessary

to make exceptional provisions for allaying it. Lord John Russell decided on asking parliament to sanction increased armaments, and to raise the income tax to 1s. in the pound in order to pay for them. The occasion deserves to be recollected as one on which a prime minister, who was not also chancellor of the exchequer, has himself proposed the budget of the year. But it was still more memorable because the remedy which Lord John proposed at once destroyed the panic which had suggested it. A certain increase of the income tax to a shilling seemed a much more serious calamity than the uncertain prospect of a possible invasion. The estimates were recast, the budget was withdrawn, and the nation was content to dispense with any addition to its military and naval strength. Events in France, in the meanwhile, moved with railway speed. Louis Napoleon became president of the French Republic: in 1852 he became emperor of the French. The new emperor, indeed, took pains to reassure a troubled continent that “the empire was peace.” The people insisted on believing—and, as the event proved, rightly—that the empire was war. Notwithstanding the success of the Great Exhibition of 1851, which was supposed to inaugurate a new reign of peace, the panic, which had been temporarily allayed in 1848, revived at the close of 1851, and the government endeavoured to allay it by reconstituting the militia. There were two possible expedients. An act of 1757 had placed under the direct authority of the crown a militia composed of men selected in each parish by ballot, liable to be called out for active service, and to be placed under military law. But the act had been supplemented by a series of statutes passed between 1808 and 1812, which had provided a local militia, raised, like the regular militia, by ballot, but, unlike the latter, only liable for service for the suppression of riots, or in the event of imminent invasion. Lord John Russell’s government, forced to do something by the state of public opinion, but anxious—from the experience of 1848—to make that something moderate, decided on reviving the local militia. Lord Palmerston

at once suggested that the regular and not the local militia should be revived; and, in a small house of only 265 members, he succeeded in carrying a resolution to that effect. He had, in this way, what he called his “tit for tat” with Lord John; and the queen, accepting her minister’s resignation, sent for Lord Derby—for Lord Stanley had now succeeded to this title—and charged him with the task of forming a ministry.

The government which Lord Derby succeeded in forming was composed almost exclusively of the men who had rebelled against Sir Robert Peel in 1845. It was led in the House of Commons by the brilliant, but somewhat unscrupulous statesman who had headed the revolt.

Lord Derby.

With the exception of Lord Derby and one other man, its members had no experience of high office; and it had no chance of commanding a majority of the House of Commons in the existing parliament. It owed its position to the divisions of its opponents. Profiting by their experience, it succeeded in framing and passing a measure reconstituting the regular militia, which obtained general approval. It is perhaps worth observing that it maintained the machinery of a ballot, but reserved it only in case experience should prove that it was necessary. Voluntary enlistment under the new Militia Bill was to be the rule: compulsory service was only to be resorted to if voluntary enlistment should fail. This success, to a certain extent, strengthened the position of the new ministry. It was obvious, however, that its stability would ultimately be determined by its financial policy. Composed of the men who had resisted the free trade measures of the previous decade, its fate depended on its attitude towards free trade. In forming his administration Lord Derby had found it necessary to declare that, though he was still in favour of a tax on corn, he should take no steps in this direction till the country had received an opportunity of expressing its opinion. His leader in the House of Commons went much further, and declared that the time had gone by for reverting to protection. The view which Disraeli thus propounded in

defiance of his previous opinions was confirmed by the electors on the dissolution of parliament. Though the new government obtained some increased strength from the result of the polls, the country, it was evident, had no intention of abandoning the policy of free trade, which by this time, it was clear, had conferred substantial benefits on all classes. When the new parliament met in the autumn of 1852, it was at once plain that the issue would be determined on the rival merits of the old and the new financial systems. Disraeli courted the decision by at once bringing forward the budget, which custom, and perhaps convenience, would have justified him in postponing till the following spring. His proposal—in which he avowedly threw over his friends on the ground that “he had greater subjects to consider than the triumph of obsolete opinions”—was, in effect, an attempt to conciliate his old supporters by a policy of doles, and to find the means for doing so by the increased taxation of the middle classes. He offered to relieve the shipping interest by transferring some of the cost of lighting the coasts to the Consolidated Fund; the West India interest by sanctioning the refining of sugar in bond; and the landed classes by reducing the malt tax by one-half, and by repealing the old war duty on hops. He suggested that the cost of these measures should be defrayed by extending the income tax to Ireland to industrial incomes of £100 and to permanent incomes of £50 a year, as well as by doubling the house tax, and extending it to all £10 householders. The weight, therefore, of these measures was either purposely or unintentionally thrown mainly on persons living in houses worth from £10 to £20 a year, or on persons in receipt of incomes from £50 to £150 a year. This defect in the budget was exposed in a great speech by Gladstone, which did much to ensure the defeat of the scheme and the fall of the ministry.

On the resignation of Lord Derby, the queen, anxious to terminate a period of weak governments, decided on endeavouring to combine in one cabinet the chiefs of the Whig party and the followers of Sir Robert Peel.

Coalition, 1853.

With this view she sent both for Lord Aberdeen, who had held the foreign office under Sir Robert, and for Lord Lansdowne, who was the Nestor of the Whigs; and with Lord Lansdowne's concurrence charged Lord Aberdeen with the task of forming a government. In the new ministry Lord Aberdeen became first lord of the treasury, Gladstone chancellor of the exchequer, Lord John Russell foreign minister—though he was almost immediately replaced in the foreign office by Lord Clarendon, and himself assumed the presidency of the council. Lord Palmerston went to the home office. One other appointment must also be mentioned. The secretary of state for the colonies was also at that time secretary of state for war. No one in 1852, however, regarded that office as of material importance, and it was entrusted by Lord Aberdeen to an amiable and conscientious nobleman, the duke of Newcastle.

The first session of the Aberdeen administration will be chiefly recollected for the remarkable budget which Gladstone brought forward. It constituted a worthy supplement to the measures of 1842, 1845 and 1846.

Budget of 1853.

Gladstone swept away the duty on one great necessary of life—soap; he repealed the duties on 123 other articles; he reduced the duties on 133 others, among them that on tea; and he found means for paying for these reforms and for the gradual reduction and ultimate abolition of the income tax, which had become very unpopular, by (1) extending the tax to incomes of £100 a year; (2) an increase of the spirit duties; and (3) applying the death duties to real property, and to property passing by settlement. There can be little doubt that this great proposal was one of the most striking which had ever been brought forward in the House of Commons; there can also, unhappily, be no doubt that its promises and intentions were frustrated by events which proved too strong for its author. For Gladstone, in framing his budget, had

contemplated a continuance of peace, and the country was, unhappily, already drifting into war.

For some years an obscure quarrel had been conducted at Constantinople about the custody of the holy places at Jerusalem. France, relying on a treaty concluded in the first half of the 18th century, claimed the guardianship of these places for the Latin Church. But

The holy places.

the rights which the Latin Church had thus obtained had practically fallen into disuse, while the Greek branch of the Christian Church had occupied and repaired the shrines which the Latins had neglected. In the years which preceded 1853, however, France had shown more activity in asserting her claims; and the new emperor of the French, anxious to conciliate the church which had supported his elevation to the throne, had a keen interest in upholding them. If, for reasons of policy, the emperor had grounds for his action, he had personal motives for thwarting the tsar of Russia; for the latter potentate had been foolish enough, in recognizing the second empire, to address its sovereign as “Mon Cher Ami,” instead of, in the customary language of sovereigns, as “Monsieur Mon Frère.” Thus, at the close of 1852, and in the beginning of 1853, Russia and France were both addressing opposite and irreconcilable demands to the Porte, and France was already talking of sending her fleet to the Dardanelles, while Russia was placing an army corps on active service and despatching Prince Menshikov on a special mission to Constantinople. So far the quarrel which had occurred at the Porte was obviously one in which Great Britain had no concern. The Aberdeen ministry, however, thought it desirable that it should be represented in the crisis by a strong man at Constantinople; and it selected Lord Stratford de Redcliffe for the post, which he had filled in former years with marked ability. Whatever merits Lord Stratford possessed—and he stands out in current diplomacy as the one strong man whom England had abroad—there was no doubt that he had this disqualification: the emperor

Nicholas had refused some years before to receive him as ambassador at St Petersburg, and Lord Stratford had resented, and never forgiven, the discourtesy of this refusal. Lord Stratford soon discovered that Prince Menshikov was the bearer of larger demands, and that he was requiring the Porte to agree to a treaty acknowledging the right of Russia to protect the Greek Church throughout the Turkish dominions. By Lord Stratford's advice the Porte—while making the requisite concession respecting the holy places—refused to grant the new demand; and Prince Menshikov thereupon withdrew from Constantinople.

The rejection of Prince Menshikov's ultimatum was followed by momentous consequences. Russia—or rather her tsar—resolved on the occupation of the Danubian principalities; the British ministry—though the quarrel did not directly concern Great Britain—sent a fleet to the Dardanelles and placed it under Lord Stratford's orders. Diplomacy, however, made a fresh attempt to terminate the dispute, and in July 1853 a note was agreed upon by the four neutral powers, France, Great Britain, Austria and Prussia, which it was decided to present to Constantinople and St Petersburg. This note, the adoption of which would have ensured peace, was accepted at St Petersburg; at Constantinople it was, unfortunately, rejected, mainly on Lord Stratford's advice, and in opposition to his instructions from home. Instead, however, of insisting on the adoption of the note to which it had agreed, Lord Aberdeen's ministry recommended the tsar to accept some amendments to it suggested by Lord Stratford, which it was disposed to regard as unimportant. It then discovered, however, that the tsar attached a meaning to the original note differing from that which it had itself applied to it, and in conjunction with France it thereupon ceased to recommend the Vienna note—as it was called—for acceptance. This decision separated the two western powers from Austria and Prussia, who were disposed to think that Russia had done all that could have been

required of her in accepting the note which the four powers had agreed upon.

It was obvious that the control of the situation was passing from the hands of the cabinet at home into those of Lord Stratford at Constantinople. The ambassador, in fact, had the great advantage that he knew his own mind; the cabinet laboured under the fatal disadvantage that it had, collectively, no mind. Its chief, Lord Aberdeen, was dominated by a desire to preserve peace; but he had not the requisite force to control the stronger men who were nominally serving under him. Lord John Russell was a little sore at his own treatment by his party. He thought that he had a claim to the first place in the ministry, and he did not, in consequence, give the full support to Lord Aberdeen which the latter had a right to expect from him. Lord Palmerston, on the other hand, had no personal grudge to nurture, but he was convinced that the first duty of England was to support Turkey and to resist Russia. He represented in the cabinet the views which Lord Stratford was enforcing at Constantinople, and step by step Lord Stratford, thus supported, drove the country nearer and nearer to war.

In October the Porte, encouraged by the presence of the British fleet in the Bosphorus, took the bold step of summoning the Russians to evacuate the principalities. Following up this demand the Turkish troops attacked the Russian army, and inflicted on it one or two sharp defeats. The Russians retaliated by loosing their squadron from Sevastopol, and on the 30th of November it attacked and destroyed the Turkish fleet at Sinope. The massacre of Sinope—as it was rather inaccurately called in Great Britain, for it is difficult to deny that it was a legitimate act of a belligerent power—created an almost irresistible demand for war among the British people. Yielding to popular opinion, the British ministry assented to a suggestion of the French emperor that the fleets of the allied powers should enter the Black Sea and “invite” every Russian vessel to return to Sevastopol. The

Crimean War.

decision was taken at an unfortunate hour. Diplomats, pursuing their labours at Vienna, had succeeded in drawing up a fresh note which they thought might prove acceptable both at St Petersburg and at Constantinople. This note was presented almost at the moment the tsar learned that the French and British fleets had entered the Black Sea, and the Russian government, instead of considering it, withdrew its ministers from London and Paris; the French and British ambassadors were thereupon withdrawn from St Petersburg. An ultimatum was soon afterwards addressed to Russia requiring her to evacuate the principalities, and war began. In deciding on war the British government relied on the capacity of its fleet, which was entrusted to the command of Sir Charles Napier, to strike a great blow in the Baltic. The fleet was despatched with extraordinary rejoicings, and amidst loud and confident expressions of its certain triumph. As a matter of fact it did very little. In the south of Europe, however, the Turkish armies on the Danube, strengthened by the advice of British officers, were more successful. The Russians were forced to retire, and the principalities were evacuated. A prudent administration might possibly have succeeded in stopping the war at this point. But the temper of the country was by this time excited, and it was loudly demanding something more than a preliminary success. It was resolved to invade the Crimea and attack the great arsenal, Sevastopol, whence the Russian fleet had sailed to Sinope, and in September 1854 the allied armies landed in the Crimea. On the 20th the Russian army, strongly posted on the banks of the Alma, was completely defeated, and it is almost certain that, if the victory had been at once followed up, Sevastopol would have fallen. The commanders of the allied armies, however, hesitated to throw themselves against the forts erected to the north of the town, and decided on the hazardous task of marching round Sevastopol and attacking it from the south. The movement was successfully carried out, but the Allies again hesitated to attempt an

immediate assault. The Russians, who were advised by Colonel Todleben, the only military man who attained a great reputation in the war, thus gained time to strengthen their position by earthworks; and the Allies found themselves forced, with scanty preparations, to undertake a regular siege against an enemy whose force was numerically superior to their own. In the early days of the siege, indeed, the allied armies were twice in great peril. A formidable attack on the 25th October on the British position at Balaklava led to a series of encounters which displayed the bravery of British troops, but did not enhance the reputation of British commanders. A still more formidable sortie on the 5th of November was with difficulty repulsed at Inkerman. And the Russians soon afterwards found, in the climate of the country, a powerful ally. The allied armies, imperfectly organized, and badly equipped for such a campaign, suffered severely from the hardships of a Crimean winter. The whole expedition seemed likely to melt away from want and disease.

The terrible condition of the army, vividly described in the letters which the war correspondents of the newspapers sent home, aroused strong feelings of indignation in Great Britain. When parliament met Roebuck gave notice that he would move for a committee of inquiry. Lord John Russell—who had already vainly urged in the cabinet that the duke of Newcastle should be superseded, and the conduct of the war entrusted to a stronger minister—resigned office. His resignation was followed by the defeat of the government, and Lord Aberdeen, thus driven from power, was succeeded by Lord Palmerston. In selecting him for the post, the queen

*Palmerston's
ministry.*

undoubtedly placed her seal on the wish of the country to carry out the war to the bitter end. But it so happened that the formation of a new ministry was accompanied by a fresh effort to make terms of peace. Before the change of administration a conference had been decided on, and Lord Palmerston entrusted its management to Lord John Russell. While the latter was on his

way to Vienna an event occurred which seemed at first to facilitate his task. The tsar, worn out with disappointment, suddenly died, and was succeeded by his son Alexander. Unfortunately the conference failed, and the war went on for another year. In September 1855 the allied troops succeeded in obtaining possession of the southern side of Sevastopol, and the emperor of the French, satisfied with this partial success, or alarmed at the expense of the war, decided on withdrawing from the struggle. The attitude of Napoleon made the conclusion of peace only a question of time. In the beginning of 1856 a congress to discuss the terms was assembled at Paris; in February hostilities were suspended; and in April a treaty was concluded. The peace set back the boundaries of Russia from the Danube to the Pruth; it secured the free navigation of the first of these rivers; it opened the Black Sea to the commercial navies of the world, closing it to vessels of war, and forbidding the establishment of arsenals upon its shores. The last condition, to which Great Britain attached most importance, endured for about fourteen years. Peace without this provision could undoubtedly have been secured at Vienna, and the prolongation of the war from 1855 to 1856 only resulted in securing this arrangement for a little more than one decade.

The Crimean War left other legacies behind it. The British government had for some time regarded with anxiety the gradual encroachments of Russia in central Asia. Russian diplomacy was exerting an increasing influence in Persia, and the latter had always coveted the city of Herat, which was popularly regarded as the gate of India. In 1856 the Persian government, believing that England had her hands fully occupied in the Crimea, seized Herat, and, in consequence, a fresh war—in which a British army under Sir James Outram rapidly secured a victory—broke out. The campaign, entered upon when parliament was not in session, was unpopular in the country. A grave constitutional question, which was ultimately settled by legislation, was raised as to the right of the government to undertake military operations beyond the boundaries of India without the consent of

parliament. But the incidents of the Persian war were soon forgotten in the presence of a still graver crisis; for in the following year, 1857, the country suddenly found itself involved in war with China, and face to face with one of the greatest dangers which it has ever encountered—the mutiny of the sepoy army in India. The Chinese war arose from the seizure by the Chinese authorities of a small vessel, the “Arrow” commanded by a British subject, and at one time holding a licence (which, however, had expired at the time of the seizure) from the British superintendent at Hongkong, and the detention of her crew on the charge of piracy. Sir John Bowring, who represented Great Britain in China, failing to secure the reparation and apology which he demanded, directed the British admiral to bombard Canton. Lord Palmerston’s cabinet decided to approve and support Sir John Bowring’s vigorous action. Cobden, however, brought forward a motion in the House of Commons condemning these high-handed proceedings. He succeeded in securing the co-operation of his own friends, of Lord John Russell, and of other independent Liberals, as well as of the Conservative party, and in inflicting a signal defeat on the government. Lord Palmerston at once appealed from the House to the country. The constituencies, imperfectly acquainted with the technical issues involved in the dispute, rallied to the minister, who was upholding British interests. Lord Palmerston obtained a decisive victory, and returned to power apparently in irresistible strength. Lord Elgin had already been sent to China with a considerable force to support the demand for redress. On his way thither he learned that the British in India were reduced to the last extremities by the mutiny of the native army in Bengal, and, on the application of Lord Canning, the governor-general, he decided on diverting the troops, intended to bring the Chinese to reason, to the more pressing duty of saving India for the British crown.

During the years which had followed the accession of the queen, the territories and responsibilities of the East India Company had been considerably enlarged by the annexation of Sind by Lord Ellenborough, the conquest of the Punjab after two desperate military campaigns under Lord Dalhousie, the conquest of Pegu, and the annexation of Oudh. These great additions to the empire had naturally imposed an increased strain on the Indian troops, while the British garrison, instead of being augmented, had been depleted to meet the necessities of the Russian war. Several circumstances, moreover, tended to propagate disaffection in the Indian army. Indian troops operating outside the Company's dominions were granted increased allowances, but these were automatically reduced when conquest brought the provinces in which they were serving within the British pale. The Sepoys again had an ineradicable dislike to serve beyond the sea, and the invasion of Pegu necessitated their transport by water to the seat of war. Finally, the invention of a new rifle led to the introduction of a cartridge which, though it was officially denied at the moment, was in fact lubricated with a mixture of cow's fat and lard. The Sepoys thought that their caste would be destroyed if they touched the fat of the sacred cow or unclean pig; they were even persuaded that the British government wished to destroy their caste in order to facilitate their conversion to Christianity. Isolated mutinies in Bengal were succeeded by much more serious events at Cawnpore in Oudh, and at Meerut in the North-West Provinces. From Meerut the mutineers, after some acts of outrage and murder, moved on Delhi, the capital of the old Mogul empire, which became the headquarters of the mutiny. In Oudh the native regiments placed themselves under a Mahratta chief, Nana Sahib, by whose orders the British in Cawnpore, including the women and children, were foully murdered. In the summer of 1857 these events seemed to imperil British rule in India. In the autumn the courage of the troops and the arrival of reinforcements gradually restored

Indian mutiny.

the British cause. Delhi, after a memorable siege, was at last taken by a brilliant assault. Lucknow, where a small British garrison was besieged in the residency, was twice relieved, once temporarily by Sir James Outram and General Havelock, and afterwards permanently by Sir Colin Campbell, who had been sent out from England to take the chief command. Subsequent military operations broke up the remnants of the revolt, and in the beginning of 1858 the authority of the queen was restored throughout India. The mutiny, however, had impressed its lesson on the British people, and, as the first consequence, it was decided to transfer the government from the old East India Company to the crown. Lord Palmerston's administration was defeated on another issue before it succeeded in carrying the measure which it introduced for the purpose, though Lord Derby's second ministry, which succeeded it, was compelled to frame its proposals on somewhat similar lines. The home government of India was entrusted to a secretary of state, with a council to assist him; and though the numbers of the council have been reduced, the form of government which was then established has endured.

The cause which led to the second fall of Lord Palmerston was in one sense unexpected. Some Italian refugees living in London, of whom Orsini was the chief, formed a design to assassinate the emperor of the French. On the evening of 14th January 1858, while the emperor, accompanied by the empress, was driving to the opera, these men threw some bombs under his carriage. The brutal attempt happily failed. Neither the emperor nor the empress was injured by the explosion, but the carriage in which they were driving was wrecked, and a large number of persons who happened to be in the street at the time were either killed or wounded. This horrible outrage naturally created indignation in France, and it unfortunately became plain that the conspiracy had been hatched in England, and that the bombs had been manufactured in Birmingham. On these facts becoming known, Count

Walewski, the chief of the French foreign office, who was united by ties of blood to the emperor, called on the British government to provide against the danger to which France was exposed. "Ought the right of asylum to protect such a state of things?" he asked. "Is hospitality due to assassins? Ought the British legislature to continue to favour their designs and their plans? And can it continue to shelter persons who by these flagrant acts place themselves beyond the pale of common rights?" Lord Clarendon, the head of the British foreign office, told the French ambassador, who read him this despatch, that "no consideration on earth would induce the British parliament to pass a measure for the extradition of political refugees," but he added that it was a question whether the law was as complete and as stringent as it should be, and he stated that the government had already referred the whole subject to the law officers of the crown for their consideration. Having made these remarks, however, he judged it wise to refrain from giving any formal reply to Count Walewski's despatch, and contented himself with privately communicating to the British ambassador in Paris the difficulties of the British government. After receiving the opinion of the law officers the cabinet decided to introduce a bill into parliament increasing in England the punishment for a conspiracy to commit a felony either within or without the United Kingdom. The first reading of this bill was passed by a considerable majority. But, before the bill came on for a second reading, the language which was being used in France created strong resentment in England. The regiments of the French army sent addresses to the emperor congratulating him on his escape and violently denouncing the British people. Some of these addresses, which were published in the *Moniteur*, spoke of London as "an assassins' den," and invited the emperor to give his troops the order to destroy it. Such language did not make it easier to alter the law in the manner desired by the government. The House of Commons, reflecting the spirit of the country, blamed Lord Clarendon for neglecting to answer Count Walewski's

despatch, and blamed Lord Palmerston for introducing a bill at French dictation. The feeling was so strong that, when the Conspiracy Bill came on for a second reading, an amendment hostile to the government was carried, and Lord Palmerston at once resigned.

For a second time Lord Derby undertook the difficult task of carrying on the work of government without the support of a majority of the House of Commons. If the Liberal party had been united his attempt would have failed immediately. In 1858, however, the Liberal party had no cohesion. The wave of popularity which had carried Lord Palmerston to victory in 1857 had lost its strength. The Radicals, who were slowly recovering the influence they had lost during the Crimean War, regarded even a Conservative government as preferable to his return to power, while many Liberals desired to entrust the fortunes of their party to the guidance of their former chief, Lord John Russell. It was obvious to most men that the dissensions thus visible in the Liberal ranks could be more easily healed in the cold shade of the opposition benches than in the warmer sunlight of office. And therefore, though no one had much confidence in Lord Derby, or in the stability of his second administration, every one was disposed to acquiesce in its temporary occupation of office.

Ministries which exist by sufferance are necessarily compelled to adapt their measures to the wishes of those who permit them to continue in power. The second ministry of Lord Derby experienced the truth of this rule. For some years a controversy had been conducted in the legislature in reference to the admission of the Jews to parliament. This dispute had been raised in 1847 into a question of practical moment by the election of Baron Lionel Nathan Rothschild as representative of the City of London, and its importance had been emphasized in 1851 by the return of another Jew, Alderman Salomons, for another constituency. The Liberal party generally

in the House of Commons was in favour of such a modification of the oaths as would enable the Jews so elected to take their seats.

Jews in parliament.

The bulk of the Conservative party, on the contrary, and the House of Lords, were strenuously opposed to the change. Early in 1858 the House of Commons, by an increased majority, passed a bill amending the oaths imposed by law on members of both Houses, and directing the omission of the words “on the true faith of a Christian” from the oath of abjuration when it was taken by a Jew. If the Conservatives had remained in opposition there can be little doubt that this bill would have shared the fate of its predecessors and have been rejected by the Lords. The lord chancellor, indeed, in speaking upon the clause relieving the Jews, expressed a hope that the peers would not hesitate to pronounce that our “Lord is king, be the people never so impatient.” But some Conservative peers realized the inconvenience of maintaining a conflict between the two Houses when the Conservatives were in power; and Lord Lucan, who had commanded the cavalry in the Crimea, suggested as a compromise that either House should be authorized by resolution to determine the form of oath to be administered to its members. This solution was reluctantly accepted by Lord Derby, and Baron Rothschild was thus enabled to take the seat from which he had been so long excluded. Eight years afterwards parliament was induced to take a fresh step in advance. It imposed a new oath from which the words which disqualified the Jews were omitted. The door of the House of Lords was thus thrown open, and in 1885 Baron Nathan Mayer Rothschild, raised to the peerage, was enabled to take his seat in the upper chamber.

This question was not the only one on which a Conservative government, without a majority at its back, was compelled to make concessions. For some years past a growing disposition had been displayed among the more earnest Liberals to extend the provisions of the Reform Act of 1832. Lord John Russell’s ministry had been defeated in 1851 on a proposal of Locke

King to place £10 householders in counties on the same footing as regards the franchise as £10 householders in towns, and Lord *Reform Bill, 1859.* John himself in 1854 had actually introduced a new Reform Bill. After the general election of 1857 the demand for reform increased, and, in accepting office in 1858, Lord Derby thought it necessary to declare that, though he had maintained in opposition that the settlement of 1832, with all its anomalies, afforded adequate representation to all classes, the promises of previous governments and the expectations of the people imposed on him the duty of bringing forward legislation on the subject. The scheme which Lord Derby's government adopted was peculiar. Its chief proposal was the extension of the county franchise to £10 householders. But it also proposed that persons possessing a 40s. freehold in a borough should in future have a vote in the borough in which their property was situated, and not in the county. The bill also conferred the franchise on holders of a certain amount of stock, on depositors in savings banks, on graduates of universities, and on other persons qualified by position or education. The defect of the bill was that it did nothing to meet the only real need of reform—the enfranchisement of a certain proportion of the working classes. On the contrary, in this respect it perpetuated the settlement of 1832. The £10 householder was still to furnish the bulk of the electorate, and the ordinary working man could not afford to pay £10 a year for his house. While the larger proposals of the bill were thus open to grave objection, its subsidiary features provoked ridicule. The suggestions that votes should be conferred on graduates and stockholders were laughed at as “fancy franchises.” The bill, moreover, was not brought forward with the authority of a united cabinet. Two members of the government—Spencer Walpole and Henley—declined to be responsible for its provisions, and placed their resignations in Lord Derby's hands. In Walpole's judgment the bill was objectionable because it afforded no reasonable basis for a stable settlement. There was nothing in a £10

franchise which was capable of permanent defence, and if it was at once applied to counties as well as boroughs it would sooner or later be certain to be extended. He himself advocated with some force that it would be wiser and more popular to fix the county franchise at £20 and the borough franchise at £6 rateable value; and he contended that such a settlement could be defended on the old principle that taxation and representation should go together, for £20 was the minimum rent at which the house tax commenced, and a rateable value of £6 was the point at which the householder could not compound to pay his rates through this landlord. Weakened by the defection of two of its more important members, the government had little chance of obtaining the acceptance of its scheme. An amendment by Lord John Russell, condemning its main provisions, was adopted in an unusually full house by a substantial majority, and the cabinet had no alternative but to resign or dissolve. It chose the latter course. The general election, which almost immediately took place, increased to some extent the strength of the Conservative party. For the first time since their secession from Sir Robert Peel the Conservatives commanded more than three hundred votes in the House of Commons, but this increased strength was not sufficient to ensure them a majority. When the new parliament assembled, Lord Hartington, the eldest son of the duke of Devonshire, was put forward to propose a direct vote of want of confidence in the administration. It was carried by 323 votes to 310, and the second Derby administration came to an end.

It was plain that the House of Commons had withdrawn its support from Lord Derby, but it was not clear that any other leading politician would be able to form a government. The jealousies between Lord John Russell and

Palmerston's second ministry.

Lord Palmerston still existed; the more extreme men, who were identified with the policy of Cobden and Bright, had little confidence in either of these statesmen; and it was still uncertain whether the able group who had been

the friends of Sir Robert Peel would finally gravitate to the Conservative or to the Liberal camp. The queen, on the advice of Lord Derby, endeavoured to solve the first of these difficulties by sending for Lord Granville, who led the Liberal party in the Lords, and authorizing him to form a government which should combine, as far as possible, all the more prominent Liberals. The attempt, however, failed, and the queen thereupon fell back upon Lord Palmerston. Lord John Russell agreed to accept office as foreign minister; Gladstone consented to take the chancellorship of the exchequer. Cobden was offered, but declined, the presidency of the Board of Trade; and the post which he refused was conferred on a prominent free trader, who had associated himself with Cobden's fortunes, Milner Gibson. Thus Lord Palmerston had succeeded in combining in one ministry the various representatives of political progress. He had secured the support of the Peelites, who had left him after the fall of Lord Aberdeen in 1855, and of the free traders, who had done so much to defeat him in 1857 and 1858. His new administration was accordingly based on a broader bottom, and contained greater elements of strength than his former cabinet. And the country was requiring more stable government. The first three ministries of the queen had endured from the spring of 1835 to the spring of 1852, or for very nearly seventeen years; but the next seven years had seen the formation and dissolution of no less than four cabinets. It was felt that these frequent changes were unfortunate for the country, and every one was glad to welcome the advent of a government which seemed to promise greater permanence. That promise was fulfilled. The administration which Lord Palmerston succeeded in forming in 1859 endured till his death in 1865, and with slight modifications, under its second chief Lord John (afterwards Earl) Russell, till the summer of 1866. It had thus a longer life than any cabinet which had governed England since the first Reform Act. But it owed its lasting character to the benevolence of its opponents rather than to the enthusiasm of its supporters. The Conservatives learned to regard the

veteran statesman, who had combined all sections of Liberals under his banner, as the most powerful champion of Conservative principles; a virtual truce of parties was established during his continuance in office; and, for the most part of his ministry, a tacit understanding existed that the minister, on his side, should pursue a Conservative policy, and that the Conservatives, on theirs, should abstain from any real attempt to oust him from power. Lord John Russell, indeed, was too earnest in his desire for reform to abstain from one serious effort to accomplish it. Early in 1860 he proposed, with the sanction of the cabinet, a measure providing for the extension of the county franchise to £10 householders, of the borough franchise to £6 householders, and for a moderate redistribution of seats. But the country, being in enjoyment of considerable prosperity, paid only a languid attention to the scheme; its indifference was reflected in the House; the Conservatives were encouraged in their opposition by the lack of interest which the new bill excited, and the almost unconcealed dislike of the prime minister to its provisions. The bill, thus steadily opposed and half-heartedly supported, made only slow progress; and at last it was withdrawn by its author. He did not again attempt during Lord Palmerston's life to reintroduce the subject. Absorbed in the work of the foreign office, which at this time was abnormally active, he refrained from pressing home the arguments for internal reform.

In one important department, however, the ministry departed from the Conservative policy it pursued in other matters. Gladstone signalized his return to the exchequer by introducing a series of budgets which excited keen opposition at the time, but in the result largely added to the prosperity of the country. The first of these great budgets, in 1860, was partly inspired by the necessity of adapting the fiscal system to meet the requirements of a commercial treaty which, mainly through Cobden's exertions, had been concluded with the emperor of the French. The treaty bound France to

Gladstone's budgets.

reduce her duties on English coal and iron, and on many manufactured articles; while, in return, Great Britain undertook to sweep away the duties on all manufactured goods, and largely to reduce those on French wines. But Gladstone was not content with these great alterations, which involved a loss of nearly £1,200,000 a year to the exchequer; he voluntarily undertook to sacrifice another million on what he called a supplemental measure of customs reform. He proposed to repeal the duties on paper, by which means he hoped to increase the opportunities of providing cheap literature for the people. The budget of 1860 produced a protracted controversy. The French treaty excited more criticism than enthusiasm on both sides of the Channel. In France the manufacturers complained that they would be unable to stand against the competition of English goods. In England many people thought that Great Britain was wasting her resources and risking her supremacy by giving the French increased facilities for taking her iron, coal and machinery, and that no adequate advantage could result from the greater consumption of cheap claret. But the criticism which the French treaty aroused was drowned in the clamour which was created by the proposed repeal of the paper duties. The manufacture of paper was declared to be a struggling industry, which would be destroyed by the withdrawal of protection. The dissemination of cheap literature and the multiplication of cheap newspapers could not compensate the nation for the ruin of an important trade. If money could be spared, moreover, for the remission of taxation, the paper duties were much less oppressive than those on some other articles. The tax on tea, for example, which had been raised during the late war to no less than 1s. 5d. a ~~lb~~^{lb}, was much more injurious; and it would be far wiser—so it was contended—to reduce the duty on tea than to abandon the duties on paper. Notwithstanding the opposition which the Paper Duties Bill undoubtedly excited, the proposal was carried in the Commons; it was, however, thrown out in the Lords, and its

*Paper duties
repealed.*

rejection led to a crisis which seemed at one time to threaten the good relations between the two houses of parliament. It was argued that if the Lords had the right to reject a measure remitting existing duties, they had in effect the right of imposing taxation, since there was no material difference between the adoption of a new tax and the continuance of an old one which the Commons had determined to repeal. Lord Palmerston, however, with some tact postponed the controversy for the time by obtaining the appointment of a committee to search for precedents; and, after the report of the committee, he moved a series of resolutions affirming the right of the Commons to grant aids and supplies as their exclusive privilege, stating that the occasional rejection of financial measures by the Lords had always been regarded with peculiar jealousy, but declaring that the Commons had the remedy in their own hands by so framing bills of supply as to secure their acceptance. In accordance with this suggestion the Commons in the following year again resolved to repeal the paper duties; but, instead of embodying their decision in a separate bill, they included it in the same measure which dealt with all the financial arrangements of the year, and thus threw on the Lords the responsibility of either accepting the proposal, or of paralysing the whole machinery of administration by depriving the crown of the supplies which were required for the public services. The Lords were not prepared to risk this result, and they accordingly accepted a reform which they could no longer resist, and the bill became law. In order to enable him to accomplish these great changes, Gladstone temporarily raised the income tax, which he found at 9d. in the £, to 10d. But the result of his reforms was so marked that he was speedily able to reduce it. The revenue increased by leaps and bounds, and the income tax was gradually reduced till it stood at 4d. in the closing years of the administration. During the same period the duty on tea was reduced from 1s. 5d. to 6d. a ~~lb~~¹⁰; and the national debt was diminished from rather more than £800,000,000 to rather less than £780,000,000, the charge for the debt declining, mainly through

the falling in of the long annuities, by some £2,600,000 a year. With the possible exception of Sir Robert Peel's term of office, no previous period of British history had been memorable for a series of more remarkable financial reforms. Their success redeemed the character of the administration. The Liberals, who complained that their leaders were pursuing a Conservative policy, could at least console themselves by the reflection that the chancellor of the exchequer was introducing satisfactory budgets. The language, moreover, which Gladstone was holding on other subjects encouraged the more advanced Liberals to expect that he would ultimately place himself at the head of the party of progress. This expectation was the more remarkable because Gladstone was the representative in the cabinet of the old Conservative party which Sir Robert Peel had led to victory. As lately as 1858 he had reluctantly refused to serve under Lord Derby; he was still a member of the Carlton Club; he sat for the university of Oxford; and on many questions he displayed a constant sympathy with Conservative traditions. Yet, on all the chief domestic questions which came before parliament in Lord Palmerston's second administration, Gladstone almost invariably took a more Liberal view than his chief. It was understood, indeed, that the relations between the two men were not always harmonious; that Lord Palmerston disapproved the resolute conduct of Gladstone, and that Gladstone deplored the Conservative tendencies of Lord Palmerston. It was believed that Gladstone on more than one occasion desired to escape from a position which he disliked by resigning office, and that the resignation was only averted through a consciousness that the ministry could not afford to lose its most eloquent member.

While on domestic matters, other than those affecting finance, the Liberal ministry was pursuing a Conservative policy, its members were actively engaged on, and the attention of the public was keenly directed to, affairs abroad. For the period was one of foreign unrest, and the wars which were

then waged have left an enduring mark on the map of the world, and have affected the position of the Anglo-Saxon race for all time. In the far East, the operations which it had been decided to undertake in China were necessarily postponed on account of the diversion of the forces, intended to exact redress at Peking, to the suppression of mutiny in India. It was only late in 1858 that Lord Elgin and Baron Gros, the French plenipotentiary (for France joined England in securing simultaneous redress of grievances of her own), were enabled to obtain suitable reparation. It was arranged that the treaty, which was then provisionally concluded at Tientsin, should be

ratified at Peking in the following year; and in June 1859 Mr (afterwards Sir Frederick) Bruce, Lord Elgin's brother, who had been appointed plenipotentiary, attempted to proceed up the Peiho with the object of securing its ratification. The allied squadron, however, was stopped by the forts at the mouth of the Peiho, which fired on the vessels; a landing party, which was disembarked to storm the forts, met with a disastrous check, and the squadron had to retire with an acknowledged loss of three gunboats and 400 men. This reverse necessitated fresh operations, and in 1860 Lord Elgin and Baron Gros were directed to return to China, and, at the head of an adequate force, were instructed to exact an apology for the attack on the allied fleets, the ratification and execution of the treaty of Tientsin, and the payment of an indemnity for the expenses of the war. The weakness of the Chinese empire was not appreciated at that time; the unfortunate incident on the Peiho in the previous summer had created an exaggerated impression of the strength of the Chinese arms, and some natural anxiety was felt for the success of the expedition. But the allied armies met with no serious resistance. The Chinese, indeed, endeavoured to delay their progress by negotiation rather than by force; and they succeeded in treacherously arresting some distinguished persons who had been sent into the Chinese lines to negotiate. But by the middle of October the Chinese army was

decisively defeated; Peking was occupied; those British and French prisoners who had not succumbed to the hardships of their confinement were liberated. Lord Elgin determined on teaching the rulers of China a lesson by the destruction of the summer palace; and the Chinese government was compelled to submit to the terms of the Allies, and to ratify the treaty of Tientsin. There is no doubt that these operations helped to open the Chinese markets to British trade; but incidentally, by regulating the emigration of Chinese coolies, they had the unforeseen effect of exposing the industrial markets of the world to the serious competition of “cheap yellow” labour. A distinguished foreign statesman observed that Lord Palmerston had made a mistake. He thought that he had opened China to Europe; instead, he had let out the Chinese. It was perhaps a happier result of the war that it tended to the continuance of the Anglo-French alliance. French and British troops had again co-operated in a joint enterprise, and had shared the dangers and successes of a campaign.

War was not confined to China. In the beginning of 1859 diplomatists were alarmed at the language addressed by the emperor of the French to the Austrian ambassador at Paris, which seemed to breathe the menace of a rupture. Notwithstanding the exertions which Great Britain made to avert hostilities, the provocation of Count Cavour induced Austria to declare war against Piedmont, and Napoleon thereupon moved to the support of his ally, promising to free Italy from the Alps to the Adriatic. As a matter of fact, the attitude of northern Germany, which was massing troops on the Rhine, and the defenceless condition of France, which was drained of soldiers for the Italian campaign, induced the emperor to halt before he had carried out his purpose, and terms of peace were hastily concerted at Villafranca, and were afterwards confirmed at Zurich, by which Lombardy was given to Piedmont, while Austria was left in possession of Venice and the Quadrilateral, and central Italy was restored to its former rulers. The refusal of the Italians to take

Unification of Italy.

back the Austrian grand dukes made the execution of these arrangements impracticable. Napoleon, indeed, used his influence to carry them into effect; but Lord John Russell, who was now in charge of the British foreign office, and who had Lord Palmerston and Gladstone on his side in the cabinet, gave a vigorous support to the claim of the Italians that their country should be allowed to regulate her own affairs. The French emperor had ultimately to yield to the determination of the inhabitants of central Italy, when it was backed by the arguments of the British foreign office, and Tuscany, Modena, Parma, as well as a portion of the states of the Church, were united to Piedmont. There was no doubt that through the whole of the negotiations the Italians were largely indebted to the labours of Lord John Russell. They recognized that they owed more to the moral support of England than to the armed assistance of France. The French emperor, moreover, took a step which lost him the sympathy of many Italians. Before the war he had arranged with Count Cavour that France should receive, as the price of her aid, the duchy of Savoy and the county of Nice. After Villafranca, the emperor, frankly recognizing that he had only half kept his promise, consented to waive his claim to these provinces. But, when he found himself unable to resist the annexation of central Italy to Piedmont, he reverted to the old arrangement. The formation of a strong Piedmontese kingdom, with the spoliation of the papal dominion, was unpopular in France; and he thought—perhaps naturally—that he must have something to show his people in return for sacrifices which had cost him the lives of 50,000 French soldiers, and concessions which the whole Catholic party in France resented. Count Cavour consented to pay the price which Napoleon thus exacted, and the frontier of France was accordingly extended to the Alps. But it is very doubtful whether Napoleon did not lose more than he gained by this addition to his territory. It certainly cost him the active friendship of Great Britain. The Anglo-French alliance had been already strained by the language of the French colonels in 1858 and the Franco-

Austrian War of 1859; it never fully recovered from the shock which it received by the evidence, which the annexation of Savoy and Nice gave, of the ambition of the French emperor. The British people gave way to what Cobden called the last of the three panics. Lord Palmerston proposed and carried the provision of a large sum of money for the fortification of the coasts; and the volunteer movement, which had its origin in 1859, received a remarkable stimulus in 1860. In this year the course of events in Italy emphasized the differences between the policy of Great Britain and that of France. Garibaldi, with a thousand followers, made his famous descent on the coast of Sicily. After making himself master of that island, he crossed over to the mainland, drove the king of Naples out of his capital, and forced him to take refuge in Gaeta. In France these events were regarded with dismay. The emperor wished to stop Garibaldi's passage across the strait, and stationed his fleet at Gaeta to protect the king of Naples. Lord John Russell, on the contrary, welcomed Garibaldi's success with enthusiasm. He declined to intervene in the affairs of Italy by confining the great liberator to Sicily; he protested against the presence of the French fleet at Gaeta; and when other foreign nations denounced the conduct of Piedmont, he defended it by quoting Vattel and citing the example of William III. When, finally, Italian troops entered the dominions of the pope, France withdrew her ambassador from the court of Turin, and England under Lord John Russell's advice at once recognized the new kingdom of Italy.

In these great events—for the union of Italy was the greatest fact which had been accomplished in Europe since the fall of the first Napoleon—the British ministry had undoubtedly acquired credit. It was everywhere felt that the new kingdom owed much to the moral support which had been steadily and consistently given to it by Great Britain. Soon afterwards, however, in the autumn of 1863, the death of the king of Denmark led to a new revolution in the north of Europe, in which Lord Palmerston's government displayed less resolution, and lost much of the prestige which it

had acquired by its Italian policy. The duchies of Schleswig and Holstein had been for centuries united to the kingdom of Denmark by the golden link

*Schleswig-Holstein
question.*

of the crown; in other respects they had been organically kept distinct, while one of them—Holstein—was a member of the German confederation. The succession to the crown of Denmark, however, was different from that in the duchies. In Denmark the crown could descend, as it descends in Great Britain, through females. In the duchies the descent was confined to the male line; and, as Frederick VII., who ascended the Danish throne in 1848, had no direct issue, the next heir to the crown of Denmark under this rule was Prince Christian of Glücksburg, afterwards king; the next heir to the duchies being the duke of Augustenburg. In 1850 an arrangement had been made to prevent the separation of the duchies from the kingdom. As a result of a conference held in London, the duke of Augustenburg was induced to renounce his claim on the receipt of a large sum of money. Most of the great powers of Europe were parties to this plan. But the German confederation was not represented at the conference, and was not therefore committed to its conclusions. During the reign of Frederick VII. the Danish government endeavoured to cement the alliance between the duchies and the kingdom, and specially to separate the interests of Schleswig, which was largely Danish in its sympathies, from those of Holstein, which was almost exclusively German. With this object, in the last year of his life, Frederick VII. granted Holstein autonomous institutions, and bound Schleswig more closely to the Danish monarchy. The new king Christian IX. confirmed this arrangement. The German diet at Frankfort at once protested against it. Following up words with acts, it decided on occupying Holstein, and it delegated the duty of carrying out its order to Hanover and Saxony. While this federal execution was taking place, the duke of Augustenburg—regardless of the arrangements to which he had consented—delegated his rights in the duchies to his son, who formally claimed the succession. So far

the situation, which was serious enough, had been largely dependent on the action of Germany. In the closing days of 1863 it passed mainly into the control of the two chief German powers. In Prussia Bismarck had lately become prime minister, and was animated by ambitious projects for his country's aggrandizement. Austria, afraid of losing her influence in Germany, followed the lead of Prussia, and the two powers required Denmark to cancel the arrangements which Frederick VII. had made, and which Christian IX. had confirmed, threatening in case of refusal to follow up the occupation of Holstein by that of Schleswig. As the Danes gave only a provisional assent to the demand, Prussian and Austrian troops entered Schleswig. These events created much excitement in England. The great majority of the British people, who imperfectly understood the merits of the case, were unanimous in their desire to support Denmark by arms. Their wish had been accentuated by the circumstance that the marriage in the previous spring of the prince of Wales to the daughter of the new king of Denmark had given them an almost personal interest in the struggle. Lord Palmerston had publicly expressed the views of the people by declaring that, if Denmark were attacked, her assailants would not have to deal with Denmark alone. The language of the public press and of Englishmen visiting Denmark confirmed the impression which the words of the prime minister had produced; and there is unfortunately no doubt that Denmark was encouraged to resist her powerful opponents by the belief, which she was thus almost authorized in entertaining, that she could reckon in the hour of her danger on the active assistance of the United Kingdom. If Lord Palmerston had been supported by his cabinet, or if he had been a younger man, he might possibly, in 1864, have made good the words which he had rashly uttered in 1863. But the queen, who, it is fair to add, understood the movement which was tending to German unity much better than most of her advisers, was averse from war. A large section of the cabinet shared the queen's hesitation, and Lord Palmerston—with the weight of nearly eighty

summers upon him—was not strong enough to enforce his will against both his sovereign and his colleagues. He made some attempt to ascertain whether the emperor of the French would support him if he went to war. But he found that the emperor had not much fancy for a struggle which would have restored Holstein to Denmark; and that, if he went to war at all, his chief object would be the liberation of Venice and the rectification of his own frontiers. Even Lord Palmerston shrank from entering on a campaign which would have involved all Europe in conflagration and would have unsettled the boundaries of most continental nations; and the British government endeavoured thenceforward to stop hostilities by referring the question immediately in dispute to a conference in London. The labours of the conference proved abortive. Its members were unable to agree upon any methods of settlements, and the war went on. Denmark, naturally unable to grapple with her powerful antagonists, was forced to yield, and the two duchies which were the subject of dispute were taken from her.

The full consequences of this struggle were not visible at the time. It was impossible to foresee that it was the first step which was to carry Prussia forward, under her ambitious minister, to a position of acknowledged supremacy on the continent. But the results to Great Britain were plain enough. She had been mighty in words and weak in deeds. It was no doubt open to her to contend, as perhaps most wise people consider, that the cause of Denmark was not of sufficient importance to justify her in going to war. But it was not open to her to encourage a weak power to resist and then desert her in the hour of her necessity. Lord Palmerston should not have used the language which he employed in 1863 if he had not decided that his brave words would be followed by brave action. His conduct lowered the prestige of Great Britain at least as much as his Italian policy had raised it. Continental statesmen thenceforward assumed that Great Britain, however much she might protest, would not resort to arms, and the influence of England suffered, as it was bound to suffer, in consequence.

Meanwhile, in this period of warfare, another struggle was being fought out on a still greater scale in North America. The election of Abraham Lincoln to the presidency of the United States emphasized the fact that the majority of the inhabitants of the Northern States were opposed to the further spread of slavery; and, in the beginning of 1861, several of the Southern States formally seceded from the union. A steamer sent by the Federal government with reinforcements to Fort Sumter was fired upon, and both parties made preparations for the civil war which was apparently inevitable. On the one side the Confederate States—as the seceding states were called—were animated by a resolution to protect their property. On the other side the “conscience” of the North was excited by a passionate desire to wipe out the blot of slavery. Thus both parties were affected by some of the most powerful considerations which can influence mankind, while the North were further actuated by the natural incentive to preserve the union, which was threatened with disruption. The progress of the great struggle was watched with painful attention in England. The most important manufacturing interest in England was paralysed by the loss of the raw cotton, which was obtained almost exclusively from the United States, and tens of thousands of workpeople were thrown out of employment. The distress which resulted naturally created a strong feeling in favour of intervention, which might terminate the war and open the Southern ports to British commerce; and the initial successes which the Confederates secured seemed to afford some justification for such a proceeding. In the course of 1862 indeed, when the Confederate armies had secured many victories, Gladstone, speaking at Newcastle, used the famous expression that President Jefferson Davis had “made a nation”; and Lord Palmerston’s language in the House of Commons—while opposing a motion for the recognition of the South—induced the impression that his thoughts were tending in the same direction as Mr Gladstone’s. The emperor Napoleon, in

American civil war.

July of the same year, confidentially asked the British minister whether the moment had not come for recognizing the South; and in the following September Lord Palmerston was himself disposed in concert with France to offer to mediate on the basis of separation. Soon afterwards, however, the growing exhaustion of the South improved the prospects of the Northern States: an increasing number of persons in Great Britain objected to interfere in the interests of slavery; and the combatants were allowed to fight out their quarrel without the interference of Europe.

At the beginning of the war, Lord John Russell (who was made a peer as Earl Russell in 1861) acknowledged the Southern States as belligerents. His decision caused some ill-feeling at Washington; but it was inevitable. For the North had proclaimed a blockade of the Southern ports; and it would have been both inconvenient and unfair if Lord Russell had decided to recognize the blockade and had refused to acknowledge the belligerent rights of the Southern States. Lord Russell's decision, however, seemed to indicate some latent sympathy for the Southern cause; and the irritation which was felt in the North was increased by the news that the Southern

The "Trent" incident. States were accrediting two gentlemen to represent them at Paris and at London. These emissaries, Messrs Mason and Slidell, succeeded in running the blockade and in reaching Cuba, where they embarked on the "Trent," a British mail steamer sailing for England. On her passage home the "Trent" was stopped by the Federal steamer "San Jacinto"; she was boarded, and Messrs Mason and Slidell were arrested. There was no doubt that the captain of the "San Jacinto" had acted irregularly. While he had the right to stop the "Trent," examine the mails, and, if he found despatches for the enemy among them, carry the vessel into an American port for adjudication, he had no authority to board the vessel and arrest two of her passengers. "The British government," to use its own language, "could not allow such an affront to the national honour to pass without due reparation." They decided on

sending what practically amounted to an ultimatum to the Federal government, calling upon it to liberate the prisoners and to make a suitable apology. The presentation of this ultimatum, which was accompanied by the despatch of troops to Canada, was very nearly provoking war with the United States. If, indeed, the ultimatum had been presented in the form in which it was originally framed, war might have ensued. But at the prince consort's suggestion its language was considerably modified, and the responsibility for the outrage was thrown on the officer who committed it, and not on the government of the Republic. It ought not to be forgotten that this important modification was the last service rendered to his adopted country by the prince consort before his fatal illness. He died before the answer to the despatch was received; and his death deprived the queen of an adviser who had stood by her side since the earlier days of her reign, and who, by his prudence and conduct, had done much to raise the tone of the court and the influence of the crown. Happily for the future of the world, the government of the United States felt itself able to accept the despatch which had been thus addressed to it, and to give the reparation which was demanded; and the danger of war between the two great branches of the Anglo-Saxon race was averted. But, in the following summer, a new event excited fresh animosities, and aroused a controversy which endured for the best part of ten years.

The Confederates, naturally anxious to harass the commerce of their enemies, endeavoured from the commencement of hostilities to purchase armed cruisers from builders of neutral nations. In June 1862 the American minister in London drew Lord Russell's attention to the fact that a vessel, lately launched at Messrs Laird's yard at Birkenhead, was obviously intended to be employed as a Confederate cruiser. The solicitor to the commissioners of customs, however, considered that no facts had been revealed to authorize the detention of the vessel, and this opinion was reported in July to the American minister, Charles Francis Adams. He

thereupon supplied the government with additional facts, and at the same time furnished them with the opinion of an eminent English lawyer, R.P.

Collier (afterwards Lord Monkswell), to the effect that
The "Alabama." "it would be difficult to make out a stronger case of infringement of the Foreign Enlistment Act, which if not enforced on this occasion is little better than a dead letter." These facts and this opinion were at once sent to the law officers. They reached the queen's advocate on Saturday the 26th of July; but, by an unfortunate mischance, the queen's advocate had just been wholly incapacitated by a distressing illness; and the papers, in consequence, did not reach the attorney- and solicitor-general till the evening of the following Monday, when they at once advised the government to detain the vessel. Lord Russell thereupon sent orders to Liverpool for her detention. In the meanwhile the vessel—probably aware of the necessity for haste—had put to sea, and had commenced the career which made her famous as the "Alabama." Ministers might even then have taken steps to stop the vessel by directing her detention in any British port to which she resorted for supplies. The cabinet, however, shrank from this course. The "Alabama" was allowed to prey on Federal commerce, and undoubtedly inflicted a vast amount of injury on the trade of the United States. In the autumn of 1862 Adams demanded redress for the injuries which had thus been sustained, and this demand was repeated for many years in stronger and stronger language. At last, in 1871, long after Lord Palmerston's death and Lord Russell's retirement, a joint commission was appointed to examine into the many cases of dispute which had arisen between the United States and Great Britain. The commissioners agreed upon three rules by which they thought neutrals should in future be bound, and recommended that they should be given a retrospective effect. They decided also that the claims which had arisen out of the depredations of the "Alabama" should be referred to arbitration. In the course of 1872 the arbitrators met at Geneva.

Their finding was adverse to Great Britain, which was condemned to pay a large sum of money—more than £3,000,000—as compensation. A period of exceptional prosperity, which largely increased the revenue, enabled a chancellor of the exchequer to boast that the country had drunk itself out of the “Alabama” difficulty.

In October 1805 Lord Palmerston’s rule, which had been characterized by six years of political inaction at home and by constant disturbance abroad, was terminated by his death. The ministry, which had suffered

Lord Russell’s second ministry.

many losses from death during its duration, was temporarily reconstructed under Lord Russell; and the new minister at once decided to put an end to the period of internal stagnation, which had lasted so long, by the introduction of a new Reform Bill. Accordingly, in March 1866 Gladstone, who now led the House of Commons, introduced a measure which proposed to extend the county franchise to £14 and the borough franchise to £7 householders. The bill did not create much enthusiasm among Liberals, and it was naturally opposed by the Conservatives, who were reinforced by a large section of moderate Liberals, nicknamed, in consequence of a phrase in one of Bright’s speeches, Adullamites. After many debates, in which the Commons showed little disposition to give the ministry any effective support, an amendment was carried by Lord Dunkellin, the eldest son of Lord Clanricarde, basing the borough franchise on rating instead of rental. The cabinet, recognizing from the division that the control of the House had passed out of its hands, resigned office, and the queen was compelled to entrust Lord Derby with the task of forming a new administration.

For the third time in his career Lord Derby undertook the formidable task of conducting the government of the country with only a minority of the House of Commons to support him. The moment at which he made this third attempt was one of unusual anxiety. Abroad, the almost simultaneous

Lord Derby's third ministry.

outbreak of war between Prussia and Austria was destined to affect the whole aspect of continental politics. At home, a terrible murrain had fallen on the cattle, inflicting ruin on the agricultural interest; a grave commercial crisis was creating alarm in the city of London, and, in its consequences, injuring the interests of labour; while the working classes, at last roused from their long indifference, and angry at the rejection of Lord Russell's bill, were assembling in their tens of thousands to demand reform. The cabinet determined to prohibit a meeting which the Reform League decided to hold in Hyde Park on the 23rd of July, and closed the gates of the park on the people. But the mob, converging on the park in thousands, surged round the railings, which a little inquiry might have shown were too weak to resist any real pressure. Either accidentally or intentionally, the railings were overturned in one place, and the people, perceiving their opportunity, at once threw them down round the whole circuit of the park. Few acts in Queen Victoria's reign were attended with greater consequences. For the riot in Hyde Park led almost directly to a new Reform Act, and to the transfer of power from the middle classes to the masses of the people.

Yet, though the new government found it necessary to introduce a Reform Bill, a wide difference of opinion existed in the cabinet as to the form which the measure should take. Several of its members were in favour

Reform, 1867.

of assimilating the borough franchise to that in force in municipal elections, and practically conferring a vote on every householder who had three years' residence in the constituency. General Peel, however—Sir Robert Peel's brother—who held the seals of the war office, objected to this extension; and the cabinet ultimately decided on evading the difficulty by bringing forward a series of resolutions on which a scheme of reform might ultimately be based. Their success in 1858, in dealing with the government of India in this way, commended the decision to the acceptance of the cabinet. But it was soon

apparent that the House of Commons required a definite scheme, and that it would not seriously consider a set of abstract resolutions which committed no one to any distinct plan. Hence on the 23rd of February 1867 the cabinet decided on withdrawing its resolutions and reverting to its original bill. On the following day Lord Cranborne—better known afterwards as Lord Salisbury—discovered that the bill had more democratic tendencies than he had originally supposed, and refused to be a party to it. On Monday, the 25th, the cabinet again met to consider the new difficulty which had thus arisen; and it decided (as was said afterwards by Sir John Pakington) in ten minutes to substitute for the scheme a mild measure extending the borough franchise to houses rated at £6 a year, and conferring the county franchise on £20 householders. The bill, it was soon obvious, would be acceptable to no one; and the government again fell back on its original proposal. Three members of the cabinet, however, Lord Cranborne, Lord Carnarvon and General Peel, refused to be parties to the measure, and resigned office, the government being necessarily weakened by these defections. In the large scheme which the cabinet had now adopted, the borough franchise was conferred on all householders rated to the relief of the poor, who had for two years occupied the houses which gave them the qualification; the county franchise was given to the occupiers of all houses rated at £15 a year or upwards. But it was proposed that these extensions should be accompanied by an educational franchise, and a franchise conferred on persons who had paid twenty shillings in assessed taxes or income tax; the taxpayers who had gained a vote in this way being given a second vote in respect of the property which they occupied. In the course of the discussion on the bill in the House of Commons, the securities on which its authors had relied to enable them to stem the tide of democracy were, chiefly through Gladstone's exertions, swept away. The dual vote was abandoned, direct payment of rates was surrendered, the county franchise was extended to £12 householders, and the redistribution of seats was largely increased.

The bill, in the shape in which it had been introduced, had been surrounded with safeguards to property. With their loss it involved a great radical change, which placed the working classes of the country in the position of predominance which the middle classes had occupied since 1832.

The passage of the bill necessitated a dissolution of parliament; but it had to be postponed to enable parliament to supplement the English Reform Act of 1867 with measures applicable to Scotland and Ireland, and to give time

Disraeli prime minister.

for settling the boundaries of the new constituencies which had been created. This delay gave the Conservatives another year of office. But the first place in the cabinet passed in 1868 from Lord Derby to his lieutenant, Disraeli. The change added interest to political life. Thenceforward, for the next thirteen years, the chief places in the two great parties in the state were filled by the two men, Gladstone and Disraeli, who were unquestionably the ablest representatives of their respective followers. But the situation was also remarkable because power thus definitely passed from men who, without exception, had been born in the 18th century, and had all held cabinet offices before 1832, to men who had been born in the 19th century, and had only risen to cabinet rank in the 'forties and the 'fifties. It was also interesting to reflect that Gladstone had begun life as a Conservative, and had only gradually moved to the ranks of the Liberal party; while Disraeli had fought his first election under the auspices of O'Connell and Hume, had won his spurs by his attacks on Sir Robert Peel, and had been only reluctantly adopted by the Conservatives as their leader in the House of Commons.

The struggle commenced in 1868 on an Irish question. During the previous years considerable attention had been paid to a secret conspiracy in Ireland and among the Irish in America. The Fenians, as they were called, actually attempted insurrection in Ireland, and an invasion of Canada from the United States. At the beginning of 1866 Lord Russell's government thought itself compelled to suspend the Habeas Corpus Act in Ireland; and in 1867 Lord Derby's government was confronted in the spring by a plot to seize Chester Castle, and in the autumn by an attack on a prison van at

Manchester containing Fenian prisoners, and by an atrocious attempt to blow up Clerkenwell prison. Conservative politicians deduced from these circumstances the necessity of applying firm government to Ireland. Liberal statesmen, on the contrary, desired to extirpate rebellion by remedying the grievances of which Ireland still complained. Chief among these was the fact that the Established Church in Ireland was the church of only a minority of the people. In March 1868 John Francis Maguire, an Irish Catholic, asked the House of Commons to resolve itself into a committee to take into immediate consideration the affairs of Ireland. Gladstone, in the course of the debate, declared that in his opinion the time had come when the Irish Church, as a political institution, should cease; and he followed up his declaration by a series of resolutions, which were accepted by considerable majorities, pledging the House to its disestablishment. Disraeli, recognizing the full significance of this decision, announced that, as soon as the necessary preparations could be made, the government would appeal from the House to the country. Parliament was dissolved at the end of July, but the general election did not take place till the end of the following November. The future of the Irish Church naturally formed one of the chief subjects which occupied the attention of the electors, but the issue was largely determined by wider considerations. The country, after the long political truce which had been maintained by Lord Palmerston, was again ranged in two hostile camps, animated by opposing views. It was virtually asked to decide in 1868 whether it would put its trust in Liberal or Conservative, in Gladstone or Disraeli. By an overwhelming majority it threw its lot in favour of Gladstone; and Disraeli, without even venturing to meet parliament, took the unusual course of at once placing his resignation in the queen's hands.

The Conservative government, which thus fell, will be chiefly recollected for its remarkable concession to democratic principles by the passage of the

Reform Act of 1867; but it deserves perhaps a word of praise for its conduct of a distant and unusual war. The emperor of Abyssinia had, for some time, detained some Englishmen prisoners in his country; and the government, unable to obtain redress in other ways, decided on sending an army to release them. The expedition, entrusted to Sir Robert Napier, afterwards Lord Napier of Magdala, was fitted out at great expense, and was rewarded with complete success. The prisoners were released, and the Abyssinian monarch committed suicide. Disraeli—whose oriental imagination was excited by the triumph—incurred some ridicule by his bombastic declaration that “the standard of St George was hoisted upon the mountains of Rasselas.” But the ministry could at least claim that the war had been waged to rescue Englishmen from captivity, that it had been conducted with skill, and that it had accomplished its object. The events of the Abyssinian war, however, were forgotten in the great political revolution which had swept the Conservatives from office and placed Gladstone in power. His government was destined to endure for more than five years. During that period it experienced the alternate prosperity and decline which nearly forty years before had been the lot of the Whigs after the passage of the first Reform Act. During its first two sessions it accomplished greater changes in legislation than had been attempted by any ministry since that of Lord Grey. In its three last sessions it was destined to sink into gradual disrepute; and it was ultimately swept away by a wave of popular reaction, as remarkable as that which had borne it into power.

It was generally understood that Gladstone intended to deal with three great Irish grievances—“the three branches of the upas tree”—the religious, agricultural and educational grievances. The session of 1869 was devoted to the first of these subjects. Gladstone introduced a bill disconnecting the Irish Church from the state, establishing a synod for its government, and—after

Abyssinian war.

Gladstone's first ministry.

leaving it in possession of its churches and its parsonages, and making ample provision for the life-interest of its existing clergy—devoting the bulk of its property to the relief of distress in Ireland. The bill was carried by large majorities through the House of Commons; and the feeling of the country was so strong that the Lords did not venture on its rejection. They satisfied themselves with engrafting on it a series of amendments which, on the whole, secured rather more liberal terms of compensation for existing interests. Some of these amendments were adopted by Gladstone; a compromise was effected in respect of the others; and the bill, which had practically occupied the whole session, and had perhaps involved higher constructive skill than any measure passed in the previous half-century, became law. Having dealt with the Irish Church in 1869, Gladstone turned to the more complicated question of Irish land. So far back as the 'forties Sir R. Peel had appointed a commission, known from its chairman as the Devon commission, which had recommended that the Irish tenant, in the event of disturbance, should receive some compensation for certain specified improvements which he had made in his holding. Parliament neglected to give effect to these recommendations; in a country where agriculture was the chief or almost only occupation, the tenant remained at his landlord's mercy. In 1870 Gladstone proposed to give the tenant a pecuniary interest in improvements, suitable to the holding, which he had made either before or after the passing of the act. He proposed also that, in

Irish land.

cases of eviction, the smaller tenantry should receive compensation for disturbance. The larger tenantry, who were supposed to be able to look after their own interests, were entirely debarred, and tenants enjoying leases were excluded from claiming compensation, except for tillages, buildings and reclamation of lands. A special court, it was further provided, should be instituted to carry out the provisions of the bill. Large and radical as the measure was, reversing many of the accepted principles of legislation by giving the tenant

a *quasi*-partnership with the landlord in his holding, no serious opposition was made to it in either House of Parliament. Its details, indeed, were abundantly criticized, but its principles were hardly disputed, and it became law without any substantial alteration of its original provisions. In two sessions two branches of the upas tree had been summarily cut off. But parliament in 1870 was not solely occupied with the wrongs of Irish tenantry. In the same year Forster, as vice-president of the council, succeeded in carrying the great measure which for the first time made education compulsory. In devising his scheme, Forster endeavoured to utilize, as far as possible, the educational machinery which had been voluntarily provided by various religious organizations. He gave the institutions, which had been thus established, the full benefit of the assistance which the government was prepared to afford to board schools, on their adopting a conscience clause under which the religious susceptibilities of the parents of children were protected. This provision led to many debates, and produced the first symptoms of disruption in the Liberal party. The Nonconformists contended that no such aid should be

***Elementary
education.***

given to any school which was not conducted on undenominational principles. Supported by the bulk of the Conservative party, Forster was enabled to defeat the dissenters. But the victory which he secured was, in one sense, dearly purchased. The first breach in the Liberal ranks had been made; and the government, after 1870, never again commanded the same united support which had enabled it to pursue its victorious career in the first two sessions of its existence.

Towards the close of the session of 1870 other events, for which the government had no direct responsibility, introduced new difficulties. War unexpectedly broke out between France and Prussia. The French empire fell; the German armies marched on Paris; and the Russian government, at Count Bismarck's instigation,

Black Sea neutrality.

took advantage of the collapse of France to repudiate the clause in the treaty of 1856 which neutralized the Black Sea. Lord Granville, who had succeeded Lord Clarendon at the foreign office, protested against this proceeding. But it was everywhere felt that his mere protest was not likely to affect the result; and the government at last consented to accept a suggestion made by Count Bismarck, and to take part in a conference to discuss the Russian proposal. Though this device enabled them to say that they had not yielded to the Russian demand, it was obvious that they entered the conference with the foregone conclusion of conceding the Russian claim. The attitude which the government thus chose to adopt was perhaps inevitable in the circumstances, but it confirmed the impression, which the abandonment of the cause of Denmark had produced in 1864, that Great Britain was not prepared to maintain its principles by going to war. The weakness of the British foreign office was emphasized by its consenting, almost at the same moment, to allow the claims of the United States, for the depredations of the "Alabama," to be settled under a rule only agreed upon in 1871. Most Englishmen now appreciate the wisdom of a concession which has gained for them the friendship of the United States. But in 1871 the country resented the manner in which Lord Granville had acted. Whatever credit the government might have derived from its domestic measures, it was discredited, or it was thought to be, by its foreign policy. In these circumstances legislation in 1871 was not marked with the success which had attended the government in previous sessions. The government succeeded in terminating a long controversy by abolishing ecclesiastical tests at universities. But the Lords ventured to reject a measure for the introduction of the ballot at elections, and refused to proceed with a bill for the abolition of purchase in the army. The result of these decisions was indeed remarkable. In the one case, the Lords in 1872 found it necessary to give way, and to pass the Ballot Bill, which they had rejected in 1871. In the other, Gladstone decided on abolishing, by the

direct authority of the crown, the system which the Lords refused to do away with by legislation. But his high-handed proceeding, though it forced the Lords to reconsider their decision, strained the allegiance of many of his supporters, and still further impaired the popularity of his administration. Most men felt that it would have been permissible for him, at the commencement of the session, to have used the queen's authority to terminate the purchase system; but they considered that, as he had not taken this course, it was not open to him to reverse the decision of the legislature by resorting to the prerogative. Two appointments, one to a judicial office, the other to an ecclesiastical preferment, in which Gladstone, about the same time, showed more disposition to obey the letter than the spirit of the law, confirmed the impression which the abolition of purchase had made. Great reforming ministers would do well to recollect that the success of even liberal measures may be dearly purchased by the resort to what are regarded as unconstitutional expedients.

Army purchase. In the following years the embarrassments of the government were further increased. In 1872 Bruce, the home secretary, succeeded in passing a measure of licensing reform. But the abstainers condemned the bill as inadequate; the publicans denounced it as oppressive; and the whole strength of the licensed victuallers was thenceforward arrayed against the ministry. In 1873 Gladstone attempted to complete his great Irish measures by conferring on Ireland the advantage of a university which would be equally acceptable to Protestants and Roman Catholics. But his proposal again failed to satisfy those in whose interests it was proposed. The second reading of the bill was rejected by a small majority, and Gladstone resigned; but, as Disraeli could not form a government, he resumed office. The power of the great minister was, however, spent; his ministry was hopelessly discredited. History, in fact, was repeating itself. The ministry was suffering, as Lord Grey's

government had suffered nearly forty years before, from the effect of its own successes. It had accomplished more than any of its supporters had expected, but in doing so it had harassed many interests and excited much opposition. Gladstone endeavoured to meet the storm by a rearrangement of his crew. Bruce, who had offended the licensed victuallers, was removed from the home office, and made a peer and president of the council. Lowe, who had incurred unpopularity by his fiscal measures, and especially by an abortive suggestion for the taxation of matches, was transferred from the exchequer to the home office, and Gladstone himself assumed the duties of chancellor of the exchequer. He thereby created a difficulty for himself which he had not foreseen. Up to 1867 a minister leaving one office and accepting another vacated his seat; after 1867 a transfer from one post to another did not necessitate a fresh election. But Gladstone in 1873 had taken a course which had not been contemplated in 1867. He had not been transferred from one office to another. He had accepted a new in addition to his old office. It was, to say the least, uncertain whether his action in this respect had, or had not, vacated his seat. It would be unfair to suggest that the inconvenient difficulty with which he was thus confronted determined his policy, though he was probably insensibly influenced by it. However this may be, on the eve of the session of 1874 he suddenly decided to dissolve parliament and to appeal to the country. He announced his decision in an address to his constituents, in which, among other financial reforms, he promised to repeal the income tax. The course which Gladstone took, and the bait which he held out to the electors, were generally condemned. The country, wearied of the ministry and of its measures, almost everywhere supported the Conservative candidates. Disraeli found himself restored to power at the head of an overwhelming majority, and the great minister who, five years before, had achieved so marked a triumph temporarily withdrew from the leadership of the party with whose aid he had accomplished such important results. His ministry had been essentially

one of peace, yet its closing days were memorable for one little war in which a great soldier increased a reputation already high. Sir Garnet Wolseley triumphed over the difficulties which the climate of the west coast of Africa imposes on Europeans, and brought a troublesome contest with the Ashantis to a successful conclusion.

The history of Disraeli's second administration affords an exact reverse to that of Gladstone's first cabinet. In legislation the ministry attempted little and accomplished less. They did something to meet the wishes of the

Disraeli's second ministry.

publicans, whose discontent had contributed largely to Gladstone's defeat, by amending some of the provisions of Bruce's licensing bill; they supported and succeeded in passing a measure, brought in by the primate, to restrain some of the irregularities which the Ritualists were introducing into public worship; and they were compelled by the violent insistence of Plimsoll to pass an act to protect the lives of merchant seamen. Disraeli's government, however, will be chiefly remembered for its foreign policy. Years before he had propounded in *Tancred* the theory that England should aim at eastern empire. Circumstances in his second term of office enabled him to translate his theory into practice. In 1875 the country was suddenly startled at hearing that it had acquired a new position and assumed new responsibilities in Egypt by the purchase of the shares which the khedive of Egypt held in the Suez Canal. In the following spring a new surprise was afforded by the introduction of a measure authorizing the queen to assume the title of empress of India. But these significant actions were almost forgotten in the presence of a new crisis; for in 1876 misgovernment in Turkey had produced its natural results, and the European provinces of the Porte were in a state of armed insurrection. In the presence of a grave danger, Count Andrassy, the Austrian minister, drew up a note which was afterwards known by his name, declaring that the Porte had failed to carry into effect the promises of reform which she had made, and that some

combined action on the part of Europe was necessary to compel her to do so. The note was accepted by the three continental empires, but Great Britain refused in the first instance to assent to it, and only ultimately consented at the desire of the Porte, whose statesmen seem to have imagined that the nominal co-operation of England would have the effect of restraining the action of other powers. Turkey accepted the note and renewed the promises of reform, which she had so often made, and which meant so little. The three northern powers thereupon agreed upon what was known as the Berlin Memorandum, in which they demanded an armistice, and proposed to watch over the completion of the reforms which the Porte had promised. The British government refused to be a party to this memorandum, which in consequence became abortive. The insurrection increased in intensity. The sultan Abdul Aziz, thought unequal to the crisis, was hastily deposed; he was either murdered or led to commit suicide; and insurrection in Bulgaria was stamped out by massacre. The story of the “Bulgarian atrocities” was published in Great Britain in the summer of 1876. Disraeli characteristically dismissed it as “coffee-house babble,” but official investigation proved the substantial accuracy of the reports which had reached England. The people regarded these events with horror. Gladstone, emerging from his retirement, denounced the conduct of the Turks. In a phrase which became famous he declared that the only remedy for the European provinces of the Porte was to turn out the Ottoman government “bag and baggage.” All England was at once arrayed into two camps. One party was led by Disraeli, who was supposed to represent the traditional policy of England of maintaining the rule of the Turk at all hazards; the other, inspired by the example of Gladstone, was resolved at all costs to terminate oppression, but was at the same time distrusted as indirectly assisting the ambitious views by which the Eastern policy of Russia had always been animated. The crisis soon became intense. In June

***Bulgarian
“atrocities.”***

1876 Servia and Montenegro declared war against Turkey. In a few months Servia was hopelessly beaten. Through the insistence of Russia an armistice was agreed upon; and Lord Beaconsfield—for Disraeli had now been raised to the peerage—endeavoured to utilize the breathing space by organizing a conference of the great powers at Constantinople, which was attended on behalf of Great Britain by Lord Salisbury. The Constantinople conference proved abortive, and in the beginning of 1877 Russia declared war. For some time, however, her success was hardly equal to her expectations. The Turks, entrenched at Plevna, delayed the Russian advance; and it was only towards the close of 1877 that Plevna at last fell and Turkish resistance collapsed. With its downfall the war party in England, which was led by the prime minister, increased in violence. From the refrain of a song, sung night after night at a London music hall, its members became known as Jingoists. The government ordered the British fleet to pass the Dardanelles and go up to Constantinople; and though the order was subsequently withdrawn, it asked for and obtained a grant of £6,000,000 for naval and military purposes. When news came that the Russian armies had reached Adrianople, that they had concluded some arrangement with the Turks, and that they were pressing forward towards Constantinople, the fleet was again directed to pass the Dardanelles. Soon afterwards the government decided to call out the reserves and to bring a contingent of Indian troops to the Mediterranean. Lord Derby,⁸ who was at the foreign office, thereupon retired from the ministry, and was succeeded by Lord Salisbury. Lord Derby's resignation was everywhere regarded as a proof that Great Britain was on the verge of war. Happily this did not occur. At Prince Bismarck's suggestion Russia consented to refer the treaty which she had concluded at San Stefano to a congress of the great powers; and the congress, at which Great Britain was represented by Lord Beaconsfield and Lord Salisbury, succeeded in substituting for the treaty of San Stefano the treaty of Berlin. The one great advantage derived

Berlin treaty.

from it was the tacit acknowledgment by Russia that Europe could alone alter arrangements which Europe had made. In every other sense it is doubtful whether the provisions of the treaty of Berlin were more favourable than those of the treaty of San Stefano. On Lord Beaconsfield's return, however, he claimed for Lord Salisbury and himself that they had brought back "peace with honour," and the country accepted with wild delight the phrase, without taking much trouble to analyse its justice.

If Lord Beaconsfield had dissolved parliament immediately after his return from Berlin, it is possible that the wave of popularity which had been raised by his success would have borne him forward to a fresh victory in the constituencies. His omission to do so gave the country time to meditate on the consequences of his policy. One result soon became perceptible. Differences with Russia produced their inevitable consequences in fresh complications on the Indian frontier. The Russian government, confronted

Afghan wars. with a quarrel with Great Britain in eastern Europe, endeavoured to create difficulties in Afghanistan. A

Russian envoy was sent to Kabul, where Shere Ali, who had succeeded his father Dost Mahommed in 1863, was amir; and the British government, alarmed at this new embarrassment, decided on sending a mission to the Afghan capital. The mission was stopped on the frontier by an agent of Shere Ali, who declined to allow it to proceed. The British government refused to put up with an affront of this kind, and their envoy, supported by an army, continued his advance. Afghanistan was again invaded. Kabul and Kandahar were occupied; and Shere Ali was forced to fly, and soon afterwards died. His successor, Yakub Khan, came to the British camp and signed, in May 1879, the treaty of Gandamak. Under the terms of this treaty the Indian government undertook to pay the new amir a subsidy of £60,000 a year; and Yakub Khan consented to receive a British mission at Kabul, and to cede some territory in the Himalayas which the military advisers of Lord Beaconsfield considered necessary to make the

frontier more “scientific.” This apparent success was soon followed by disastrous news. The deplorable events of 1841 were re-enacted in 1879. The new envoy reached Kabul, but was soon afterwards murdered. A British army was again sent into Afghanistan, and Kabul was again occupied. Yakub Khan, who had been made amir in 1879, was deposed, and Abdur Rahman Khan was selected as his successor. The British did not assert their superiority without much fighting and some serious reverses. Their victory was at last assured by the excellent strategy of Sir Donald Stewart and Sir Frederick (afterwards Lord) Roberts. But before the final victory was gained Lord Beaconsfield had fallen. His policy had brought Great Britain to the verge of disaster in Afghanistan: the credit of reasserting the superiority of British arms was deferred till his successors had taken office.

It was not only in Afghanistan that the new imperial policy which Lord Beaconsfield had done so much to encourage was straining the resources of the empire. In South Africa a still more serious difficulty was already commencing. At the time at which Lord Beaconsfield’s administration began, British territory in South Africa was practically confined to Cape Colony and Natal. Years before, in 1852 and 1854 respectively, the British government, at that time a little weary of the responsibilities of colonial rule, had recognized the independence of the two Dutch republics, the Transvaal and the Orange Free State. Powerful native tribes occupied the territory to the north of Natal and the east of the Transvaal. War broke out between the Transvaal Republic and one of the most powerful of these native chieftains, Sikukuni; and the Transvaal was worsted in the struggle. Weary of the condition of anarchy which existed in the republic, many inhabitants of the Transvaal were ready to welcome its annexation to Great Britain—a proposal favoured by the colonial secretary, Lord Carnarvon, who wished to federate the South African states, after the manner in which the North American colonies had become by confederation the Dominion of

Canada. Sir Theophilus Shepstone, who was sent to inquire into the proposal, mistook the opinion of a party for the verdict of the republic, and declared (April 1877) the Transvaal a part of the British Empire. His policy entailed far more serious consequences than the mission to Afghanistan.

Zulu War. The first was a war with the Zulus, the most powerful and warlike of the South African natives, who under their ruler, Cetewayo, had organized a formidable army. A dispute had been going on for some time about the possession of a strip of territory which some British arbitrators had awarded to the Zulu king. Sir Bartle Frere, who had won distinction in India, and was sent out by Lord Beaconsfield's government to the Cape, kept back the award; and, though he ultimately communicated it to Cetewayo, thought it desirable to demand the disbandment of the Zulu army. In the war which ensued, the British troops who invaded Zulu territory met with a severe reverse; and, though the disaster was ultimately retrieved by Lord Chelmsford, the war involved heavy expenditure and brought little credit to the British army, while one unfortunate incident, the death of Prince Napoleon, who had obtained leave to serve with the British troops, and was surprised by the Zulus while reconnoitering, created a deep and unfortunate impression. Imperialism, which had been excited by Lord Beaconsfield's policy in 1878, and by the prospect of a war with a great European power, fell into discredit when it degenerated into a fresh expedition into Afghanistan, and an inglorious war with a savage African tribe. A period of distress at home increased the discontent which Lord Beaconsfield's external policy was exciting; and, when parliament was at last dissolved in 1880, it seemed no longer certain that the country would endorse the policy of the minister, who only a short time before had acquired such popularity. Gladstone, emerging from his retirement, practically placed himself again at the head of the Liberal party. In a series of speeches in Midlothian, where he offered himself for election, he denounced the whole policy which Lord

Beaconsfield had pursued. His impassioned eloquence did much more than influence his own election. His speeches decided the contest throughout the kingdom. The Liberals secured an even more surprising success than that which had rewarded the Conservatives six years before. For the first time in the queen's reign, a solid Liberal majority, independent of all extraneous Irish support, was returned, and Gladstone resumed in triumph his old position as prime minister.

The new minister had been swept into power on a wave of popular favour, but he inherited from his predecessors difficulties in almost every quarter of the world; and his own language had perhaps tended to increase them. He was committed to a reversal of Lord Beaconsfield's policy; and, in politics, it is never easy, and perhaps rarely wise, suddenly and violently to change a system. In one quarter of the world the new minister achieved much success. The war in Afghanistan, which had begun with disaster, was creditably concluded. A better understanding was gradually established with Russia; and, before the ministry went out, steps had been taken which led to the delimitation of the Russian and Afghan frontier. In South Africa, however, a very different result ensued. Gladstone, before he accepted office, had denounced the policy of annexing the Transvaal; his language was so strong that he was charged with encouraging the Boers to maintain their independence by force; his example had naturally been imitated by some of his followers at the general election; and, when he resumed power, he found himself in the difficult dilemma of either maintaining an arrangement which he had declared to be unwise, or of yielding to a demand which the Boers were already threatening to support in arms. The events of the first year of his administration added to his difficulty. Before its close the Boers seized Heidelberg and established a republic; they destroyed a detachment of British troops at Bronkhorst Spruit; and they surrounded and attacked the British garrisons in the Transvaal. Troops were

Gladstone's second ministry.

of course sent from England to maintain the British cause; and Sir George Colley, who enjoyed a high reputation and had experience in South African warfare, was made governor of Natal, and entrusted with the military command. The events which immediately followed will not be easily forgotten. Wholly miscalculating the strength of the Boers, Sir George Colley, at the end of January 1881, attacked them at Laing's Nek, in the north of Natal, and was repulsed with heavy loss. Some ten days afterwards he fought another action on the Ingogo, and was again forced to retire. On the 26th February, with some 600 men, he occupied a high hill, known as Majuba, which, he thought, dominated the Boer position. The following day the Boers attacked the hill, overwhelmed its defenders, and Sir George Colley was himself killed in the disastrous contest on the summit. News of these occurrences was received with dismay in England. It was, no doubt, possible to say a good deal for Gladstone's indignant denunciation of his predecessor's policy in annexing the Transvaal; it would have been equally possible to advance many reasons for reversing the measures of Lord

Beaconsfield's cabinet, and for conceding independence to the Transvaal in 1880. But the great majority of persons considered that, whatever arguments might have been urged for concession in 1880, when British troops had suffered no reverses, nothing could be said for concession in 1881, when their arms had been tarnished by a humiliating disaster. Great countries can afford to be generous in the hour of victory; but they cannot yield, without loss of credit, in the hour of defeat. Unfortunately this reasoning was not suited to Gladstone's temperament. The justice or injustice of the British cause seemed to him a much more important matter than the vindication of military honour; and he could not bring himself to acknowledge that Majuba had altered the situation, and that the terms which he had made up his mind to concede before the battle could not be safely granted till military reputation was restored. The retrocession of the

Boer War, 1881.

Transvaal was decided upon, though it was provided that the country should remain under the suzerainty of the queen. Even this great concession did not satisfy the ambition of the Boers, who were naturally elated by their victories. Three years later some Transvaal deputies, with their president, Kruger, came to London and saw Lord Derby, the secretary of state for the colonies. Lord Derby consented to a new convention, from which any verbal reference to suzerainty was excluded; and the South African republic was made independent, subject only to the condition that it should conclude no treaties with foreign powers without the approval of the crown. (For the details and disputes concerning the terms of this convention the reader is referred to the articles [TRANSCAAL](#) and [SUZERAINTY](#).)

Gladstone's government declined in popularity from the date of the earliest of these concessions. Gladstone, in fact, had succeeded in doing what Lord Beaconsfield had failed to accomplish. Annoyance at his foreign policy had rekindled the imperialism which the embarrassments created by Lord Beaconsfield had done so much to damp down. And, if things were going badly with the new government abroad, matters were not progressing smoothly at home. At the general election of 1880, the borough of Northampton, which of late years has shown an unwavering preference for Liberals of an advanced type, returned as its members Henry Labouchere and Charles Bradlaugh. Bradlaugh, who had attained some notoriety for an aggressive atheism, claimed the right to make an affirmation of allegiance instead of taking the customary oath, which he declared was, in his eyes, a meaningless form. The speaker, instead of deciding the question, submitted it to the judgment of the House, and it was ultimately referred to a select committee, which reported against Bradlaugh's claim. Bradlaugh, on hearing the decision of the committee, presented himself at the bar and offered to take the oath. It was objected that, as he had publicly declared that the words of the oath had no clear meaning for him, he could not be

permitted to take it; and after some wrangling the matter was referred to a fresh committee, which supported the view that Bradlaugh could not be allowed to be sworn, but recommended that he should be permitted to make the affirmation at his own risk. The House refused to accept the recommendation of this committee when a bill was introduced to give effect to it. This decision naturally enlarged the question before it. For, while hitherto the debate had turned on the technical points whether an affirmation could be substituted for an oath, or whether a person who had declared that an oath had no meaning for him could properly be sworn, the end at which Bradlaugh's opponents were thenceforward aiming was the imposition of a new religious test—the belief in a God—on members of the House of Commons. The controversy, which thus began, continued through the parliament of 1880, and led to many violent scenes, which lowered the dignity of the House. It was quietly terminated, in the parliament of 1886, by the firm action of a new speaker. Mr Peel, who had been elected to the chair in 1884, decided that neither the speaker nor any other member had the right to intervene to prevent a member from taking the oath if he was willing to take it. Parliament subsequently, by a new act, permitted affirmations to be used, and thenceforward religion, or the absence of religion, was no disqualification for a seat in the House of Commons. The atheist, like the Roman Catholic and the Jew, could sit and vote.

The Bradlaugh question was not the only difficulty with which the new government was confronted. Ireland was again attracting the attention of politicians. The Fenian movement had practically expired; some annual motions for the introduction of Home Rule, made with all the decorum of parliamentary usage, had been regularly defeated. But the Irish were placing themselves under new leaders and adopting new methods. During the Conservative government of 1874, the Irish members had endeavoured to arrest attention by organized obstruction. Their efforts had increased the difficulties of government and taxed the endurance of parliament. These

Parnell.

tactics were destined to be raised to a fine art by Parnell, who succeeded to the head of the Irish party about the time of the formation of Gladstone's government. It was Parnell's determination to make legislation impracticable, and parliament unendurable, till Irish grievances were redressed. It was his evident belief that by pursuing such tactics he could force the House of Commons to concede the legislation which he desired. The Irish members were not satisfied with the legislation which parliament had passed in 1869-1870. The land act of 1870 had given the tenant no security in the case of eviction for non-payment of rent; and the tenant whose rent was too high or had been raised was at the mercy of his landlord. It so happened that some bad harvests had temporarily increased the difficulties of the tenantry, and there was no doubt that large numbers of evictions were taking place in Ireland. In these circumstances, the Irish contended that the relief which the act of 1870 had afforded should be extended, and that, till such legislation could be devised, a temporary measure should be passed giving the tenant compensation for disturbance. Gladstone admitted the force of this reasoning, and a bill was introduced to give effect to it. Passed by the Commons, it was thrown out towards the end of the session by the Lords; and the government acquiesced—perhaps could do nothing but acquiesce—in this decision. In Ireland, however, the rejection of the measure was attended with disastrous results. Outrages increased, obnoxious landlords and agents were “boycotted”—the name of the first gentleman exposed to this treatment adding a new word to the language; and Forster, who had accepted the office of chief secretary, thought it necessary, in the presence of outrage and intimidation, to adopt stringent measures for enforcing order. A measure was passed on his initiation, in 1881, authorizing him to arrest and detain suspected persons; and many well-known Irishmen, including Parnell himself and other members of parliament, were thrown into prison. It was an odd commentary

on parliamentary government that a Liberal ministry should be in power, and that Irish members should be in prison; and early in 1882 Gladstone determined to liberate the prisoners on terms. The new policy—represented by what was known as the Kilmainham Treaty—led to the resignation of the viceroy, Lord Cowper, and of Forster, and the appointment of Lord Spencer and Lord Frederick Cavendish as their successors. On the 6th of May 1882 Lord Spencer made his entry into Dublin, and on the evening of the same day Lord Frederick, unwisely allowed to walk home alone with Burke, the under-secretary to the Irish government, was murdered with his companion in Phoenix Park. This gross outrage led to fresh measures of coercion. The disclosure, soon afterwards, of a conspiracy to resort to dynamite still further alienated the sympathies of the Liberal party from the Irish nation. Gladstone might fairly plead that he had done much, that he had risked much, for Ireland, and that Ireland was making him a poor return for his services.

In the meanwhile another difficulty was further embarrassing a harassed government. The necessities of the khedive of Egypt had been only temporarily relieved by the sale to Lord Beaconsfield's government of the Suez Canal shares. Egyptian finance, in the interests of the bondholders, had been placed under the dual control of England and France. The new arrangement naturally produced some native resentment, and Arabi Pasha placed himself at the head of a movement which was intended to rid Egypt of foreign interference. His preparations eventually led to the bombardment of Alexandria by the British fleet, and still later to the invasion of Egypt by a British army under Sir Garnet, afterwards Lord Wolseley, and to the battle of Tell-el-Kebir, after which Arabi was defeated and taken prisoner. The bombardment of Alexandria led to the immediate resignation of Bright, whose presence in the cabinet had been of importance to the government; the occupation of Egypt broke up the dual control, and made Great Britain

responsible for Egyptian administration. The effects of British rule were, in one sense, remarkable. The introduction of good government increased the prosperity of the people, and restored confidence in Egyptian finance. At the same time it provoked the animosity of the French, who were naturally jealous of the increase of British influence on the Nile, and it also threw new responsibilities on the British nation. For south of Egypt lay the great territory of the Sudan, which to some extent commands the Nile, and which had been added to the Egyptian dominions at various periods between 1820 and 1875. In 1881 a fanatic sheikh—known as the mahdi—had headed an insurrection against the khedive's authority; and towards the close of 1883 an Egyptian army under an Englishman, Colonel Hicks, was annihilated by the mahdi's followers. The insurrection increased the responsibilities which intervention had imposed on England, and an expedition was sent to Suakin to guard the littoral of the Red Sea; while, at the beginning of 1884, General Gordon—whose services in China had gained him a high reputation, and who had had previous experience in the Sudan—was sent to Khartum to report on the condition of affairs. These decisions led to momentous results. The British expedition to Suakin was engaged in a series of battles with

Osman Digna, the mahdi's lieutenant; while General
Gordon.

Gordon, after alternate reverses and successes, was isolated at Khartum. Anxious as Gladstone's ministry was to restrict the sphere of its responsibilities, it was compelled to send an expedition to relieve General Gordon; and Lord Wolseley, who was appointed to the command, decided on moving up the Nile to his relief. The expedition proved much more difficult than Lord Wolseley had anticipated. And before it reached its goal, Khartum was forced to surrender, and General Gordon and his few faithful followers were murdered (January 1885). General Gordon's death inflicted a fatal blow on the Liberal government. It was thought that the general, whose singular devotion to duty made him a popular hero, had been allowed to assume an impossible

task; had been feebly supported; and that the measures for his relief had been unduly postponed and at last only reluctantly undertaken. The ministry ultimately experienced defeat on a side issue. The budget, which Childers brought forward as chancellor of the exchequer, was attacked by the Conservative party; and an amendment proposed by Sir Michael Hicks-Beach, condemning an increase in the duties on spirits and beer, was adopted by a small majority. Gladstone resigned office, and Lord Salisbury, who, after Lord Beaconsfield's death, had succeeded to the lead of the Conservative party, was instructed to form a new administration.

It was obvious that the new government, as its first duty, would be compelled to dissolve the parliament that had been elected when Gladstone was enjoying the popularity which he had lost so rapidly in office. But it so happened that it was no longer possible to appeal to the old constituencies. For, in 1884, Gladstone had introduced a new Reform Bill; and, though its passage had been arrested by the Lords, unofficial communications between the leaders of both parties had resulted in a compromise which had led to the adoption of a large and comprehensive Reform Act. By this measure, household franchise was extended to the counties. But counties and boroughs were broken up into a number of small constituencies, for the most part returning only one member each; while the necessity of increasing the relative weight of Great Britain, and the reluctance to inflict disfranchisement on Ireland, led to an increase in the numbers of the House of Commons from 658 to 670 members. This radical reconstruction of the electorate necessarily made the result of the elections doubtful. As a matter of fact, the new parliament comprised 334 Liberals, 250 Conservatives and 86 Irish Nationalists. It was plain beyond the possibility of doubt that the future depended on the course which the Irish Nationalists might adopt. If they threw in their lot with Gladstone, Lord Salisbury's government was

evidently doomed. If, on the contrary, they joined the Conservatives, they could make a Liberal administration impracticable.

In the autumn of 1885 it was doubtful what course the Irish Nationalists would take. It was generally understood that Lord Carnarvon, who had been made viceroy of Ireland, had been in communication with Parnell; that Lord

Home Rule. Salisbury was aware of the interviews which had taken place; and it was whispered that Lord Carnarvon was

in favour of granting some sort of administrative autonomy to Ireland. Whatever opinion Lord Carnarvon may have formed—and his precise view is uncertain—a greater man than he had suddenly arrived at a similar conclusion. In his election speeches Gladstone had insisted on the necessity of the country returning a Liberal majority which could act independently of the Irish vote; and the result of the general election had left the Irish the virtual arbiters of the political situation. In these circumstances Gladstone arrived at a momentous decision. He recognized that the system under which Ireland had been governed in the past had failed to win the allegiance of her people; and he decided that it was wise and safe to entrust her with a large measure of self-government. It was perhaps characteristic of Gladstone, though it was unquestionably unfortunate, that, in determining on this radical change of policy, he consulted few, if any, of his previous colleagues. On the meeting of the new parliament Lord Salisbury's government was defeated on an amendment to the address, demanding facilities for agricultural labourers to obtain small holdings for gardens and pasture—the policy, in short, which was described as “three acres and a cow.” Lord Salisbury resigned, and Gladstone resumed power. The attitude, however, which Gladstone was understood to be taking on the subject of Home Rule threw many difficulties in his way. Lord Harrington, and others of his former colleagues, declined to join his administration; Mr Chamberlain, who, in the first instance, accepted office, retired almost at once from the ministry; and Bright, whose eloquence and

past services gave him a unique position in the House, threw in his lot in opposition to Home Rule. A split in the Liberal party thus began, which was destined to endure; and Gladstone found his difficulties increased by the defection of the men on whom he had hitherto largely relied. He persevered, however, in the task which he had set himself, and introduced a measure endowing Ireland with a parliament, and excluding the Irish members from Westminster. He was defeated, and appealed from the House which had refused to support him to the country. For the first time in the queen's reign two general elections occurred within twelve months. The country showed no more disposition than the House of Commons to approve the course which the minister was taking. A large majority of the members of the new parliament were pledged to resist Home Rule. Gladstone, bowing at once to the verdict of the people, resigned office, and Lord Salisbury returned to power.

The new cabinet, which was formed to resist Home Rule, did not succeed in combining all the opponents to this measure. The secessionists from the Liberal party—the Liberal Unionists, as they were called—held aloof from it; and Lord Salisbury was forced to form his cabinet out of his immediate followers. The most picturesque appointment was that of Lord Randolph Churchill, who was made chancellor of the exchequer and leader of the House of Commons. But before many months were over, Lord Randolph—unable to secure acceptance of a policy of financial retrenchment—resigned office, and Lord Salisbury was forced to reconstruct his ministry. Though he again failed to obtain the co-operation of the Liberal Unionists, one of the more prominent of them—Goschen—accepted the seals of the Exchequer. W.H. Smith moved from the war office to the treasury, and became leader of the House of Commons; while Lord Salisbury himself returned to the foreign office, which the dramatically sudden death of Lord Iddesleigh, better known as Sir Stafford Northcote, vacated. These arrangements lasted till

Unionism.

1891, when, on Smith's death, the treasury and the lead of the Commons were entrusted to Lord Salisbury's nephew, Mr Arthur Balfour, who had made a great reputation as chief secretary for Ireland.

The ministry of 1886, which endured till 1892, gave to London a county council; introduced representative government into every English county; and made elementary education free throughout England. The alliance with the Liberal Unionists was, in fact, compelling the Conservative government to promote measures which were not wholly consistent with the stricter Conservative traditions, or wishes. In other respects, the legislative achievements of the government were not great; and the time of parliament was largely occupied in devising rules for the conduct of its business, which the obstructive attitude of the Irish members made necessary, and in discussing the charges brought against the Nationalist party by *The Times*, of complicity in the Phoenix Park murders. Under the new rules, the sittings of the House on ordinary days were made to commence at 3 P.M., and opposed business was automatically interrupted at midnight, while for the first time a power was given to the majority in a House of a certain size to conclude debate by what was known as the closure. Notwithstanding these new rules obstructive tactics continued to prevail; and, in the course of the parliament, many members were suspended for disorderly conduct. The hostility of the Irish members was perhaps increased by some natural indignation at the charges brought against Parnell. *The Times*, in April 1887, printed the facsimile of a letter purporting to be signed by Parnell, in which he declared that he had no other course open to him but to denounce the Phoenix Park murders, but that, while he regretted "the accident" of Lord Frederick Cavendish's death, he could not "refuse to admit that Burke got no more than his deserts." The publication of this letter, and later of other similar documents, naturally created a great sensation; and the government ultimately appointed a special commission of three judges to inquire into the charges and allegations that were made. In the course of the inquiry it

was proved that the letters had emanated from a man named Pigott, who had at one time been associated with the Irish Nationalist movement, but who for some time past had earned a precarious living by writing begging and threatening letters. Pigott, subjected to severe cross-examination by Sir Charles Russell (afterwards Lord Russell of Killowen), broke down, fled from justice and committed suicide. His flight practically settled the question; and an inquiry, which many people had thought at its inception would brand Parnell as a criminal, raised him to an influence which he had never enjoyed before. But in the same year which witnessed his triumph, he was doomed to fall. He was made co-respondent in a divorce suit brought by Captain O'Shea—another Irishman—for the dissolution of his marriage; and the disclosures made at the trial induced Gladstone, who was supported by the Nonconformists generally throughout the United Kingdom, to request Parnell to withdraw from the leadership of the Irish party. Parnell refused to comply with this request, and the Irish party was shattered into

Nationalist split.

fragments by his decision. Parnell himself did not long survive the disruption of the party which he had done so much to create. The exertions which he made to retrieve his waning influence proved too much for his strength, and in the autumn of 1891 he died suddenly at Brighton. Parnell's death radically altered the political situation. At the general elections of 1885 and 1886 the existence of a strong, united Irish party had exercised a dominating influence. As the parliament of 1886 was drawing to a close, the dissensions among the Irish members, and the loss of their great leader, were visibly sapping the strength of the Nationalists. At the general election of 1892 Home Rule was still the prominent subject before the electors. But the English Liberals were already a little weary of allies who were quarrelling among themselves, and whose disputes were introducing a new factor into politics. The political struggle virtually turned not on measures, but on men. Gladstone's great age, and the marvellous powers which he displayed at a

time when most men seek the repose of retirement, were the chief causes which affected the results. His influence enabled him to secure a small Liberal majority. But it was noticed that the majority depended on Scottish, Irish and Welsh votes, and that England—the “predominant partner,” as it was subsequently called by Lord Rosebery—returned a majority of members pledged to resist any attempt to dissolve the union between the three kingdoms.

On the meeting of the new parliament Lord Salisbury’s government was defeated on a vote of want of confidence, and for a fourth time Gladstone became prime minister. In the session of 1893 he again introduced a Home

Home Rule Bill,
1893.

Rule Bill. But the measure of 1893 differed in many respects from that of 1886. In particular, the Irish were no longer to be excluded from the imperial parliament at Westminster. The bill which was thus brought forward was actually passed by the Commons. It was, however, rejected by the Lords. The dissensions among the Irish themselves, and the hostility which English constituents were displaying to the proposal, emboldened the Peers to arrive at this decision. Some doubt was felt as to the course which Gladstone would take in this crisis. Many persons thought that he should at once have appealed to the country, and have endeavoured to obtain a distinct mandate from the constituencies to introduce a new Home Rule Bill. Other persons imagined that he should have followed the precedent which had been set by Lord Grey in 1831, and, after a short prorogation, have reintroduced his measure in a new session. As a matter of fact, Gladstone adopted neither of these courses. The government decided not to take up the gauntlet thrown down by the Peers, but to proceed with the rest of their political programme. With this object an autumn session was held, and the Parish Councils Act, introduced by Mr Fowler (afterwards Lord Wolverhampton), was passed, after important amendments, which had been introduced into it in the House of Lords, had been reluctantly accepted by Gladstone. On the

other hand, an Employers' Liability Bill, introduced by Mr Asquith, the home secretary, was ultimately dropped by Gladstone after passing all stages in the House of Commons, rather than that an amendment of the Peers, allowing "contracting out," should be accepted.

Before, however, the session had quite run out (3rd March 1894), Gladstone, who had now completed his eighty-fourth year, laid down a load which his increasing years made it impossible for him to sustain (see the article [GLADSTONE](#)). He was succeeded by Lord Rosebery, whose abilities and attainments had raised him to a high place in the Liberal counsels. Lord Rosebery did not succeed in popularizing the Home Rule proposal which

Lord Rosebery. Gladstone had failed to carry. He declared, indeed, that success was not attainable till England was converted to its expediency. He hinted that success would not even then be assured until something was done to reform the constitution of the House of Lords. But if, on the one hand, he refused to introduce a new Home Rule Bill, he hesitated, on the other, to court defeat by any attempt to reform the Lords. His government, in these circumstances, while it failed to conciliate its opponents, excited no enthusiasm among its supporters. It was generally understood, moreover, that a large section of the Liberal party resented Lord Rosebery's appointment to the first place in the ministry, and thought that the lead should have been conferred on Sir W. Harcourt. It was an open secret that these differences in the party were reflected in the cabinet, and that the relations between Lord Rosebery and Sir W. Harcourt were too strained to ensure either the harmonious working or the stability of the administration. In these circumstances the fall of the ministry was only a question of time. It occurred—as often happens in parliament—on a minor issue which no one had foreseen. Attention was drawn in the House of Commons to the insufficient supply of cordite provided by the war office, and the House—notwithstanding the assurance of the war minister (Sir Henry Campbell-Bannerman) that the supply was adequate—placed the

government in a minority. Lord Rosebery resigned office, and Lord Salisbury for the third time became prime minister, the duke of Devonshire, Mr Chamberlain and other Liberal Unionists joining the government. Parliament was dissolved, and a new parliament, in which the Unionists obtained an overwhelming majority, was returned.

The government of 1892-1895, which was successively led by Gladstone and Lord Rosebery, will, on the whole, be remembered for its failures. Yet it passed two measures which have exercised a wide influence. The Parish Councils Act introduced electoral institutions into the government of every parish, and in 1894 Sir W. Harcourt, as chancellor of the exchequer, availed himself of the opportunity, which a large addition to the navy invited, to reconstruct the death duties. He swept away in doing so many of the advantages which the owner of real estate and the life tenant of settled property had previously enjoyed, and drove home a principle which Goschen had tentatively introduced a few years before by increasing the rate of the duty with the amount of the estate. Rich men, out of their superfluities, were thenceforward to pay more than poor men out of their necessities.

The Unionist government which came into power in 1895 lasted, with certain changes of *personnel*, till 1905, with a break caused by the dissolution of 1900. History may hereafter conclude that the most significant circumstance of the earlier period is to be found in the demonstration of loyalty and affection to which the sixtieth anniversary of Queen Victoria's accession led in 1897. Ten years before, her jubilee had been the occasion of enthusiastic rejoicings, and the queen's progress through London to a service of thanksgiving at Westminster had impressed the imagination of her subjects and proved the affection of her people. But the rejoicings of 1887 were forgotten amid the more striking demonstrations ten

The two jubilees.

years later. It was seen then that the queen, by her conduct and character, had gained a popularity which has had no parallel in history, and had won a place in the hearts of her subjects which perhaps no other monarch had ever previously enjoyed. There was no doubt that, if the opinion of the English-speaking races throughout the world could have been tested by a plebiscite, an overwhelming majority would have declared that the fittest person for the rule of the British empire was the gracious and kindly lady who for sixty years, in sorrow and in joy, had so worthily discharged the duties of her high position. This remarkable demonstration was not confined to the British empire alone. In every portion of the globe the sixtieth anniversary of the queen's reign excited interest; in every country the queen's name was mentioned with affection and respect; while the people of the United States vied with the subjects of the British empire in praise of the queen's character and in expressions of regard for her person. Only a year or two before, an obscure dispute on the boundary of British Venezuela had brought the United States and Great Britain within sight of a quarrel. The jubilee showed conclusively that, whatever politicians might say, the ties of blood and kinship, which united the two peoples, were too close to be severed by either for some trifling cause; that the wisest heads in both nations were aware of the advantages which must arise from the closer union of the Anglo-Saxon races; and that the true interests of both countries lay in their mutual friendship. A war in which the United States was subsequently engaged with Spain cemented this feeling. The government and the people of the United States recognized the advantage which they derived from the goodwill of Great Britain in the hour of their necessity, and the two nations drew together as no other two nations had perhaps ever been drawn together before.

If the jubilee was a proof of the closer union of the many sections of the British empire, and of their warm attachment to their sovereign, it also gave expression to the "imperialism" which was becoming a dominant factor in

British politics. Few people realized the mighty change which in this respect had been effected in thought and feeling. Forty years before, the most prominent English statesmen had regarded with anxiety the huge responsibilities of a world-wide empire. In 1897 the whole tendency of thought and opinion was to enlarge the burden of which the preceding generation had been weary. The extension of British influence, the protection of British interests, were almost universally advocated; and the few statesmen who repeated in the 'nineties the sentiments which would have been generally accepted in the 'sixties, were regarded as "Little Englanders." It is important to note the consequences which these new ideas produced in Africa. Both in the north and in the south of this great and imperfectly explored continent, memories still clung which were ungrateful to imperialism. In the north, the murder of Gordon was still unavenged; and the vast territory known as the Sudan had escaped from the control of Egypt. In the south, war with the Transvaal had been concluded by a British defeat; and the Dutch were elated, the English irritated, at the recollection of Majuba. In 1896 Lord Salisbury's government decided on extending the Anglo-Egyptian rule over the Sudan, and an expedition was sent from Egypt under the command of Sir Herbert (afterwards Lord) Kitchener to Khartum. Few military expeditions have been more elaborately organized, or have achieved a more brilliant success. The conquest of the country was achieved in three separate campaigns in successive years. In September 1898 the Sudanese forces were decisively beaten, with great slaughter, in the immediate neighbourhood of Omdurman; and Khartum became thenceforward the capital of the new province, which was placed under Lord Kitchener's rule. Soon after this decisive success, it was found that a French expedition under Major Marchand had reached the upper Nile and had hoisted the French flag at Fashoda. It was obvious that the French could not be allowed to remain at a spot which the khedive of Egypt claimed as Egyptian

*Omdurman,
Fashoda.*

territory; and after some negotiation, and some irritation, the French were withdrawn. In South Africa still more important events were in the meanwhile progressing. Ever since the independence of the South African Republic had been virtually conceded by the convention of 1884, unhappy differences had prevailed between the Dutch and British residents in the Transvaal. The discovery of gold at Johannesburg and elsewhere in 1885-1886 had led to a large immigration of British and other colonists. Johannesburg had grown into a great and prosperous city. The foreign population of the Transvaal, which was chiefly English, became in a few years more numerous than the Boers themselves, and they complained that they were deprived of all political rights, that they were subjected to unfair taxation, and that they were hampered in their industry and unjustly treated by the Dutch courts and Dutch officials. Failing to obtain redress, at the end of 1895 certain persons among them made preparations for a revolution. Dr Jameson, the administrator of Rhodesia, accompanied by some British officers, actually invaded the Transvaal. His force, utterly inadequate for the

Jameson Raid. purpose, was stopped by the Boers, and he and his fellow-officers were taken prisoners. There was no doubt that this raid on the territory of a friendly state was totally unjustifiable. Unfortunately, Dr Jameson's original plans had been framed at the instance of Cecil Rhodes, the prime minister at the Cape, and many persons thought that they ought to have been suspected by the colonial office in London. England at any rate would have had no valid ground of complaint if the leaders of a buccaneering force had been summarily dealt with by the Transvaal authorities. The president of the republic, Kruger, however, handed over his prisoners to the British authorities, and parliament instituted an inquiry by a select committee into the circumstances of the raid. The inquiry was terminated somewhat abruptly. The committee acquitted the colonial office of any knowledge of the plot; but a good many suspicions remained unanswered. The chief

actors in the raid were tried under the Foreign Enlistment Act, found guilty, and subsequently released after short terms of imprisonment. Rhodes himself was not removed from the privy council, as his more extreme accusers demanded; but he had to abandon his career in Cape politics for a time, and confine his energies to the development of Rhodesia, which had been added to the empire through his instrumentality in 1888-1889.

In consequence of these proceedings, the Transvaal authorities at once set to work to accumulate armaments, and they succeeded in procuring vast quantities of artillery and military stores. The British government would undoubtedly have been entitled to insist that these armaments should cease. It was obvious that they could only be directed against Great Britain; and no nation is bound to allow another people to prepare great armaments to be employed against itself. The criminal folly of the raid prevented the British government from making this demand. It could not say that the Transvaal government had no cause for alarm when British officers had attempted an invasion of its territory, and had been treated rather as heroes than as criminals at home. Ignorant of the strength of Great Britain, and elated by the recollection of their previous successes, the Boers themselves believed that a new struggle might give them predominance in South Africa. The knowledge that a large portion of the population of Cape Colony was of Dutch extraction, and that public men at the Cape sympathized with them in their aspirations, increased their confidence. In the meantime, while the Boers were silently and steadily continuing their military preparations, the British settlers at Johannesburg—the Uitlanders, as they were called—continued to demand consideration for their grievances. In the spring of 1899, Sir Alfred Milner, governor of the Cape, met President Kruger at Bloemfontein, the capital of the Orange Free State, and endeavoured to accomplish that result by negotiation. He thought, at the time, that if the Uitlanders were given the franchise and a fair proportion of influence in the legislature,

Boer War, 1899.

other difficulties might be left to settle themselves. The negotiations thus commenced unfortunately failed. The discussion, which had originally turned on the franchise, was enlarged by the introduction of the question of suzerainty or supremacy; and at last, in the beginning of October, when the rains of an African spring were causing the grass to grow on which the Boer armies were largely dependent for forage, the Boers declared war and invaded Natal. The British government had not been altogether happy in its conduct of the preceding negotiations. It was certainly unhappy in its preparations for the struggle. It made the great mistake of underrating the strength of its enemy; it suffered its agents to commit the strategical blunder of locking up the few troops it had in an untenable position in the north of Natal. It was not surprising, in such circumstances, that the earlier months of the war should have been memorable for a series of exasperating reverses. These reverses, however, were redeemed by the valour of the British troops, the spirit of the British nation, and the enthusiasm which induced the great autonomous colonies of the empire to send men to support the cause of the mother country. The gradual arrival of reinforcements, and the appointment of a soldier of genius—Lord Roberts—to the supreme command, changed the military situation; and, before the summer of 1900 was concluded, the places which had been besieged by the Boers—Kimberley, Ladysmith and Mafeking—had been successively relieved; the capitals of the Orange Free State and of the Transvaal had been occupied; and the two republics, which had rashly declared war against the British empire, had been formally annexed.

The defeat and dispersal of the Boer armies, and the apparent collapse of Boer resistance, induced a hope that the war was over; and the government seized the opportunity in 1900 to terminate the parliament, which had already endured for more than five years. The election

The close of 1900. was conducted with unusual bitterness; but the constituencies practically affirmed the policy of the

government by maintaining, almost unimpaired, the large majority which the Unionists had secured in 1895. Unfortunately, the expectations which had been formed at the time of the dissolution were disappointed. The same circumstances which had emboldened the Boers to declare war in the autumn of 1899, induced them to renew a guerilla warfare in the autumn of 1900—the approach of an African summer supplying the Boers with the grass on which they were dependent for feeding their hardy horses. Guerilla bands suddenly appeared in different parts of the Orange River Colony and of the Transvaal. They interrupted the communications of the British armies; they won isolated victories over British detachments; they even invaded Cape Colony. Thus the last year of the century closed in disappointment and gloom. The serious losses which the war entailed, the heavy expenses which it involved, and the large force which it absorbed, filled thoughtful men with anxiety.

No one felt more sincerely for the sufferings of her soldiers, and no one regretted more truly the useless prolongation of the struggle, than the venerable lady who occupied the throne. She had herself lost a grandson (Prince Christian Victor) in South Africa; and sorrow and anxiety perhaps told even on a constitution so unusually strong as hers. About the middle of January 1901 it was known that she was seriously ill; on the 22nd she died. The death of the queen thus occurred immediately after the close of the century over so long a period of which her reign had extended.

The death of the queen.

The queen's own life is dealt with elsewhere (see [VICTORIA, QUEEN](#)), but the Victorian era is deeply marked in English history. During her reign the people of Great Britain doubled their number; but the accumulated wealth of the country increased at least threefold, and its trade sixfold. All classes shared the prevalent prosperity. Notwithstanding the increase of population, the roll of paupers at the end of the reign, compared with the same roll at

the beginning, stood as 2 stands to 3; the criminals as 1 to 2. The expansion abroad was still more remarkable. There were not 200,000 white persons in Australasia when the queen came to the throne; there were nearly 5,000,000 when she died. The great Australian colonies were almost created in her reign; two of them—Victoria and Queensland—owe their name to her; they all received those autonomous institutions, under which their prosperity has been built up, during its continuance. Expansion and progress were not confined to Australasia. The opening months of the queen's reign were marked by rebellion in Canada. The close of it saw Canada one of the most loyal portions of the Empire. In Africa, the advance of the red line which marks the bounds of British dominion was even more rapid; while in India the Punjab, Sind, Oudh and Burma were some of the acquisitions added to the British empire while the queen was on the throne. When she died one square mile in four of the land in the world was under the British flag, and at least one person out of every five persons alive was a subject of the queen.

Material progress was largely facilitated by industry and invention. The first railways had been made, the first steamship had been built, before the queen came to the throne. But, so far as railways are concerned, none of the great trunk lines had been constructed in 1837; the whole capital authorized to be spent on railway construction did not exceed £55,000,000; and, five years after the reign had begun, there were only 18,000,000 passengers. The paid-up capital of British railways in 1901 exceeded £1,100,000,000; the passengers, not including season ticket-holders, also numbered 1,100,000,000; and the sum annually spent in working the lines considerably exceeded the whole capital authorized to be spent on their construction in 1837. The progress of the commercial marine was still more noteworthy. In 1837 the entire commercial navy comprised 2,800,000 tons, of which less than 100,000 tons were moved by steam. At the end of the reign the tonnage of British merchant vessels had reached 13,700,000 tons,

of which more than 11,000,000 tons were moved by steam. At the beginning of the reign it was supposed to be impossible to build a steamer which could either cross the Atlantic, or face the monsoon in the Red Sea. The development of steam navigation since then had made Australia much more accessible than America was in 1837, and had brought New York, for all practical purposes, nearer to London than Aberdeen was at the commencement of the reign. Electricity had even a greater effect on communication than steam on locomotion; and electricity, as a practical invention, had its origin in the reign. The first experimental telegraph line was only erected in the year in which Queen Victoria came to the throne. Submarine telegraphy, which had done so much to knit the empire together, was not perfected for many years afterwards; and long ocean cables were almost entirely constructed in the last half of the reign.

(S. W.)

On the death of Queen Victoria, the prince of Wales succeeded to the throne, with the title of Edward VII. (*q.v.*). The coronation fixed for June in the following year was at the last moment stopped by the king's illness with appendicitis, but he recovered marvellously from the operation and the ceremony took place in August. His excellent health and activity in succeeding years struck every one with astonishment. The Boer War had at last been brought to an end in May 1902 (see [TRANSVAAL](#)), and the king had the satisfaction of seeing South Africa settle down and eventually receive self-government. The political history of his reign, which ended with his death in May 1910, is dealt with in detail in separate biographical and other articles in this work (see especially those on Lord Salisbury, Mr A.J. Balfour, Mr J. Chamberlain, Lord Rosebery, Sir H. Campbell-Bannerman, Mr H.H. Asquith, Mr D. Lloyd George, and on the history of the various portions of the British Empire); and in this place only a summary need be given. The king himself (see [EDWARD VII.](#)), who nobly earned the title of Edward the

Reign of Edward VII.

Peacemaker, played no small part in the domestic and international politics of these years; and contemporary publicists, who had become accustomed to Victorian traditions, gradually realized that, within the limits of the constitutional monarchy, there was much more scope for the initiative of a masculine sovereign in public life than had been supposed by the generation which grew up after the death of his father in 1862. Edward VII. made the Crown throughout all classes of society a popular power which it had not been in England for long ages. And while the growing rivalry between England and Germany, in international relations, was continually threatening danger, his influence in cementing British friendship on all other sides was of the most marked description. His sudden death was felt, not only throughout the empire but throughout the world, with even more poignant emotion than that of Queen Victoria herself, for his personality had been much more in the forefront.

The end of his reign coincided with a domestic constitutional crisis, to which party politics had been working up more and more acutely for several years. The Tariff Reform propaganda of Mr Chamberlain (*q.v.*) in 1903 convulsed the Conservative party, and the long period of Unionist domination came to an end in November 1905. Mr Balfour (*q.v.*), who became prime minister in 1902 on Lord Salisbury's retirement, resigned, and was succeeded by Sir H. Campbell-Bannerman (*q.v.*), as head of the Liberal party; and the general election of January 1906 resulted in an overwhelming victory for the Liberals and their allies, the Labour party (now a powerful force in politics) and the Irish Nationalists. Just before Sir H. Campbell-Bannerman's death in April 1908 he was succeeded as prime minister by Mr Asquith, a leader of far higher personal ability though with less hold on the affections of his party. The Liberals had long arrears to make up in their political programme, and their supremacy in the House of Commons was an encouragement to assert their views in legislation. In several directions, and

The Crisis of 1910.

notably in administration, they carried their policy into effect; but the House of Lords (see [PARLIAMENT](#)) was an obvious stumbling-block to some of their more important Bills, and the Unionist control of that House speedily made itself felt, first in wrecking the Education Bill of 1906, then in throwing out the Licensing Bill of 1908, and finally (see [LLOYD GEORGE, D.](#)) in forcing a dissolution by the rejection of the budget of 1909, with its novel proposals for the increased taxation of land and licensed houses. The Unionist party in the country had, meanwhile, been recovering from the Tariff Reform divisions of 1903, and was once more solid under Mr Balfour in favour of its new and imperial policy; but the campaign against the House of Lords started by Mr Lloyd George and the Liberal leaders, who put in the forefront the necessity of obtaining statutory guarantees for the passing into law of measures deliberately adopted by the elected Chamber, resulted in the return of Mr Asquith's government to office at the election of January 1910. The Unionists came back equal in numbers to the Liberals, but the latter could also count on the Labour party and the Irish Nationalists; and the battle was fully arrayed for a frontal attack on the powers of the Second Chamber when the king's death in May upset all calculations. This unthought-of complication seemed to act like the letting of blood in an apoplectic patient.

The prince of Wales became king as George V. (*q.v.*), and a temporary truce was called; and the reign began with a serious attempt between the leaders of the two great parties, by private conference, to see whether compromise was not possible (see [PARLIAMENT](#)). Apart from the parliamentary crisis, really hingeing on the difficulty of discovering a means by which the real will of the people should be carried out without actually making the House of Commons autocratically omnipotent, but also without allowing the House of Lords to obstruct a Liberal government merely as the organ of the Tory party, the new king succeeded to a noble heritage. The monarchy itself was

Accession of George V.

popular, the country was prosperous and in good relations with the world, except for the increasing naval rivalry with Germany, and the consciousness of imperial solidarity had made extraordinary progress among all the dominions. However the domestic problems in the United Kingdom might be solved, the future of the greatness of the English throne lay with its headship of an empire, loyal to the core, over which the sun never sets.
(H. CH.)

XIII.—SOURCES AND WRITERS OF ENGLISH HISTORY

The attempt here made to combine a bibliography of English history with some account of the progress of English historical writing is beset with some difficulty. The evidential value of what a writer says is quite distinct from the literary art with which he says it; the real sources of history are not the works of historians, but records and documents written with no desire to further any literary purpose. Domesday Book is unique as a source of medieval history, but it does not count in the development of English historical writing. That is quite a secondary consideration; for there was much English history before any Englishman could write; and even after he could write, his compositions constitute a minor part of the evidence.

Our earliest information about the land and its people is derived from geological, ethnological and archaeological studies, from the remains in British barrows and caves, Roman roads, walls and villas, coins, place-names and inscriptions. The writings of Caesar and Tacitus, and a few scattered notices in other Roman authors, supplement this evidence. But the scientific accuracy of Tacitus' *Germania* is not beyond dispute, and that light fails centuries before the Anglo-Saxon conquest of Great Britain. The history of that conquest itself is mainly inferential; there is the *flebilis narratio* of Gildas, vague and rhetorical, moral rather than historical in motive, and written more than a century after the conquest had begun, and

the narrative of the Welsh Nennius, who wrote two and a half centuries after Gildas, and makes no critical distinction between the deeds of dragons and those of Anglo-Saxons. The Anglo-Saxons themselves could not write until Christian missionaries had reintroduced the art at the end of the 6th century, and history was not by any means the first purpose to which they applied it. It was first used to compile written statements of customs and dooms which were their nearest approach to law, and these codes and charters are the earliest written materials for Anglo-Saxon history. The remarkable outburst of literary culture in Northumbria during the 7th and 8th centuries produced a real historian in Bede; Bede, however, knows little or nothing of English history between 450 and 596, and he is valuable only for the 7th and early part of the 8th centuries. Almost contemporary is the *Vita Wilfridi* by Eddius, but more valuable are the letters we possess of Boniface and Alcuin. The famous Anglo-Saxon Chronicle was probably started under the influence of Alfred the Great towards the end of the 9th century. Its chronology is often one, two or three years wrong even when it seems to be a contemporary authority, and the value of its evidence on the conquest and the first two centuries after it is very uncertain. But from Ecgbert's reign onwards it supplies a good deal of apparently trustworthy information. For Alfred himself we have also Asser's biography and the *Annals of St Neots*, a very imaginative compilation, while most of the stories which have made Alfred's name a household word are fabulous. Even the Chronicle becomes meagre a few years after Alfred's death, and its value depends largely upon the ballads which it incorporates; nor is it materially supplemented by the lives of St Dunstan, for hagiologists have never treated historical accuracy as a matter of moment; and our knowledge of the last century of Anglo-Saxon history is derived mainly from Anglo-Norman writers who wrote after the Norman Conquest. Some collateral light on the Danish conquest of England is thrown by the *Heimskringla* and other materials collected in Vigfusson and Powell's *Corpus Poeticum Boreale*, and for the reign of

Canute and his sons there is the contemporary *Encomium Emmae*, which is a dishonest panegyric on the widow of Æthelred and Canute. For Edward the Confessor there is an almost equally biased biography.

For the Norman Conquest itself strictly contemporary evidence is extremely scanty, and historians have exhausted their own and their readers' patience in disputing the precise significance of some phrases about the battle of Hastings used by Wace, a Norman poet who wrote nearly a century after the battle. One version of the Anglo-Saxon Chronicle goes down to 1079 and another to 1154, but their notices of current events are brief and meagre. The Bayeux tapestry affords, however, valuable contemporary evidence, and there are some facts related by eye-witnesses in the works of William of Poitiers and William of Jumièges. A generation of copious chroniclers was, moreover, springing up, and among them were Florence of Worcester, Henry of Huntingdon, Simeon of Durham and William of Malmesbury. Their ambition was almost invariably to write the history of the world, and they generally begin with the Creation. They only become original and contemporary authorities towards the end of their appointed tasks, and the bulk of their work is borrowed from their predecessors. Frequently they embody materials which would otherwise have perished, but their transcription is marred by an amount of conscious or unconscious falsification which seriously impairs their value. All the above-mentioned writers lived in the half-century immediately following the Norman Conquest, but their critical acumen and their literary art vary considerably. William of Malmesbury, Eadmer and Ordericus Vitalis attain a higher historical standard than had yet been reached in England by any one, with the possible exception of Bede. They are not mere annalists; they practise an art and cultivate a style; history has become to them a form of literature. They have also their philosophy and interpretation of history. It is mainly a theological conception, blind to economic influences, and attaching excessive importance to the effects of the individual action of emperors and

popes, kings and cardinals. Even their characters are painted in different colours according to their action on quite irrelevant questions, as, for instance, their benefactions to the monastery, to which the historian happens to belong, or to rival houses; and the character once determined by such considerations, history is made to point the moral of their fortunes, or their fate. It is regarded as the record of moral judgments and the proof of orthodox doctrine, and it is long before ecclesiastical historians expel the sermon from their text.

The line of monastic historians stretches out to the close of the middle ages. Most of the great monasteries had their official annalists, who produced such works as the Annals of Tewkesbury, Gloucester, Burton, Waverley, Dunstable, Bermondsey, Oseney, Winchester (see *Annales Monastici*, 5 vols., ed. Luard, and other volumes in the Rolls series). Some of them are mainly local chronicles; others are almost national histories. In particular, St Albans developed a remarkable school of historians extending over nearly three centuries to the death of Whethamstede in 1465 (see *Chronica Monasterii S. Albani*, Rolls series, 7 vols., ed. Riley). Only a few of the 235 volumes published under the direction of the master of the Rolls, and called the Rolls series, can here be mentioned. Other medieval writers have been edited for the earlier English Historical Society; some of them have been re-edited without being superseded in the Rolls series. For the reign of Stephen we have the anonymous *Gesta Stephani* in addition to the writers already mentioned, several of whom continue into Stephen's reign. For Henry II. we have William of Newburgh, who reaches the highest point attained by historical composition in the 12th century; the so-called Benedict of Peterborough's *Gesta Henrici*, which Stubbs tentatively and without sufficient authority ascribed to Richard Fitznigel; Robert of Torigni; and seven volumes of "Materials for the History of Thomas Becket," which contain some of the best and worst samples of hagiological history. For Richard and John the chronicles of Roger of Hoveden, Ralph de Diceto

(Diss), Gervase of Canterbury, Ralph of Coggeshall, and a later continuation of Hoveden, known under the name of Walter of Coventry, are the best narrative authorities.

With the accession of Henry III., Roger of Wendover, the first of the St Albans school whose writings are extant, becomes our chief authority. He was re-edited and continued after 1236 by Matthew Paris, the greatest of medieval historians. His work, which goes down to 1259, is picturesque, vivid, and marked by considerable breadth of view and independence of judgment. The story is carried on by a series of jejune compilations known as the *Flores historiarum* (ed. Luard). Better authorities for Edward I. are Rishanger, Trokelowe and Blaneфорde, Wykes, Walter of Hemingburgh, Nicholas Trevet, Oxnead and Bartholomew Cotton, and others contained in Stubbs's *Chronicles of Edward I. and Edward II.* In the 14th century there is a significant deterioration in the monastic chroniclers, and their place is taken by the works of secular clergy like Adam Murimuth, Geoffrey the Baker, Robert of Avesbury, Henry Knighton and the anonymous author of the *Eulogium historiarum*. Monastic history is represented by Higden's voluminous *Polychronicon*, which succeeds the *Flores historiarum*. A brief revival of the St Albans school towards the end of the century is seen in the *Chronicon Angliae* and the works of T. Walsingham, which continue into the reign of Henry V. For Richard II. we have also Malverne and the Monk of Evesham; for the early Lancastrians, Capgrave, Elmham, Otterbourne, Adam of Usk; and for Henry VI., Amundesham, Whethamstede, William of Worcester and John Hardyng, as well as a number of anonymous briefer chronicles, edited, though not in the Rolls series, by J. Gairdner, C.L. Kingsford, N.H. Nicolas and J.S. Davies.

These are the principal English historical writers for the middle ages; but as the connexion between England and the continent grew closer, and international relations developed, an increasing amount of light is thrown

on English history by foreign writers. Of these authorities one of the earliest is the *Histoire des ducs de Normandie et des rois d'Angleterre* (ed. Michel); briefer are the *Chronique de l'Anonyme de Béthune* and the *Histoire de Guillaume le Maréchal*. A large number of French and Flemish chronicles illustrate the history of the Hundred Years' War, by far the most important being Froissart (best edition by Luce, though Lettenhove's is bigger). Next come Jehan le Bel, Waurin's *Recueil*, Monstrelet, Chastellain, Juvenal des Ursins, and more limited works such as Créton's *Chronique de la traison et mort de Richard II*.

Chronicles, however, grow less important as sources of history as time goes on. Their value is always dependent upon the absence of the more satisfactory materials known as records, and these records gradually become more copious and complete. They develop with the government, of whose activity and policy they are the real test and evidence. Perhaps the most important thing in history is the evolution of government, the development of consciousness and a will on the part of the state. This will is expressed in records; and, as the state progresses from infancy through the stage of tutelage under the church to its modern "omnicompetence," so its will is expressed in an ever widening and differentiating series of records. The first need of a government is finance; the earliest organized machinery for exerting its will is the exchequer; and the earliest great record in English history is Domesday Book. It is followed by a series of exchequer records, called the Pipe Rolls, which begin in the reign of Henry I., and dating from that of Henry II. is the *Dialogus de scaccario*, which explains in none too lucid language the intricate working of the exchequer system. It was Henry II. who gave the greatest impetus to the development of the machinery for expressing the will of the state. He began with finance and went on to justice, recognizing that *justitia magnum emolumentum*, the administration of justice was a great source of revenue. So national courts of law are added to the national exchequer, and by the end of the 12th century legal records

become an even more important source of history than financial documents. The judicial system is described by Glanvill at the end of the 12th, and by Bracton and Fleta in the 13th century (for the exchequer see the *Testa de Nevill* and the *Red Book of the Exchequer*). During that period the Curia Regis threw off three offshoots—the courts of exchequer, king's bench and common pleas; and records of their judicial proceedings survive in the Plea Rolls and Year Books, some of which have been edited for the Rolls series, the Selden and other societies. Numerous other classes of legal and administrative records gradually develop, the Patent and Close Rolls (first calendared by the Record Commission, and subsequently treated more adequately under the direction of the deputy keeper of the Records), Charters (which were first grants to individuals, then to collective groups, monasteries or boroughs, then to classes, and finally expanded—as in Magna Carta—into grants to the whole nation), Escheats, Feet of Fines, Inquisitiones post mortem, Inquisitiones ad quod damnum, Placita de Quo Warranto, and others for which the reader is referred to S.R. Scargill-Bird's *Guide to the Principal Classes of Documents preserved in the Record Office* (3rd ed., 1908). Every branch of administration comes to be represented in records almost as soon as it is developed. The evolution of the army which won Crécy and Poitiers is accompanied by the accumulation of a mass of indentures and other military documents, the value of which has been illustrated in Dr Morris's *Welsh Wars of Edward I.* and George Wrottesley's *Crécy and Calais from the Public Records*. The growth of naval organization is reflected in the *Black Book of the Admiralty*; the growth of taxation in the *Liber custumarum* and *Subsidy Rolls*; the rise of parliament in the *Parliamentary Writs* (ed. Palgrave), in the *Rotuli parliamentorum*, in the *Official Return of Members of Parliament*, and in the *Statutes of the Realm*; that of Convocation in David Wilkins's *Concilia*. The register of the privy council does not begin until later in the 14th century, and then is broken off between the middle of the 15th and 1539.

Local as well as central government begets records as it grows. From the *Extenta manerii* of the 12th century we get to the *Manorial Rolls* of the 13th, when also we have *Hundred Rolls*, records of forest courts, of courts leet and of coroners' courts, and a variety of municipal documents, for which the reader is referred to Dr C. Gross's *Bibliography of British Municipal History* and to Mrs J.R. Green's more popular *Town Life in the Fifteenth Century*. The municipal records of London, its hustings court and city companies, are too multifarious to describe; some classes of these documents have been exemplified in the works of Dr R.R. Sharpe. Ecclesiastical records are represented by the episcopal registers (for the most part still unpublished), monastic cartularies, and other documents rendered comparatively scarce by the spoliation of the monasteries, and scattered proceedings of ecclesiastical courts. (See also the article [RECORD](#).)

Documents, other than records strictly so called, begin to grow with the habit of correspondence and the necessity of communication. A few letters survive from the time of the Norman kings, but the earliest collection of English royal letters is the *Letters of Henry III*. (Rolls series). Contemporary are the *Letters of Grosseteste*, and a little later come the *Letters of Archbishop Peckham* and Raine's *Letters from Northern Registers* (all in the Rolls series). Private correspondence appeared earlier in the voluminous epistles of Peter of Blois, archdeacon of Bath (ed. Giles). This is a somewhat intermittent source of history until we come to the 15th century, when the well-known *Paston Letters* (ed. Gairdner) begin a stream which never fails thereafter and soon becomes a torrent. The most important series of official correspondence is the *Papal Letters*, calendared from 1198 to 1404 in 4 vols. (ed. Bliss, Johnson and Twemlow). Subsidiary sources are the *Political Songs* (ed. Wright), treatises like those of John of Salisbury, Gerald of Wales, and, later, Wycliffe's works, Netter's *Fasciculi Zizaniorum*, Gascoigne's *Loci e libro veritatum*, Pecock's *Repressor*, and

the literary writings of Chaucer, Langland, Gower, Richard Rolle and others.

During the 15th century the transition, which marks the change from medieval to modern history, affects also the character of historical sources and historical writing. In the first place, history ceases to be the exclusive province of the church; monastic chronicles shrink to a trickle and then dry up; the last of their kind in England is the *Greyfriars Chronicle* (Camden Society), which ends in 1554. Their place is taken by the city chronicle compiled by middle-class laymen, just as the Renaissance was not a revival of clerical learning, but the expression of new intellectual demands on the part of the laity. Secondly, the definite disappearance of the medieval ideas of a cosmopolitan world and the emergence of national states begat diplomacy, and with it an ever-swelling mass of diplomatic material. Diplomacy had hitherto been occasional and intermittent, and embassies rare; now we get resident ambassadors carrying on a regular correspondence (see [DIPLOMACY](#)). The mercantile interests of Venice made it the pioneer in this direction, though its representatives abroad were at first commercial rather than diplomatic agents. The *Calendar of Venetian State Papers* goes back to the 14th century, but does not become copious till the reign of Henry VII., when also the Spanish Calendar begins. Resident French ambassadors in England only begin in the 16th century, and later still those from the emperor, the German and Italian states other than Venice. In the third place, the development of the new monarchy involved an enormous extension of the activity of the central government, and therefore a corresponding expansion in the records of its energy.

The political records of this energy are the State Papers, a class of document which soon dwarfs all others, and renders chroniclers, historians and the like almost negligible quantities as sources of history; but in another way their value is enhanced, for these hundreds of thousands of documents

provide a test of the accuracy of modern historians which is imperfect in the case of medieval chroniclers and almost non-existent in that of ancient writers. These state papers are either “foreign” or “domestic,” that is to say, the correspondence of the English government with its agents abroad, or at home. There is also the correspondence of foreign ambassadors resident in England with their governments. This last class of documents exists in England mainly in the form of transcripts from the originals in foreign archives, which have been made for the purpose of the Venetian and Spanish Calendars of state papers. The Venetian Calendar had by 1909 been carried well into the 17th century; the Spanish (which includes transcripts from the Habsburg archives at Vienna, Brussels and Simancas) covered only the reigns of Henry VII. and VIII. and Queen Elizabeth. No attempt had yet been made to calendar the French correspondence in a similar way, though the French Foreign Office published some fragmentary collections, such as the *Correspondance de MM. de Castillon et de Marillac* and that of Odet de Selve. There are other collections too numerous to enumerate, such as Lettenhove’s edition of Philip II.’s correspondence relating to the Netherlands, Diegerick and Müller’s, Teulet’s and Albéri’s collections, the French *Documents inédits* and the Spanish *Documentos ineditos*, all containing state papers relating to England’s foreign policy in the 16th century. The Scottish and Irish state papers are calendared in separate series and without much system. Thus for Scottish affairs there are four series, the Border Papers, the Hamilton Papers, Thorp’s Calendar, and, more recent and complete, Bain’s Calendar. For Ireland, besides the regular Irish state papers, there are the Carew Papers, almost as important. Anarchy, indeed, pervades the whole method of publication. For the reign of Henry VII. we have, besides the Venetian and Spanish Calendars, only three volumes—Gairdner’s *Letters and Papers of Richard III. and Henry VII.* and Campbell’s *Materials* (2 vols., Rolls series). Then with the reign of Henry VIII. begins the magnificent and monumental *Letters and Papers of Henry*

VIII., the one modern series for which the Record Office deserves unstinted praise. This is not limited to state papers, domestic and foreign, nor to documents in the Record Office; it calendars private letters, grants, &c., extant in the British Museum and elsewhere. It extends to 21 volumes, each volume consisting of two or more parts, and some parts (as in vol. iv.) containing over a thousand pages; it comprises at least fifty thousand documents. Its value, however, varies; the earlier volumes are not so full as the later, the documents are not so well calendared, and some classes are excluded from earlier, which appear in the later, volumes.

After 1547 a different plan is adopted, though not consistently followed. Only state papers are calendared, and as a rule only those in the Record Office; and the domestic are separated from the foreign. The great fault is the neglect of the vast quantities of state papers in the British Museum. The Domestic Calendar (the first volume of which is very inadequate) extended in 1909 in a series of more than seventy volumes nearly to the end of the 17th century; the mass of MSS. calendared therein may be gathered from the fact that for the reign of Elizabeth the Domestic state papers fill over three hundred MS. volumes. The Foreign Calendar had only got to 1582, but it occupied sixteen printed volumes against one of the Domestic Calendar. For the masses of MSS. uncalendared in the British Museum there is no guide except the imperfect indexes to the Cotton, Harleian, Lansdowne, Additional and other collections. Hardly less important than the calendars are the reports of the Historical Manuscripts Commission and the appendices thereto, which extend to over a hundred volumes; twelve are occupied by Lord Salisbury's 16th-century MSS. at Hatfield House. The dispersion of these state papers is due to the fact that they were in those days treated not as the property of the state, but as the private property of individual secretaries.

State papers represent only one side of the activity of the central government. The register of the privy council, extending with some lacunae from 1539 to 1604, has been printed in thirty-two volumes. The *Rotuli parliamentorum* end with Henry VII., but in 1509 begin the journals of the House of Lords, and in 1547 the journals of the House of Commons. These are supplemented by private diaries of members of parliament, several of which were used in D'Ewes's *Journals*. Legal history can now be followed in a continuous series of law reports, beginning with Keilway, Staunford and Dyer, and going on with Coke and many others; documentary records of various courts are exemplified in the *Select Cases* from the star chamber, the court of requests and admiralty courts, published by the Selden Society; and there are voluminous records of the courts of augmentations, first-fruits, wards and liveries in the Record Office. For Ireland, besides the state papers, there are the Calendars of Patents and of Fiants, and for Scotland the Exchequer Rolls and Registers of the Privy Council and of the Great Seal, both extending to many volumes.

Unofficial sources multiply with equal rapidity, but it is impossible to enumerate the collections of private letters, &c., only a few of which have been published. The chronicles, which in the 15th century are usually meagre productions like Warkworth's (Camden Society), get fuller, especially those emanating from London. Fabyan is succeeded by Hall, an indispensable authority for Henry VIII., and Hall by Grafton. Other useful books are Wriothesley's *Chronicle* and Machyn's *Diary*, and they have numerous successors; some of their works have been edited for the Camden Society, which now takes the place of the Rolls series. The most important are Holinshed, Stow and Camden; and gradually, with Speed and Bacon, the chronicle develops into the history, and early in the 17th century we get such works as Lord Herbert's *Reign of Henry VIII.*, Hayward's *Edward VI.*, and, on the ecclesiastical side, Heylyn, Fuller, Burnet and Collier's histories of the church and Reformation. Foxe, who died in 1587, included a vast and

generally accurate collection of documents in his *Acts and Monuments*, popularized as the *Book of Martyrs*, though his own contributions have to be discounted as much as those of Sanders, Parsons and other Roman Catholic controversialists. Two other great collections are the Parker Society's publications (56 vols.), which contain besides the works of the reformers a considerable number of their letters, and Strype's works (26 vols.). The naval epic of the period is Hakluyt's *Navigations*, re-edited in 12 vols. in 1902, and continued in Purchas's *Pilgrims*.

In the 17th century the domestic and foreign state papers eclipse other sources almost more completely than in the 16th. The colonial state papers now become important and extensive, those relating to America and the West Indies being most numerous (18 vols. to 1700). Parliamentary records naturally expand, and the journals of both houses become more detailed. Parliamentary diarists like D'Ewes, Burton and Walter Yonge, only a fragment of whose shorthand notes in the British Museum has been published (Camden Society), elucidate the bare official statements; and from 1660 the series of parliamentary debates is fairly complete, though not so full or authoritative as it becomes with Hansard in the 19th century. Social diarists of great value appear after the Restoration in Pepys, Evelyn, Reresby, Narcissus Luttrell and Swift (*Journal to Stella*), and political writing grows more important as a source of history, whether it takes the form of Bacon's (ed. Spedding) or Milton's treatises, or of satires like Dryden's and political pamphlets like Halifax's and then Swift's, Defoe's and Steele's. Clarendon's *Great Rebellion* and Burnet's *History of My Own Time* are the first modern attempts at contemporary history, as distinct from chronicles and annals, in England, although it is difficult to exclude the work of Matthew Paris from the category. The innumerable tracts and newsletters are a valuable source for the Civil Wars and Commonwealth period (see J.B. Williams, *A History of English Journalism*, 1909), while Thurloe's, Clarendon's and Nalson's collections of state papers deserve a

mention apart from the Domestic Calendar. There is a still more monumental collection—the Carte Papers—on Irish affairs in the Bodleian Library, where also the Tanner MSS. and other collections have only been very partially worked. The volumes of the Historical MSS. Commission are of great value for the later Stuart period, notably the House of Lords MSS.

For the 18th century the only calendars are the Home Office Papers and the Treasury Books and Papers, the further specialization of government having made it necessary to differentiate domestic state papers into several classes. But it need hardly be said that the bulk of correspondence in the Record Office does not diminish. Outside its walls the most important single collection is perhaps the duke of Newcastle's papers among the Additional MSS. in the British Museum; the Stuart papers at Windsor, Mr Fortescue's at Dropmore, Lord Charlemont's (Irish affairs), Lord Dartmouth's (American affairs) and Lord Carlisle's, all calendared by the Historical MSS. Commission, are also valuable. Chatham's correspondence with colonial governors has been published (2 vols., 1906), as have the *Grenville Papers*, *Bedford Correspondence*, Malmesbury's *Diaries*, Auckland's *Journals and Correspondence*, Grafton's *Correspondence*, Lord North's *Correspondence with George III.*, and other correspondence in *The Memoirs of Rockingham*, and the duke of Buckingham's *Court and Cabinets of George III.* Mention should also be made of Gower's *Despatches*, the *Cornwallis Correspondence*, Rose's *Correspondence* and Lord Colchester's *Correspondence*. Of special interest is the series of naval records, despatches to and from naval commanders, proceedings of courts-martial, and logs in the Record Office which have never been properly utilized.

Among unofficial sources the most characteristic of the 18th century are letters, memoirs and periodical literature. Horace Walpole's *Letters* (Clarendon Press, 16 vols.) are the best comment on the history of the

period; his *Memoirs* are not so good, though they are superior to Wraxall, who succeeds him. Periodical literature becomes regular in the reign of Queen Anne, chiefly in the form of journals like the *Spectator*; but several daily newspapers, including *The Times*, were founded during the century. *The Craftsman* provided a vehicle for Bolingbroke's attacks on Walpole, while the *Gentleman's Magazine and Annual Register* begin a more serious and prolonged career. Both contain occasional state papers, and not very trustworthy reports of parliamentary proceedings. The publication of debates was not authorized till the last quarter of the century; parliamentary papers begin earlier, but only slowly attain their present portentous dimensions. Political writing is at its best from Halifax to Cobbett, and its three greatest names are perhaps Swift, "Junius" and Burke, though Steele, Defoe, Bolingbroke and Dr Johnson are not far behind, while Canning's contributions to the *Anti-Jacobin* and Gillray's caricatures require mention.

The sources for 19th-century history are somewhat similar to those for the 18th. Diaries continue in the *Creevey Papers*, Greville's Diary, and lesser but not less voluminous writers like Sir M.E. Grant-Duff. The most important series of letters is Queen Victoria's (ed. Lord Esher and A.C. Benson, 1908), and the correspondence of most of her prime ministers and many of her other advisers has been partially published. Of political biographies there is no end. The great bulk of material, however, consists of blue-books, Hansard's *Parliamentary Debates*, and newspapers—which are better as indirect than direct evidence. The real truth is not of course revealed at once, and many episodes in 19th-century history are still shrouded by official secrecy. In this respect English governments are more cautious or reactionary than many of those on the continent of Europe, and access to official documents is denied when it is granted elsewhere; even the lapse of a century is not considered a sufficient salve for susceptibilities which might be wounded by the whole truth.

Meanwhile the 19th century witnessed a great development in historical writing. In the middle ages the stimulus to write was mainly of a moral or ecclesiastical nature, though the patriotic impulse which had suggested the Anglo-Saxon Chronicle was perhaps never entirely absent, and the ecclesiastical motive often degenerated into a desire to glorify, sometimes even by forgery, not merely the church as a whole, but the particular monastery to which the writer belonged. As nationalism developed, the patriotic motive supplanted the ecclesiastical, and stress is laid on the “famous” history of England. Insular self-glorification was, however, modified to some extent by the Renaissance, which developed an interest in other lands, and the Reformation, which gave to much historical writing a partisan theological bias. This still colours most of the “histories” of the Reformation period, because the issues of that time are living issues, and the writers of these histories are committed beforehand by their profession and their position to a particular interpretation. In the 17th century political partisanship coloured historical writing, and that, too, remained a potent motive so long as historians were either Whigs or Tories. Histories were often elaborate party pamphlets, and this race of historians is hardly yet extinct. Macaulay is not greatly superior in impartiality to Hume; Gibbon and Robertson were less open to temptation because they avoided English subjects. Hallam deliberately aimed at impartiality, but he could not escape his Whig atmosphere. Nevertheless, the effort to be impartial marks a new conception of history, which is well expressed in Lord Acton’s admonition to his contributors in the *Cambridge Modern History*. Historians are to serve no cause but that of truth; in so far even as they desire a line of investigation to lead to a particular result, they are not, maintains Professor Bury, real historians. S.R. Gardiner perhaps attained most nearly this severe ideal among English historians, and Ranke among Germans. But, even when all conscious bias is eliminated, the unconscious bias remains, and Ranke’s history of the Reformation is essentially a middle-class, even

bourgeois, presentment. Stubbs's medievalist sympathies colour his history throughout, and still more strongly does Froude's anti-clericalism. Freeman's bias was peculiar; he is really a West Saxon of Godwine's time reincarnated, and his Somerset hatred of French, Scots and Mercian foreigners sets off his robust loyalty to the house of Wessex. Lecky and Creighton are almost as dispassionate as Gardiner, but are more definitely committed to particular points of views, while democratic fervour pervades the fascinating pages of J.R. Green, and an intellectual secularism, which is almost religious in its intensity and idealism, inspired the genius of Maitland.

The latest controversy about history is whether it is a science or an art. It is, of course, both, simply because there must be science in every art and art in every science. The antithesis is largely false; science lays stress on analysis, art on synthesis. The historian must apply scientific methods to his materials and artistic methods to his results; he must test his documents and then turn them into literature. The relative importance of the two methods is a matter of dispute. There are some who still maintain that history is merely an art, that the best history is the story that is best told, and that what is said is less important than the way in which it is said. This school generally ignores records. Others attach little importance to the form in which truth is presented; they are concerned mainly with the principles and methods of scientific criticism, and specialize in palaeography, diplomatic and sources. The works of this school are little read, but in time its results penetrate the teaching in schools and universities, and then the pages of literary historians; it is represented in England by a fairly good organization, the Royal Historical Society (with which the Camden Society has been amalgamated), and by an excellent periodical, *The English Historical Review* (founded in 1884), while some sort of propaganda is attempted by the Historical Association (started in 1906). Its standards have also been upheld with varying success in great co-operative undertakings, such as the

Dictionary of National Biography, the *Cambridge Modern History*, and Messrs Longmans' *Political History of England*.

These 19th-century products require some sort of classification for purposes of reference, and the chronological is the most convenient. Lingard's, J.R. Green's and Messrs Longmans' histories are the only notable attempts to tell the history of England as a whole, though Stubbs's *Constitutional History* (3 vols.) covers the middle ages and embodies a political survey as well (for corrections and modifications see Petit-Dutaillis, *Supplementary Studies*, 1908), while Hallam's *Constitutional History* (3 vols.) extends from 1485 to 1760 and Erskine May's (3 vols.) from 1760 to 1860. Sir James Ramsay's six volumes also cover the greater part of medieval English history. There is no work on a larger scale than Lappenberg and Kemble, dealing with England before the Norman Conquest, though J.R. Green's *Making of England* and *Conquest of England* deal with certain portions in some detail, and Freeman gives a preliminary survey in his *Norman Conquest* (6 vols.). For the succeeding period see Freeman's *William Rufus*, J.H. Round's *Feudal England* and *Geoffrey de Mandeville*, and Miss Norgate's *England under the Angevins and John Lackland*. From 1216 we have nothing but Ramsay, Stubbs, Longmans' *Political History* and monographs (some of them good), until we come to Wylie's *Henry IV.* (4 vols.); and again from 1413 the same is true (Gairdner's *Lollardy and the Reformation* being the most elaborate monograph) until we come to Brewer's *Reign of Henry VIII.* (2 vols.; to 1530 only), Froude's *History* (12 vols., 1529-1588) and R.W. Dixon's *Church History* (6 vols., 1529-1570). From 1603 to 1656 we have Gardiner's *History* (England, 10 vols.; Civil War, 4 vols.; Commonwealth and Protectorate, 3 vols.), and to 1714 Ranke's *History of England* (6 vols.; see also Firth's *Cromwell* and *Cromwell's Army*, and various editions of texts and monographs). For Charles II. there is

no good history; then come Macaulay, and Stanhope and Wyon's *Queen Anne*, and for the 18th century Stanhope and Lecky (England, 7 vols.; Ireland, 5 vols.). From 1793 to 1815 is another gap only partially filled. Spencer Walpole deals with the period from 1815 to 1880, and Herbert Paul with the years 1846-1895.

A few books on special subjects deserve mention. For legal history see Pollock and Maitland's *History of English Law* (2 vols. to Edward I.), Maitland's *Domesday Book and Beyond*, and Anson's *Law and Custom of the Constitution*; for economic history, Cunningham's *Growth of Industry and Commerce*, and Ashley's *Economic History*; for ecclesiastical history, Stephens and Hunt's series (7 vols.); for foreign and colonial, Seeley's *British Foreign Policy and Expansion of England*, and J.A. Doyle's books on the American colonies; for military history, Fortescue's *History of the British Army*, Napier's and Oman's works on the *Peninsular War*, and Kinglake's *Invasion of the Crimea*; and for naval history, Corbett's *Drake and the Tudor Navy*, *Successors of Drake*, *English in the Mediterranean* and *Seven Years' War*, and Mahan's *Influence of Sea-Power on History* and *Influence of Sea-Power upon the French Revolution and Empire*.

BIBLIOGRAPHY OF BIBLIOGRAPHIES.—The sources for the middle ages have been enumerated in C. Gross's *Sources and Literature of English History ... to about 1485* (London, 1900), but there is nothing similar for modern history. G.C. Lee's *Source Book of English History* is not very satisfactory. More information can be obtained from the bibliographies appended to the volumes in Longmans' *Political History*, or the chapters in the *Cambridge Modern History*, or to the biographical articles in the *D.N.B.* and *Ency. Brit.* A series of bibliographical leaflets for the use of teachers is issued by the Historical Association. For MSS. sources see Scargill-Bird's *Guide to*

the Record Office, and the class catalogues in the MSS. Department of the British Museum. Lists of the state papers and other documents printed and calendared under the direction of the master of the Rolls and deputy keeper of the Records are supplied at the end of many of their volumes.

(A. F. P.)

1 As the name Edith (Eadgyth) sounded uncouth to Norman ears, she assumed the continental name Maheut or Mahelt (Eng. Mahald, later Mold and Maud), in Latin Matildis or Matilda. Sir J.H. Ramsay, *Foundations of England*, ii. 235. (Ed.)

2 The Nottingham of 1387, who had been promoted to the higher title.

3 Mr Andrew Lang takes a different view of the character of Albany and his attitude in this matter. See *Hist. of Scotland*, i. 289, and the article [SCOTLAND: History](#).—ED.

4 The peculiar absurdity of Henry's claim to be king of France was that if, on the original English claim as set forth by Edward III., heirship through females counted, then the earl of March was entitled to the French throne. A vote of the English parliament superseding March's claim in favour of that of Henry IV. could obviously have no legal effect in France.

5 The events of the reign of Charles I. are treated in greater detail in the articles [CHARLES I.](#), King of Great Britain and Ireland; [STRAFFORD](#); [HAMPDEN](#); [PYM](#); [GREAT REBELLION](#); [CROMWELL](#), &c.

6 The position of the Corresponding Society was greatly strengthened by the establishment of the Friends of the People by Erskine and Grey.

7 A vivid account of the mutiny and its causes is given in Captain Marryat's *King's Own*.

8 Edward Henry Stanley, 15th earl of Derby, son of the 14th earl and former prime minister.

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